

THE COMPLETE FOURTEEN-PART INVESTIGATION

THE RESERVATION FILES

The complete, honest history of India's biggest argument.

From the oldest evidence we have to the movement that appeared in July 2026 — with every argument on both sides given at full strength, every claim marked fact, interpretation or contested, and a verdict clearly labelled as opinion.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA · 14 PARTS

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How To Read This Book

This book has one rule, and the whole thing depends on it: **facts and opinions are never mixed together.**

Almost everything written about reservation mixes three different things and presents all of them in the same confident voice. A hard fact, a reasonable opinion about that fact, and a made-up claim. So here they are colour-coded.

■ FACT

Checkable and not seriously disputed.

A number, a date, a law, a court ruling, a line from a document. You can verify it yourself.

■ INTERPRETATION

Same fact. Two honest readings.

Where most of the real argument lives. Both readings get written out properly.

■ CONTESTED CLAIM

Asserted by someone. The evidence is thin or missing.

This box appears for *both* sides, no matter who is making the claim.

The other four promises

- ▶ **Simple English, always.** No difficult words without explanation, no showing off.
- ▶ **Both sides at full strength.** Every argument is written the way its *smartest* supporter would write it — not the version that is easy to knock down.
- ▶ **My opinion is labelled.** When I give a verdict it sits in a box saying so. You are free to throw it away and keep the facts.
- ▶ **Sources on the page.** Every number traceable. Nothing rests on "someone said".

A WARNING

If you came hoping this will confirm what you already believe, you are going to be uncomfortable several times. That is the point. A book that only tells you that you were right was not worth writing.

— Lovepreet Singh

July 2026

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART ONE

GROUND ZERO

What reservation actually is, how it actually works, and why 5.8 million Indians joined a movement to end it in seven days.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

How To Read This Book

This book has one rule, and the whole thing depends on it.

Facts and opinions will never be mixed together.

Almost everything you have read about reservation — on Instagram, on WhatsApp, on news TV — mixes three completely different things and presents all of them as "the truth." A hard fact, a reasonable opinion about that fact, and a made-up claim all get said in the same confident voice.

So in this book they are colour-coded. Every time something important comes up, you will see one of these three boxes.

■ FACT

This is checkable and not seriously disputed.

A number, a date, a law, a court ruling, a line from a document. You can go and verify it yourself. Both sides of the argument accept it — or they would have to stop arguing if they read it.

■ INTERPRETATION

Same fact. Two honest readings.

This is where most of the real argument lives. Two intelligent, well-meaning people look at exactly the same evidence and reach opposite conclusions. Neither is lying. When you see this box, both readings get written out properly.

■ CONTESTED CLAIM

Someone is asserting this. The evidence is thin or missing.

This box appears for *both* sides. If a popular claim cannot be backed up, it gets this box, no matter who is making it or how much I might personally like it.

The other four promises

- ▶ **Simple English, always.** No difficult words without an explanation. No showing off. If a fifteen-year-old who hates reading cannot follow a page, that page is badly written and it is my fault, not yours.
- ▶ **Both sides at full strength.** Every argument in this series is written the way its *smartest* supporter would write it — not the stupid version that is easy to knock down. This is called steelmanning. It is the opposite of what social media does.
- ▶ **My opinion will be labelled.** When I give a verdict, it will sit in a box that says it is my verdict. You are free to throw it away and keep the facts.
- ▶ **Sources on the page.** Every number is traceable. Nothing here rests on "someone said."

A WARNING

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Why I Started Writing This

In the last week of July 2026, I was doing what most of us were doing: scrolling. And in seven days I watched an Instagram account go from nothing to nearly six million followers. Six million. That is more people than live in Singapore.

The account was called Reservation Hatao Andolan. The comment sections underneath its videos were some of the angriest writing I have ever read from Indians about other Indians. And what struck me was not the anger. Anger about jobs and exams in this country is completely understandable — I have felt it myself.

What struck me was that almost nobody arguing seemed to know what they were arguing about.

People were furious about a system whose actual rules they had never read. They were quoting history they had never checked. They were repeating numbers that were wrong — and I mean wrong on both sides. And every single person, on every side, was completely certain.

I include myself in this. When I started reading properly for this book, I found out that several things I had believed my whole life were simply not true. Some of them were things I had believed because they made my side look good.

"I do not think most Indians disagree about reservation. I think most Indians have never actually been told what it is."

So I decided to go back to the absolute beginning. Not to 1990. Not to 1950. To the beginning — to the oldest texts, the archaeology, the genetics, the court records, the census files, and to what the great minds on every side actually wrote rather than what people claim they wrote. And then to come forward, slowly, until we reach the argument happening on our phones right now.

This is Part 1 of fourteen. It does not settle anything. Its job is smaller and more important: to make sure that by the end of it, you actually know what the thing is. What reservation literally does. What the real numbers are. What the two sides are truly claiming, at their strongest. Everything after this is built on this foundation.

One last thing. I have tried very hard to be fair to people I disagree with. If you finish this book and cannot tell which side I am on until the chapter where I tell you, I will have done my job.

— Lovepreet Singh
July 2026

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WHAT THIS PART DOES NOT DO

Part 1 does not decide anything. It does not tell you whether caste discrimination was real, whether reservation works, or who is right. Those are Parts 2 through 14. This part only makes sure you and I are talking about the same thing.

1 Five Point Eight Million People in Seven Days

How a movement appeared out of nowhere in July 2026

2 Reservation in One Page

The simplest honest definition, and the two analogies each side prefers

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Who gets how much, and the 50% wall that broke in 2019

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Everything in this book, compressed

Five Point Eight Million People in Seven Days

A young man stood up on live television and asked a question. Within a week, six million people had joined a movement.

Picture a television studio. It is July 2026. India has spent two months in the middle of the largest youth protest in a generation. Exam papers have leaked. Students have died. A movement with a strange name — the Cockroach Janta Party — has filled Jantar Mantar in Delhi and streets in dozens of cities.

On an NDTV broadcast, a NEET aspirant named Harsh Dubey stops being a polite guest. He stands up, points at the anchor, and shouts a question at the whole room:

"Why does no one ever talk about reservation? Neither does any news channel talk about it, nor does the opposition talk about it, nor does the ruling party talk about it."

HARSH DUBEY, NEET ASPIRANT, ON NDTV, JULY 2026

He was, in one narrow sense, completely right. For years, mainstream Indian politics has treated reservation as a subject you do not open. Every major party supports it in public. Nobody wants the fight.

That clip went everywhere.

What happened next was faster than anything in Indian internet history

On **22 July 2026**, an Instagram account appeared: **@reservationhataomovement**. Its bio read: "backed by citizens discarded by reservation politics, driven by merit."

It used the Harsh Dubey clip as its founding video.

24 hrs

Time taken to cross one million followers

5.6 M

Followers by 28 July, per Outlook India

5.8 M

Followers by 5 p.m. on 29 July, per The Quint

■ FACT

The growth is real and was independently reported.

Outlook India reported 5.6 million followers and 122 posts on 28 July 2026. The Quint independently reported 5.8 million as of 5 p.m. on 29 July 2026, and confirmed the account was created on 22 July. Whatever you think of the movement, this is one of the fastest civic mobilisations India has seen.

Sources: Outlook India, 28 July 2026 · The Quint, 29 July 2026

It did not call for a march. It called for a flood.

This is the part that makes 2026 different from 1990. In 1990, when India last exploded over reservation, students blocked trains and burned buses. In 2026, the instruction was different. An RHA video told followers:

"You need to flood the comment sections... The algorithm should reflect nothing but the issue of reservation. Since this is a Gen-Z protest, we will conduct it in the Gen-Z way."

RHA ACCOUNT VIDEO, QUOTED BY THE QUINT

No permission needed. No police lathi charge to film. No leaders to arrest. A protest that lives entirely inside the recommendation algorithms of two or three American companies.

And then the other side arrived

Within days, anti-caste creators, scholars, students and cartoonists were producing rebuttals that were getting hundreds of thousands of likes of their own. One post calling the campaign "politically, historically, and statistically illiterate" crossed 52,000 likes. An illustration against manual scavenging crossed 75,000.

One line from that pile-on is worth putting in a box, because it is the sharpest single sentence produced by either side in the whole week:

"So many posts are demanding the end of reservation, yet not a single one demands the end of caste or casteism."

VIRAL POST ON X, 26 JULY 2026

The uncomfortable observation

I spent several days reading those comment sections. Thousands of them. Here is what I found, and I want to say it plainly because it applies to almost everyone, on every side.

Most people arguing did not know the rules of the thing they were arguing about.

People were confidently wrong about what percentage is reserved. About whether a reserved-category topper takes a general seat. About what the Constitution says. About what a "cut-off" even means. About whether reservation had a ten-year expiry date. About what the creamy layer is.

These are not obscure details. These are the basic operating rules. And they were being got wrong by people writing paragraphs of certainty at three in the morning.

■ INTERPRETATION

Why did this explode now, and not in 2019 or 2022?

Reading one: This is real, spontaneous frustration finally finding a voice. Government jobs are shrinking, exams are being leaked, unemployment among graduates is severe, and a generation that did everything right feels cheated. The CJP protests proved to young Indians that online anger can actually force a minister out. RHA was the second wave of the same energy.

Reading two: This is opportunism. A movement about paper leaks — a failure of the government's own exam agency — was successfully redirected within 48 hours into a fight between students and other students. The people who ran the leaky exams disappear from the story entirely. The anger stays, but the target changes.

Both readings can be true at once. Genuine frustration and convenient redirection are not opposites. That is exactly how political energy usually gets used.

WHERE WE GO FROM HERE

Before we can judge any of this, we need to know what reservation actually is. Not what it feels like. What it is. That is the next three chapters, and they are the least exciting and most important pages in this book.

Reservation in One Page

Forget everything you have heard. Here is the plainest possible description of what the system does.

Reservation is a rule that says: in government jobs, in government-funded colleges, and in elected seats, a fixed share of the places must go to people from listed groups.

That is it. That is the whole mechanism.

Three things follow from that one sentence, and each one matters:

- ▶ **It only applies to government things.** Government jobs, public universities, government-funded college seats, seats in Parliament and state assemblies. It does not apply to private companies. If you work at Infosys, TCS, Reliance, a startup, a shop, or your uncle's business, reservation has never touched your hiring. More on this in a moment, because it is enormous.
- ▶ **The groups are listed, not self-declared.** You cannot simply say you are Scheduled Caste. There are official lists — the Scheduled Castes list, the Scheduled Tribes list, the Other Backward Classes list — maintained by the central government and by each state. Being on the list is a legal status with paperwork.
- ▶ **It is a share, not a gift.** Nobody is handed a job. You still have to appear, qualify, and rank. The reservation decides which pool of candidates you are ranked *against*.

■ FACT

Reservation does not exist in India's private sector.

There is no caste reservation in private-sector hiring anywhere in India. It has been proposed and debated for decades; it has never been enacted. Since the overwhelming majority of Indian jobs are private or informal, the entire national argument is about a small and shrinking slice of the total job market. Hold on to this. It comes back in Part 13 and it changes how the whole fight looks.

Now: the two analogies

Here is where honest writing gets hard. Every explanation of reservation smuggles in an argument through its choice of metaphor. So instead of picking one, I am going to give you both — the one each side actually uses — and let you see them side by side.

THE "KEEP IT" SIDE'S ANALOGY – THE RACE

Imagine a running race. For a thousand years, one group of runners was allowed to train, wear shoes, and eat properly. Another group was legally forbidden from even entering the track, and was punished for trying.

Then one day someone fires a starting pistol and announces: *from now on, everyone competes equally, may the best runner win.*

That is not fairness. That is freezing an unfair result in place and calling it a fair race.

Reservation is the attempt to correct a starting line that was rigged for fifty generations.

THE "REMOVE IT" SIDE'S ANALOGY – THE HOSPITAL

Imagine you are being wheeled into surgery. You do not ask the surgeon about their grandfather's suffering. You ask whether they are the best surgeon available.

Some jobs — doctor, engineer, pilot, judge — affect other people's lives. Filling them by any rule other than pure ability imposes the cost of historical repair onto random third parties, including poor people who never oppressed anyone.

Justice for the past should not be paid for with the future.

■ INTERPRETATION

Notice what each analogy quietly assumes.

The race analogy assumes the starting line is still unequal *today* — that the disadvantage did not end in 1950. If that is false, the analogy collapses. Part 6 and Part 11 test exactly this.

The hospital analogy assumes that the exam score measures the ability that matters, and that it measures it independently of your background. If a score largely reflects who could afford eight lakh rupees of coaching, then "the best surgeon" and "the highest scorer" are not the same person. Part 11 tests exactly this.

Neither analogy is dishonest. Both are doing the argument's work before the argument starts. That is what analogies do — which is why you should never let one settle anything.

The three words you need

You will meet these constantly. Learn them once now and the rest of the series is easy.

THE VOCABULARY, IN PLAIN ENGLISH

Word	What it actually means
SC	Scheduled Castes. The communities historically treated as "untouchable" — kept outside villages, barred from temples, wells and schools, and assigned the work nobody else would do. Officially listed in a Presidential Order. Roughly 16.6% of India's population at the 2011 Census.
ST	Scheduled Tribes. India's Adivasi or indigenous communities — historically living in forests and hills, largely outside the caste system rather than at the bottom of it, and displaced by mining, dams and forestry. Roughly 8.6% at the 2011 Census.
OBC	Other Backward Classes. The huge middle band — communities that were not treated as untouchable, but were socially and educationally held down. Farmers, artisans, herders, weavers, potters, fishermen and many more. The single largest bloc, but we do not have a modern official count. That is why the 2027 Census matters so much.
EWS	Economically Weaker Sections. The newest category, created in 2019. This one is <i>not</i> about caste — it is for poor families among the castes that get no other reservation. In effect, a poverty quota for the general category.

■ CONTESTED CLAIM

"OBCs are 52% of India."

You will see this number everywhere. It comes from the Mandal Commission's 1980 report, which arrived at it by taking the last caste census — **1931** — and doing arithmetic on it. It is an estimate built on 95-year-old data. It may be roughly right. It may be badly wrong. Nobody actually knows, and anyone who tells you they know is guessing. India has not counted caste in a full census since 1931. The 2027 Census will be the first that does. Part 10 covers this.

The Actual Numbers

Who gets how much, why the total is not what you think, and the 50% wall that cracked in 2019.

Almost every argument about reservation contains a number, and a surprising share of those numbers are wrong. So here are the real ones, for central government jobs and central educational institutions.

CENTRAL GOVERNMENT RESERVATION, AS OF 2026

Category	Share	Notes
Scheduled Castes (SC)	15%	In place since the 1950s
Scheduled Tribes (ST)	7.5%	In place since the 1950s
Other Backward Classes (OBC)	27%	Since 1990 in jobs, 2008 in central colleges. Non-creamy-layer only.
Economically Weaker Sections (EWS)	10%	Added 2019. Not caste-based.
Total reserved	59.5%	Leaving 40.5% open to everyone including all of the above

Persons with Disabilities get a further quota — 4% in government jobs under the 2016 Act, 5% in higher-education admissions — but it works differently, and that difference is the subject of the next section.

Vertical and horizontal: the distinction that ends a hundred arguments

Here is something almost nobody outside the system knows, and it clears up an enormous amount of confusion.

There are two *kinds* of reservation, and they stack differently.

VERTICAL RESERVATION – THE COLUMNS

SC, ST, OBC and EWS are **vertical**. Think of them as separate columns of seats. If there are 100 posts, 15 are in the SC column, 7.5 in the ST column, 27 in the OBC column, 10 in the EWS column, and 40.5 are open.

You can only stand in one vertical column.

HORIZONTAL RESERVATION – THE SLICES

Disability, ex-servicemen status, and in many states women, are **horizontal**. These do not get their own column. They cut across every column.

So a 4% disability quota means 4% of the open seats, 4% of the SC seats, 4% of the OBC seats, and so on. A disabled general-category candidate competes for the disabled slice of the general column.

■ FACT

Horizontal quotas do not add to the total.

This is why people who add up "15 + 7.5 + 27 + 10 + 4 + 3 + 33..." and announce that 90% of India is reserved are making a basic arithmetic error. Horizontal quotas are carved out of the existing columns, not added on top of them. The vertical total in central institutions is 59.5%.

Your state is almost certainly different

The numbers above are for central government jobs and central institutions — the UPSC, the IITs, the AIIMS, central universities. But most Indian government jobs and most college seats are *state* jobs and *state* seats. And states set their own percentages.

HOW DIFFERENT THE STATES ARE

State	Roughly	The situation
Tamil Nadu	69%	The highest in India. Protected from court challenge by being placed in the Ninth Schedule of the Constitution in 1994. Has run at this level for three decades.
Most large states	50%	The ceiling set by the Supreme Court in 1992, plus 10% EWS on top since 2019.
Several states	Above 50%	Various states have crossed the line for specific communities. Several such laws have been struck down; others are pending in court.

■ INTERPRETATION

Tamil Nadu is Exhibit A for both sides.

The "keep it" side says: Tamil Nadu has run 69% reservation for thirty years and is among India's best-performing large states on health, education, industrial output and human development. If heavy reservation destroyed institutions, Tamil Nadu should be a ruin. It is not.

The "remove it" side says: Tamil Nadu was already ahead of most of India before 1970 for reasons that have nothing to do with quotas — early social reform, higher literacy, better public health, coastal trade. You cannot credit the quota for a lead that predates it, and the state's own general-category families now emigrate at high rates.

Both arguments are real. Neither has been settled. Part 11 goes at this properly with the data.

The 50% wall, and how it broke

For thirty years, Indian reservation had one hard rule that everybody knew: **you cannot go above 50%.**

1992

The wall goes up

In the *Indra Sawhney* case — the Mandal judgment — a nine-judge Supreme Court bench ruled that reservation must normally stay under 50% of available seats. The logic: Article 16 guarantees equality of opportunity, and if reservation exceeds half of everything, the exception has swallowed the rule.

2019

The wall cracks

Parliament passes the 103rd Constitutional Amendment, creating a 10% quota for Economically Weaker Sections among people who get no other reservation. Total central reservation goes to 59.5% — above the line.

2022

The court allows it — narrowly

In *Janhit Abhiyan*, a five-judge bench upholds EWS by **3 votes to 2**

. Two judges, including the Chief Justice, dissent. One vote the other way and the entire thing would have collapsed.

2024

The columns get sub-divided

In *State of Punjab v. Davinder Singh*, a seven-judge bench rules 6–1 that states may sub-classify Scheduled Castes — splitting the SC quota so the most deprived sub-castes get a protected share within it. The largest structural change in decades.

■ FACT

EWS is a caste-blind quota — and it was created by the same Parliament and upheld by the same court.

The 10% EWS quota uses income and property tests, not caste. Which means India has *already* run the experiment that RHA is proposing, on 10% of seats, since 2019. Anyone arguing about whether an economic quota is possible should start by looking at how the existing one has actually worked. Part 10 does.

A QUESTION TO HOLD

Why did the same political system that will not touch caste quotas find it easy to break a thirty-year constitutional ceiling within weeks, in order to create a quota for the general category? Whatever your view, the speed is worth thinking about.

How It Actually Works

This is the chapter nobody reads. It is also the reason most of this fight is confused. Please do not skip it.

Everything so far has been the map. This is the machine. If you read only one chapter of this book, read this one — because at least four of the most common claims on both sides fall apart the moment you understand how the mechanism actually operates.

Rule 1: There are two lists, and the good candidates move up

Here is the single most misunderstood rule in Indian public recruitment.

If a reserved-category candidate scores high enough to make the general cut-off *on their own*, without using any relaxation, they are counted in the **general list** — not the reserved list. Their reserved seat then goes to the next reserved candidate.

In official language they are called a **Meritorious Reserved Category** candidate, or selected "on own merit."

■ FACT

This is not a technicality. It is settled law, restated by the Supreme Court in 2026.

In *Airports Authority of India & Ors v. Sham Krishna B & Ors* (2026 INSC 69), the Supreme Court held that where a reserved-category candidate secures marks higher than the general cut-off, that candidate must be treated as qualified against an open or unreserved vacancy — and must be treated that way from the first stage of selection, not adjusted afterwards.

The rule exists precisely so that reservation adds representation instead of capping it.

What this means in practice: the sentence "he took a general seat with lower marks" describes something that, by rule, cannot happen. A general seat can only be taken by someone who cleared the general bar. What actually happens is the reverse — a reserved-category topper *leaves* the reserved pool and frees a seat inside it.

Reservation does not lower the general cut-off. It creates additional lists underneath it.

Rule 2: A qualifying score is not an admission score

This confusion, on its own, probably powers half the anger online.

In an exam like NEET there are two completely different numbers, and people constantly quote the first while meaning the second.

THE TWO NUMBERS THAT GET MIXED UP

Number	What it is
Qualifying cut-off	The minimum score to be allowed into the counselling process at all. It is a <i>percentile floor</i> , not a seat. In NEET 2025 this was the 50th percentile for General/EWS (686–144 marks) and the 40th percentile for OBC/SC/ST (143–113 marks). Clearing it wins you nothing except the right to apply.
Admission cut-off	The score at which seats actually ran out. This is the number that decides who becomes a doctor. It is far, far higher — and for the top categories it is nearly identical across groups.

Look at what the second number actually was.

NEET 2025 – ALL INDIA QUOTA, GOVERNMENT MBBS, ROUND 1 CLOSING

Category	Closing marks	Closing All-India Rank
General	660	AIR 19,603
OBC	658	AIR 20,281
SC	575	AIR 1,05,676

By the final stray round the same seats closed at roughly 652 (General), 652 (OBC) and 549 (SC).

■ FACT

The General–OBC gap for a government MBBS seat in 2025 was two marks.

Two. Out of 720. In the final stray round it was zero — both closed at 652. The General–SC gap was real and substantial: 85 marks in Round 1. But the picture of vast, casual gaps across all reserved categories does not survive contact with the actual counselling data.

■ CONTESTED CLAIM

"A student with minus 40 marks got admission while a hard-working student did not."

This claim, made in an RHA video and repeated thousands of times, is the emotional engine of the whole campaign. I tried to verify it and could not.

What the record shows: the lowest qualifying floor for any reserved category in NEET 2025 was **113 marks**, not a negative number. And a qualifying floor is not a seat. In the all-India government MBBS pool, the very last SC seat in the final stray round went at **549 marks**.

Extremely low scores can pick up seats in some private and deemed colleges in late stray rounds — but that happens across categories, including General, and it happens because those seats cost sums most families cannot pay. That is a story about money, not about caste. Marked contested until someone produces the actual allotment record.

Rule 3: The roster — how 27% becomes an actual list of posts

You cannot give 27% of one job to someone. So government departments use a **100-point roster**: a numbered list from 1 to 100 where each position is pre-labelled by category, and vacancies are filled by walking down the list in order.

Two consequences follow, and each one annoys a different side:

- ▶ **The percentages are not per-round, they are per-roster.** In a small recruitment of four posts, you can easily get an outcome that looks nothing like 15/7.5/27. People screenshot such rounds as proof of a conspiracy in both directions. Usually it is just where the roster happened to be standing.
- ▶ **Unfilled reserved posts create backlog.** If no eligible candidate is found for a reserved point, that post is carried forward as a "backlog vacancy." India has accumulated large backlogs over decades. Which means the reserved share *on paper* and the reserved share *actually working in the building* are two different numbers. Part 11 has the data. It surprises people on both sides.

Rule 4: The creamy layer — the filter most people forget exists

OBC reservation does not go to all OBCs. Families above an income and status line are excluded. This is the **creamy layer**.

■ FACT

The OBC creamy layer line is ₹8 lakh a year — and has not moved since 2017.

The limit was raised from ₹6 lakh to ₹8 lakh by an order of the Department of Personnel and Training dated **13 September 2017**. As of 2026 no further revision has been notified, despite repeated demands from state governments and the National Commission for Backward Classes to raise it to ₹12 or ₹15 lakh for inflation. Children of senior government officers and certain professional and constitutional post-holders are excluded regardless of income.

And the EWS quota has its own filter: family income below ₹8 lakh a year, plus limits on agricultural land, residential flat size and plot size.

■ INTERPRETATION

The same ₹8 lakh number, read two opposite ways.

Reading one: ₹8 lakh a year puts a household in roughly the top few per cent of Indian incomes. Calling such a family "economically weaker" is absurd, and it shows EWS was designed to be wide enough to cover almost every general-category family that wanted it.

Reading two: the identical ₹8 lakh line applies to the OBC creamy layer. If ₹8 lakh is too generous for EWS, it is equally too generous for OBC — and the side that attacks one number while defending the other is not arguing about the number.

This is a good example of a fact that embarrasses whoever picked it up first.

SUMMARY OF THE MACHINE

Reserved toppers move into the general list. Qualifying floors are not admission scores. Percentages are delivered through a roster, not per round. And large filters — creamy layer, income tests, property tests — sit on top of all of it. Almost none of this is understood by the people arguing hardest.

Six Things The "Remove It" Side Gets Wrong

Stated fairly, then tested. The next chapter does exactly the same to the other side. Read both or neither.

CLAIM 1

"Almost everything is reserved. General category is left with scraps."

The central figure is 59.5% reserved and 40.5% unreserved. But "unreserved" does not mean "reserved for general category" — it means open to *everyone*, including SC, ST, OBC and EWS candidates who make the mark. There is no such thing as a general-only seat in Indian law.

The bigger error is adding horizontal quotas — disability, ex-servicemen, women — on top of the vertical ones to reach frightening totals like 80% or 90%. Horizontal quotas are carved out of the existing columns. They add nothing to the total.

VERDICT: The arithmetic is wrong. The underlying frustration about seat scarcity is not — but the cause is the number of seats, not the split.

CLAIM 2

"Reserved candidates with much lower marks are taking general seats."

By rule this is backwards. A reserved candidate who clears the general bar is moved *into* the general list and vacates their reserved seat — the "own merit" rule, restated by the Supreme Court in 2026. Nobody enters a general seat below the general bar.

And the real gaps are smaller than the folklore. General and OBC closed two marks apart for all-India government MBBS seats in 2025.

VERDICT: False as stated. The SC/ST gap is real and worth arguing about honestly — but it is a different argument from this one.

CLAIM 3

"Ambedkar said reservation was only for ten years."

This is the most repeated line in the entire debate, and it comes from a genuine misreading of the Constitution.

Article 334 did put a ten-year clock on one specific thing: *reserved seats in the Lok Sabha and state legislatures* — political seats. That clock has been extended by Parliament roughly every decade since.

Articles 15(4) and 16(4), which enable reservation in education and government jobs, carry no expiry date at all. They never did.

VERDICT: A real constitutional provision, applied to the wrong subject. Part 8 goes through the Constituent Assembly record line by line.

CLAIM 4

"Remove reservation and casteism will disappear."

This is RHA's central promise: "Remove Reservation. Remove Casteism."

The problem is chronology. Caste is at minimum many centuries old; caste-based reservation in independent India dates from 1950. Whatever caused the first cannot have been the second. Removing a 76-year-old policy cannot remove a phenomenon that predates it by a very long way.

A narrower version of the claim survives and deserves respect: *state-issued caste certificates keep caste administratively alive and give people a reason to hold on to the identity*. That is arguable, and it is argued properly in Part 12.

VERDICT: The strong version fails on chronology. The narrow version is a serious argument and gets a full hearing later.

CLAIM 5

"Reservation gives us unqualified doctors and engineers."

Everyone sits the same exam, clears a qualifying floor, passes the same university examinations, and — for doctors — obtains the same registration. Reservation affects entry, not graduation and not licensing.

The honest version of the concern is about *entry-score gaps* and whether they persist to the end of the course. That is a measurable question with actual published evidence, and Part 11 puts the numbers on the table. Some of it will not please the side making this claim; some of it will not please the other side either.

VERDICT: As stated, unsupported. As a question about outcomes, legitimate — and answerable with data rather than adjectives.

CLAIM 6

"Reservation is why I don't have a job."

This is the most emotionally powerful claim and the one I have the most sympathy for, because the underlying pain is completely real.

But look at the scale. Government employment is a small fraction of India's total workforce and it has been shrinking for years, while lakhs of posts sit vacant. When 25 lakh people apply for a few thousand posts, the binding constraint is that there are a few thousand posts. Redistributing them differently changes who is unemployed. It does not change how many.

VERDICT: Misdirected. The anger is justified; the address on the envelope is wrong. Part 13 argues that this may be the single most important fact in the entire debate.

Six Things The "Keep It" Side Gets Wrong

Same treatment. Same standard. If the last chapter felt fair to you, this one is going to sting — and that is how you know the last one was honest.

CLAIM 1

"Reservation is a programme for poor people."

It is not, and defenders who say this are handing away their own best argument.

Reservation was designed as a *representation* measure — to break a monopoly on public power held by a small number of communities. Poverty relief is what scholarships, subsidies and welfare schemes are for.

Why the mistake is costly: once you accept "it is for the poor," you have already conceded that income is the right test, which is exactly the opposition's position. Then the only remaining question is why caste appears in it at all.

VERDICT: Wrong on its own terms, and strategically self-defeating.

CLAIM 2

"Nothing has changed since 1950."

A great deal has changed and it is measurable — in literacy, in urban occupations, in political representation, in inter-caste contact, in who now sits in offices that were once completely closed.

Insisting nothing has changed does two bad things at once. It erases the achievement of the people who actually fought and won these gains. And it makes the argument unfalsifiable: if no amount of progress ever counts, the policy can never be reviewed, and a policy that can never be reviewed will eventually lose public consent.

VERDICT: Overstated. The defensible claim is that change has been real but deeply uneven — which is both true and much stronger.

CLAIM 3

"Anyone who questions reservation is casteist."

Some opponents of reservation are casteist. When a movement's own prominent voices post about "Brahmin genes," or dismiss documented historical atrocities as invented propaganda, that is not a debating position and it should be named.

But a 22-year-old who has failed an exam three times and is angry is not automatically a bigot. Treating every such person as an enemy is how you lose an argument you could have won — and it hands the other side its most effective recruitment line: *"they will not even talk to you."*

VERDICT: True of some opponents, false as a general rule, and self-harming as a debating tactic.

CLAIM 4

"Elite capture inside reserved categories is a right-wing invention."

The Supreme Court of India disagrees. In 2024, a seven-judge bench ruled 6–1 that states may sub-classify Scheduled Castes precisely because the benefits had been captured unevenly — some SC sub-castes had advanced substantially while others had barely moved.

That verdict is, in effect, the highest court in the country accepting that elite capture within reserved categories is real. You cannot cite the Court when it suits you and call the same finding propaganda when it does not.

VERDICT: Contradicted by a 2024 Constitution Bench ruling. This is now a fact to be managed, not a claim to be denied.

CLAIM 5

"All the reserved seats are being filled anyway."

They are not. Backlog vacancies in reserved posts have accumulated for decades. Reserved faculty positions in central universities and premier institutes have been notoriously under-filled. And more than 13,500 SC, ST and OBC students dropped out of central universities, IITs and IIMs according to data reported in 2023.

Here is the thing though: this fact is bad for the *other* side too. If reserved seats sit empty, then the seats are not being taken away from anybody — and the "they took my seat" story loses its object.

VERDICT: False — and inconvenient for everyone. One of the most useful facts in this book.

CLAIM 6

"General category means privileged."

"General" is not a class. It is everything left over after four lists. It contains genuinely wealthy families and it contains families in serious poverty — landless Brahmin priests, small Bania shopkeepers ruined by a bad year, Rajput families with a name and no money.

The strongest evidence that these families exist is that Parliament created a 10% EWS quota specifically for them in 2019, and the Supreme Court upheld it.

The serious reply — and it is serious — is that being poor is not the same as being *excluded*, and reservation was built to address exclusion. That is a real argument. But it has to be made, not assumed.

VERDICT: The label is being used as if it means something it does not. Poverty and exclusion overlap; they are not identical; and the difference is the whole debate.

A NOTE ON THESE TWO CHAPTERS

If exactly one of the last two chapters made you angry, that is worth sitting with for a minute. Both were written to the same standard, with the same tone, using the same kind of evidence.

Ninety Seconds of History

The whole story on one timeline. Every line here becomes a full chapter later in the series.

1902**It starts in an Indian princely state, not in Delhi**

Shahu Maharaj of Kolhapur reserves 50% of posts in his administration for backward communities. This is among the earliest formal reservation policies anywhere in the world — and it is Indian, not colonial.

1921**Madras Communal Government Order**

The Madras Presidency introduces communal proportions in government appointments. Reservation as an administrative system begins in British India.

1932**The Poona Pact**

Ambedkar had won separate electorates for the Depressed Classes. Gandhi began a fast unto death against it. The resulting compromise replaced separate electorates with reserved seats in joint electorates. Everything about modern reservation flows from this deal. Part 5 and Part 7 cover it in full.

1950**The Constitution**

Articles 15 and 16 permit special provision for backward classes; Article 46 directs the state to promote their interests; Articles 330 and 332 reserve legislative seats; Article 334 puts a ten-year clock on *those seats only*.

1953**The first backward classes commission — and the shelf**

The Kaka Kalelkar Commission reports. Its own chairman ends up doubting caste as the criterion. The report is shelved.

1980**The Mandal Commission reports**

It identifies a very large set of Other Backward Classes and recommends 27% reservation. It is then shelved for a decade.

1990**India burns**

Prime Minister V. P. Singh announces implementation of Mandal. Nationwide protests follow, including self-immolations. The political map of north India is permanently redrawn.

1992**Indra Sawhney**

A nine-judge Supreme Court bench upholds 27% OBC reservation, caps total reservation at 50%, and introduces the creamy layer.

2006–08

OBC quota reaches central universities

27% OBC reservation is extended to central educational institutions, triggering another round of student protests, and is upheld by the Supreme Court in 2008.

2019

EWS — the ceiling breaks

The 103rd Amendment adds a 10% quota based on economic criteria, taking the central total to 59.5%.

2022

EWS upheld 3–2

In *Janhit Abhiyan*, the Supreme Court lets it stand by a single vote.

2024

Sub-classification allowed

State of Punjab v. Davinder Singh, 6–1: states may split the SC quota to protect the most deprived sub-castes within it.

2026

India starts counting caste again

Census 2027 field work begins in April 2026, with full caste enumeration for the first time since 1931. The Supreme Court declines petitions against it, holding it to be a policy matter. Meanwhile, on the street and on the phone, the argument explodes.

What Actually Happened in 2026

Cockroaches, a leaked paper, a resignation, and an explosion. Seventy-four days, in order.

To understand why the reservation argument detonated in the last week of July 2026, you have to understand what came immediately before it — because the second movement was built directly on the wreckage of the first one's victory.

16 May

An insult becomes a movement

The Chief Justice of India is reported to have compared unemployed young Indians to "cockroaches" and "parasites of society." Abhijeet Dipke founds the

Cockroach Janta Party

— taking the insult and wearing it. Satire, at first.

June

The satire turns into a mass movement

The focus shifts to examination paper leaks, especially NEET, and to students who died by suicide after cancellations and re-tests. Protests spread across cities.

July

Jantar Mantar

Delhi's designated protest ground fills. Marches in Pune and elsewhere. Crowd-control weapons are used. Al Jazeera describes the demonstrations as the biggest challenge to the Prime Minister since 2014. CJP names three demands: the Education Minister's resignation, no criminal cases against protesters, and compensation for the families of students who died.

22 July

An account is created

@reservationhataomovement appears on Instagram, built around the viral clip of NEET aspirant Harsh Dubey confronting an NDTV anchor about reservation.

24 July

The government sits down with the cockroaches

CJP leaders hold talks with ministers.

25 July

The minister goes

Union Education Minister Dharmendra Pradhan resigns. Dipke announces it to thousands at Jantar Mantar. CJP says its demands have been accepted and asks protesters to go home. A street movement has just forced out a Union minister.

26–27 July

The second wave

RHA declares its first "protest" — not a march, but an instruction to flood comment sections. On 27 July it posts four demands: Merit over Caste, Equal Fees, Equal Age Limit, Equal Cut-off. Counter-campaigns from anti-caste creators begin the same day.

28–29 July

Five point eight million

Outlook reports 5.6 million followers on 28 July; The Quint reports 5.8 million on 29 July. A third campaign, the E20 Janata Party, copies the same playbook for fuel policy. The template is now public property.

■ **INTERPRETATION**

Read that sequence again, because it is the most important thing in this chapter.

A movement about **leaked exam papers** — an administrative failure by the state's own examination machinery — won. The minister resigned. And within twenty-four hours of that victory, the energy transferred to a movement about **reservation**.

Reading one: natural progression. Students who fought about one unfairness in the exam system turned to what they see as the bigger unfairness in it. The first win proved that online pressure works.

Reading two: a redirection, whether deliberate or accidental. On 24 July the conflict was students versus the state. By 27 July it was students versus other students. The examination agency, the leaks, the vacant posts and the shortage of seats vanish from the conversation entirely. If you were responsible for the exam system, you could not have designed a better outcome.

I do not think anyone needs to have planned reading two for it to be what happened. Anger looks for a target, and a target that is standing next to you is easier to reach than one in a ministry.

What RHA Actually Wants

Their demands, in their words – then their case put at its strongest, the way their best advocate would put it.

Before criticising a position it is worth stating it accurately. Here is what the Reservation Hatao Andolan has actually published.

The four demands

POSTED BY RHA, 27 JULY 2026

Demand	What it means in practice
Merit over Caste	Selection to public education and public employment on examination performance alone, with no caste category
Equal Fees	An end to category-based fee concessions in public institutions
Equal Age Limit	An end to category-based upper age relaxations in competitive examinations
Equal Cut-off	One qualifying and admission standard for all candidates

The bigger proposal

Beyond the four demands, RHA has published a broader policy titled **"Remove Reservation. Remove Casteism."** Its long-term goal is stated as **"One Nation. One Identity. Indian."**

The proposal argues that if the aim is to end caste discrimination, the state should stop requiring or recording caste at all – no caste column on government forms, admissions or job applications – and has called for the public "showcasing" of caste to be made illegal.

The campaign describes itself as an unorganised, youth-led coalition with no political affiliation, stating that it had hoped a change of government would reform education and that this did not happen: *"Our focus is on the policy, not the party."*

Its slogan on X is **"Educate – Agitate – Organize,"** alongside the Hindi line *"Sari jaati ek samaan, mera bas yeh desh mahaan."*

■ FACT

"Educate, Agitate, Organise" is Dr B. R. Ambedkar's slogan.

It is one of the most famous lines in Indian anti-caste history, and Ambedkar is the principal architect of the constitutional provisions that make reservation possible. A campaign to abolish reservation has adopted the slogan of the man who built it. Critics have called this a deliberate co-option; supporters say the words belong to all Indians. Either way, the fact is not in dispute.

Who is driving it

Two figures have been prominent in RHA's content: **Ajeet Bharti**, a right-leaning political commentator, and **Anuradha Tiwari**, who drew wide attention in 2024 for posting a photograph captioned "Brahmin genes."

In RHA videos, Bharti argues that caste quotas create a "creamy layer trap" and that state resources should be redirected into primary public education instead. He has also dismissed historical caste atrocities as "propaganda pushed by leftist historians to induce guilt."

■ CONTESTED CLAIM

"Historical caste atrocities are propaganda invented by leftist historians."

This is the single biggest factual claim being made anywhere in this argument, because if it is true, almost everything else collapses — and if it is false, the movement's foundations shift.

It is also exactly the question you asked me to investigate, and it is too important to answer in a paragraph. **Part 6 of this series is devoted entirely to it** — court records, land records, temple records, colonial documents, missionary accounts, travellers' accounts, modern survey measurement, and the strongest version of the "it is exaggerated" case, all in one place. No summary here. Just the evidence, later, in full.

Written as their best advocate would write it, not as their worst commenter does.

A policy adopted as a temporary corrective has now run for three generations, and no government has ever specified what success would look like or when it would end. A remedy without an exit condition is not a remedy; it is a permanent structure.

Worse, that structure gives every Indian family a standing financial reason to prove and preserve its caste. We ask people to register caste at birth, declare it at school, prove it at admission, carry it into employment — and then express surprise that caste has not faded. **A state that keeps caste on file cannot credibly ask citizens to forget it.**

Meanwhile the benefit has concentrated. The Supreme Court itself found in 2024 that some sub-castes captured the gains while others got nothing — which is why sub-classification became necessary. The child of an IAS officer and the child of a landless labourer can hold the same certificate.

And the cost lands on people who did nothing. A poor general-category student in Bihar inherits no land, no capital and no coaching money, only a surname — and pays for a history he did not write.

India already runs a caste-blind quota. EWS has existed since 2019 and the Court upheld it. So the question is not whether a caste-free system is imaginable. It is: *why not extend the one we already have?*

What The Critics Actually Say

Same treatment. Their objections, then their case at full strength.

The backlash to RHA came from sociologists, educators, anti-caste scholars, student organisers and a very large number of digital creators. Their objections cluster into four arguments.

1. It confuses representation with poverty

Reservation was not built as an anti-poverty scheme. It was built to break a monopoly on public power. Replacing it with an income test answers a question nobody was asking, and abandons the one it was designed for. As critics put it: reservation exists to remedy centuries of denial of education, land, resources and dignity — not to top up a bank balance.

2. It reverses the order of operations

One widely shared post put it as sharply as it can be put: *what came first must go first*. Caste came first; reservation came in response. Removing the response while leaving the cause in place does not produce equality — it produces the pre-1950 arrangement with better branding.

3. It uses Ambedkar's words against Ambedkar's work

The adoption of "Educate, Agitate, Organise" by a campaign to dismantle constitutional safeguards has been called a cynical use of anti-caste vocabulary against anti-caste protections.

4. The evidence that caste still bites is sitting in the same comment sections

During the same week, a post told Abhijeet Dipke — the man who had just forced a Union minister to resign — to "go back to US and clean toilets," a remark widely read as targeting his Dalit identity.

■ FACT

That exchange is a data point, not just an insult.

Dipke had, by any measure, achieved extraordinary success and mobility. The abuse still reached for caste. Critics used this as evidence for a specific claim: that class mobility does not switch caste discrimination off — which is precisely the claim an income-based replacement depends on being false.

And the inconvenient numbers

More than 13,500 SC, ST and OBC students dropped out of central universities, IITs and IIMs, according to data reported in 2023. Critics use this to argue that getting in is not the same as being let in — that the system delivers admission without delivering belonging.

STEELMAN — THE STRONGEST VERSION OF THE CRITICS' CASE

Written as their best advocate would write it.

Start with what reservation is for. It is not charity and it is not welfare. It is a structural correction to a specific historical fact: for a very long time, a small set of communities held nearly all public authority, and others were excluded by force, law and custom from literacy itself. Wealth transfers do not fix a monopoly on institutions. Presence does.

Now test the replacement. An income-only system assumes money is the barrier. But money does not stop a landlord from blocking a well, a classmate from refusing to share a room, a landlord from refusing a flat, or a comment section from telling a successful Dalit man to go clean toilets. **Caste is not a bank balance. It is a door that opens for some names and not others.**

Then look at delivery. If reservation were the vast handout it is described as, reserved posts would not sit vacant for decades and thousands of SC, ST and OBC students would not be dropping out of the very institutions they fought into. A system that under-delivers is not evidence that the need has ended.

Finally, look at the timing. This movement did not appear when caste violence made the news. It appeared in the week a general-category exam grievance found a microphone. The demand is not "end caste." Not one viral post asked for that. The demand is "end the remedy" — and a movement that wants the cure gone but is silent about the disease has told you what it is actually about.

The Five Real Questions

Strip away the shouting and this entire argument reduces to five questions. Everything else is decoration.

Almost nobody online is arguing about these. They are arguing about cut-offs and slogans. But every serious position on reservation is really an answer to these five, and the rest of this series is the work of answering them properly.

QUESTION ONE

Was the injury real, and how bad was it?

If caste discrimination was systematic, violent and enforced for centuries, one set of conclusions follows. If it was mild, occasional, or largely invented later, a completely different set follows. This is a question of evidence, not opinion — and it has an answer.

→ Parts 2, 3, 4, 5 and 6

QUESTION TWO

Is the injury still happening today?

Even if the history is as bad as claimed, a remedy is justified by present conditions, not past ones. So: in 2026, does your caste still change your life outcomes after you account for income and education? This is measurable.

→ Parts 6 and 11

QUESTION THREE

Does this particular medicine actually work?

A real disease does not prove that a specific treatment cures it. Has reservation delivered what it promised? For whom? At what cost? And where has it failed?

→ Part 11

QUESTION FOUR

Is there something better?

"This is imperfect" is not an argument unless you can name a superior alternative and show what happened when it was tried. Income-based? Sub-classified? Time-limited? Nothing at all? Other countries have run these experiments and the results are on the record.

→ Parts 12 and 13

QUESTION FIVE

Who decides when it ends — and by what test?

This is the question neither side wants. The abolition side rarely specifies what evidence would make them keep it. The retention side rarely specifies what evidence would make them stop. A policy with no stated finish line and no stated failure condition is not a policy. It is a permanent political settlement pretending to be one.

→ Part 14

Ask anyone shouting about reservation which of these five they are actually answering. Most cannot say. That is the whole problem.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 1 — GROUND ZERO

1. **Reservation is a share of government seats, not a gift** — 59.5% reserved at the centre, 40.5% open to everyone including reserved candidates, and none of it touches the private sector where almost all Indian jobs actually are.
2. **A reserved candidate who clears the general bar is counted in the general list**, not the reserved one — settled law, restated by the Supreme Court in 2026. In 2025 the General and OBC all-India government MBBS seats closed two marks apart.
3. **The "only ten years" line is a real constitutional provision applied to the wrong subject.** Article 334's clock was on reserved *legislative seats*. Articles 15(4) and 16(4) never carried an expiry date.
4. **Both sides are running on bad numbers.** One side inflates the reserved total by adding horizontal quotas that do not add. The other denies elite capture that the Supreme Court itself accepted in 2024.
5. **The real fight is five questions deep** — was the injury real, is it still happening, does the medicine work, is there something better, and who decides when it ends. Nobody wins this argument on Instagram. It is won in Parts 2 to 14.

Coming next

PART 2 — BEFORE CASTE

Was India always like this?

We go back further than any WhatsApp forward goes. The Indus Valley. The oldest layer of the Rig Veda. The Purusha Sukta — the four-varna hymn — printed in full, translated, and then read line by line the way *each side* reads it. The Aryan question and what the genetics does and does not settle. And the argument at the centre of everything: was varna originally a description of work that later hardened, or a system of birth from the start?

Both cases. At full strength. No thumb on the scale.

A closing thought before Part 2. Reading this book will not make you neutral, and it is not supposed to. It should make you *harder to fool* — including by people who agree with you. That is a lower bar than wisdom and a much more useful one. — **L.S.**

Sources & Notes

Every factual claim in Part 1, and where it comes from.

The 2026 movements

Outlook India, "Reservation Hatao Andolan: Why Is It Drawing Both Support And Opposition?", 28 July 2026 — follower counts, the four demands, the "One Nation. One Identity. Indian." proposal, the E20 Janata Party. · The Quint, "End Caste Discrimination First': Critics Call Out 'Reservation Hatao Andolan'", 29 July 2026 — account creation date of 22 July, the Harsh Dubey NDTV clip, the "flood the comment sections" instruction, Ajeet Bharti and Anuradha Tiwari, the criticism, the Dipke abuse incident, and the 13,500 dropout figure. · Al Jazeera, 24–26 July 2026 — CJP talks with government, Dharmendra Pradhan's resignation on 25 July, CJP's three demands. · TIME, 22 July 2026, and Wikipedia's Cockroach Janta Party entry — CJP founded 16 May 2026 by Abhijeet Dipke.

Numbers and mechanics

Central reservation percentages and the 59.5% total — NEET and JEE 2026 category criteria as published by the examination bodies and summarised across admissions guidance. · NEET 2025 qualifying cut-offs: General/EWS 686–144 at the 50th percentile, OBC/SC/ST 143–113 at the 40th percentile. · NEET 2025 All India Quota government MBBS closing scores and ranks, Round 1 and stray round. · OBC creamy layer: raised from ₹6 lakh to ₹8 lakh by DoP&T order dated 13 September 2017; no further revision notified as of 2026, per Rajya Sabha replies.

Law

Indra Sawhney v. Union of India (1992) — 50% ceiling and creamy layer. · *Janhit Abhiyan v. Union of India* (2022) — EWS upheld 3–2. · *State of Punjab v. Davinder Singh* (2024) — SC sub-classification permitted 6–1. · *Airports Authority of India & Ors v. Sham Krishna B & Ors*, 2026 INSC 69 — reserved-category candidates above the general cut-off must be treated against open vacancies from the first stage. · Constitution of India, Articles 15, 16, 46, 330, 332, 334, 335, 340, 341, 342. · Census 2027 caste enumeration — field work from April 2026; Supreme Court declined petitions against it as a policy matter.

A note on what is missing

Part 1 deliberately makes no claim about whether historical caste discrimination occurred, how severe it was, or whether reservation works. Those require primary sources and datasets that belong in Parts 6 and 11, where they get proper space. Anything in this book marked **CONTESTED CLAIM** stays contested until evidence is produced — including claims made by people I might agree with.

CORRECTIONS

If you find an error in this book, I want to know. A series built on the argument that both sides are running on bad numbers has no business running on bad numbers itself.

Corrections will be carried in later parts.

END OF PART ONE

THE RESERVATION FILES Ground Zero

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 2 – Before Caste: Was India always like this?
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART TWO

BEFORE CASTE

Was India always like this? The oldest evidence we have – archaeology, DNA and the hymns themselves – read honestly, both ways.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Part Where I Was Wrong

Writing Part 1 was uncomfortable. Writing Part 2 was worse.

I came into this section believing I already knew the answer. I had heard the standard line my whole life — that varna was originally a clean division of work, that it had nothing to do with birth, and that the whole ugly business of caste came later, probably from foreigners. It is a comfortable story. It lets you love your civilisation without flinching.

Then I went and read the actual verses. Not summaries of them. The verses.

And what I found was messier than either side had told me. Some of what I believed turned out to have real support — better support than I expected, and better than its critics usually admit. And some of it fell apart completely the moment I checked the dates.

"Both sides in this argument are standing on the same three or four pieces of evidence. They have just each learned to look at a different corner of it."

So this part is built differently from Part 1. In Part 1 I could often say "this is simply wrong" because there was a rule or a court judgment to check it against. Here there is no judge. There are hymns written down thousands of years ago in a language almost nobody now speaks, a city whose writing we cannot read, and DNA that tells us who married whom but never tells us why.

That means this part has more yellow boxes than green ones. That is not me dodging. It is what honest reporting on this evidence looks like. Anyone who tells you the origin of caste is a settled matter is either selling something or has not read enough.

What I can promise is this: every important verse in this book is printed in full, not paraphrased. You will see the actual words and then you will see what each side does with them. If my reading annoys you, you will have the raw material to build a better one.

One warning. This chapter touches the Aryan question, which in India is not really a history debate at all — it is a political one wearing history's clothes. I have tried to report what the evidence shows and, just as importantly, what it does not show. Both of those matter.

— Lovepreet Singh

July 2026

Contents

THE COLOUR CODE — A REMINDER

■ **FACT** — checkable, not seriously disputed. ■ **INTERPRETATION** — same evidence, two honest readings, both written out. ■ **CONTESTED CLAIM** — asserted by someone, evidence thin. The third box appears for both sides, always.

- 1** The Question Under The Question
Why the origin of caste decides the reservation argument

- 2** The First Indians
Who we actually are, according to DNA — and when the mixing stopped

- 3** The City With No King
A hundred years of digging the Indus Valley, and what was never found

- 4** The Argument About Arrival
Invasion, migration, or nobody came at all — three positions, all steelmanned

- 5** What "Varna" Actually Meant
The word itself, and the racial reading that turned out to be a mistake

- 6** The Hymn
Rig Veda 10.90 printed in full — and read line by line by both sides

- 7** The Counter-Verses
The bard, the servant's son, the king who became a sage

- 8** The Gita's Sentence
Nine words that both sides have been fighting over for a century

- 9** Four Ways To Read The Same Evidence
Every serious position, laid side by side, at full strength

- 10** Nine Questions Nobody Asks
The blind spots — including the one that should be asked first

- 11** What The Evidence Can And Cannot Settle
The honest scorecard — including the questions nobody can answer

- 12** The Five-Line Nichod
Everything in this book, compressed

The Question Under The Question

Why an argument about a hymn from three thousand years ago decides an argument about medical college seats in 2026.

Somebody reading Part 1 might reasonably ask: why are we going back this far? The fight is about exam seats. What does the Rig Veda have to do with NEET?

Everything, as it turns out. And here is why.

Reservation is a **remedy**. Every remedy assumes an injury. So the entire policy rests on a claim about history: that certain communities were systematically held down for a very long time, and that this is why they start behind today.

Which means the argument secretly depends on a question about the past. And there are only four possible answers to it.

THE FOUR POSSIBLE HISTORIES – AND WHAT EACH ONE IMPLIES

If the truth is...	...then the injury was	...and reservation looks like
A. Caste was rigid and cruel from the very beginning	Ancient, deep, and built into the culture itself	A minimum correction, probably still insufficient
B. Varna started as flexible work, then hardened over centuries	Real, but a corruption rather than an original design	Justified – but so is the argument that it can be undone
C. Caste rigidity came mainly from outsiders – invaders, colonisers	Real, but not the fault of Indian society itself	Justified against history, but oddly aimed
D. The whole thing is exaggerated or invented later	Small or imaginary	A grievance industry with no basis

Look at that table closely, because it explains the entire internet.

Almost every angry argument you have ever seen about reservation is really two people who have silently picked different rows and are now shouting about seats. They are not disagreeing about NEET. They are disagreeing about 1500 BCE and do not know it.

Nobody argues about reservation. They argue about history, using reservation as the microphone.

What this part will and will not do

This part covers the deepest layer: the very beginning. It answers one narrow question — *at the earliest point we can see, was Indian society already divided by birth?*

It does not cover Manusmriti, untouchability, the Islamic period, the British, or anything modern. Those are Parts 3, 4 and 5. Trying to do all of it at once is exactly how these conversations turn into noise.

THE THREE SOURCES WE HAVE — AND THEIR LIMITS

Archaeology. Objects, buildings, burials, city layouts. Tells us how people lived. Tells us almost nothing about what they believed, and nothing at all about what they called each other.

Genetics. Ancient and modern DNA. Tells us with real precision who had children with whom, and when that stopped. Tells us nothing about why.

Texts. The Vedas, the Upanishads, the epics. The only source that gives us words. But they were composed by a specific, literate, priestly group — so they tell us what *that* group thought, which is not the same as what everybody did.

Each source is blind where the others can see. Anyone using only one of them is guaranteed to reach a confident wrong answer.

The First Indians

Before any texts, before any cities — who was actually here. And the single most important date in this entire book.

In the last fifteen years something happened that changed this argument permanently, and most people fighting about caste online have not caught up with it. We learned to read ancient DNA.

Not opinions about ancient people. Their actual genomes, pulled out of bones and teeth thousands of years old. It does not care about politics. It cannot be argued with by quoting a different verse.

Who Indians descend from

Modern South Asians are, overwhelmingly, a mixture of three ancient streams of people.

■ FACT

The three ancestral ingredients.

1. **The First Indians (AASI).** Descendants of the earliest modern humans to reach the subcontinent, tens of thousands of years ago. They have no close living relatives anywhere outside South Asia. Every Indian alive today carries some of this ancestry.
2. **Iranian-related farmers.** A population related to — but split very early from — ancient Iranians. They mixed with the First Indians, and that mixture is the population of the Indus Valley Civilisation.
3. **Steppe pastoralists.** Herders from the Central Asian grasslands, whose ancestry appears in South Asia in the second millennium BCE — *after* the great Indus cities were already old.

The Rakhigarhi skeleton

In 2019 a team published the genome of a single individual buried at Rakhigarhi in Haryana — one of the largest Indus Valley sites. It is, so far, the only Indus Valley genome we have.

The result was striking, and both sides seized on it within hours.

■ FACT

The Rakhigarhi individual had no Steppe ancestry at all.

The genome was a mixture of Iranian-related ancestry and First Indian (AASI) ancestry — and contained none of the Central Asian Steppe component found in many South Asians today. Published in *Cell*, 2019, by Shinde, Narasimhan and colleagues.

In the same year a much larger study in *Science* analysed ancient DNA from 523 individuals across Central and South Asia and found the same pattern: Steppe-related ancestry enters the subcontinent *after* the mature Indus period.

Now the date that matters more than any other

Here is the finding that should be printed on the first page of every argument about caste, and almost never is.

In 2013, researchers analysed genome-wide data from 73 groups across the subcontinent and worked out *when* different ancestral populations stopped mixing with each other. Because when two populations mix and then stop, their DNA carries a clock.

■ FACT

Mixing was widespread — and then it stopped.

The study found mixture dates between roughly **1,900 and 4,200 years ago**. Before about 4,000 years ago, there was essentially no mixture between these ancestral groups. After that, mixture was *rampant* — affecting almost every group in India, including isolated tribal populations.

And then it stopped. India transformed from a place where mixing between populations was the norm into a place where marrying strictly within your own group was the norm.

Moorjani et al., *American Journal of Human Genetics*, 2013

Read that again, because it is the closest thing to a hard scientific date for the beginning of caste as a *closed* system that anyone has ever produced.

Endogamy — marrying only inside your group — is the lock on the caste system. Everything else about caste is enforceable only because of it. And we can now see, in the genome, roughly when the lock clicked shut.

■ INTERPRETATION

This single finding gives each side exactly half of what it wants.

For the "it was always like this" reading: the lock closes around two thousand years ago at the latest. That is roughly a thousand years before any Islamic ruler and about eighteen hundred years before the British. Whatever caused caste rigidity, it was already finished long before any foreigner blamed for it arrived. **Caste is indigenous and it is old.**

For the "it hardened later" reading: before roughly four thousand years ago there was no mixing barrier at all, and for a long stretch after that mixture was everywhere. Which means the earliest Vedic period was not an endogamous society. Whatever varna meant when it was first written down, it did not yet mean a closed breeding group. **The rigidity came later, and it came gradually.**

Both of those are true. They are not in conflict. They only look like opposites because each side quotes one and hides the other.

A deep-time timeline

~65,000 BP

The First Indians arrive

Modern humans reach the subcontinent. Their descendants are ancestral to every Indian alive today.

~7000 BCE

Mehrgarh

Farming begins in the north-west. One of the oldest farming settlements anywhere in South Asia.

**2600–1900
BCE**

The mature Indus Valley Civilisation

Mohenjo-daro, Harappa, Dholavira, Rakhigarhi. Standardised bricks, planned drainage, weights, trade with Mesopotamia. No palaces, no royal tombs, no readable script.

**c. 2000–1500
BCE**

Steppe ancestry appears

Genetic evidence of Central Asian pastoralist ancestry entering the subcontinent. The Indus cities are already declining.

**c. 1500–1200
BCE**

The Rig Veda is composed

Orally. Not written down for a very long time afterwards. Mandala 10 — which contains the Purusha Sukta — is generally held to be the latest layer.

**c. 4,200–
1,900 BP**

Mixing, then the lock

Widespread population mixture across the subcontinent, followed by the shift to strict endogamy. The caste system becomes a closed system somewhere inside this window.

■ **CONTESTED CLAIM**

"Genetics has proved that caste is 4,000 years old."

It has not, and this claim gets made in both directions. What genetics shows is when populations *stopped mixing*. It cannot tell you whether the people at the time called that arrangement varna, or jati, or anything at all. It cannot tell you whether the barrier was religious, occupational, regional, tribal or linguistic.

DNA records the fact of separation with real precision. It has absolutely nothing to say about the reason for it. Anyone who tells you the genome proves a motive is going beyond their evidence.

The City With No King

A hundred years of excavation in the Indus Valley. What they found – and the thing they never found.

Between roughly 2600 and 1900 BCE, the largest civilisation on earth by area was here. Bigger than Egypt. Bigger than Mesopotamia. Cities of tens of thousands of people, spread across a million square kilometres.

And it is the strangest ancient civilisation we know of, for one reason.

What they found

- ▶ **Planning that borders on obsessive.** Streets on a grid. Covered drains running under them. Bricks made to a standard 1:2:4 ratio across sites hundreds of kilometres apart.
- ▶ **A single system of weights.** Accurate, standardised, used from Gujarat to Afghanistan. Someone was enforcing a standard.
- ▶ **Long-distance trade.** Indus seals turn up in Mesopotamia. Mesopotamian records refer to a trading land called Meluhha, widely identified with the Indus region.
- ▶ **Extraordinary public water works.** The Great Bath at Mohenjo-daro. Wells across the cities. Private bathrooms in ordinary houses at a time when most of the world had nothing of the kind.

And here is what they did not find

■ FACT

No palaces. No royal tombs. No great temples. No monuments to any ruler.

After a century of excavation across hundreds of sites, clear evidence of a ruling class has not materialised. There is nothing resembling the pyramids, nothing like the royal tombs of Ur, nothing like the temple complexes of Mesopotamia.

As one classic summary put it: elsewhere, wealth and effort went into temples for gods and tombs for kings. In the Indus cities, the finest structures were built for the convenience of the citizens.

Even the famous "Priest-King" statuette from Mohenjo-daro got that name from the archaeologists who dug it up, based on nothing but a guess about what a ruler ought to look like. A major 2020

review in the *Journal of Archaeological Research* was actually titled "Killing the Priest-King" — arguing that the figure and the assumptions behind it should be retired.

The most advanced city-building people of the Bronze Age appear to have built no monuments to anybody. Nobody is sure what to make of it.

The honest fight among archaeologists

This is not a case of experts agreeing and politicians disagreeing. Archaeologists genuinely disagree, and both positions are respectable.

READING ONE — IT REALLY WAS UNUSUALLY FLAT

A century of searching has produced no ruling class, and at some point absence of evidence becomes meaningful. The Indus was complex without being hierarchical — proof that you do not need a king or a priestly elite to run a sophisticated society.

The public works point the same way. Drains and wells for ordinary houses are not what a society builds when a small elite is capturing the surplus.

READING TWO — WE MAY JUST BE BLIND

Burials are where hierarchy usually shows up most clearly, and Indus burials found so far are very few relative to the population. We may simply be missing the elite graves.

There are also real differences in house sizes, in access to wells, and in the citadel-versus-lower-town layout at several sites. And a civilisation that enforced identical brick ratios across a million square kilometres was clearly enforcing *something*.

The wall we cannot climb

■ FACT

The Indus script has never been deciphered.

We have thousands of inscribed seals. Nobody can read a single one. There is no bilingual key, and most inscriptions are extremely short.

This is the hard limit on everything in this chapter. For Egypt and Mesopotamia we can read what people said about themselves — their laws, their complaints, their tax records. For the Indus Valley we have objects and silence.

■ CONTESTED CLAIM — MADE BY BOTH SIDES

"The Indus Valley proves India had no caste before the Aryans" / "The Indus Valley was already a caste society."

Neither statement is supportable, and both get made constantly.

The first treats "we found no kings" as "we have proved there was equality." The second reads hierarchy into differences in house sizes that could reflect a dozen things.

The truthful position is uncomfortable and short: **we cannot read their writing, so we do not know what they called each other.** Anyone claiming otherwise is filling silence with their own preference.

The Argument About Arrival

The most politically explosive question in Indian history. Three positions, each written by its own best advocate.

There is no way to write this chapter that will not annoy somebody, so let me say at the top exactly what I am doing. I am going to lay out three positions, give each the strongest case its supporters make, and then report what the evidence currently supports and how confident anyone should be.

First, why this matters so violently.

WHY THIS QUESTION IS NOT REALLY ABOUT HISTORY

If a group of outsiders arrived and imposed a hierarchy on the people already here, then caste has an origin story that looks like conquest — and the anti-caste movement gains a founding narrative of a native population subjugated by newcomers.

If nobody arrived, then Indian civilisation is continuous and indigenous, and the conquest story collapses.

Both sides therefore *need* a particular answer. That is precisely why you should distrust confident people here — including me.

Position 1: The Aryan Invasion Theory

The oldest version, and the one taught in Indian schools for decades. Fair-skinned Aryans swept in on chariots around 1500 BCE, destroyed the Indus cities, subjugated the dark-skinned natives, and turned them into Shudras.

■ FACT

This version is dead, and it was killed by mainstream scholarship, not by nationalists.

No archaeological evidence of a violent conquest of the Indus cities has been found — no burnt layers of the right date across sites, no mass graves of a battle. The cities appear to decline over generations, with climate change and the shifting of river systems now the leading explanations.

The timing is also wrong: the decline of the Indus cities was well under way before Steppe ancestry shows up in the genetic record.

It matters that this was overturned by ordinary archaeology. When people say "the invasion theory was a colonial construction," that particular sentence is largely correct.

Position 2: The Indo-Aryan Migration model

Not an invasion but a long, gradual movement of pastoralist groups from the Central Asian steppe into the north-west of the subcontinent over centuries, mixing with the people already there.

STEELMAN – THE CASE FOR MIGRATION

Genetics. Steppe-related ancestry is absent from the Rakhigarhi Indus genome and from Indus-related individuals at connected sites, and present in much of the modern South Asian population. Something arrived between those two points.

Language. Sanskrit is unmistakably related to Greek, Latin, Persian, Lithuanian and English. Those languages form one family. Either they all spread out from somewhere, or they all spread out from India — and the second requires explaining why the deepest branches of the family sit outside India.

The Mitanni. In what is now Syria, a fourteenth-century BCE treaty invokes gods named Mitra, Varuna, Indra and the Nasatyas, and a horse-training manual uses Indo-Aryan numerals. Indo-Aryan speech was present in West Asia at that date — which fits a spreading language family.

The horse. Horse remains are essentially absent from mature Indus sites and become common later. The Rig Veda is saturated with horses and chariots.

Position 3: Out of India

The Indo-European languages originated in the subcontinent and spread outward. Nobody significant came in.

Cultural continuity. The archaeological record of the north-west shows no sharp break at the expected date. Pottery, settlement patterns and burial customs shade into each other. Migrations of the scale claimed usually leave a clearer mark.

The texts remember no homeland. The Rig Veda describes the rivers of the Punjab in loving detail, including the Sarasvati, and shows no memory of having come from anywhere else. Compare that with genuinely migratory peoples, who almost always preserve an origin story.

The Sarasvati problem. The Rig Veda praises the Sarasvati as a mighty river. Palaeo-channel and geological work suggests the relevant river system was drying out early. If the hymns describe it while it still flowed, the composers were here earlier than the standard chronology allows.

Ancestry is not identity. A genetic component arriving does not prove that language, religion or social structure arrived with it. Populations mix constantly without their culture changing hands.

Where the evidence currently stands

■ FACT

The migration model is the mainstream scholarly position; Out of India is a minority position.

Among geneticists, archaeologists and linguists publishing peer-reviewed work, the movement of Steppe-related ancestry into South Asia in the second millennium BCE is treated as one of the better-established findings of the ancient DNA revolution. Out of India remains outside that consensus.

But — and this is not a small "but" — the **scale, timing and social consequences** of that movement remain genuinely open. Consensus on "some people moved" is not consensus on "and they imposed caste."

■ INTERPRETATION

Notice how little this settles, whichever way it goes.

Suppose migration is correct. It still does not follow that the newcomers created caste. Steppe ancestry is spread across nearly all Indian populations, including many communities at the bottom of the caste order. If a migrating group had installed itself as a hereditary elite from day one, you would expect a much cleaner genetic split than we actually see. The pattern looks more like mixing that later froze than like conquest that was never undone.

Suppose Out of India is correct. That is *worse* for the argument it is usually deployed to support. If nobody came, then nobody foreign can be blamed for varna. It would be entirely home-grown.

This is the part almost nobody notices: the Aryan question is fought as though it decides the caste question, and it very nearly does not decide it at all.

What "Varna" Actually Meant

One word, several meanings — and a nineteenth-century mistranslation that shaped a century of Indian politics.

Varna is a Sanskrit word. It literally means **colour**. It also means covering, appearance, outward form, kind, sort, class, and quality.

That one word carrying that many meanings has caused more confusion than almost anything else in this argument.

The reading that dominated for a century

When European scholars first worked through the Rig Veda in the nineteenth century, they found references to *arya varna* and *dasa varna*. They translated varna as colour, in the racial sense, and concluded that the hymns described light-skinned Aryans dominating dark-skinned natives — with the four varnas as a racial hierarchy frozen into religion.

This reading was enormously influential. It shaped colonial ethnography, it entered Indian textbooks, and it was adopted by parts of the anti-caste movement as a powerful account of origins: caste as race, imposed by conquest.

■ FACT

The strict racial reading of varna is now largely rejected by scholars.

The main reasons are straightforward. Varna carries many senses in Sanskrit and the colour sense is often metaphorical — light and dark, order and chaos — as it is in many ancient languages. The Rig Veda's descriptions of *dasas* mix physical, linguistic and ritual differences rather than presenting a clean racial category. And the genetic record does not show the neat colour-coded population split the theory predicts.

I want to sit on this for a second, because of who it inconveniences.

This correction cuts against a framing that has been widely used by *the anti-caste side* — caste as fossilised racism. If you are broadly sympathetic to reservation, this is a place where the popular version of your history has been revised, and honesty requires saying so.

■ INTERPRETATION

But look carefully at what has actually been given up.

What the correction establishes: varna almost certainly did not begin as skin-colour racism, and the colonial race theory was bad scholarship.

What the correction does not establish: that varna was harmless. A hierarchy does not need to be racial to be a hierarchy. Removing race from the story removes one *explanation* for ranking. It does not remove the ranking.

This distinction gets deliberately blurred. You will often see "the racial theory of caste has been debunked" presented as though it means "the hierarchy has been debunked." It does not, and the people making the slide usually know it.

The other word: jati

You cannot understand any of this without separating two words that get used interchangeably in English and mean quite different things.

VARNA AND JATI ARE NOT THE SAME THING

	VARNA	JATI
Meaning	Colour, class, order, kind	Birth, kind, community
How many	Four (plus those outside the scheme)	Thousands
Where it lives	Mainly in texts and theory	In actual daily life — marriage, food, work
What it does	Provides a theoretical ranking	Determines who you marry and what you do

Varna is the theory. Jati is the reality. When someone says "the caste system," they usually mean jati; when they defend "varna vyavastha," they are defending the theory. That gap is where a lot of arguing happens without anybody noticing they have changed the subject.

How the four became the thousands is Part 3.

The Hymn

Rig Veda 10.90. The most consequential twelve lines in Indian history, printed in full and read by both sides.

Everything in this argument eventually arrives at one hymn — the Purusha Sukta. It describes a cosmic being, Purusha, sacrificed by the gods, and the universe made out of the pieces. Verses eleven and twelve ask what became of his body.

Here they are.

RIG VEDA 10.90.11-12

yat puruṣaṃ vyadadhuḥ katidhā vyakalpayan |
mukhaṃ kim asya kau bāhū kā ūrū pādā ucyeṭe ||

"When they divided the Purusha, into how many parts did they arrange him? What was his mouth? What his two arms? What are his thighs and his feet called?"

brāhmaṇo'sya mukham āsīd bāhū rājanyaḥ kṛtaḥ |
ūrū tad asya yad vaiśyaḥ padbhyāṃ śūdro ajāyata ||

"The Brahmin was his mouth; the Rajanya was made from his arms; his thighs became the Vaishya; from his feet the Shudra was born."

That is it. That is the foundation stone. Four groups, arranged from the head downward, described as coming out of a single body.

Three facts about this hymn that change how you read it

■ FACT 1

The word "Shudra" appears exactly once in the entire Rig Veda — here.

The Rig Veda contains over a thousand hymns and roughly ten thousand verses. In all of that, the word *śūdra* occurs in this one place. This is not a system the text talks about constantly. It is a scheme that surfaces once, at the end.

■ FACT 2

This hymn is in Mandala 10 — widely held to be the latest layer of the Rig Veda.

The Rig Veda was not composed all at once. Scholars have long distinguished older "family books" from later additions on grounds of language, metre and content, and Mandala 10 is generally placed at the late end.

So the four-varna scheme is not the opening statement of the oldest Indian text. It appears in its most recent section.

■ FACT 3

It says nothing about heredity, marriage, food, purity or untouchability.

Read the verses again. There is no instruction that a Brahmin's son must be a Brahmin. Nothing about who may marry whom. Nothing about pollution or touch. Nothing about punishment.

All of that machinery is real, and it comes later. It is the subject of Part 3. It is not in this hymn.

Now the two readings, in full

READING A – A DESCRIPTION OF FUNCTIONS

This is an image of society as an organism. A body needs a head to think, arms to protect, thighs to carry, feet to stand on. None of them is optional. The metaphor is about *interdependence*, not rank — a body cannot discard its feet and survive.

Nothing here says a Brahmin's child is a Brahmin. Nothing here forbids anyone from moving. It is a picture of four kinds of necessary work, in a text where the word Shudra appears exactly once — hardly the language of an obsession.

And it sits in the newest layer of the collection, which suggests a scheme being introduced rather than one that had always governed life. Later generations turned a metaphor into a prison. That is a crime committed by the interpreters, not by the hymn.

READING B – A DIVINE RANKING

Look at the anatomy. Mouth, arms, thighs, feet. This is not a circle of equals; it is a vertical line, and everybody who has ever read it has understood which end is which. There is a reason no one describes the Brahmin as the feet.

And the source of the ranking is what matters most. This is not "some people do this work." It is a claim that the division was produced in a cosmic sacrifice — built into the structure of reality by the gods themselves.

That is the most dangerous possible framing for inequality, because an arrangement that comes from the gods cannot be reformed by people. Whether or not the hymn mentions heredity, it hands anyone who wants a permanent hierarchy the perfect instrument. And for two thousand years, that is exactly what it was used as.

■ INTERPRETATION

My honest reading of the hymn — labelled as mine.

Reading A is right that the text does not state heredity, and right that it appears late and rarely. People who say the Rig Veda establishes the caste system are overstating what is on the page.

Reading B is right that the ordering is unmistakably vertical and divinely sourced. People who say it is "just about division of labour" have to explain why the labour is arranged from mouth to feet and not, say, in a list.

What I think the evidence actually supports is narrower than either: **the hymn is a ranking, stated as divine, without a stated rule of inheritance.** It is the blueprint, not yet the building. The building goes up in Part 3 — and that is where the argument should really be happening.

The Counter-Verses

The passages that complicate the simple story — a bard, a servant's son, a king who became a sage, and a slave woman's child.

If varna had always been strictly hereditary, certain passages in the earliest texts should not exist. They do exist. Here are the four that matter most, and what each side makes of them.

1. The family of mixed trades

RIG VEDA 9.112.3

"I am a bard, my father is a physician, my mother grinds corn with stones. With different thoughts, all seeking wealth, we run after our desires like cattle."

One household, three occupations, across two generations, described without a hint of scandal.

What Side A says: this is decisive. Occupation was not inherited in the Rig Vedic period. A poet whose father is a doctor and whose mother does manual grinding is a family that a rigid hereditary system could not contain.

What Side B says: none of the three occupations named is one of the four varnas, and the hymn tells us nothing about whether this family could marry outside its group or perform priestly ritual. Flexibility in trade is not the same as flexibility in status.

2. Satyakama Jabala, the boy who did not know his father

In the **Chandogya Upanishad** (4.4), a boy called Satyakama wants to study with a teacher and asks his mother for their lineage. She tells him honestly that she does not know — she was a servant who moved among many households in her youth, and she cannot name his father.

He goes to the teacher, Gautama Haridrumata, and repeats exactly that. The teacher's reply is one of the most quoted lines in Indian literature: only a Brahmin would speak so truthfully. He accepts him as a student.

Side A: the criterion for Brahminhood, in the text itself, is truthfulness — not birth. Explicitly not birth, in a case where birth was unknown.

Side B: the story is remarkable precisely *because* it is remarkable. Texts record exceptions, not routines. And the teacher's line concedes the norm even while breaking it: the boy is admitted by being declared a Brahmin, not by the category being declared irrelevant.

3. Vishvamitra, the king who became a sage

Vishvamitra is born a Kshatriya king and, through immense effort, becomes a Brahmarishi — and is credited in tradition with composing much of Mandala 3 of the Rig Veda, including the Gayatri Mantra.

Side A: the single most sacred verse in Hinduism is attributed to a man who was not born a Brahmin. Movement between varnas is not a modern reinterpretation; it is inside the tradition's own account of itself.

Side B: the length and violence of that story is the point. Vishvamitra's transformation takes lifetimes of austerity and a long feud with Vasishtha. If varna were open, none of that would be necessary. The story is evidence that the wall was real — it just shows one man scaling it.

4. Kavasha Ailusha, the son of a dasi

In the **Aitareya Brahmana**, a seer named Kavasha Ailusha — described as the son of a dasi, a servant or slave woman — is driven out of a sacrifice by other rishis on account of his birth. He composes a hymn, waters appear, and he is accepted back.

Side A: a man of the lowest possible birth is a recognised composer of Vedic hymns. The category was porous.

Side B: read the first half of the story. He was *thrown out because of his birth*. That is birth-based exclusion, recorded in the tradition's own scripture, with no apology attached. The happy ending does not delete the expulsion.

■ INTERPRETATION

What these four passages honestly show — and the trap in both readings.

Side A's trap: collecting exceptions and presenting them as the rule. Four remarkable stories across a vast literature do not describe an open society; they describe a society where such cases were worth recording.

Side B's trap: treating later rigidity as though it were always present. These passages exist. In a fully closed system from the beginning, they could not — the texts would not preserve a slave woman's son as a hymn-composer at all.

Put the two together and you get the reading the evidence actually supports: **an early system with real boundaries and real exceptions, which later lost the exceptions**. That is not a compromise for the sake of politeness. It is what happens when you read all four stories instead of the two that suit you.

The Gita's Sentence

Nine Sanskrit words, quoted in every argument about caste for a hundred years — usually only half of them.

If you have ever argued about caste with anyone, you have met this line. It is the single most cited verse in defence of the position that varna was about aptitude rather than birth.

BHAGAVAD GITA 4.13

chāturvarṇyaṁ mayā sṛṣṭaṁ guṇa-karma-vibhāgaśaḥ

"The fourfold order was created by Me according to the divisions of quality and action."

Two words carry the whole argument. **Guna** — quality, disposition, temperament. **Karma** — action, work, what you do.

Not *janma*. Not birth. The verse does not say birth.

The case built on it

THE ARGUMENT FROM 4.13

Krishna states the origin of the fourfold order in a single line, and the criterion he names is quality and action — what a person is like and what a person does. Birth is simply not mentioned, in the one verse where it would have been most natural to mention it.

So the original design was a classification by aptitude, closer to a modern idea of vocation than to a hereditary caste. Everything cruel that followed came from later interpreters who replaced *guna* with *janma*. Fix the misreading and varna is not the problem — the corruption of varna is.

The three replies

Reply one: read the neighbouring verses

In chapter 18, the Gita returns to the four orders and assigns duties by qualities "born of one's own nature" — *svabhāva-prabhavair guṇaiḥ*. Critics argue that *svabhāva*, one's own inherent nature, was understood by essentially every classical commentator as something you arrive with, not something

you choose. If your nature is given, and your duty follows your nature, the freedom in 4.13 narrows considerably.

Reply two: read what Arjuna is afraid of

In chapter 1, before any of the philosophy begins, Arjuna lists the disasters he fears from the war. Among them is **varna-sankara** — the mixing of varnas — which he presents as a catastrophe destroying families and ancestral rites.

That is the reply that lands hardest. Mixing is only a coherent fear if varnas are groups you are born into and can therefore be born *between*. You cannot dilute a category defined purely by aptitude.

Reply three: the verse that is quoted as inclusive

BHAGAVAD GITA 9.32

"Even those of sinful birth — women, vaishyas, and shudras — they too attain the supreme goal."

This verse is genuinely radical in one direction: spiritual liberation is declared open to everyone, in a world where many held that it was not.

But look at the sentence structure. *Even they*. The verse extends the door to three groups by naming them as the groups that would not otherwise be assumed to have it — and it does so by birth category, listing women alongside two varnas. The generosity and the hierarchy are in the same line.

■ INTERPRETATION

Why this argument never ends.

Because the Gita is not a legal code and was never trying to be consistent about sociology. It is a philosophical dialogue set inside an epic, and it contains a line that clearly points away from birth and other lines that clearly assume it.

Which means **both sides can quote it honestly**. Side A quoting 4.13 is not lying. Side B quoting 1.41 and 18.41 is not lying either. They are quoting a text that does not speak with one voice.

The dishonesty only begins when either side pretends the other verses are not there. Which is, in practice, what almost every WhatsApp forward on this subject does.

■ CONTESTED CLAIM – MADE BY BOTH SIDES

"Scripture settles this."

It does not, in either direction. Hinduism has no single authoritative text, no council that fixed doctrine, and no equivalent of a canon law. It has a vast library composed over more than a thousand years in which almost every position can be sourced to something.

That is a genuine feature of the tradition, not a defect. But it means anyone claiming that "the scriptures say" anything definite about caste has chosen a shelf and called it the library.

Four Ways To Read The Same Evidence

Every serious position on the origin of caste, laid out side by side, each written the way its best defender would write it.

All four of the positions below are held by intelligent people who have read the sources. They are working from the same hymns, the same excavations and the same genomes. Here is each one at full strength — followed by the objection it has the most trouble with.

POSITION 1 — THE FUNCTIONAL ORIGIN

"Varna began as a description of work and hardened much later."

The case: the Rig Veda mentions the four-varna scheme once, in its latest layer, and says nothing about heredity, marriage or purity. The Gita names quality and action, not birth. Families of mixed trades appear without comment. A servant's son becomes a Vedic teacher's student on the strength of his honesty. And the genetics shows widespread population mixing continuing for a long time — a society that had not yet closed. The rigidity is real but it is a later disease, not the original body.

Its hardest problem: the ranking in the Purusha Sukta is vertical and divinely sourced from the start, and the counter-examples are recorded as exceptional. A system with a top and a bottom, said to have been made by gods, is not merely a job list even on day one.

POSITION 2 — THE HIERARCHICAL ORIGIN

"It was a ranking from the moment it was written down."

The case: mouth, arms, thighs, feet is not a neutral list. It places groups on a vertical axis and attributes that placement to a cosmic sacrifice, which puts it beyond human revision. The exceptions in the texts are recorded precisely because they were extraordinary, and one of them — Kavasha Ailusha — features explicit expulsion on grounds of birth. Arjuna's fear of varna-mixing shows that varnas were already understood as birth groups. And the endogamy lock closes long before any foreign arrival.

Its hardest problem: if birth-based rigidity was there from the start, the widespread population mixing visible in the genome for centuries afterwards is very hard to explain. Closed groups do not mix.

POSITION 3 – THE FOREIGN IMPOSITION

"Caste as we know it was created or hardened by outsiders."

The case: Indian society shows real fluidity in the earliest sources and rigidity in the latest, and the periods in between contain repeated foreign rule. Colonial administration in particular counted, listed and fixed caste in ways that turned fluid local identities into permanent official categories — a process with a documented paper trail. Some version of this argument is accepted even by scholars who reject the strong form of it.

Its hardest problem: the timing does not work for the strong version. The genetic evidence puts the shift to endogamy at roughly two thousand years ago at the latest — centuries before the first Islamic rulers and well over a thousand years before the British. Outsiders can be shown to have hardened and formalised an existing system. They cannot have started it.

POSITION 4 – THE FABRICATION THESIS

"The severity of historical caste oppression has been exaggerated."

The case: the strongest version does not deny that hierarchy existed. It argues that a hierarchical society — of which there were many everywhere in the pre-modern world — has been retrospectively described in the language of unique atrocity, largely for political purposes; that colonial and missionary sources had motives to portray Hindu society at its worst; and that the four-varna scheme was a textual ideal that never governed most Indian lives, which were organised by region, occupation and local custom.

Its hardest problem: it is untestable at this depth of history and it is not really an argument about origins at all. It is an argument about the *period we can actually document* — court records, land records, temple records, travellers' accounts, colonial files. That evidence exists in enormous quantity. This position lives or dies in **Part 6**, not here.

A NOTE ON HOW THESE GET USED

Positions 1 and 3 are frequently held together, and the combination is politically comfortable: our system was fine, foreigners broke it. Positions 2 and 4 are almost never held together, because they contradict each other outright — one says the hierarchy was severe from the beginning, the other says it was never that severe.

Worth noticing when you see someone using both in the same argument.

Nine Questions Nobody Asks

The blind spots. Things that almost never come up, on either side, and that change the shape of the argument once you see them.

Everything up to here has been the argument as it is normally conducted. This chapter is the argument as it almost never is. These are the questions I kept running into while reading, that nobody seemed to be asking out loud.

1. Why did India's hierarchy survive when everyone else's collapsed?

This is the question that should be at the centre and is almost never asked at all.

Hierarchy was universal in the ancient world. Egypt, Rome, China, Persia, Mesoamerica, medieval Europe — all of them had rigid, birth-based ranks, and several were far more violent about it than anything in the Indian texts. Roman slavery was industrial in scale. European serfdom bound millions to land they could not leave.

And all of those systems are gone. Not reformed — gone, as living social structures.

India's is not gone. It is weakened, illegal in many of its expressions, and under enormous pressure — but people still overwhelmingly marry inside it. So the interesting question is not "was India uniquely oppressive?" The honest answer to that is probably no. The question is: **what made this particular system so much more durable than all the others?**

And the likeliest answer is not cruelty. It is *engineering*. Most hierarchies are enforced from above — by a king, an army, a church. Remove the enforcer and the system decays. Caste is enforced horizontally, by thousands of separate communities each policing its own marriages. There is no head to cut off. That is why it outlasted every empire that ruled over it.

2. If varna began as work, doesn't that argue for change rather than against it?

Notice something odd about how Position 1 gets used.

The argument "varna was originally about work, not birth" is almost always deployed as a *defence* — of the tradition, and usually against reservation. But run the logic forward. If the system began as a flexible classification and later became a hereditary prison, then the hereditary part is the deviation. The reformer is the one being faithful to the original, and the traditionalist is defending the corruption.

People who make this argument are, without noticing, making the strongest available case that caste is a mistake that Hinduism itself should correct.

3. What would the record look like if the losers had written it?

Every text in this book was composed, memorised, transmitted and preserved by one narrow group: literate ritual specialists. For thousands of years, they were the archive.

That is not a conspiracy claim — it is just what literacy meant in the ancient world. But it has a consequence people skip. When we say "the texts do not mention widespread oppression," we are noting that *the beneficiaries' own records* do not mention it. That is exactly the source least likely to.

It cuts the other way too. Those same texts preserved the story of a slave woman's son composing hymns, and of a boy of unknown father accepted for his honesty. A pure propaganda archive would have deleted both. The record is biased. It is not fabricated.

4. Are we reading descriptions or complaints?

A rule is usually written down when it is being broken. "Do not do X" is evidence that people were doing X.

So when a later text angrily forbids intermarriage between varnas, there are two possible worlds behind it: one where the rule was obeyed and the text records the norm, and one where people were marrying across lines constantly and an alarmed authority was trying to stop them.

These are opposite societies producing an identical document. Almost every claim about how caste "actually worked" before the modern period runs into this wall, and very few people acknowledge it.

5. Why is there no memory of anyone deciding this?

Big social systems usually have a founding: a lawgiver, a conquest, a treaty, a council. Caste has none. No Indian text says "in this year, the following arrangement was established."

It appears to have assembled itself, over centuries, out of a very large number of local decisions by people who were not coordinating and probably did not think they were building anything.

That matters for the argument, because it removes the villain. It is far more comfortable to fight a system somebody imposed than one that grew. But it also removes an excuse: nobody imposed it, which means nobody outside is responsible for it.

6. What if the four varnas were never the real system?

Everyone argues about four categories. Almost no Indian has ever lived in four categories.

People live in *jatis* — thousands of them, tied to region, occupation and language, ranked differently in different districts, and frequently disputing their own placement in the four-fold scheme. Communities have argued for centuries about whether they are Kshatriya or Vaishya. The four-varna model was, for most of Indian history, a theoretical framework that local reality was pushed into afterwards.

Which means arguing about the Purusha Sukta may be arguing about a map rather than the territory. It matters enormously — because the map was used to justify the territory — but it is not the same thing.

7. Both sides need the Aryan question to come out a certain way. Why isn't that suspicious?

Consider how strange it is that a technical question about Bronze Age population movement has a predictable political answer attached to it.

If you can guess someone's view on migration from their view on reservation, then the evidence is not doing the work. And that applies in both directions — this is not a point about one camp. When a factual question sorts people by politics, it is being used rather than investigated.

8. Why did Buddhism reject caste and then leave?

Buddhism explicitly rejected birth-based worth. It spread across Asia and shaped half a continent. And it very largely disappeared from the land of its birth.

Whatever explains that is central to the story of why caste endured here — and it is a genuinely open historical question. This is Part 3's territory, but it belongs on the list because almost nobody arguing about caste origins brings it up at all.

9. Does knowing the origin actually change what we owe each other?

The last one, and the one that should be asked first.

Suppose we settled everything in this book tomorrow. Suppose it was proved beyond doubt that varna began as a gentle description of work and was hardened by outsiders eight hundred years ago.

What changes for the family that has been landless and excluded for twenty generations?

Nothing. Not one thing. Their position was produced by what was *done*, over centuries, not by what was originally *meant*. Origin stories assign blame. They do not undo consequences.

We spend ninety per cent of the argument on the ten per cent that changes nothing.

What The Evidence Can And Cannot Settle

The honest scorecard. What we actually know, what we merely believe, and what nobody can answer at all.

After all of that, here is the part almost no book on this subject will give you: a clear statement of the limits.

THE SCORECARD FOR PART 2

Question	Status	Best current answer
Did population mixing stop and endogamy begin in ancient India?	Settled	Yes — roughly 1,900–4,200 years ago
Did the Indus Valley have caste?	Unknowable	Script undeciphered. No basis for any claim.
Did Steppe-related people move into South Asia?	Strong consensus	Yes, second millennium BCE
Did those migrants create the caste system?	Not supported	Ancestry is spread across all levels of the caste order
Does the Rig Veda describe a ranking?	Yes	Vertical, divinely sourced, stated once
Does the Rig Veda make varna hereditary?	No	Heredity is not stated in the text
Was there movement between varnas?	Yes, some	Recorded — and recorded as remarkable
When exactly did varna become jati?	Open	Gradual, over centuries — see Part 3
Was historical caste oppression exaggerated?	Answerable	But not from this evidence — see Part 6

The three things nobody can tell you

- **What ordinary people thought.** Every text we have was composed and preserved by a literate priestly minority. We have the ideology of the people who wrote. We do not have the view from the village, because the village did not write.

- ▶ **Whether the texts described society or prescribed it.** This is the deepest problem in the whole field. A text saying "a Brahmin should do X" might be reporting what Brahmins did, or complaining that they were not doing it. Legal and religious codes tend to be written when a rule is being *broken*. We often cannot tell which we are reading.
- ▶ **Why the lock closed.** Genetics gives us the date with real confidence. It gives us the reason with none at all. Every explanation you will read for why India became endogamous — priestly power, land, agriculture, conquest, ritual purity — is a hypothesis, not a finding.

We know almost exactly when Indians stopped marrying outside their groups. We have no idea why they did it. That gap is where every theory of caste lives.

■ INTERPRETATION

And the observation that matters most for the reservation argument.

Go back to the table in Chapter 1 — the four possible histories and what each implies for reservation today.

Here is what struck me hardest while writing this part: **almost nothing in it changes the answer.**

Suppose Position 1 is completely correct and varna began as a flexible description of work. It still hardened. It was still closed for something like two thousand years. A person born into a group excluded for eighty generations is not less excluded because the exclusion started as a metaphor.

Suppose Position 3 is correct and foreigners did the hardening. The hardening still happened, and the people who inherited its effects are the same people.

The origin story determines who we blame. It barely touches what was actually done, to whom, and for how long — and it is *that* which any remedy has to answer to.

Which is why the argument you are about to read in Parts 3 and 6 matters far more than the one in this book, and gets far less attention. Origins are more fun to argue about than evidence.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 2 — BEFORE CASTE

1. **Genetics gives us a date, not a reason.** Population mixing across India was widespread until roughly 1,900–4,200 years ago, and then it stopped. That is when the lock of endogamy closed — long before any Islamic or British arrival, and long after the earliest Vedic period.
2. **The Indus Valley cannot answer this question.** No palaces, no royal tombs, no monuments to rulers — and no readable script. Anyone claiming the Indus proves either equality or caste is filling silence with preference.
3. **The four-varna hymn appears once, late, and says nothing about birth.** The word *shudra* occurs exactly once in the whole Rig Veda, in Mandala 10. But the arrangement it describes — mouth, arms, thighs, feet — is unmistakably vertical and is credited to the gods.
4. **Both sides can quote scripture honestly.** The Gita says quality and action in 4.13, and assumes birth groups in 1.41 and 18.41. Vishvamitra crossed varna; Kavasha Ailusha was expelled for his birth. The tradition does not speak with one voice, and pretending it does is the only real dishonesty available.
5. **The origin barely changes the verdict.** Whether varna began as work or as rank, whether foreigners hardened it or Indians did, it closed and it stayed closed for roughly two thousand years. Origins tell you whom to blame. They do not tell you what was done — and a remedy answers to what was done.

Coming next

PART 3 — HOW VARNA BECAME JATI

The engine room.

Four categories became three thousand communities. A metaphor became a wall. Part 3 is the mechanism: the Dharmashastras and the actual verses of the Manusmriti — including the ugliest ones, quoted in full and with the honest debate about how far they were ever enforced. Endogamy as the single lock that froze everything. Where untouchability came from, including Ambedkar's own theory and its competitors. And Buddhism and Jainism as the first great revolts against all of it.

This is the part where the argument stops being about metaphors and starts being about rules with punishments attached.

A closing thought: if you finished this part feeling that your side did not win cleanly, that is the correct reaction, and the evidence is responsible for it rather than me. The clean win is available only to people who stop reading early. — L.S.

Sources & Notes

Every factual claim in Part 2, and where it comes from.

Genetics

Shinde, Narasimhan et al., "An Ancient Harappan Genome Lacks Ancestry from Steppe Pastoralists or Iranian Farmers," *Cell*, 2019 — the Rakhigarhi individual (I6113); Iranian-related and AASI ancestry, no Steppe component. · Narasimhan et al., "The Formation of Human Populations in South and Central Asia," *Science*, 2019 — ancient DNA from 523 individuals; Steppe-related ancestry entering South Asia after the mature Indus period; Indus-periphery outliers at Shahr-i-Sokhta and Gonur Tepe. · Moorjani et al., "Genetic Evidence for Recent Population Mixture in India," *American Journal of Human Genetics*, 2013 — genome-wide data from 73 groups; ANI-ASI mixture dated to approximately 1,900–4,200 years ago; essentially no mixture before c. 4,000 years ago; widespread mixture thereafter, followed by the shift to endogamy.

Archaeology

Green, "Killing the Priest-King: Addressing Egalitarianism in the Indus Civilization," *Journal of Archaeological Research*, 2020 — the absence of evidence for a managerial ruling class, and the case that social complexity does not require one. · Standard summaries of Indus urban planning, standardised brick ratios and weights, the Great Bath, and Meluhha references in Mesopotamian records. · The counter-position on limited burial samples and differential access is drawn from the same literature, which contains both readings.

Texts

Rig Veda 10.90.11–12 (Purusha Sukta) — transliteration and translation as given. The word *śūdra* occurs in the Rig Veda only in this hymn. Mandala 10 is generally placed in the latest stratum of the collection on linguistic and metrical grounds. · Rig Veda 9.112.3 — the bard, the physician and the grinder of corn. · Chandogya Upanishad 4.4 — Satyakama Jabala. · Aitareya Brahmana — Kavasha Ailusha, son of a dasi. · Bhagavad Gita 4.13 (*guṇa-karma-vibhāgaśaḥ*), 1.41 (*varṇa-saṅkara*), 18.41–44 (*svabhāva-prabhavair guṇaiḥ*), 9.32.

On the Aryan question

The migration model is the mainstream position among geneticists, archaeologists and linguists publishing peer-reviewed work as of 2026; Out of India remains a minority position outside that consensus. The Mitanni treaty invoking Mitra, Varuna, Indra and the Nasatyas, and the Kikkuli horse-training text using Indo-Aryan numerals, are standard evidence in the linguistic case. The absence of archaeological evidence for a violent conquest of the Indus cities, and the role of climate and river-system change in their decline, are also mainstream findings — which is why the older Invasion Theory is treated in this book as superseded.

A note on what is missing — and on corrections

Part 2 makes no claim about Manusmriti, untouchability, the medieval period, colonial rule, or whether historical caste oppression was severe. Those belong to Parts 3, 4, 5 and 6, where the evidence is documentary rather than inferential and can be tested properly. Anything marked **CONTESTED CLAIM** here stays contested until evidence is produced — including claims made by people I might agree with.

Sanskrit transliteration and dating in this part follow standard scholarly conventions, but this is a field where specialists disagree in good faith, and where new ancient-DNA results have repeatedly revised the picture within the last decade. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART TWO

THE RESERVATION FILES Before Caste

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 3 — How Varna Became Jati: the 1,500-year
hardening
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART THREE

HOW VARNA BECAME JATI

Four categories became three thousand communities. A metaphor became a wall. This is the machinery — and the rules that had punishments attached.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

The Part That Made Me Angry

I promised at the start of this series that I would not let my own feelings drive the writing. This is the part where that promise cost me the most.

Part 2 was about hymns and archaeology. You can argue about a metaphor for a long time without anyone getting hurt. Part 3 is different. Part 3 is where we reach texts that specify, in plain language, which body part to mutilate and for which offence.

I sat with those verses for a while. Then I did the thing this series requires and went looking for the strongest case that they were not what they appear to be. And I found real arguments — better than I expected. Some of them I now think are correct.

"A rule written down is not the same as a rule enforced. But a rule written down, preserved for two thousand years and never repudiated, is not nothing either."

So this part has an unusual structure. Chapter 3 prints what the text says — the worst of it, in full, without softening. Chapter 4 then puts the best possible case that it was never the law of the land. I have kept those two chapters separate on purpose, because the most common failure in this argument is to do one and skip the other.

If you are the kind of reader who wants the quotes without the context, Chapter 3 will give you plenty of ammunition. If you are the kind who wants the context without the quotes, Chapter 4 will. Reading only one of them will make you confidently wrong, and I would rather you did not use my book for that.

Two more things. First, I have tried very hard not to write "Hinduism did this." The Dharmashastras are one genre inside an enormous tradition that also produced the Buddha, Basava, Kabir and Ravidas — people who attacked this system from inside India, using Indian arguments, centuries before any European arrived. A tradition that produces both the rule and its fiercest critics cannot be summarised by either one.

Second, this is where the ground stops being speculative. From here on there are dates, documents and named people. The arguing gets harder and the evidence gets better. That is a good trade.

Contents

THE COLOUR CODE — A REMINDER

■ **FACT** — checkable, not seriously disputed. ■ **INTERPRETATION** — same evidence, two honest readings, both written out. ■ **CONTESTED CLAIM** — asserted by someone, evidence thin. The third box appears for both sides, always.

- 1** **From Four To Three Thousand**
How a scheme with four boxes became a society with thousands
- 2** **The Rulebooks**
What the Dharmashastras are — and what they are not
- 3** **What Manu Actually Says**
The verses, in full, including the ones nobody wants to print
- 4** **Was Manu Ever Enforced?**
The strongest defence, taken seriously — and where it holds
- 5** **The Lock**
Endogamy: the one mechanism that made everything else possible
- 6** **The Five Walls**
Marriage, food, housing, work, worship — the five separations that were caste
- 7** **Who Actually Benefited?**
Not who you think — and why this explains everything after 1990
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1,500 years on a single timeline
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- 13** **The Five-Line Nichod**
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From Four To Three Thousand

The four-varna scheme is the poster. Jati is the building. Here is how one became the other.

Here is a question that sounds simple and is not. If the system has four categories, why does India have thousands of castes?

Because the four were never the system. They were the *theory* of the system — a tidy framework that a vast, messy, multilingual subcontinent was pushed into afterwards, and never quite fitted.

What people actually lived in was **jati**. Thousands of them. Tied to a region, a language, a trade, sometimes a single valley. And the crucial point: your jati, not your varna, decided who you could marry, who you could eat with, and what you did for a living.

Varna is what the texts argue about. Jati is what actually ran people's lives. Almost every confused argument about caste comes from mixing the two up.

Six ways a jati gets made

Historians and sociologists have identified several mechanisms. They all operated at once, over a very long time.

- ▶ **Guilds that closed.** Ancient India had craft and trade associations — *shrenis* — of weavers, metalworkers, oil-pressers, merchants. Guilds everywhere in the pre-modern world tended to become hereditary. In India they also became marriage circles, which is the step that turned a guild into a caste.
- ▶ **Tribes absorbed from outside.** As settled agriculture expanded into forest and hill country, whole communities were brought into the hierarchy — almost always near the bottom. This is one of the main routes by which the system grew, and it never really stopped.
- ▶ **Sects that hardened.** Religious movements that began as open to all frequently became closed communities within a few generations, marrying only among themselves.
- ▶ **Distance.** One caste that migrated and settled far away would, after a few generations of not marrying back, become a separate jati with the same name.

- ▶ **Splitting over disputes.** Communities divided over ritual arguments, over whether widows could remarry, over which deity to follow — and each fragment became its own marriage circle.
- ▶ **Climbing.** Groups that gained land or power adopted the practices of those above them — vegetarianism, ritual, a new origin story — and pressed a claim to a higher rank. The sociologist M. N. Srinivas called this **Sanskritisation**.

■ FACT

Mobility existed — for groups, not for people.

Sanskritisation is real and well documented. Communities have moved up the ranking over generations, and many have.

But look at what kind of mobility that is. A whole community, over several generations, by adopting the customs of its superiors and successfully arguing a new origin story. It is not an individual walking into a different life. And crucially, **it does not challenge the ladder — it climbs it.** Every successful climb confirmed that the ranking was worth having.

■ INTERPRETATION

The same fact, used two ways.

Side A: caste was never the frozen block it is described as. Groups rose and fell constantly. A system with that much internal movement is not a rigid hierarchy; it is a fluid one with a ranking.

Side B: that a community had to spend three generations imitating its superiors to be treated slightly better is a description of how total the hierarchy was, not evidence against it. Mobility that requires you to accept the ranking is the hierarchy working exactly as designed.

Why this multiplication matters for 2026

Because it explains something that confuses everybody in the reservation argument.

When people say "the SC quota has been captured by a few communities," or when the Supreme Court permitted states to sub-classify Scheduled Castes in 2024, they are running into this fact: **the official categories are varna-shaped, and real life is jati-shaped.**

Four boxes were laid over thousands of communities with wildly different histories. Some inside a single box were far more deprived than others. That mismatch was built in at the beginning, and it is now one of the central problems of Indian public policy. Part 10 returns to it.

The Rulebooks

What the Dharmashastras actually are – and four things about them that most people on both sides get wrong.

Somewhere between roughly 600 BCE and 500 CE, a genre of Sanskrit literature developed that set out rules for how life should be lived – duties, rituals, inheritance, marriage, crime, punishment, and the obligations of each varna.

These are the **Dharmashastras**. The most famous is the *Manava Dharmashastra*, universally known as the **Manusmriti** – the Laws of Manu.

Four corrections before we read a word of it

■ FACT 1

The Manusmriti is not "the Hindu Bible." There is no such thing.

Hinduism has no single authoritative scripture, no council that fixed a canon, and no central authority that could have declared one. The Manusmriti is one text in one genre. Others in the same genre – the Yajnavalkya Smriti, the Narada Smriti, and many more – *disagree with* it, sometimes sharply, on inheritance, on women's property, and on punishment.

Anyone who says "Hinduism says X because Manu says X" has mistaken one book for a library.

■ FACT 2

It dates to roughly 200 BCE – 200 CE.

Patrick Olivelle's critical edition and translation (2005) – the standard scholarly text – places it in that window, with numismatic evidence pointing to the second or third century CE.

That is well over a thousand years after the Rig Veda. Whatever the Manusmriti describes, it is not the original Vedic society. It is a much later attempt to codify.

■ FACT 3

The text we have contains later insertions.

Olivelle's critical edition identifies passages that appear to be interpolations — material added after the original composition. This is normal for ancient texts transmitted by hand over centuries.

It is also a real complication for both sides. Defenders sometimes use it to dismiss any verse they dislike as "an interpolation," which is not how textual criticism works. Critics sometimes ignore it entirely. The honest position is that the harshest verses are stable across the major manuscripts and translations — they are not a modern forgery — but the text did grow over time.

■ FACT 4

The British made Manu far more powerful than it had ever been.

When the East India Company began administering Indian law, it needed a written code for "Hindu law." It commissioned translations, and Sir William Jones produced an English Manusmriti in 1794.

Colonial courts then began treating it as an authoritative legal source in a way no pre-colonial Indian state consistently had — because pre-colonial justice was mostly administered by local caste councils and regional custom, not by a single Sanskrit book.

This is one of the strongest and best-documented points the "it was not really the law" side has. It is also, as we will see in Chapter 4, less of a rescue than it first appears.

■ INTERPRETATION

Why the text still matters enormously, even granting all four points.

Because of what happened to it afterwards. The Manusmriti was copied, commented on, taught and quoted for close to two thousand years. It was never repudiated by any authority within the tradition, because there was no authority that could repudiate anything.

And when Indians in the twentieth century looked for a symbol of the system they were fighting, both sides picked the same book. Ambedkar publicly burned a copy at Mahad on 25 December 1927. He did not choose it at random. He chose it because everyone already knew what it stood for.

A text that both its defenders and its most famous enemy agree is the emblem of the system is not a marginal document, whatever its legal status once was.

What Manu Actually Says

No *paraphrase*, no *softening*. The verses, as they are. Then, in the same chapter, the verses that *complicate* them.

Most people arguing about the Manusmriti have never read a line of it. So here it is. Translations follow the standard English versions in general circulation; the wording varies slightly between translators but the content does not.

The structure

MANUSMRITI 1.31

"But for the sake of the prosperity of the worlds, he caused the Brahmana, the Kshatriya, the Vaishya and the Shudra to proceed from his mouth, his arms, his thighs and his feet."

The Purusha Sukta image again, now in a law book. And immediately after it, something the hymn never did — *assigned duties*.

MANUSMRITI 1.91

"One occupation only the lord prescribed to the Shudra — to serve meekly these other three castes."

That is the shift. In the Rig Veda, four groups exist. Here, one of them has a single permitted function, and it is service.

The punishments

These are the verses people usually only hear about. Here they are.

MANUSMRITI 8.270-272

8.270 — "A once-born man who insults a twice-born man with gross invective shall have his tongue cut out; for he is of low origin."

8.271 — "If he mentions the names and castes of the twice-born with contumely, an iron nail ten fingers long shall be thrust red-hot into his mouth."

8.272 — "If he arrogantly teaches Brahmanas their duty, the king shall cause hot oil to be poured into his mouth and into his ears."

There is no way to read that as a metaphor. It specifies an offence, an instrument, a measurement and a body part.

MANUSMRITI 8.281 • 8.417

8.281 — "A low-caste man who tries to place himself on the same seat with a man of high caste shall be branded on the hip and banished, or the king shall cause his buttock to be gashed."

8.417 — "A Brahmana may confidently seize the goods of his Shudra servant; for, as that servant can have no property, his master may take his possessions."

And the verses about those outside the four

This is where untouchability appears in the text — not as a vague attitude, but as a residence rule, a dress code and a job description.

MANUSMRITI 10.51-52, 10.54

10.51 — "The dwellings of Chandalas and Shvapachas shall be outside the village... and their wealth shall be dogs and donkeys."

10.52 — "Their dress shall be the garments of the dead; they shall eat their food from broken dishes; black iron shall be their ornaments; and they must always wander from place to place."

10.54 — "By day they may go about for the purpose of their work, distinguished by marks at the king's command, and they shall carry out the corpses of persons who have no relatives; that is a settled rule."

Outside the village. Dead people's clothes. Broken dishes. Identifying marks. Corpse disposal.

Anyone who has visited a village where the Dalit basti still sits at the edge, past the main settlement, will recognise the geography.

And on women

MANUSMRITI 9.3 · 2.31

9.3 — "Her father protects her in childhood, her husband protects her in youth, and her sons protect her in old age; a woman is never fit for independence."

2.31 — "Let the first part of a Brahmana's name denote something auspicious, a Kshatriya's be connected with power, a Vaishya's with wealth — but a Shudra's express something contemptible."

Worth noticing: caste and gender are written into the same book, by the same logic. That connection returns in Part 13.

Now the verses the other side quotes — from the same text

This is the part that almost never appears alongside the ones above, and it should.

MANUSMRITI 10.64-65

10.64 — "If the offspring of a Brahmana by a Shudra female bears children to one of the highest caste, the inferior tribe attains the highest caste within the seventh generation."

10.65 — "Thus a Shudra attains the rank of a Brahmana, and in a similar manner a Brahmana sinks to the level of a Shudra."

This is significant and it is rarely acknowledged by critics. **Manu explicitly permits varna to change across generations — in both directions.** The text that is treated as the charter of permanent hereditary rank contains a mechanism for altering rank.

"In the case of theft the guilt of a Shudra is eightfold; that of a Vaishya sixteenfold; that of a Kshatriya thirty-twofold; that of a Brahmana sixty-fourfold, or a hundredfold, or even twice sixty-fourfold."

Punishment here scales *upward* with caste. The higher your rank, the greater your guilt for the same act — because, the text reasons, you knew better.

Book 2 also contains verses instructing a student to accept knowledge and good conduct from anyone, explicitly including people of low birth.

■ INTERPRETATION

So what do we actually have here?

Defenders are right that the text is not a single-minded document of hatred. It contains provisions for mobility, it scales culpability upward with rank, and it tells students to learn from anyone. A critic who quotes only 8.270 is not describing the book.

Critics are right that these humane passages sit beside instructions to pour hot oil into a man's ears for speaking above his station, and that no amount of context makes 10.51 anything other than a residential segregation order.

And there is an asymmetry that decides it. The eightfold-guilt verse is undercut elsewhere in the same text, which shields Brahmanas from execution and from several corporal punishments. The seven-generation mobility rule requires a specific and unlikely chain of marriages. The mutilation verses require nothing but a Shudra who spoke.

My reading, labelled as mine: the humane verses are real and should be quoted. They are also, structurally, the exceptions. The spine of the text is a ranked order with graded punishments, and the exceptions bend around it rather than the other way round.

Was Manu Ever Enforced?

The best defence of the tradition, put as strongly as it can be put. It is better than its opponents admit – and it does not go as far as its supporters need.

After the last chapter, the obvious question is whether any of it was ever actually done to anybody. This is the single most important dispute in Part 3, and it deserves a full hearing on both sides.

STEELMAN – THE CASE THAT MANU WAS NEVER THE LAW OF INDIA

- 1. There was no mechanism to enforce it.** Pre-modern India had no national legal system, no police force, no appellate structure and no Sanskrit-literate magistracy in every district. Most disputes were settled by village councils and caste panchayats applying local custom.
- 2. Custom formally outranked text.** Indian legal tradition repeatedly acknowledges the authority of regional and community custom — *desachara* and *jatidharma*. A rule in a Sanskrit treatise did not override what a community actually did.
- 3. Almost nobody could read it.** The Manusmriti is in Sanskrit, in a society where literacy was rare and Sanskrit literacy rarer. Most Indians who lived under caste had never heard of the book.
- 4. The shastras contradict each other.** Other Dharmashastras differ on inheritance, women's property and punishment. A body of rules that disagrees internally cannot function as a code.
- 5. The evidence for the punishments is textual, not archaeological.** There is no body of records showing Indian states routinely pouring hot oil into people's ears. The prescription exists; a documented history of its execution largely does not.
- 6. The British inflated it.** Colonial administration needed one written code and manufactured a uniformity that had never existed, giving Manu an authority in the nineteenth century that it had not held in the twelfth.

How much of that survives scrutiny

Quite a lot, and I want to say that plainly before the reply, because this argument is usually dismissed rather than answered.

Points 1 through 4 are largely correct as history. Point 6 is well documented. Point 5 is a fair observation about the evidentiary record.

Now the reply.

THE REPLY – WHY THIS RESCUES LESS THAN IT SEEMS

The defence answers a charge nobody serious is making. The claim is not that Indian kings ran a nationwide programme of judicial mutilation from a Sanskrit manual. The claim is that Indian society was organised by hereditary rank, that the rank determined where you lived, whom you married and what work you did, and that the texts articulated and legitimised this. That claim does not require a single verse of Manu to have been enforced by any court.

Custom was not an escape from caste – it was the delivery system. Saying "local custom governed, not Manu" is only comforting if local custom was kinder. The caste panchayats that actually enforced things were themselves caste bodies. In many places custom was harsher and faster than any text, because it needed no trial.

Illiteracy cuts the wrong way. A person who cannot read the rule excluding them is not thereby unexcluded. The barred well does not require you to have read about it.

The physical record is not textual. Segregated settlements, separate wells, separate cremation grounds and temple exclusion are not claims about a book. They are visible facts about the built environment of Indian villages, many of which persisted into living memory and some of which persist now.

And the colonial argument has a date problem. The genetic evidence in Part 2 places the endogamy lock at roughly two thousand years ago – many centuries before any European reached India. The British hardened, catalogued and formalised. They did not start it.

■ INTERPRETATION

Where I think this actually lands.

The defence wins the narrow question and loses the broad one.

Narrow question – was the Manusmriti the enforced legal code of India? No. The defence is right, and people who imply otherwise are overstating.

Broad question – was Indian society organised by hereditary rank with real material consequences? Yes. And that question is not answered by anything in the defence, because it never depended on the book in the first place.

Watch for the switch. The defence is usually deployed against the narrow claim and then treated as having settled the broad one. It has not. Whether the injury was real is a matter of documentary evidence from periods we can actually see – and that evidence is the whole of **Part 6**.

The Lock

Forget the texts for a moment. One single mechanism explains why caste outlived every empire that ruled over it.

If you removed every copy of the Manusmriti from the world, caste would have survived unaffected. If you removed one thing — the rule that you marry inside your group — it would have collapsed within a few generations.

Endogamy is the load-bearing wall. Everything else is decoration on it.

Why marriage is the whole system

- ▶ **It makes the group hereditary.** A category you can marry out of stops being a birth group in two generations. Close marriage and birth becomes destiny automatically — no enforcement required.
 - ▶ **It keeps property inside.** Land, tools, workshops, trade contacts and credit all pass through marriage. Closed marriage means closed economies.
 - ▶ **It preserves the occupation.** If the potter's daughter can only marry a potter, the trade stays in the community whether or not any law says so.
 - ▶ **It creates the purity logic.** Once groups are sealed, contact between them becomes something to be regulated — food, water, touch. The rules about pollution are downstream of the rules about marriage, not the other way round.
 - ▶ **And it needs no state at all.** This is the crucial one.
-

Most hierarchies are enforced from above. Kill the king and the system dies. Caste is enforced by thousands of families policing their own weddings. There is nothing to kill.

■ FACT

We can see the lock closing in the genome.

As covered in Part 2: genome-wide analysis of 73 groups across the subcontinent dated the mixture between ancestral populations to roughly 1,900–4,200 years ago. Before about 4,000 years ago there was essentially no mixing barrier. After that, mixture was widespread — and then it ceased, and endogamy became the norm.

Moorjani et al., *American Journal of Human Genetics*, 2013

Anuloma and pratiloma: the asymmetry

The texts do discuss marriage across varna, and the way they discuss it is revealing.

TWO KINDS OF MIXED MARRIAGE, TREATED VERY DIFFERENTLY

Term	What it is	How the texts treat it
Anuloma "with the grain"	Higher-varna man marries lower-varna woman	Disapproved of in places, but recognised and regulated, with rules for the status of the children
Pratiloma "against the grain"	Lower-varna man marries higher-varna woman	Condemned in the strongest terms. Offspring assigned the lowest status.

■ INTERPRETATION

What the asymmetry tells you.

If the concern were purely about keeping occupations tidy, direction would not matter. It matters enormously. Which tells you the system was not really regulating work — it was regulating *women*, and through them, the boundary of the group.

This is why caste and gender cannot be separated in Indian history, and why the strictest controls on women's movement, remarriage and choice have historically tracked the castes most anxious about rank.

The measurement that predicts the future

■ FACT

Inter-caste marriage in India remains in the low single digits.

Large national surveys have consistently found that the overwhelming majority of Indian marriages remain within caste, and that the figure has moved very little across decades — despite urbanisation, education and mass migration to cities.

This is the single most useful number in the entire debate, and almost nobody cites it. Reservation policy argues about entry into colleges and jobs. The lock is in the wedding.

Which produces an uncomfortable question for both sides, and I will pose it here and answer it in Part 14.

If the mechanism that sustains caste is marriage, and if reservation does not touch marriage — then what, exactly, do we expect reservation to fix? And if a movement wants to end caste, why is its programme about exam seats rather than about the one practice that keeps caste alive?

The Five Walls

Strip away the theology. Caste was five practical rules about ordinary life – and each one did a specific job.

Ask most people what caste is and they will say something about hierarchy or discrimination. That is the effect. This chapter is the mechanism – the five actual, physical separations that made a jati a jati.

None of them requires a text. All of them are enforced by neighbours.

Wall 1 – Marriage (connubium)

Covered fully in Chapter 5. You marry inside the group. This is the wall that makes all the others possible, because it is the one that converts a category into a bloodline.

What it does: makes the group hereditary, keeps property inside, keeps the trade inside, and needs no enforcer beyond a family.

Wall 2 – Food and water (commensality)

Who may cook for you. Who may serve you. Whose water you may drink. Whether you may eat in the same row, or must eat afterwards, or outside.

This is the wall that made caste *visible every single day*. Marriage happens once in a lifetime. Meals happen three times a day, and every one of them was a public performance of rank.

What it does: converts an abstract ranking into a constant, unmissable social fact. And it makes the boundary self-policing – nobody has to be punished, because everyone is watching.

■ INTERPRETATION

Why the well became the symbol.

Of all the sites of caste conflict in modern Indian history, the most common is the water source. Not the temple, not the school – the well and the tank.

The reason is structural. Water is unavoidable, public and daily. A rule that you may not draw water is a rule you collide with every morning, in front of everyone. That is why the anti-caste movement's most famous early action, the Mahad Satyagraha of 1927, was about drinking water from a public tank – and why the response to it was so violent.

Wall 3 — Residence

Where your house stands. The Manusmriti prescribes it explicitly for those outside the four varnas: *outside the village*. In practice, across enormous parts of India, the settlement was and in places still is physically divided — the main village, and then the separate hamlet.

What it does: makes the hierarchy architectural. A rule written in a book can be forgotten. A rule built into the map of the village is re-taught to every child born there, without anyone saying a word.

Wall 4 — Occupation

What work you do, and — just as importantly — what work you are not permitted to do. Hereditary trade, inherited alongside the tools and the customers.

The wall works in both directions, and the upward direction is the one people forget. It was not only that certain groups were forced into degrading work. It was that they were *barred from everything* else. A blocked exit is more confining than a bad job.

What it does: locks economic position across generations, and ties status to a specific kind of labour so tightly that the two become the same word. Many Indian caste names are simply the name of a trade.

Wall 5 — Ritual access

Who may enter the temple. Who may hear or recite the sacred texts. Who may perform the ceremonies. Who requires an intermediary to approach the divine at all.

What it does: this is the wall that made the other four feel *legitimate* rather than merely enforced. If the arrangement is cosmic, then resisting it is not just illegal, it is impious. That is a far stronger lock than any punishment.

■ FACT

The five walls are why caste survived without a state.

Look at what is on that list: marriage, meals, housing, work and worship. Every single one is administered by families and neighbours in the course of ordinary life.

No king is required. No army, no court, no scripture, no police. Which is exactly why every empire that ruled India — Mauryan, Gupta, Sultanate, Mughal, British — passed over the system without dislodging it. There was no lever to pull.

■ INTERPRETATION

And this is the sharpest thing Part 3 has to say about 2026.

Count how many of the five walls modern policy actually touches.

Reservation operates on **Wall 4** — occupation — by opening entry to government jobs and public education. That is real, and it is the wall most amenable to state action.

Anti-untouchability law formally addresses parts of Walls 2, 3 and 5.

Nothing at all touches Wall 1. And Wall 1 is the one holding up the other four.

So when the abolition side says reservation has not ended caste, they are correct — and they have not noticed that this is an argument about what reservation was never designed to do. And when the retention side treats reservation as the answer to caste rather than as a partial remedy for one of its effects, they are making the same category error from the opposite direction.

Who Actually Benefited?

The answer is not the one either side gives — and getting it wrong is why the modern argument keeps missing its target.

The standard picture is simple: Brahmins at the top, everyone else below, Brahmins the beneficiaries. It is the picture used by both the anti-caste movement and by its opponents, who find it convenient for opposite reasons.

It is also, as a description of how power worked in most of India for most of history, substantially wrong.

Ritual rank and actual power came apart

Brahmins held the highest *ritual* rank. That is not the same as holding the land, the grain, the loans or the muscle.

Across most of rural India, the people who actually controlled village life were what sociologists call the **dominant castes** — communities that were not usually Brahmin, often ranked in the middle of the varna scheme, but which owned most of the cultivable land, commanded numbers, and settled disputes.

■ FACT

Dominance was about land and numbers, not ritual rank.

M. N. Srinivas's concept of the dominant caste describes a community that is numerically strong in a locality, owns a large share of the land, and therefore wields decisive local power — regardless of where it sits in the ritual hierarchy.

Many poor Brahmin families — village priests, cooks, scribes — held high ritual status and very little else. Meanwhile landowning communities ranked below them in theory controlled everything that mattered in practice: employment, credit, water, and the physical enforcement of the rules.

Why this matters more than almost anything else in this book

Because it explains the shape of modern Indian politics, and because it is the fact that makes both popular narratives collapse.

WHAT IT DOES TO THE ANTI-CASTE NARRATIVE

"Brahminical oppression" as a complete explanation does not survive contact with village history. In much of India, the people enforcing untouchability at the well, refusing to lease land, and organising violence after an inter-caste marriage were not Brahmins. They were the locally dominant landowning castes — many of whom are today classified as OBC and hold reservation themselves.

An analysis that aims exclusively upward at the ritual apex will keep missing the people who actually did the enforcing.

WHAT IT DOES TO THE ANTI-RESERVATION NARRATIVE

The picture of a small elite hoarding everything while the general category suffers also collapses. The system's beneficiaries were spread widely through the middle of the hierarchy, not concentrated at the top.

Which means the number of Indian families that gained something from caste — access to land, to credit, to labour they did not have to pay properly — is far larger than the Brahmin population. "My family never oppressed anyone" is a much bigger claim than most people making it realise.

■ INTERPRETATION

The three-way structure that explains everything after 1990.

Once you see the dominant castes, Indian caste politics stops being a two-sided fight and becomes a three-sided one.

At the ritual top: Brahmins and allied communities — high status, disproportionate presence in education and administration, small in number.

In the middle: large landowning and cultivating communities — enormous in number, historically dominant locally, ritually ranked below, and now the core of OBC politics.

At the bottom: Dalit and Adivasi communities — excluded by both of the above, and in daily life more often in direct conflict with the middle than with the top.

This is why the Mandal Commission's 27% mattered so much politically, why so much rural caste violence is between OBC and Dalit communities rather than between Brahmin and Dalit, and why demands from Marathas, Jats and Patidars — dominant communities asking to be *included* in quotas — are not the paradox they appear to be.

Part 9 and Part 10 are unreadable without this chapter.

■ CONTESTED CLAIM – MADE BY BOTH SIDES

"It was all one system with one villain."

Neither the version with Brahmins as sole villain nor the version with no villains at all survives the evidence. Caste distributed both privilege and harm unevenly across dozens of rungs, and a great many communities were simultaneously oppressed from above and oppressive to those below.

That is the least satisfying possible answer and the closest to the record.

Where Untouchability Came From

Five serious theories. Ambedkar's own, and its four rivals — each at full strength, then scored.

Untouchability is not simply the bottom of the caste ladder. It is a different thing: a category of people placed *outside* the four varnas altogether, whose physical presence was treated as polluting.

Where did it come from? There is no consensus. Here are the five explanations that have serious support.

THEORY 1 — AMBEDKAR'S "BROKEN MEN"

Defeated tribal groups, settled at the village edge, who kept eating beef.

Set out in *The Untouchables: Who Were They and Why They Became Untouchables* (1948). Ambedkar argued that as settled agricultural villages formed, scattered remnants of defeated or broken tribes — "Broken Men" — attached themselves to villages as watchmen and menial workers, living *outside* the settlement.

Then two things happened. Buddhism spread, and Brahmanism responded by out-competing it on non-violence — abandoning animal sacrifice and adopting cow protection and vegetarianism. Beef-eating, previously ordinary, was redefined as an abomination.

The Broken Men, poor and dependent on dead cattle, went on eating beef. They became the visible embodiment of impurity. Ambedkar dated the emergence of untouchability proper to around **400 CE**.

Strengths: explains the geography — why these communities live outside the village boundary, which is otherwise very hard to account for. Explains the specific link between untouchability and dead-animal work. Fits the timing of the Buddhist–Brahmanical contest.

Weaknesses: the Broken Men mechanism is an inference rather than a documented process. Ambedkar was also, openly, a partisan — which does not make him wrong, but does mean the theory needs the same scrutiny as any other.

THEORY 2 – RITUAL PURITY AND POLLUTION

The whole system is one idea: purity ranked from top to bottom.

Associated above all with Louis Dumont's *Homo Hierarchicus*. On this view caste is organised by a single principle — the opposition of pure and impure. Occupations dealing with death, excrement, leather and butchery are polluting; those who perform them are permanently polluted; and untouchability is simply the extreme end of a continuous scale.

Strengths: explains why the specific occupations are what they are, across the entire subcontinent, in unrelated language regions.

Weaknesses: heavily criticised for treating an ideology as though it were the whole reality, and for underweighting power, land and force. Critics argue Dumont explained how Brahmins described the system rather than how it worked.

THEORY 3 – TRIBAL ABSORPTION

Forest and hill communities brought into the settled order at the bottom.

Associated with G. S. Ghurye and others. As agrarian society expanded, it absorbed communities that had been outside it — and slotted them in at the lowest available rank, or below it.

Strengths: a documented, continuing process; explains regional variation in who is untouchable and why the lists differ so much between states.

Weaknesses: explains recruitment into the category but not the invention of the category itself.

THEORY 4 – THE ECONOMIC AND FEUDAL ACCOUNT

A collapsing economy froze people in place.

Associated with R. S. Sharma's work on early Indian feudalism. After the Gupta period, long-distance trade contracted, cities declined, coinage became scarce, and land grants to Brahmins and temples multiplied. The economy localised. In a shrunken, land-based world, occupational groups lost mobility and hardened into hereditary service relationships.

Strengths: the timing matches the period when caste rigidity appears to intensify, and it supplies a material mechanism rather than only an ideological one.

Weaknesses: the "Indian feudalism" model has been seriously contested by other historians, who dispute both the scale of urban decline and the analogy with Europe.

THEORY 5 – THE RACIAL ACCOUNT

Conquered darker-skinned natives pushed to the bottom.

Associated with colonial ethnographers, above all H. H. Risley, who attempted to correlate caste rank with nose measurements.

Strengths: historically the most influential theory, and it shaped a century of writing.

Weaknesses: as set out in Part 5 of this series and Part 2 of this book, it has been substantially abandoned. The genetic evidence does not show the clean population split it requires, and the linguistic basis for reading varna as skin colour is weak.

■ INTERPRETATION

The honest score.

Theory 5 is largely out. Theory 2 explains the logic but not the origin. Theory 3 explains recruitment but not invention. Theories 1 and 4 are the strongest, and they are compatible with each other: a material collapse that froze occupational groups, plus a religious contest that turned one specific practice into a marker of permanent impurity.

Nobody has proved any of this. What can be said with confidence is narrower and still substantial: **untouchability was not present in the earliest layers, it emerges in the first millennium CE, and by the medieval period it is unmistakably established.**

The First Revolt

Twenty-five centuries before any modern movement, someone stood up and said birth decides nothing. Then his religion left the country.

One of the most persistent claims in this whole argument is that opposition to caste is a foreign import — brought by missionaries, colonisers, or Western-educated reformers.

It is not, and the evidence against it is about two and a half thousand years old.

THE BUDDHA — VASALA SUTTA, SUTTA NIPATA

*na jaccā vasalo hoti, na jaccā hoti brāhmaṇo |
kammanā vasalo hoti, kammanā hoti brāhmaṇo ||*

"Not by birth is one an outcaste; not by birth is one a Brahmin. By deeds one becomes an outcaste; by deeds one becomes a Brahmin."

■ FACT

Anti-caste argument is indigenous, ancient, and continuous.

The Buddha rejected birth-based worth explicitly and repeatedly. Buddhist orders admitted members regardless of varna. Mahavira and the Jain tradition took a comparable position. Later came Basava and the Lingayats in twelfth-century Karnataka, and the Bhakti poets — Kabir, Ravidas, Nanak, Tukaram, Chokhamela — across many centuries and languages.

Whatever else is true, "criticising caste is a Western idea" is false, and it is false by a margin of roughly two thousand years.

The uncomfortable follow-up

Buddhism rejected caste, spread across Asia, and then very largely disappeared from the land where it began.

Why? There is no single answer, and historians treat it as a centuries-long process rather than an event. The main factors, as generally set out:

- **Loss of royal patronage.** Buddhism depended heavily on kings and wealthy donors. After the Gupta period, patronage shifted increasingly toward Brahmanical Hinduism and its temples.

- ▶ **Absorption.** Hinduism took in a great deal — non-violence, compassion, meditative practice — and eventually incorporated the Buddha himself as an avatar of Vishnu. A rival you have absorbed is no longer a rival.
- ▶ **Brahmanical revival.** Shankara in the eighth century and the Bhakti movements offered philosophical rigour and emotional devotion in the same package.
- ▶ **Monastic distance.** Buddhism concentrated in large monasteries, while Brahmanical religion was embedded in household rituals — birth, marriage, death. The tradition that owns the wedding owns the society.
- ▶ **Destruction of the great centres.** Turkic invasions in the twelfth and thirteenth centuries destroyed Nalanda, Vikramashila and Odantapuri. Nalanda is generally dated to around 1193. For an institution-based religion, this was close to fatal.

■ INTERPRETATION

The lesson both sides should take, and neither does.

For those who say caste is not central to Hinduism: the tradition's most serious internal challenger for a thousand years was a movement whose founding position included the rejection of birth-based rank — and it lost. That is a fact about what the society chose.

For those who say Hinduism is simply a caste ideology: the fiercest attacks on caste in world history were made by Indians, in Indian languages, using Indian religious arguments, for two and a half millennia. A tradition that keeps generating its own abolitionists is not reducible to the thing they are abolishing.

And the mechanism from Chapter 5 explains the outcome better than either. Buddhism offered a philosophy. Caste was not held in place by philosophy. It was held in place by who your daughter could marry — and the monasteries had nothing to say about that.

The Hardening

Fifteen hundred years, on one timeline. Watch a metaphor turn into a wall.

c. 1200 BCE	The four varnas appear — once The Purusha Sukta, in the latest layer of the Rig Veda. A ranking, divinely sourced, with no rule of inheritance stated. See Part 2.
c. 600–400 BCE	The first revolt The Buddha and Mahavira reject birth-based worth. Their movements admit members from all varnas. Urban, commercial, monastic.
c. 600 BCE – 300 CE	The rulebooks are written The Dharmasutras and then the Dharmashastras. Duties become codified. Punishments become graded by rank.
c. 200 BCE – 200 CE	The Manusmriti The most influential of them all. Shudra service prescribed as sole occupation; mutilation prescribed for insolence; residence outside the village prescribed for those beyond the four.
c. 1,900–4,200 BP	The lock closes Genetic evidence dates the end of population mixture and the onset of strict endogamy to somewhere in this window. This is the structural event. Everything else is commentary on it.
c. 400 CE	Ambedkar's date for untouchability In <i>The Untouchables</i> , he places the emergence of untouchability proper here — tied to the Brahmanical adoption of cow protection and the redefinition of beef-eating.
c. 500–1000 CE	The economy localises Trade contracts, cities decline, land grants to Brahmins and temples multiply. Occupational groups lose mobility. Jatis proliferate and fix.
8th century	Brahmanical revival Shankara. Buddhism's intellectual position weakens; patronage continues shifting.
12th century	Basava and the Lingayats A mass movement in Karnataka rejecting caste and Brahminical ritual outright. Anti-caste argument continues from inside.

c. 1193

Nalanda destroyed

The great Buddhist universities are sacked. Institutional Buddhism in India effectively ends.

14th–17th c.

The Bhakti poets

Kabir, Ravidas, Nanak, Tukaram, Chokhamela, Mirabai. Sustained, popular, devotional attack on birth-based worth — in vernacular languages, reaching people the Sanskrit texts never did. Part 4.

1794

Manu is translated into English

Sir William Jones. Colonial courts begin treating the Manusmriti as a legal authority for "Hindu law." Part 5.

25 Dec 1927

Ambedkar burns it

At Mahad. A public repudiation of the text by the man who would later chair the drafting committee of the Indian Constitution.

Nine Questions Nobody Asks

The blind spots in this stage of the argument – including two that ought to worry both sides equally.

1. Why does everyone argue about a book almost nobody obeyed?

Both sides have an interest in the Manusmriti being central. Critics get a document with quotable horrors. Defenders get a target they can plausibly discredit as unenforced and colonially inflated.

What both avoid is the harder subject: the actual, undocumented, everyday operation of jati – enforced by neighbours, not by kings. There is no book to burn and no book to defend. Which is precisely why the argument stays where the book is.

2. If custom governed rather than text, who was making the custom?

"It was local custom, not Manu" is offered as a defence. But local custom was made and enforced by caste panchayats, and those bodies were the caste system organising itself.

Saying the rules came from the community rather than from a book does not make the rules milder. It makes them harder to appeal.

3. Why did untouchability attach to work with dead things – in every language region at once?

Across an enormous, linguistically fragmented subcontinent, the same occupations turn up at the bottom: handling corpses, leather, butchery, human waste. Communities with no contact and no shared language arrived at nearly the same ranking.

Something extremely powerful and extremely portable was doing that. Whatever theory you prefer has to explain the uniformity, not just the existence.

4. Why is there no equivalent of an abolition?

Slavery was abolished – by acts, dates, wars, proclamations. Serfdom was abolished. Apartheid ended on a date.

Caste has no such moment. The Constitution abolished untouchability in 1950, and untouchability is a subset. There was never a point at which Indian society collectively renounced the ranking itself. The absence of a founding renunciation matters as much as the absence of a founding decree.

5. Does "it was never enforced" actually help the defence?

Consider what that argument concedes. If a hierarchy needed no laws, no police and no punishments to sustain itself for two thousand years, it was more deeply held than one requiring

enforcement — not less. A system maintained voluntarily by millions of families is a harder thing to condemn a state for, and a harder thing to end.

Both movements are fighting over the visible edge of the thing. The engine is in the wedding hall, and nobody is campaigning there.

6. Whose fault is it if nobody enforced it?

This follows directly and it is genuinely uncomfortable. A hierarchy imposed by conquerors has a villain and a plan for removal. A hierarchy maintained by ordinary people, in their own homes, about their own children's marriages, has neither — and no innocent bystanders. Which is why this framing is unpopular with everybody.

7. Why do reformers keep getting absorbed?

The pattern repeats with remarkable consistency. A movement rejects caste. It attracts followers. Within a few generations its followers have become a caste — endogamous, ranked, with a place in the local order.

It happened to Buddhist communities, to Lingayats, to several Bhakti sects, and to some Sikh and Christian and Muslim communities in India. The system does not usually defeat its challengers. It digests them.

8. What did caste do that was useful? And why does asking feel forbidden?

Uncomfortable, but serious. Jati provided credit networks, insurance, skills transmission, dispute resolution and migration support in a society with no state welfare and no banks. For many people it was the only safety net that existed.

This is not a defence — systems can be functional and unjust at once, as feudalism was. But if you cannot explain what a system did *for* people, you cannot explain why they kept it, and "everyone was brainwashed for two thousand years" is not an explanation.

9. If marriage is the lock, why is the entire national argument about jobs?

The mechanism that creates and sustains caste is who marries whom. Reservation operates on college admissions and government employment. These are not the same lever.

Neither side finds this convenient. Supporters must explain how a policy aimed at employment addresses a structure held together by marriage. Opponents must explain why a movement that claims to want caste gone campaigns about exam cut-offs rather than the practice that reproduces it.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 3.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Does the Manusmriti prescribe graded punishment by caste?	Settled	Yes. The verses are stable across translations.
Does it also contain mobility and humane provisions?	Settled	Yes — 10.64–65 permits varna change over generations
Was it the enforced legal code of India?	No	Custom and caste councils governed, not a Sanskrit text
Did the British inflate its authority?	Yes	Documented, from 1794 onward
Was Indian society organised by hereditary rank?	Yes	And this never depended on the text
When did endogamy become the norm?	Datable	Roughly 1,900–4,200 years ago
Where did untouchability come from?	Open	Five theories; two strongest and compatible
Is anti-caste thought a foreign import?	No	Indigenous and continuous for ~2,500 years
How severe was it in practice?	Answerable	But only from documents — Part 6

The three things nobody can tell you

- ▶ **How much of the text was ever acted on.** We have the prescriptions. We do not have court records from the period. The gap between what was written and what was done is genuinely unmeasurable at this distance.
- ▶ **What it felt like from below.** Again: the archive belongs to the literate. We have Chokhamela and Ravidas, and they are precious precisely because they are so rare.
- ▶ **Why the lock closed.** Still unanswered, and still the most important open question in Indian history.

■ INTERPRETATION

What Part 3 changes about the reservation argument.

Part 2 ended by noting that the origin of caste barely affects the case for a remedy. Part 3 changes that, in one specific way.

We now have a **mechanism**, and mechanisms have implications that origin stories do not.

If caste is sustained primarily by endogamy — by millions of private decisions inside families, with no central enforcer — then several things follow immediately, and they are inconvenient in different directions.

Inconvenient for the abolition side: removing state recognition of caste will not touch the mechanism. Caste does not need the state. It never did. It survived empires that had no interest in maintaining it. It will comfortably survive the deletion of a column on a form.

Inconvenient for the retention side: a policy that operates on jobs and admissions is not aimed at the mechanism either. It can produce representation, income and visibility — real goods. It cannot, by itself, unlock the lock.

Both movements are working on the symptoms. The difference is that one of them is at least treating something.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 3 — HOW VARNA BECAME JATI

1. **Varna is the poster; jati is the building.** Four theoretical categories were laid over thousands of real communities formed by guilds closing, tribes being absorbed, sects hardening and groups splitting. That mismatch is why the 2024 sub-classification verdict happened.
2. **The Manusmriti says what critics say it says — and also more than they admit.** It prescribes mutilation for insolence and residence outside the village for those beyond the four varnas. It also permits varna to change over seven generations and scales guilt upward with rank. Print all of it or none of it.
3. **It was not the enforced law of India — and that rescues less than it seems.** Custom and caste councils governed, and the British inflated the text's authority from 1794. But the claim that Indian society was organised by hereditary rank never depended on the book.
4. **Endogamy is the whole machine.** Marriage inside the group makes caste hereditary, keeps property in, preserves occupation, generates the purity rules — and requires no state at all. That is why caste outlived every empire that ruled over it, and why inter-caste marriage rates remain in the low single digits today.
5. **Anti-caste thought is Indian and it is 2,500 years old.** The Buddha: "not by birth is one an outcaste." Then Basava, Kabir, Ravidas, Nanak, Tukaram. The claim that opposing caste is a Western idea is false by roughly two millennia — and the fate of those movements shows the system usually digests its critics rather than defeating them.

Coming next

PART 4 — 1,000 YEARS OF OUTSIDERS

Did the invaders bring it?

A claim you have definitely heard, tested properly. Caste under the Delhi Sultanate and the Mughals: what changed and what did not. Caste *inside* Indian Islam and Indian Christianity — Ashraf, Ajlaf, Arzal, and Dalit Christians — a set of facts inconvenient for several sides at once. Did conversion actually let anyone escape? And the Bhakti movement in full: Kabir, Ravidas, Nanak, Tukaram, Chokhamela — India's own anti-caste tradition, in vernacular languages, reaching the people the Sanskrit texts never touched.

A closing thought: this was the hardest part to write fairly, and I expect it to be the hardest to read fairly. If you got through Chapter 3 and Chapter 4 and felt the pull of both, you are reading it correctly. — L.S.

Sources & Notes

Every factual claim in Part 3, and where it comes from.

The Manusmriti

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Endogamy and genetics

Moorjani et al., "Genetic Evidence for Recent Population Mixture in India," *American Journal of Human Genetics*, 2013 — mixture dated to approximately 1,900–4,200 years ago, followed by the shift to endogamy. Full discussion in Part 2 of this series. · Contemporary inter-caste marriage rates: consistently reported in the low single digits across large national survey datasets.

Untouchability

B. R. Ambedkar, *The Untouchables: Who Were They and Why They Became Untouchables* (1948) — the Broken Men thesis; the link between Brahmanical cow protection, the redefinition of beef-eating and the emergence of untouchability; Ambedkar's dating to around 400 CE. Recently reissued in annotated selection as *Beef, Brahmins, and Broken Men* (Columbia University Press). · Louis Dumont, *Homo Hierarchicus* — the purity/pollution model, and the substantial body of criticism of it. · G. S. Ghurye — tribal absorption. · R. S. Sharma on early Indian feudalism — post-Gupta urban decline, land grants and the localisation of the economy; note that this model is contested by other historians. · H. H. Risley — the racial theory, now substantially abandoned. · Mahad, 25 December 1927 — the public burning of the Manusmriti.

Buddhism, Jainism and the Bhakti tradition

Vasala Sutta, Sutta Nipata 1.7 — "not by birth is one an outcaste... by deeds one becomes a Brahmin." · On the decline of Buddhism in India, historians treat it as a centuries-long process with multiple causes rather than a single event: loss of royal patronage after the Gupta period; absorption of Buddhist ideas and of the Buddha himself into the Vaishnava avatar scheme; the Brahmanical revival associated with Shankara in the eighth century; the concentration of Buddhism in monasteries rather than household ritual; and the destruction of Nalanda, Vikramashila and Odantapuri in the Turkic invasions, Nalanda generally dated to c. 1193. · Basava and the Lingayat movement, twelfth-century Karnataka. · M. N. Srinivas — Sanskritisation.

A note on what is missing — and on corrections

Part 3 makes no claim about how severely caste rules were applied to real people in periods we can document, about the medieval Islamic period, about colonial administration, or about conditions today. Those are Parts 4, 5, 6 and 11. Anything marked **CONTESTED CLAIM** stays contested until evidence is produced — including claims made by people I might agree with.

Sanskrit and Pali transliteration follows standard conventions. Verse numbering in the Manusmriti varies slightly between editions; the numbering used here follows the common Bühler sequence. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART THREE

THE RESERVATION FILES

How Varna Became Jati

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 4 – 1,000 Years of Outsiders: did the invaders bring
it?
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART FOUR

1,000 YEARS OF OUTSIDERS

Did the invaders bring caste? A claim you have definitely heard, tested properly – and the answer nobody wants.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

The Part With No Safe Side

Every part of this series has annoyed somebody. This one is going to annoy everybody, and I want to explain why before you start.

The question here is simple to ask: did caste as we know it come from outside? From the Turks, the Sultans, the Mughals, the Portuguese, the British? Or was it ours all along?

It has become one of the loudest arguments in Indian public life, and it is usually conducted with almost no evidence at all — because the evidence is inconvenient for every position anyone actually holds.

"Every group in this argument turns out to have caste inside it. That single fact does more damage to more theories than anything else in this series."

Here is what I found, and I will say it up front so you can decide whether to keep reading.

The claim that outsiders *brought* caste fails, and it fails on a date. But the claim that caste is a purely Hindu problem also fails — because caste survived conversion into Islam, into Christianity, and into Sikhism, three religions whose founding texts explicitly reject birth-based rank. It is inside all of them, in India, today.

That second finding is the harder one, and I have given it three full chapters rather than a paragraph, because it is usually mentioned as a debating point and then dropped. There are tens of millions of Indians living inside it.

It also leads to the most under-reported fact in the entire reservation argument, which is Chapter 7. A Dalit who converts to Buddhism keeps their Scheduled Caste status. A Dalit who converts to Sikhism keeps it. A Dalit who converts to Islam or Christianity loses it — by a Presidential Order from 1950 that is still in force in 2026. I did not know that when I started. Very few people do.

One more thing. Chapter 8 is the poetry of India's own abolitionists — Kabir, Ravidas, Nanak, Basava, Chokhamela. It is the part I most enjoyed writing. Whatever your position, those people fought this fight in Indian languages, on Indian ground, centuries before anyone had heard of a reservation policy.

— Lovepreet Singh

July 2026

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The Two Claims

Two very popular arguments, written the way their best defenders write them. Then a method for actually testing them.

This part exists to test two specific claims. They are opposites, they are both extremely popular, and almost nobody who makes either one has checked it.

CLAIM A — STEELMANNED

"Caste as we know it was brought or hardened by outsiders."

Indian society before the invasions shows real fluidity. Varna in the earliest texts is a scheme of function, not a prison. Movement between groups is recorded. The system that colonial and modern writers describe — rigid, humiliating, obsessed with pollution — is a late thing.

What happened in between was a thousand years of foreign rule. Conquest produced insecurity, and insecure societies close ranks. Communities pulled inward to protect their women, their property and their rituals. Rules that had been guidelines became walls.

Then the British finished the job. They counted caste, ranked it, printed it in census volumes, and turned fluid local identities into fixed legal categories with entitlements attached.

So the ugliest features of caste are a defensive scar tissue, formed under a millennium of pressure from outside. Blaming the original tradition for its wartime deformation is like blaming a man for his limp instead of the person who broke his leg.

CLAIM B — STEELMANNED

"Caste is a Hindu institution, and pointing elsewhere is deflection."

The four-varna scheme is in Hindu scripture. The Dharmashastras are Hindu law books. The rules about pollution and touch are enforced by ritual concepts that are Hindu in origin. Untouchability was justified by karma and rebirth — Hindu doctrines.

No other society on earth produced this specific structure. Hierarchies existed everywhere; a hereditary, endogamous, ritually-graded order sanctified by religion and lasting two thousand years appeared once, here.

And the "outsiders did it" argument has a suspicious convenience. It arrives exactly when a tradition is asked to account for something shameful, and it always names a group that is currently a political target. That is not history. That is an alibi.

How to test them

Both claims make predictions. That is what makes them testable.

WHAT EACH CLAIM PREDICTS – AND WHERE TO LOOK

Claim	If true, we should find...	Where to look
A – outsiders brought or hardened it	Caste absent or mild before the invasions; hardening visible after	Foreign eyewitness accounts from before 1206 – Chapter 2
A – outsiders brought or hardened it	Caste weak or absent among Indian Muslims and Christians	Chapters 4, 5, 6
B – it is a Hindu institution	Caste confined to Hindus; conversion an exit	Chapters 4, 5, 6, 7
B – it is a Hindu institution	Opposition to caste coming from outside the tradition	Chapter 8

Notice that Claim A and Claim B make *the same prediction* about Indian Muslims and Christians, for opposite reasons. Both expect caste to weaken outside Hinduism.

That is the single best test available, and it is the heart of this book.

The Witnesses From Before

Foreigners who visited India and wrote down what they saw — long before any Sultan reached Delhi.

The "invaders brought it" claim has a date problem, and this chapter is the date problem.

The Delhi Sultanate was established in **1206**. Any claim that Islamic rule created or hardened caste requires caste to have been absent, or mild, before then.

So the useful evidence is not Hindu texts — a defender can always argue those are prescriptive rather than descriptive. The useful evidence is **foreign observers**: people with no stake in Indian religion, describing what they actually saw.

We have several. Here is the most important.

Al-Biruni, around 1030 CE

Abu Rayhan al-Biruni was a Persian scholar who came to India with Mahmud of Ghazni's campaigns, learned Sanskrit, read Indian texts, and wrote *Kitab al-Hind* — one of the most careful descriptions of a foreign society produced anywhere in the medieval world.

He was a Muslim, an outsider, and writing **almost two centuries before the Delhi Sultanate existed**.

■ FACT

Al-Biruni described the full system, including untouchability, around 1030 CE.

He recorded the four varnas and their origin from the body of the primordial being — the Purusha Sukta account.

He described the **Antyaja**: eight groups born outside the fourfold order, segregated by occupation — fuller, shoemaker, juggler, basket and shield maker, sailor, fisherman, hunter, weaver — who **did not live with the rest of the community** but on the outskirts of towns and villages.

And he recorded groups below even those — Chandala, Doma, Hadi and others — instructed to live outside the villages and to clean the villages' filth.

Read that again with the dates in mind. A Muslim scholar, writing before Muslim rule in India, describes: hereditary ranked groups, residential segregation, degrading assigned work, and a category of people placed outside the system entirely.

Every feature of caste that the "invaders brought it" argument attributes to invaders was written down by a foreigner before the invaders arrived.

And he was not the first

- ▶ **Megasthenes, around 300 BCE.** A Greek ambassador at the Mauryan court. His account of India describes the population as divided into hereditary groups who may not marry outside them or change occupation. His categories do not match the four varnas neatly — which is itself interesting, and fits the argument in Part 3 that jati was always the reality — but hereditary, endogamous, occupation-bound groups are there, thirteen hundred years before Al-Biruni.
- ▶ **Fa-Hien, around 400 CE.** A Chinese Buddhist pilgrim. He records that Chandalas lived apart from other people and were required to strike a piece of wood to announce themselves when entering a town, so that others could avoid them.
- ▶ **Xuanzang, around 630 CE.** Another Chinese pilgrim, who travelled widely under Harsha. He describes the four hereditary orders, notes that marriage across them does not occur, and records butchers, scavengers and executioners living outside the city walls with their dwellings marked.

■ FACT

Four independent foreign observers, across roughly 1,300 years, all before Islamic rule.

A Greek diplomat, two Chinese Buddhist monks and a Persian Muslim scholar. Different centuries, different religions, different languages, no contact with one another, no stake in Indian theology.

All four describe hereditary groups, restricted marriage, inherited occupation, and — from Fa-Hien onward — people required to live apart and signal their approach so others could avoid contact.

■ INTERPRETATION

What this settles, and what it does not.

It settles the strong version of Claim A. Caste, including untouchability in a recognisable form, is documented by neutral outside witnesses before 1206. Nobody brought it. It was here.

It does not settle the weak version. "Outsiders hardened an existing system" is a completely different claim, and Chapter 3 and Part 5 test it seriously. A system can be real in 1030 and considerably worse by 1830.

This distinction gets lost constantly. When someone says "the British created caste," the reply is not "no, caste is eternal" — it is "the British found this and did specific documented things to it." Which things, and how much they mattered, is Part 5.

What The Sultans And Mughals Actually Changed

Six hundred years of Muslim rule over most of India. Here is what it did to caste – and what it left completely alone.

From 1206 to 1857, large parts of India were ruled by Muslim dynasties – the Delhi Sultanate, then the Mughals, alongside regional sultanates and, for long stretches, powerful Hindu kingdoms.

If a foreign ruling religion that formally rejects birth-based hierarchy governs a caste society for six centuries, something should happen. Something did – just not what either side expects.

What did not change

■ FACT

Muslim rulers governed through the existing social structure, not against it.

Land revenue – the whole basis of the state – was collected through **zamindars** and local intermediaries who were overwhelmingly drawn from existing dominant landholding communities. Villages continued to operate through hereditary service relationships. Local disputes continued to be settled by caste councils.

A pre-modern empire needs revenue and order. It does not need social reform, and reorganising village society would have threatened both.

Some rulers did recruit talent without regard to birth, and some Hindu communities rose substantially in the Mughal administration. But recruiting a few thousand officials is not the same as touching the marriage rules of a hundred million villagers, and nobody tried.

What did change

- ▶ **A new elite appeared above everyone.** A Persianate court culture, with its own languages and its own status markers, sat on top of the existing hierarchy without dissolving it.
- ▶ **New occupational groups formed.** Urban crafts, paper-making, particular textile trades, and military service expanded, and – this is the key part – the new groups organised themselves in the familiar way, as endogamous communities with inherited trades.

- **Conversion happened — mostly in groups.** This is the mechanism that explains everything in the next three chapters, and it deserves its own box.

■ FACT

Conversion in India was usually collective, not individual — so the caste unit survived it.

People did not generally convert one by one. Whole occupational communities converted together: a weaving community, a group of oil-pressers, a fishing community.

And a community that converts together *stays a community*. It keeps its trade, its neighbourhood, its internal marriage circle and its position relative to the groups around it. The religion changed. The jati did not.

This single mechanism explains why caste is present inside Indian Islam and Indian Christianity today. It was never removed. It walked through the door with the converts.

The detail that ends the debate about whether Islam "resisted" caste in India

In the fourteenth century, a Muslim historian and political theorist at the Delhi Sultanate court named **Ziauddin Barani** wrote a treatise on statecraft, the *Fatawa-i-Jahandari*.

In it he argued, at length, that high offices and education should be restricted to the well-born, and that the low-born should be kept out of both — that teaching them was actively dangerous to the social order.

■ INTERPRETATION

Read what that means carefully.

A Muslim scholar, in a Muslim court, in a religion whose founding texts state that no Arab is superior to a non-Arab and that all believers are brothers, produced a systematic argument for hereditary rank — and did so within a century and a half of the Sultanate's founding.

He was not importing Hindu doctrine. He was rationalising the society he lived in, using the categories that society ran on.

That is what makes this fact so useful. It shows the transmission working in the direction nobody argues about: not caste being brought in from outside, but the newcomers absorbing the logic of the place they had arrived in.

■ CONTESTED CLAIM — MADE BY BOTH SIDES

"Muslim rule destroyed the caste system" / "Muslim rule made caste worse."

Neither survives the evidence. The first is contradicted by the persistence of caste in every region under the longest Muslim rule, and by the presence of caste inside Indian Islam. The second requires showing that caste was measurably milder in 1200 than in 1700, and no such demonstration exists — Al-Biruni's description from 1030 is already recognisably the full system.

The accurate statement is duller: six centuries of Muslim rule left the structure of Indian society largely intact, added a new elite layer on top of it, and were themselves partly absorbed into its logic.

Caste Inside Indian Islam

A religion founded on the explicit rejection of birth rank. Around two hundred million followers in India. And a hierarchy running through all of it.

Islam has no theology of caste. Its founding texts are emphatic on the point: no Arab is superior to a non-Arab except by piety; the believers are brothers. Prayer in a mosque is performed shoulder to shoulder in lines, which is itself a statement.

And Indian Muslim society has a caste structure.

The three tiers

■ FACT

The Sachar Committee, a Government of India body, documented caste among Indian Muslims.

The Committee's 2006 report used a threefold division:

Ashraf — the "noble." Those claiming descent from foreign lands — Sayyid, Sheikh, Mughal, Pathan — or from upper-caste Hindu converts.

Ajlaf — middle-ranking converts from occupations regarded as ritually clean. Weavers, oil-pressers, tailors, butchers, cultivators.

Arzal — those who converted from communities formerly treated as untouchable. The same occupations, the same position at the bottom.

The report stated directly that features of the Hindu caste system — hierarchical ordering of social groups, endogamy, and hereditary occupation — are also present among Indian Muslims.

Note where the tiers come from. They are not Islamic categories. They are *the previous position of the community before it converted*, carried across intact.

What it looks like in practice

- **Marriage.** Indian Muslim marriage runs overwhelmingly within *biradari* — the community of equivalent status. A Sayyid family marrying into a family of former untouchable status is about as common as the Hindu equivalent.

- ▶ **Occupation.** The traditional trade frequently persists across generations, exactly as before.
- ▶ **Space.** In parts of India, separate mosques and separate burial grounds by community have been documented and disputed in court.
- ▶ **Power.** Leadership of Muslim religious and political institutions has historically been drawn disproportionately from the Ashraf.

The Pasmanda movement

Pasmanda is a Persian word meaning "those left behind." It has become the umbrella identity for backward, Dalit and tribal Muslims organising against caste discrimination *within* their own community.

■ FACT

The numbers are large and disputed — and both estimates make the same point.

The Sachar Committee put OBC and SC/ST Muslims at around **40%** of Indian Muslims (2004–05 data). Pasmanda activists and scholars argue the true figure is **80–85%**.

The gap between those numbers is itself an argument about who counts as backward. But even the lower official figure means tens of millions of Indian Muslims are classified as backward on grounds that are, in origin, caste grounds.

■ INTERPRETATION

What this does to both claims from Chapter 1.

It destroys Claim A. If Muslim rule brought caste to India, the one community that should be free of it is the Muslim community. It is not. The hierarchy inside Indian Islam maps almost exactly onto the pre-conversion caste positions of the communities that converted.

It badly damages Claim B. If caste were purely a Hindu religious institution, leaving Hinduism should end it. It does not. Conversion changed the theology and left the social structure untouched.

The conclusion both sides avoid: **caste in India is a social structure that religions pass through, not a doctrine that any one religion owns.**

A NOTE ON HOW THIS FACT GETS USED

This chapter is regularly deployed as a debating weapon — "look, they have it too, so stop blaming us." That use is worth resisting.

Caste among Indian Muslims is not a point that scores against anyone. It is a description of the lives of tens of millions of people who are near the bottom of two hierarchies at once, and who have been organising against it for decades with very little attention from anybody. Chapter 7 shows what the Indian state has done to them.

Caste Inside Indian Christianity

Missionaries came to India offering equality before God. Then they built separate pews.

Christianity in India is old — considerably older than in most of Europe. Communities in Kerala trace their origins to the first centuries CE. Large-scale conversion in the south and among Adivasi communities came much later, under Portuguese and then British missions.

The offer was explicit: in Christ there is neither Jew nor Greek, slave nor free. Many of the people who accepted it were from communities treated as untouchable, and they accepted it precisely because of that offer.

What actually happened

■ FACT

Caste practices were carried into Indian churches and, in places, persist.

Documented and litigated practices in various parts of India have included separate seating within the same church, separate queues for communion, separate cemeteries or separately walled sections of the same cemetery, separate hearses, and separate feast-day processions.

Kerala's ancient Syrian Christian communities have historically occupied a high social position and have been largely endogamous, marrying among themselves rather than with Christians of Dalit origin.

Church leadership has historically been drawn disproportionately from converts of higher-caste origin, a grievance that Dalit Christian organisations have pressed for decades.

The pattern is the same as Chapter 4, for the same reason. Communities converted as communities. They arrived with their marriage circles and their relative standing, and the church did not disassemble them — in several periods it accommodated them, on the reasoning that insisting on integration would stop higher-caste conversions.

Two religions, both founded on the rejection of birth rank, both entered India, and in both the rank survived the conversion. The variable is not the theology. It is the country.

■ INTERPRETATION

The uncomfortable question this raises for the anti-caste movement.

Conversion has been, for two centuries, one of the principal escape routes recommended to Dalits — by missionaries, by reformers, and most famously by Ambedkar himself, who converted to Buddhism in 1956 with hundreds of thousands of followers.

The evidence from Islam and Christianity suggests that conversion changes what you believe and does very little to change how others treat you, because the mechanism holding caste in place — who marries whom, and what the neighbours think — is not a religious mechanism.

Ambedkar's own choice is worth noting here. He rejected both Islam and Christianity as destinations, partly on the grounds that converts to those faiths in India had not escaped caste. He chose Buddhism instead. Whether that worked is a fair question, and Part 11 has the data.

Caste Inside Sikhism

No religion attacked caste harder or more practically. This is the strongest test case in the book — and the most sobering.

If any tradition should have broken caste, it is this one. Sikhism did not merely disapprove of it in principle. It built institutions specifically designed to destroy it.

What was actually built

- ▶ **Langar.** The community kitchen, where everyone sits on the floor in rows and eats the same food, together. Consider what this attacks: the commensality wall from Part 3 — the daily, visible, three-times-a-day performance of rank. Guru Nanak aimed directly at the mechanism, not the theory.
- ▶ **The common surname.** Singh and Kaur, adopted by all, dissolving the caste identifier carried in a name.
- ▶ **Scripture by the low-born.** The Guru Granth Sahib includes the compositions of Ravidas, a leather-worker; Kabir, a weaver; Namdev, a tailor; Sadhna, a butcher; Sain, a barber. A scripture that treats the words of such men as divine revelation is a direct doctrinal assault on the entire ranking.
- ▶ **The Khalsa.** Initiation from a common bowl, deliberately dissolving distinctions of birth.

This is not a mild reformist gesture. It is the most sustained institutional attack on caste that any Indian tradition mounted.

And what happened

■ FACT

Caste identities persist among Sikhs.

Sikh society in Punjab is widely described in terms of caste groupings — Jat Sikhs, historically the dominant landowning community; Khatri and Arora, traditionally trading communities; Ramgarhia, from artisan backgrounds; and **Mazhabi** and **Ravidasia** Sikhs, from communities formerly treated as untouchable.

Marriage remains substantially within these groupings. Separate gurdwaras associated with particular communities exist in many villages and towns in Punjab and in the diaspora. Disputes over access to gurdwara management and to village cremation grounds have produced litigation and, in some cases, violence.

Punjab has among the highest proportions of Scheduled Caste population of any Indian state — a fact that sits oddly beside the theology.

■ INTERPRETATION

This is the most important chapter in Part 4, and here is why.

Islam and Christianity arrived from outside. A defender can always argue that they were foreign transplants that never reached deep enough to reorganise village life.

Sikhism cannot be dismissed that way. It was born in Punjab, in Punjabi, addressing Punjabis, with institutions purpose-built to break the exact mechanisms that sustain caste. It had state power under Ranjit Singh. It had mass adherence. It had everything.

And caste is still there.

What follows is uncomfortable for everyone: caste is not held in place by belief. Belief was changed — thoroughly, sincerely, at scale, by millions of people — and the structure survived the change.

Which means it is held in place by something else: land, marriage, and what the neighbours do. Part 3 called that the lock. This chapter is the experimental proof.

AND THE HOPEFUL READING, WHICH IS ALSO TRUE

None of the above means the effort failed. Langar is served to millions of people of every background every single day, in India and around the world, and it is one of the largest sustained acts of practical equality anywhere on earth.

A reform can transform a society enormously and still not complete the job. Measuring it against total success is the wrong test. Measuring it against what Punjab would look like without it is the right one.

The Escape Hatch That Wasn't

One paragraph, written in 1950, decides whether an Indian remains legally a Dalit. It is still in force, and almost nobody knows it exists.

Everything in the last three chapters has been social history. This chapter is current law, and it is the most directly relevant fact in this entire book to the argument happening in 2026.

■ FACT

Paragraph 3 of the Constitution (Scheduled Castes) Order, 1950.

The Order that defines who is a Scheduled Caste originally restricted that status to **Hindus**.

It was amended to include **Sikhs in 1956**, and **Buddhists in 1990**.

It has never been amended to include **Muslims or Christians**.

Follow what that means for an actual person.

THE SAME FAMILY, FOUR DIFFERENT OUTCOMES

A Dalit person converts to...	SC status	Consequence
Buddhism	Kept	Reservation, atrocities-act protection, scholarships all continue
Sikhism	Kept	Same
Islam	Lost	All of it ends on conversion
Christianity	Lost	All of it ends on conversion

The logic, and the problem with it

The official reasoning is that Islam and Christianity do not recognise caste, so a convert to them cannot suffer caste disability.

Chapters 4 and 5 of this book are, in effect, a forty-page reply to that sentence.

■ INTERPRETATION

The reasoning is internally inconsistent, and the inconsistency is visible on the face of the Order.

Sikhism also formally rejects caste — more explicitly and more institutionally than either Islam or Christianity, as Chapter 6 showed. So does Buddhism; it was the original rejection.

Yet Sikh and Buddhist Dalits keep their status, and Muslim and Christian Dalits do not.

If the test is "does the religion reject caste in theory," all four should be excluded. If the test is "do converts still face caste discrimination in practice," all four should be included. There is no version of the stated principle that produces the actual line.

Which suggests the line was not drawn on that principle. Sikhs were added in 1956 and Buddhists in 1990, in both cases after sustained political mobilisation. The most plausible reading is that the boundary follows political weight rather than logic.

Where it stands now

■ FACT

The question is live in 2026.

Under pressure from the Supreme Court for contemporary evidence, the Union Government constituted a Commission of Inquiry in **October 2022**, headed by former Chief Justice of India **K. G. Balakrishnan**, to study the social and economic status of Dalits who converted to religions other than Hinduism, Sikhism and Buddhism.

The Commission has received repeated extensions; its tenure was extended to **June 2026**. The Centre has previously opposed extending SC status to Dalit Christians and Dalit Muslims.

The Ranganath Misra Commission had recommended in 2007 that the religious restriction be removed. The recommendation was not implemented.

■ INTERPRETATION

Why this matters enormously for the 2026 argument — and why it cuts both ways.

For the Reservation Hatao Andolan: this is, unexpectedly, their strongest single factual point, and they have made it. One of their creators argued that replacing caste quotas with economic criteria would benefit underprivileged Muslims who are excluded from Scheduled Caste classification under current law. That is *correct*. A religion-blind economic test would reach millions of people the present system deliberately does not.

For their critics: the same fact is an argument for fixing the Order, not for abolishing the category. If the problem is that some Dalits are excluded from a remedy, the obvious response is to include them. Removing the remedy from everyone in order to solve the exclusion of some is a strange kind of repair.

And the fact that makes this so awkward: the exclusion has stood for seventy-six years, under governments of every political colour, and has never been a national issue for either side. It became useful to the abolition side in July 2026 and had not previously been anybody's campaign.

India's Own Abolitionists

Centuries before any European arrived, Indians in Indian languages were attacking caste in verse that ordinary people memorised and sang.

Part 3 established that anti-caste argument in India is at least twenty-five centuries old. But the Buddha argued in monasteries, in Pali, to those who came to hear him.

What happened between the twelfth and seventeenth centuries was different in kind. It was mass, popular, vernacular and sung — and it reached people who would never see a manuscript.

Basava, twelfth-century Karnataka

A minister at the Kalyana court who founded a movement rejecting temple ritual, priestly mediation and caste. His followers, the Lingayats, wore the linga on their bodies — the argument being that if the divine is on your person, no priest and no temple stands between you and it.

His *vachanas* — short spoken-word poems in Kannada — are among the most direct attacks on ritual hierarchy in any language. One of the most famous contrasts the rich man's temple with the poor man's body: legs as pillars, the body itself as the shrine, the head as the golden dome. It ends by observing that what stands still shall fall, and what moves shall not.

The movement's confrontation with orthodoxy came to a head over an inter-caste marriage at Kalyana in the twelfth century, and the violence that followed. Eight hundred and fifty years later, inter-caste marriage remains the flashpoint. Nothing in this series repeats itself more exactly.

Ravidas, fifteenth century

A leather-worker from Banaras — from a community treated as untouchable — whose hymns are in the Guru Granth Sahib and who is revered by millions today.

His most remarkable composition describes an imagined city called **Begumpura** — "the place without sorrow." In it there is no suffering, no anxiety, no tax and no property; nobody is second or third; all are equal. People walk where they wish without restriction.

A fifteenth-century Indian leather-worker wrote a description of a society with no caste, no tax and no hierarchy — three hundred years before anyone in Europe wrote a modern utopia.

Kabir, fifteenth century

Raised in a Muslim weaver family in Banaras, claimed by Hindus, Muslims and Sikhs alike, and comfortable insulting all of them. His couplets are still quoted in ordinary conversation across north India.

His line on caste is famous enough to be a proverb: *do not ask the holy man his caste — ask his wisdom*. Elsewhere he asks, of a society obsessed with pollution, how anyone can claim high birth when every person arrives into the world by the same route.

Chokhamela, fourteenth century

A Mahar poet-saint of Maharashtra, from an untouchable community, devoted to Vithoba of Pandharpur — and barred from entering the temple.

■ FACT

His memorial stands at the foot of the temple steps.

Chokhamela's samadhi is at the entrance to the Vithoba temple at Pandharpur, outside the building he was not permitted to enter in life.

There is no more compact illustration of the whole system in India: a man venerated as a saint by the tradition that would not let him through the door, memorialised on the threshold — close enough to honour, far enough to exclude.

And the others

- ▶ **Guru Nanak** (15th–16th c.) — Chapter 6. Whose response to the entire framework was reported as: there is no Hindu, no Musalman.
- ▶ **Namdev** (13th–14th c.) — a tailor; his verses are in the Guru Granth Sahib.
- ▶ **Tukaram** (17th c.) — a Kunbi cultivator, the towering figure of Marathi devotional poetry, mocked by Brahmin contemporaries for writing scripture in a language ordinary people could read.
- ▶ **Mirabai** (16th c.) — a Rajput princess who abandoned her rank, and whose guru is traditionally said to have been Ravidas, the leather-worker.
- ▶ **The Tamil saints** — Nandanar, from an untouchable community, and Tiruppan Alvar, of the Panar community, both remembered in traditions about entering temples closed to them.
- ▶ **The Sufi orders** — dargahs that received visitors of every caste and religion, and still do. Though Sufi lineages had their own status gradations, and claims of Sayyid descent carried weight there too.

■ INTERPRETATION

What the Bhakti movement proves — and what it does not.

It proves that opposition to caste is not a colonial import, not a modern political invention, and not a foreign idea. It is Indian, popular, ancient and continuous, and it was carried out largely by people from the communities that caste crushed.

It also proves something less comfortable. These movements were enormous. They produced scripture. They created new communities. And caste survived all of them.

Several were digested exactly as Part 3 described: the Lingayats became, in effect, a caste; several Bhakti communities became endogamous groups with a place in the local order. The system's usual response to a challenger was not to defeat it but to give it a rung.

Which brings us back to the same conclusion for the fourth time in this book. Caste was never primarily a set of beliefs. Attacking the beliefs — brilliantly, popularly, for eight hundred years — did not remove it.

The Verdicts

Both claims from Chapter 1, judged against everything above.

VERDICT ON CLAIM A

"Outsiders brought caste to India." — Fails.

The evidence against it: Megasthenes around 300 BCE, Fa-Hien around 400 CE, Xuanzang around 630 CE and Al-Biruni around 1030 CE all describe hereditary ranked groups, restricted marriage, inherited occupation and people required to live outside settlements. All four predate the Delhi Sultanate. Al-Biruni was himself a Muslim, writing before Muslim rule.

And the genetic evidence from Part 2 dates the closing of endogamy to roughly two thousand years ago at the latest.

What survives: the weaker claim that outsiders *hardened* or *formalised* an existing system. For the British this is substantially true and well documented, and it is Part 5. For the Sultanate and the Mughals the evidence is thin — they largely governed through the structure and left it in place.

VERDICT ON CLAIM B

"Caste is a Hindu institution." — Partly true, and seriously incomplete.

What is true: the varna framework, the Dharmashastra rules, and the doctrinal justification through karma and rebirth are Hindu in origin. The system's intellectual architecture came from inside the tradition, and no other society produced this specific structure.

What is false: that it is *confined* to Hinduism in India, or that leaving Hinduism escapes it. Caste operates inside Indian Islam, Indian Christianity and Sikhism — all three of which formally reject birth rank, and one of which was purpose-built in India to destroy it.

The correct formulation: caste originated within one tradition and became a property of Indian society as a whole. Religions that enter India do not dissolve it. They acquire it.

■ INTERPRETATION

Why both sides lose here, and what it means for 2026.

The "outsiders did it" argument is used to protect a tradition from accounting for something. It does not work; the dates defeat it.

The "it is their religion's fault" argument is used to locate the problem safely inside a group the speaker does not belong to. It does not work either; the problem is inside every group in the country.

And for the argument on everyone's phones right now, this has a direct consequence. If caste were a Hindu doctrine, then secularising the state — removing caste from forms, from certificates, from public recognition — would drain it. That is precisely the Reservation Hatao Andolan's proposal.

But Sikhism removed the doctrine, the surnames, the separate eating and the priestly mediation, in Punjab, in Punjabi, at scale, three hundred years ago. The structure survived.

Deleting a column on a government form is a far smaller intervention than that, and it is being offered as a bigger one.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. If conversion does not work, what is left?

For two centuries the standard advice to Indians at the bottom was: leave. Change your religion and you change your fate.

Chapters 4, 5 and 6 suggest it largely did not work, at least not for the social position. That is a serious problem, because conversion was the main exit anyone had ever identified. If the exit does not lead out, the argument about what does becomes much harder — and much more important.

2. Why does nobody campaign about the 1950 Order?

Millions of Indians are excluded from a legal category on the basis of their religion, by a rule that is internally inconsistent on its own stated logic, and it has stood for seventy-six years.

It has never been a mass movement. Not from the parties that claim to represent Dalits, not from the parties that claim to represent Muslims, not from the reservation-abolition side until it became useful in 2026. Ask why, and the answer will tell you a lot about how Indian politics actually allocates attention.

3. Does including Dalit Muslims and Christians help or hurt existing SC communities?

The question nobody wants to say out loud. Adding tens of millions of people to a category without expanding the quota means the same seats divided among more claimants.

This is a real material conflict of interest between groups who are all, on any honest account, victims of the same structure. It is one reason the campaign has never been enthusiastic, and pretending otherwise helps nobody.

4. Why did the reformers keep becoming castes?

The Lingayats, several Bhakti communities, and communities formed by conversion in every religion — the pattern from Part 3 repeats without exception.

A group that rejects the hierarchy still has to live somewhere, marry someone, and be dealt with by its neighbours. And the only slot Indian society offered a coherent group was a rung on the ladder. Refusing the ideology did not exempt you from the structure.

5. Is "they have caste too" a moral argument or an excuse?

Both, depending on who is holding it, and the distinction matters.

As a factual correction to "caste is purely a Hindu evil," it is valid and necessary. As a response to "caste discrimination is happening," it is a change of subject. That another group also does something wrong has never been an answer to whether it is wrong.

6. Why does the Sikh case get so little attention?

Because it is inconvenient for absolutely everyone. It denies Hindu traditionalists the "other religions solved it" comparison, denies the anti-caste movement the conversion strategy, and denies Sikh institutions a clean record on their own founding principle.

A fact that embarrasses every party to a dispute tends to go unmentioned by all of them. Those are usually the most informative facts available.

7. What would count as evidence that a religion had actually broken caste?

Not sermons. Not scripture. Not even institutions like langar, remarkable as it is.

The only real test is marriage rates. If a community's members marry across former caste lines at a substantially higher rate than the surrounding population, the lock has genuinely loosened there. Everything else can coexist with an intact structure — and, as this book has shown, generally has.

8. Were the Sultans and Mughals uninterested in reform, or unable to attempt it?

Probably both, and the reason matters. A pre-modern state has no capacity to reach inside a hundred thousand villages and change whom people marry. It lacks the officials, the records, the roads and the reason.

Which raises a question for the present: modern states have all of those things. India has had them for seventy-six years, and inter-caste marriage rates have barely moved. That is a much more interesting failure than a medieval one.

9. If foreigners did not bring it, why is that story so popular?

Because it does something valuable for the person telling it. It preserves the tradition, locates the fault outside, and requires nothing of anyone alive now.

And the opposite story does the same work in the other direction — it locates the fault entirely in a religion the speaker has already rejected, and equally requires nothing of them.

Both narratives are, structurally, ways of not being responsible. That is the most useful thing to notice about them.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 4.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Did outsiders bring caste to India?	No	Documented by foreign observers long before 1206
Did Muslim rule harden caste?	Not shown	They governed through it; little evidence of change
Did the British harden it?	Substantially	Well documented — but that is Part 5
Does caste exist among Indian Muslims?	Yes	Documented by the Sachar Committee, 2006
Does caste exist among Indian Christians?	Yes	Separate seating, cemeteries, endogamy
Does caste exist among Sikhs?	Yes	Despite the strongest institutional attack on it
Does conversion end caste disability?	Largely no	Belief changes; the structure does not
Do Dalit Muslims and Christians get SC status?	No	1950 Order; Sikhs added 1956, Buddhists 1990
Is anti-caste thought foreign?	No	Basava, Ravidas, Kabir, Nanak, Chokhamela
How severe was any of it in practice?	Answerable	From documents — Part 6

The three things nobody can tell you

- ▶ **How much conversion was voluntary.** Debated fiercely, politically loaded, and genuinely hard to establish. Force, incentive, persuasion and social pressure all occurred, in proportions nobody can reliably quantify at this distance.

- ▶ **Whether caste among Indian Muslims and Christians is as severe as among Hindus.** That it exists is documented. Whether it operates with the same intensity is a comparative question, and the data to answer it properly has not been collected — partly because the 1950 Order means the state has no reason to collect it.
- ▶ **What the Bhakti movements would have achieved with state power.** Sikhism is the closest thing to a test, and the result is mixed. Counterfactuals are not evidence.

■ INTERPRETATION

The one sentence that carries the whole part.

Four religions have been tried against caste in India. Two arrived from outside; one was born here specifically to break it; one — Buddhism — began as its first and most famous rejection.

All four failed to remove it, and in all four it can be found today.

That is not an argument for despair, and it is not an argument that nothing works. It is an argument about *where to aim*. Every one of those attempts went after belief. The lock was never belief.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 4 — 1,000 YEARS OF OUTSIDERS

1. **The invaders did not bring caste, and the proof is foreign.** Megasthenes (c. 300 BCE), Fa-Hien (c. 400 CE), Xuanzang (c. 630 CE) and the Muslim scholar Al-Biruni (c. 1030 CE) all describe hereditary rank, restricted marriage and people forced to live outside villages — every one of them before the Delhi Sultanate of 1206.
2. **Six centuries of Muslim rule left the structure standing.** They governed through zamindars and caste councils because empires need revenue, not reform. Conversion happened mostly by whole communities, so the jati walked through the door intact — which is why caste is inside Indian Islam today.
3. **Caste survived conversion into three religions that reject it.** Ashraf, Ajlaf and Arzal among Muslims, documented by the Government's own Sachar Committee. Separate pews and cemeteries among Christians. Mazhabi and Ravidasia Sikhs, despite langar, the common surname, and a scripture containing the hymns of a leather-worker.
4. **One paragraph from 1950 decides who stays a Dalit.** Convert to Buddhism or Sikhism and you keep Scheduled Caste status. Convert to Islam or Christianity and you lose it. The Balakrishnan Commission has been examining this since October 2022, extended to June 2026.
5. **India produced its own abolitionists, and caste digested them too.** Basava, Ravidas, Kabir, Nanak, Chokhamela, Tukaram — eight centuries of mass, vernacular, sung opposition, much of it by people from the crushed communities. Every one of those movements attacked belief. Caste was never held in place by belief.

Coming next

PART 5 — THE BRITISH MACHINE

Did the English write caste into a spreadsheet?

The census of 1871 and what happened when an empire started counting and ranking castes. The "colonial construction" thesis at full strength, and the rebuttal at full strength. The Criminal Tribes Act of 1871, which declared entire communities born criminal. And the fact that surprises everyone: **the first reservations in world history were Indian, not British** — Shahu Maharaj of Kolhapur, 1902. Then the Madras Communal Order of 1921, the Round Table Conferences, the Communal Award, and the Poona Pact of 1932 — the deal between Ambedkar and Gandhi from which everything modern flows.

A closing thought: if you came to this part expecting it to settle a score, I hope it did the opposite. The most useful thing I found here is that the two most popular stories about the origins of caste are both ways of arranging for it to be someone else's problem. — L.S.

Sources & Notes

Every factual claim in Part 4, and where it comes from.

Foreign observers

Al-Biruni, *Kitab al-Hind* (c. 1030 CE) — the four varnas and their derivation from the Purusha Sukta account; the Antyaja, eight groups outside the fourfold order, segregated by occupation and living on the outskirts of towns and villages; Chandala, Doma, Hadi and others required to live outside villages and to clean their filth. · Megasthenes, *Indika* (c. 300 BCE, surviving in later quotation) — hereditary groups who may not marry outside or change occupation. · Fa-Hien (c. 400 CE) — Chandalas living apart and required to announce their approach. · Xuanzang (c. 630 CE) — the hereditary orders, absence of intermarriage, and butchers, scavengers and executioners dwelling outside city walls. Dates for the Delhi Sultanate: founded 1206.

The Sultanate and Mughal period

Standard accounts of revenue administration through zamindars and existing local intermediaries. · Ziauddin Barani, *Fatawa-i-Jahandari* (14th century) — the argument that high office and education should be restricted to the well-born. · On collective rather than individual conversion, and the consequent persistence of jati identity across religious change, this is the mainstream position in the historiography of Indian conversion.

Caste among Indian Muslims

Sachar Committee Report (2006) — the Ashraf/Ajlaf/Arzal division; the finding that hierarchical ordering of social groups, endogamy and hereditary occupation are present among Indian Muslims; OBC and SC/ST Muslims estimated at around 40% of the Muslim population on 2004–05 data. · Pasmanda movement — scholarship dates organised Pasmanda activism to the late 1990s; Pasmanda activists and scholars estimate the backward share of Indian Muslims at 80–85%.

Caste among Indian Christians and Sikhs

Documented and litigated practices including separate seating, separate cemeteries or walled sections, separate hearses and separate processions; the historically high social position and endogamy of Kerala's Syrian Christian communities; the long-standing grievance of Dalit Christian organisations regarding church leadership. · On Sikhism: langar, the common surnames Singh and Kaur, Khalsa initiation, and the inclusion in the Guru Granth Sahib of compositions by Ravidas, Kabir, Namdev, Sadhna and Sain. Persisting groupings include Jat, Khatri, Arora, Ramgarhia, Mazhabi and Ravidasia; disputes over gurdwara access and cremation grounds are documented in litigation.

The 1950 Order and the current position

The Constitution (Scheduled Castes) Order, 1950, paragraph 3 — status originally restricted to Hindus; amended to include Sikhs in 1956 and Buddhists in 1990; Muslims and Christians never included. · Ranganath Misra Commission (2007) recommended removing the religious restriction; not implemented. · Commission of Inquiry headed by former Chief Justice K. G. Balakrishnan constituted in October 2022 to examine SC status for Dalit converts to other religions; tenure extended several times, most recently to June 2026. The Centre has previously opposed extension of SC status to Dalit Christians and Dalit Muslims. · The Reservation Hatao Andolan's argument that economic criteria would benefit underprivileged Muslims excluded from SC classification is reported in *The Quint*, 29 July 2026.

The Bhakti tradition

Basava and the Lingayat movement, twelfth-century Karnataka; the vachana contrasting the rich man's temple with the poet's own body; the Kalyana crisis over an inter-caste marriage. · Ravidas — the *Begumpura* composition describing a city without sorrow, tax, property or rank; hymns included in the Guru Granth Sahib. · Kabir — the couplet on not asking a holy man his caste. · Chokhamela — Mahar poet-saint of Pandharpur; his samadhi stands at the steps of the Vithoba

temple he could not enter. · Namdev, Tukaram, Mirabai, Nandanar, Tiruppan Alvar, Guru Nanak. · On Sufi dargahs receiving visitors across caste and religion, and on status gradations within Sufi lineages.

A note on what is missing — and on corrections

Part 4 makes no claim about colonial administration, which is Part 5, or about how severely caste rules were applied to real people in periods we can document, which is Part 6. Anything marked **CONTESTED CLAIM** stays contested until evidence is produced — including claims made by people I might agree with.

Verse renderings in Chapter 8 are given in summary rather than as literal translations where the original is in Kannada, Marathi or medieval Hindi and multiple published translations differ; the substance is not in dispute. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART FOUR

THE RESERVATION FILES

1,000 Years of Outsiders

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 5 – The British Machine: did the English write caste
into a spreadsheet?
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART FIVE

THE BRITISH MACHINE

Did the English write caste into a spreadsheet? The census, the nose-measuring, the born-criminal law – and the deal in a prison cell that shaped everything after it.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

The Part Where The Paper Trail Starts

Something changes in this part, and it is worth naming before we begin.

Everything up to now has been inference. Hymns that might be prescriptive or descriptive. Archaeology with no readable script. Genetics that gives dates but no motives. Law books nobody can prove were ever enforced.

From roughly 1860 onward, that stops. The British ran India on paper, and they kept the paper. Census volumes. Gazetteers. Legislative debates. Court records. Commission reports. Petitions from caste associations. Private correspondence between officials arguing about what to do. For the first time in this series, we can watch people make decisions about caste, in writing, with their reasons attached.

"The colonial period is the first century of Indian caste history we can read rather than reconstruct. That makes it the most useful — and the most dangerous to generalise from."

Dangerous, because the sudden abundance of records tempts everyone into a false conclusion. When caste appears everywhere in the documents from 1871 and almost nowhere in the documents from 1471, the obvious inference is that something happened in between. Sometimes that is right. Often it just means somebody started writing things down.

The other reason this part matters is that it is where the modern argument is physically manufactured. Reservation is not an idea somebody had in 1950. Its vocabulary, its categories, its legal machinery and its central political bargain were all built between 1871 and 1936, and Independence inherited them almost intact.

Two things in here surprised me enough to change how I think about the whole subject. The first is that **the earliest reservation policy in the world was Indian, not British** — issued by an Indian king in 1902, decades before the colonial government did anything comparable. That fact is missing from almost every argument on both sides.

The second is Chapter 9. The Poona Pact of 1932 is remembered as a footnote about Gandhi's fast. It is not a footnote. It is the moment the shape of Indian reservation was decided, under duress, by two men who each believed they were preventing a catastrophe. Everything since has been an argument about that week.

— Lovepreet Singh

July 2026

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■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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The Claim

"The British created caste." An argument you have heard many times, put the way its best defenders put it.

Part 4 disposed of the idea that invaders brought caste to India. Foreign observers documented it centuries before any Sultan reached Delhi.

But there is a second, much more sophisticated version of the outsider argument, and it deserves separate treatment because *a large part of it is correct* and it is supported by serious academic work.

THE CLAIM — STEELMANNED

Britain did not invent caste. It turned caste into what it is now.

Before the British, "caste" was loose, local and negotiable. A community's rank varied by district. Groups argued about their own placement and sometimes changed it. There was no single list and no authority that could settle a dispute nationally.

The colonial state changed that for administrative reasons that had nothing to do with religion. An empire that governs by paper needs categories. So from 1871 it counted every Indian by caste, decade after decade, and printed the results in official volumes.

Counting did three things at once. It **fixed** identities that had been fluid. It **ranked** them in print, with government authority behind the ranking. And it **made caste a political unit** — once the state allocated anything by caste, every community had reason to organise and fight over its classification.

Then Britain built the machinery: courts applied a Sanskrit law book as if it were a national code; a law declared whole communities criminal by birth; and the state created official schedules of castes entitled to benefits.

So the caste system Indians argue about today — enumerable, national, legally defined, politically mobilised — is substantially a colonial product. Not the hierarchy, but its modern form.

Why this version is harder to dismiss

Because unlike the "invaders brought it" claim, this one rests on documents you can read. The census volumes exist. The Criminal Tribes Act exists. The petitions demanding reclassification exist in their thousands. In moderate form it is the majority position among historians of colonial India: the question is not whether the colonial state transformed caste, but *how much*.

The Census

Every ten years from 1871, the British asked 250 million people what caste they were, and wrote the answers down.

The first all-India census was conducted in 1871–72. It was an enormous undertaking, and it included a question about caste.

That sounds administratively dull. It was one of the most consequential things anyone did to Indian society in the nineteenth century, and understanding why requires thinking about what counting does.

Four things the census changed

■ FACT 1

It required single, exclusive answers.

A census form has one box. But caste identity in pre-colonial India was frequently contextual — a community might be described one way by its neighbours, another way by itself, and another way again in the next district. Sub-groups shaded into each other.

The form does not permit that. It requires a name, and once the name is recorded, the ambiguity is gone from the record — and eventually from the argument.

■ FACT 2

It made local identities national.

A weaving community in one district and a weaving community six hundred kilometres away, speaking a different language, with no contact and no history of intermarriage, could be recorded under a single heading — and thereby became, for the first time, a single thing with a single number.

Several communities later organised themselves along exactly the lines the census had drawn.

■ FACT 3

It attached the government's authority to a ranking.

Successive censuses did not merely list castes. They attempted to arrange them in order of "social precedence." The 1901 census, under Herbert Hope Risley, made this explicit and systematic — and that is Chapter 3.

The distinction matters enormously. A local claim about who is higher is an opinion. The same claim printed in a government volume is a fact of record, and it can be cited.

■ FACT 4

It turned caste into a lobby.

Once rank appeared in an official publication, communities had a concrete reason to contest it. Caste associations formed — many of them for the first time — hired lawyers, gathered evidence, produced genealogies and petitioned the Census Commissioner to be reclassified higher.

The volume of these petitions was substantial enough to become an administrative problem in its own right.

The census did not tell Indians they had castes. It told them their caste had a number, a rank, and an address to complain to.

■ INTERPRETATION

The irony that nobody on either side likes.

The petitions are the most revealing part of the story, and both sides misread them.

What one side takes from them: caste identity was so fluid that communities could plausibly argue for a different rank, which proves the categories were artificial and the British froze something that had been in motion.

What the other side takes from them: the communities were not petitioning to *abolish* the ranking. They were petitioning to be placed higher within it. Nobody wrote in to say the whole scheme was meaningless. That tells you the hierarchy was real, deeply held, and desperately mattered to people — which is not what you would expect if it were a colonial invention.

Both readings are correct at the same time. The census found a real hierarchy with fuzzy edges, and made the edges sharp. That is genuinely different from creating it, and genuinely different from leaving it alone.

■ FACT

1931 was the last full caste count — which is why 2027 matters.

The census of 1931, conducted under J. H. Hutton, was the last to enumerate castes comprehensively. After Independence, India continued to count Scheduled Castes and Scheduled Tribes but stopped counting other castes.

Which is why, as covered in Part 1, the Mandal Commission's estimate of the OBC population in 1980 was built on arithmetic applied to 1931 data — and why the caste enumeration in Census 2027 is the most consequential dataset in this entire argument.

Risley's Ruler

The senior colonial official who believed caste rank could be read off the width of a person's nose — and who ran the census of 1901.

Herbert Hope Risley was an officer of the Indian Civil Service, an ethnographer, and Census Commissioner for the census of 1901. He is the single most consequential individual in the colonial construction of caste, and his theory was nonsense.

What he believed

Risley held that Indian caste was fundamentally **racial**. The population, in his account, descended from a mixture of two stocks — one supposedly Aryan and one supposedly aboriginal — and a community's position in the caste hierarchy reflected how much of each it carried.

And he believed this could be measured on the body. Working within the anthropometric fashion of nineteenth-century European race science, he took physical measurements of members of different communities, and treated the **nasal index** — the ratio of the width of the nose to its height — as a key indicator of racial type and therefore of caste rank.

■ FACT

The 1901 census attempted to arrange castes by "social precedence."

Risley's census did not simply record caste names. It set out to rank communities in order of social standing, as he understood that standing to be recognised locally, and it published the result with the authority of the Government of India behind it.

The exercise produced a flood of protest and petition from communities objecting to their placement — and a large body of caste-association literature arguing for reclassification.

Why this matters more than the silliness suggests

It is tempting to file Risley under Victorian pseudoscience and move on. Three reasons not to.

- ▶ **He was not a crank on the margins.** He was the Census Commissioner and later a senior official of the Government of India. His framework organised the data collection for the most comprehensive survey of Indian society ever attempted to that point.
- ▶ **His race theory outlived his methods.** The nasal index was abandoned. The idea it was built to support — that caste is fossilised race, fair conquerors above dark natives — entered Indian

textbooks, colonial administration and, as noted in Part 2, parts of the anti-caste movement, where it remained influential for most of a century.

- ▶ **The rankings he printed were used.** Once a hierarchy exists in a government publication, it can be cited in a court, in a petition, in a land dispute and in a school admission. Print gives an opinion the texture of a fact.

■ INTERPRETATION

The strange afterlife of a discredited theory.

Risley's racial account of caste is now rejected by essentially everyone. The genetic evidence in Part 2 does not show the population split it requires; the linguistic case for reading *varna* as skin colour is weak.

But look at what remains standing after you remove it. Risley was wrong about *why* the hierarchy existed. He was not wrong that he found one. He did not have to persuade anybody that some communities were ranked above others — the difficulty he had was that everybody agreed there was a ranking and disagreed violently about their own place in it.

This is the pattern for the whole of Part 5. The British were consistently, embarrassingly wrong about the explanation, and consistently correct that there was something there to explain.

Born Guilty

In 1871 the Government of India passed a law declaring that certain communities were criminal by birth. Its shadow has not lifted.

Of everything the colonial state did to Indian society, this is the one that is hardest to argue about, because there is nothing to interpret. The law says what it says.

THE CRIMINAL TRIBES ACT, 1871

Whole communities declared "addicted to the systematic commission of non-bailable offences."

The Act empowered the government to notify entire communities as criminal. Once notified, the effects were sweeping.

Members could be **registered** — recorded by name in police lists. Their **movement was restricted**; they could be required to report to the police, sometimes at fixed intervals, sometimes daily. They could be **confined to settlements**. Their children could be removed. Later amendments extended the reach and the surveillance.

No individual offence was required. Membership of the community was the qualifying condition.

Read the logic of that. The state took the caste principle — that birth determines what you are — and gave it the force of criminal law and the machinery of a modern police system.

■ FACT

The Act was repealed in 1952. The communities are still called denotified.

Independent India repealed the Criminal Tribes Act, and the affected communities were formally "denotified" — which is why they are known today as Denotified Tribes, alongside Nomadic and Semi-Nomadic Tribes.

They number in the region of 150 communities and tens of millions of people. Successive commissions have documented that they continue to face police suspicion, difficulty obtaining documents, and severe disadvantage in housing and employment.

Their name in Indian administrative language is still defined by a law repealed three-quarters of a century ago.

■ INTERPRETATION

What this chapter proves, and what it does not.

It proves that the colonial state did not merely record caste. In this instance it manufactured a category, gave it legal force, and inflicted enormous, documented, lasting harm. Anyone who says the British were passive observers of Indian society has to explain this Act.

It does not prove that Britain created caste. The Act worked *because* the underlying idea — that birth determines character — was already the organising principle of the society it was imposed on. A law declaring communities hereditarily criminal would have been unintelligible in a place without hereditary categories.

The colonial state's most damaging interventions were nearly always of this kind: taking an existing Indian principle, and giving it the reach of a modern state.

WHY THIS BELONGS IN A BOOK ABOUT RESERVATION

Because Denotified Tribes are among the most deprived communities in India and among the least visible in this argument. They are frequently not on the Scheduled Caste list, frequently not on the Scheduled Tribe list, and often classified as OBC where they compete with far more powerful communities.

When Part 13 asks who the current categories miss, this is one of the largest answers.

The Colonial Construction Thesis

The academic argument that modern caste is substantially a British product — at its strongest.

The most influential statement of this position is Nicholas Dirks's *Castes of Mind: Colonialism and the Making of Modern India* (2001), building on earlier work by Bernard Cohn on the census and colonial knowledge.

STEELMAN — THE CONSTRUCTION CASE

1. Before colonialism, the king mattered more than the priest. In pre-colonial India, political power — kings, chiefs, local rulers — was central to social standing. Rank was awarded, contested and revised through political relationships. It was not a fixed religious ladder.

2. Colonial rule removed the political layer. The British dismantled or hollowed out indigenous kingship. What was left, once the political dimension was gone, was the ritual dimension — and colonial observers, seeing only that, concluded that caste was essentially a religious phenomenon. Their description then became the reality, because they administered on the basis of it.

3. Knowledge was administration. Censuses, gazetteers, ethnographic surveys and tribal handbooks were not neutral descriptions. They were instruments of rule, produced to make a vast society legible to a small bureaucracy, and they simplified enormously in order to do so.

4. The courts made one book into the law. As covered in Part 3, colonial courts adopted Sanskrit texts, above all the Manusmriti, as the basis of "Hindu law" — giving a single treatise an authority across a subcontinent that no pre-colonial Indian state had given it.

5. Modern caste politics is a colonial creation. Caste associations, caste-based demands, reserved seats and quota lists all emerge in this period — and emerge *because* the state had made caste the unit through which resources were distributed.

Conclusion: caste as a national, enumerated, legally defined, politically mobilised system is a modern object with a colonial origin — however old the underlying hierarchy may be.

Points 3, 4 and 5 are simply true

Worth saying plainly before Chapter 6, because this thesis is often waved away as fashionable revisionism. The census did simplify and fix. The courts did elevate Manu. Caste politics did take its modern form here, for exactly the reason given. None of that is disputed by anyone who has read the documents. The argument is about points 1 and 2 — and how far the conclusion follows.

The Rebuttal

Equally strong. And a fairly precise verdict on which parts of each case survive.

STEELMAN – THE CASE AGAINST OVERSTATING COLONIAL CONSTRUCTION

1. The eyewitnesses. Part 4 laid these out. Megasthenes around 300 BCE, Fa-Hien around 400 CE, Xuanzang around 630 CE, Al-Biruni around 1030 CE — all describing hereditary rank, restricted marriage, inherited occupation and people required to live outside settlements. None of them was British, and none had a colonial administrative interest.

2. The genome. Endogamy — the actual lock — closed roughly two thousand years ago. Whatever the British did in 1871, they did not persuade Indians to start marrying within their own communities. That was already eighteen centuries old.

3. The petitions defeat the thesis they are cited for. Thousands of communities wrote to the Census Commissioner. Not one significant campaign demanded that the ranking be abolished as an alien imposition. They all wanted to be placed higher in it. People do not fight that hard for position within a hierarchy they regard as a foreign invention.

4. The texts predate the empire by two thousand years. The Dharmashastras were not written in Whitehall.

5. Indians were legislating on caste before the British were. Chapter 7. The first reservation policy anywhere came from an Indian king in 1902, in response to a caste monopoly that was already entrenched. He was not reacting to a British invention; he was reacting to his own administration.

6. And the thesis has an uncomfortable political use. "Caste is a colonial construct" can function as a way of saying that Indian society bears no responsibility for it — which is precisely the alibi Part 4 identified. Not every scholar advancing the thesis intends this. Many people repeating it online do.

The verdict

■ INTERPRETATION

Split, and the split is fairly clean.

On whether Britain created the hierarchy: the rebuttal wins decisively. The hierarchy is documented by neutral outsiders across thirteen centuries before the East India Company existed, and the endogamy that sustains it is two thousand years old.

On whether Britain created the modern form of caste: the construction thesis largely wins. Enumeration, national categories, fixed lists, a legal definition, official rankings, caste as a unit of political claim-making — all of these are colonial in origin, and all of them are what an Indian in 2026 actually deals with. Your caste certificate is a colonial artefact. The argument about the census is a colonial argument.

The formulation I think the evidence supports: Britain found a social hierarchy and converted it into an administrative system. The injustice was Indian. The *bureaucracy* is British. And because reservation is a bureaucratic remedy, it inherited the British machinery to address the Indian injustice.

Which is why the two are so hard to separate now, and why "the categories are colonial" is both entirely true and completely useless as an argument for abolishing them.

The First Reservations Were Indian

Not 1950. Not Mandal. Not the British. An Indian king, in 1902, twenty years before anything comparable existed anywhere in the world.

This chapter contains the fact most often missing from the entire argument, and it is missing from both sides.

■ FACT

26 July 1902 — Shahu Chhatrapati of Kolhapur reserves 50% of state posts for backward classes.

Shahu Maharaj, the ruler of the princely state of Kolhapur, issued a notification in the state gazette reserving **half of all vacancies in state service for candidates from backward communities**.

The order provided that of all posts falling vacant from the date of the proclamation, 50% should be filled from the backward classes — and that in any office where backward-class employees numbered fewer than half, all subsequent appointments should go to them until the balance was reached.

It is widely regarded as the earliest affirmative action programme of its kind anywhere in the world.

Why he did it

Not as a theory. As a response to what he could see in his own offices.

The administration of Kolhapur was overwhelmingly staffed at senior levels by a single community. Shahu Maharaj's conclusion was that a small number of dominant castes had monopolised education and government employment, and that almost everyone else in his state was simply locked out.

His remedy was not persuasion, not scholarships, and not a committee. It was a quota, with a mechanism for filling it.

Indian reservation was not designed by British administrators, Congress politicians or the Constituent Assembly. It was designed by a Maratha king in 1902, looking at a list of who worked for him.

And he was not alone

1902

Kolhapur

Shahu Chhatrapati reserves 50% of state posts for backward classes.

1918

Mysore

The Mysore state government appoints a committee under Sir Leslie Miller to examine the under-representation of non-Brahmin communities in the state services. Its recommendations lead to reservation in Mysore.

1921

Madras

The Communal Government Order introduces proportional allocation of government appointments among communities in the Madras Presidency — the first large-scale reservation in British India proper, driven by the non-Brahmin movement.

■ INTERPRETATION

Three things this fact does, and they land on different people.

It disposes of "reservation is a foreign idea." It was conceived by an Indian ruler in an Indian state, in response to Indian conditions, before Britain had done anything comparable and before most of the world had thought of it.

It disposes of "reservation was invented for vote-bank politics." Kolhapur in 1902 was a monarchy. Shahu Maharaj had no election to win and no constituency to court. Whatever his motives, they were not electoral, because there were no votes.

And it complicates the pro-reservation account too. The original policy was not framed as compensation for historical injustice, nor as a remedy for untouchability. It was framed as breaking a *present-day monopoly* in employment — a specific, measurable, current problem in a specific set of offices.

That is a narrower and more concrete justification than the one usually offered today, and arguably a stronger one, because it is testable. Part 11 tests it.

The Road To Poona

Between 1909 and 1932, one question came to dominate Indian politics: when power is transferred, who counts as a group?

As the British began, slowly and reluctantly, to concede elected representation to Indians, a question appeared that had no precedent and no obvious answer. Elections require constituencies. Constituencies require deciding who votes with whom.

And in a society organised by community, that decision was not a technicality. It was everything.

1909

Separate electorates arrive

The Morley–Minto reforms introduce separate electorates for Muslims — voters of one community electing their own representatives, in their own constituencies. The principle is now established, and everything afterwards is an argument about who else gets it.

1919

The Depressed Classes appear in the machinery

The Montagu–Chelmsford reforms and the Government of India Act 1919 expand elected representation. Provision is made for the Depressed Classes largely through nomination rather than election — representation granted, but not chosen by the people represented.

1927–28

The Simon Commission

An all-British commission on constitutional reform, boycotted across Indian politics for containing no Indians. Ambedkar gives evidence, pressing the case for political safeguards for the Depressed Classes.

1930–32

The Round Table Conferences

Three conferences in London. Ambedkar attends as a representative of the Depressed Classes and argues that they are a distinct element requiring separate political representation. Gandhi, at the second conference, insists that Congress speaks for all Indians including the Depressed Classes, and rejects treating them as separate from Hindu society. The two positions are irreconcilable and both men know it.

16 Aug 1932

The Communal Award

Unable to secure agreement, British Prime Minister Ramsay MacDonald announces the settlement himself. Separate electorates are granted to Muslims, Sikhs, Europeans, Anglo-Indians, Indian Christians — *and to the Depressed Classes*, with

71 reserved seats

in the provincial legislatures.

What the Award actually gave

This is the detail that makes the next chapter comprehensible, and it is usually skipped.

■ FACT

The Communal Award gave the Depressed Classes a double vote.

Under the Award, Depressed Class voters would vote in their own separate constituencies to elect their own representatives — *and* would also vote in the general constituencies.

The consequence was that their representatives would be chosen exclusively by them, and could not be selected, funded or removed by the far larger general electorate.

That is the prize Ambedkar had spent a decade arguing for, and the reason is straightforward. A reserved seat inside a joint electorate is filled by a candidate whom the majority is willing to accept. A separate electorate produces a representative the majority has no say over at all.

He believed, on the evidence of everything in Parts 3 and 4 of this series, that a community which had been excluded for two thousand years could not rely on the goodwill of the people who had excluded it.

■ INTERPRETATION

And Gandhi's objection, taken at its strongest.

Gandhi's position is usually reported as simple opposition. It was more specific than that, and it needs stating properly.

He accepted that untouchability was a monstrous wrong and had campaigned against it. What he refused was the *constitutional separation* of the Depressed Classes from the rest of Hindu society.

His reasoning: separate electorates would make the division permanent and legal. Caste Hindus would lose any electoral reason to care about Dalit voters, since those voters would no longer be in their constituencies. The reform of Hindu society from within — which he regarded as the only durable solution — would become impossible, because the two groups would never again need each other's votes.

He also, and this is the part rarely acknowledged, feared it would do to Hindu society what separate electorates had already begun doing between Hindus and Muslims. Given what happened in 1947, that fear cannot be dismissed as merely tactical.

Both men were arguing about the same risk from opposite ends. Ambedkar feared that without separation, Dalits would be permanently dependent on the goodwill of their oppressors. Gandhi feared that with it, they would be permanently outside the society that had to change. Neither was being unreasonable. That is what made the collision unresolvable.

The Poona Pact

A fast unto death in a prison cell, six days of negotiation, and the document from which every argument in 2026 descends.

On 20 September 1932, in Yerwada Central Jail in Poona, Mohandas Gandhi began a fast unto death. His condition for ending it was the removal of separate electorates for the Depressed Classes from the Communal Award.

He was 62 and in prison. Ambedkar was 41, and had spent his life arguing for exactly what Gandhi was now fasting against.

The position Ambedkar was placed in

It is worth being precise about this, because it is the most consequential week in the history of Indian reservation and it is usually narrated as a story about Gandhi.

Ambedkar had won. The Award was announced. Separate electorates for the Depressed Classes were British government policy.

And then the most revered man in India announced he would die unless that policy was reversed — with the whole country watching, and with the entirely predictable consequence that if Gandhi died, the blame would fall on Ambedkar and on the community he represented.

He was offered a choice between the safeguard he believed his people needed and being held responsible for Gandhi's death. He has been criticised for the decision he made ever since, by people who were not offered it.

What was signed

■ FACT

24 September 1932 — the Poona Pact.

Signed at Yerwada Central Jail. Ambedkar signed on behalf of the Depressed Classes; Madan Mohan Malaviya signed on behalf of caste Hindus.

Separate electorates were given up. They do not appear in the document.

In exchange, reserved seats were roughly doubled. The Award's 71 seats in the provincial legislatures became **148** — but as reserved seats inside *joint* electorates, filled by all voters in the constituency rather than by Depressed Class voters alone. A share of seats in the central legislature was also provided for.

Gandhi ended his fast on 26 September 1932.

The trade, in one line

Ambedkar exchanged **political independence** for **numerical quantity**. More seats, less autonomy in filling them.

■ INTERPRETATION

Why this is the origin point of the argument happening right now.

Everything about modern Indian reservation is downstream of that trade.

The mechanism is the Pact's mechanism. Reserved seats within a common pool, rather than a separate pool — which is exactly the structure described in Part 1. It was settled here, in 1932, and it has never been revisited.

The critique of it is also from here. Ambedkar's own later assessment was bleak: that representatives elected by a general electorate would be acceptable to the majority rather than accountable to the minority, producing what critics still call nominal representation. Whether that prediction came true is a live empirical question, and Part 11 examines it.

And the moral shape of the argument was set here too. The Pact was agreed under a threat that Ambedkar did not create and could not refuse. That is why "Dalits agreed to this arrangement" is such a contested sentence, and why the Pact is commemorated by some as a moment of national unity and by others as coercion.

Both descriptions are accurate. It was a genuine agreement, and it was signed under duress. Those are not contradictory.

A NOTE ON HOW BOTH MEN ARE USED NOW

Gandhi is quoted by people who want to argue that Dalits should be integrated rather than separately protected. Ambedkar is quoted by people who want to argue for stronger safeguards. Both are also quoted, selectively, by the abolition side.

Part 7 gives each of them a full hearing in their own words, at length, including the parts their admirers leave out. Neither man was simple, and neither is available to be borrowed as cheaply as he usually is.

What Britain Actually Left Behind

Not an attitude. A filing system — and it is still the one India uses.

The colonial period ends with a specific inheritance, and it is more concrete than most of this argument allows.

■ FACT

The Government of India Act 1935 introduced the term "Scheduled Castes."

The Act provided for reserved seats and used the term that India still uses today. The following year, the Government of India (Scheduled Castes) Order 1936 set out the actual schedule — the list of which communities qualified.

That list is the direct ancestor of the Constitution (Scheduled Castes) Order, 1950, which is the instrument discussed at length in Part 4 — the one that still determines who is legally a Dalit in 2026.

The five things independent India inherited intact

- ▶ **The word.** "Scheduled Caste" is a colonial administrative term, coined for a 1935 statute. Nobody chose it as a description of a people; it means "the castes on the schedule."
- ▶ **The list.** A specific enumeration of communities, compiled by colonial officials, largely carried forward in 1950.
- ▶ **The mechanism.** Reserved seats inside joint electorates — the Poona Pact structure.
- ▶ **The counting apparatus.** The census, and the assumption that caste is something the state records and acts upon.
- ▶ **The habit of legislating by category.** Group entitlements attached to group membership, adjudicated by the state.

■ INTERPRETATION

And here is the sharpest point in Part 5.

The Reservation Hatao Andolan's central proposal is that the state should stop recording and recognising caste — that the column should be deleted, and with it the category.

Everything in this book supports one half of that argument and destroys the other.

The half it supports: the categories really are colonial. The list, the word, the schedules, the certificates — all of it is the residue of an imperial filing system built to make Indians legible to their rulers. It is entirely fair to find that grotesque.

The half it destroys: the thing being filed was not created by the filing. Al-Biruni described it in 1030. The endogamy lock closed two thousand years ago. Shahu Maharaj was fighting a caste monopoly in 1902 that no British official had built.

Deleting the record does not delete the thing recorded. It deletes the ability to measure it — which is a real proposal with real consequences, and Part 14 assesses it properly. But it should be argued as what it is: a proposal to stop counting, not a proposal to end caste.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Would caste have faded without the census?

The strongest form of the construction thesis implies it might have. Local, negotiable, unenumerated identities might have dissolved under urbanisation and industry, as European estate distinctions largely did.

The reason to doubt it: endogamy was two thousand years old and required no state at all. Nothing in that mechanism depended on being counted. But this is a counterfactual, and anyone who is certain about it is guessing.

2. Why did every community petition to move up rather than to abolish the ladder?

Thousands of petitions, and essentially none arguing that ranking communities was illegitimate.

It is the single most revealing fact about colonial caste, and it is uncomfortable for the construction thesis. People do not litigate for decades over their position in a hierarchy they believe a foreigner made up last Tuesday.

3. Did counting create the interest, or reveal it?

Caste associations formed in response to the census. But an association is an organisational form, not a sentiment. The question is whether the census gave people a new interest or gave an existing interest a new address to write to.

The petitions suggest the latter. What was new was not the desire for rank. It was the discovery that rank could now be appealed.

4. What happened to communities that fell between the categories?

The census demanded exclusive answers. Communities that had been genuinely intermediate — claiming one status in one district and another elsewhere, or shading into a neighbouring group — had to be placed somewhere.

Some of those placements determined, eighty years later, whether a community would be eligible for reservation. Decisions taken by a district officer with a deadline are still producing consequences.

5. Why is the Criminal Tribes Act so rarely mentioned?

It is the clearest documented case of the colonial state actively manufacturing caste harm rather than merely recording it. It should be Exhibit A for the construction thesis.

It is barely cited, in academic argument or in public debate — and the communities it damaged remain among the least represented in Indian politics. Those two facts are related.

6. Why does nobody credit Shahu Maharaj?

The world's first reservation policy was Indian, from 1902, and almost nobody in this argument mentions it.

The reason is that the fact is unhelpful to everyone. It denies the abolition side "reservation is a foreign import" and "it was invented for votes." It denies the retention side its founding narrative, which starts with Ambedkar and the Constitution. A fact that serves no faction gets dropped by all of them.

7. Was Gandhi's fast a moral act or coercion?

The answer people give tracks their prior view of Gandhi almost perfectly, which is a sign that nobody is reasoning about it.

The honest description contains both. He was risking his own life, not threatening anyone else's — that is a real moral distinction. And the practical effect was that Ambedkar had to concede or be blamed for a death, which is a real form of pressure. Insisting on only one half is where the dishonesty starts.

8. What would India look like if the Communal Award had stood?

Dalit representatives elected only by Dalit voters, for ninety years, entirely independent of the parties. It is arguably the biggest counterfactual in modern Indian political history and it is almost never explored seriously.

It might have produced a genuinely autonomous Dalit political bloc. It might equally have produced the permanent constitutional separation Gandhi feared. Nobody knows, and both possibilities should trouble whoever finds one of them comforting.

9. If the categories are colonial, what would replacing them look like?

"These categories are a colonial artefact" is true and is usually where the argument stops.

But any replacement needs its own categories. Economic criteria require income thresholds, verification and an administrative machine — as EWS already demonstrates. There is no way to distribute anything to anyone without defining who. The choice is never between categories and no categories. It is between one set and another.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 5.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Did the British create the caste hierarchy?	No	Documented long before them; endogamy 2,000 years old
Did they create its modern administrative form?	Largely yes	Census, lists, legal categories, caste politics
Did the census fix fluid identities?	Yes	Exclusive answers, national categories, printed rank
Was Risley's racial theory of caste correct?	No	Abandoned; genetics does not support it
Did colonial law manufacture caste harm directly?	Yes	Criminal Tribes Act, 1871
Where did reservation begin?	Kolhapur	26 July 1902, Shahu Chhatrapati, 50%
What settled the mechanism India uses?	Poona Pact	24 September 1932 — 148 seats, joint electorates
Where does the term "Scheduled Caste" come from?	1935 Act	List drawn up in the 1936 Order
Would caste have faded without colonial rule?	Unknowable	Counterfactual; endogamy needed no state

The three things nobody can tell you

- ▶ **How much the census changed behaviour rather than records.** We can see identities becoming fixed on paper. Whether the same families behaved differently at home is a separate question, and the household evidence does not exist.
- ▶ **What Ambedkar would have accepted without the fast.** He never had the chance to find out, and neither do we.
- ▶ **Whether separate electorates would have worked.** The largest unrun experiment in modern Indian politics.

■ INTERPRETATION

The one sentence that carries Part 5.

Britain did not build the house. It surveyed it, numbered every room, printed the plan, and handed the keys to a government that has been living in it ever since.

Which means "the categories are colonial" is true, and is an argument for redesigning them — not for pretending the building is not there.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 5 – THE BRITISH MACHINE

1. **The census did not create caste — it created the caste system you actually deal with.** From 1871, exclusive answers, national categories and printed rankings turned local, negotiable identities into fixed legal ones. Your caste certificate is a colonial artefact. The thing it certifies is not.
2. **Risley was wrong about everything except that there was a hierarchy.** The Census Commissioner for 1901 believed caste rank could be read from the width of a nose. The theory is dead. The pattern for the whole colonial period is the same: embarrassingly wrong about the explanation, correct that there was something to explain.
3. **The Criminal Tribes Act of 1871 declared whole communities criminal by birth.** Repealed in 1952; the affected communities are still called Denotified Tribes, still number tens of millions, and are still among the least visible people in this entire argument.
4. **The world's first reservation policy was Indian.** 26 July 1902 — Shahu Chhatrapati of Kolhapur reserved 50% of state posts for backward classes, in a monarchy with no elections, to break a monopoly he could see in his own offices. Neither side in 2026 mentions him, because the fact helps neither.
5. **Everything modern descends from six days in September 1932.** Gandhi fasted from the 20th; the Poona Pact was signed on the 24th; he broke his fast on the 26th. Ambedkar gave up separate electorates and got 148 reserved seats inside joint electorates instead. That trade — more seats, less autonomy — is still the mechanism, and still the argument.

Coming next

PART 6 — THE EVIDENCE FILE

Did it really happen — or is it exaggerated?

The part this whole series has been building towards, and the question that started it. No inference, no hymns, no genetics. Court records, land records, temple records, missionary accounts, travellers' accounts and colonial files — primary documents, quoted directly. Mahad 1927, Vaikom 1924–25, Kalaram 1930, dated and sourced. What the breast-tax story does and does not support. Modern measurement: what surveys find about untouchability still being practised in Indian homes, and what the atrocity data shows along with its honest caveats. Field experiments with identical CVs and different surnames.

And the "it is all exaggerated" case, steelmanned properly — where it has a real point, and where it collapses.

A closing thought: the most useful thing in this part is the smallest. A king in 1902 looked at a list of who worked for him, noticed that one community held almost everything, and did something about it. No theory of history, no compensation for the past — just a monopoly, observed and broken. That is a narrower argument for reservation than the one usually made, and it is the one that can actually be tested. — L.S.

Sources & Notes

Every factual claim in Part 5, and where it comes from.

The census and colonial ethnography

First all-India census, 1871–72; decennial censuses thereafter. · H. H. Risley, Census Commissioner for the 1901 census; the attempt to classify castes by social precedence; anthropometric method including the nasal index; *The Tribes and Castes of Bengal* (1891) and *The People of India* (1908). · The formation of caste associations and the volume of petitions for reclassification are documented in the census reports themselves and in the subsequent historiography. · The 1931 census under J. H. Hutton was the last comprehensive caste enumeration; caste enumeration returns in Census 2027.

The Criminal Tribes Act

Criminal Tribes Act, 1871, and subsequent amendments — notification of communities, registration, restriction of movement, reporting requirements and settlements. Repealed in 1952; affected communities formally denotified. Denotified, Nomadic and Semi-Nomadic Tribes number in the region of 150 communities; successive government commissions have documented continuing disadvantage and police suspicion.

The colonial construction debate

Nicholas B. Dirks, *Castes of Mind: Colonialism and the Making of Modern India* (2001) — the fullest statement of the construction thesis, including the argument about the displacement of kingship by ritual as the organising principle. · Bernard S. Cohn on the census and colonial forms of knowledge. · Susan Bayly, *Caste, Society and Politics in India from the Eighteenth Century to the Modern Age* (1999), for a more qualified account. The rebuttal in Chapter 6 draws on the pre-colonial eyewitness evidence set out in Part 4 and the genetic dating set out in Part 2.

Early reservation

Shahu Chhatrapati of Kolhapur, notification in the state gazette dated **26 July 1902**, reserving 50% of vacancies in state service for backward classes, with the provision that where backward-class employees numbered fewer than half, subsequent appointments should go to them. Widely described as the earliest affirmative action programme of its kind. · Mysore: the committee under Sir Leslie Miller, 1918. · Madras Communal Government Order, 1921.

The road to Poona, and the Pact

Morley–Minto reforms, 1909 — separate electorates for Muslims. · Montagu–Chelmsford reforms and the Government of India Act 1919. · Simon Commission, 1927–28; Ambedkar's evidence. · Round Table Conferences, 1930–32. · **Communal Award, 16 August 1932**, announced by Prime Minister Ramsay MacDonald — separate electorates for Muslims, Sikhs, Europeans, Anglo-Indians, Indian Christians and the Depressed Classes, with 71 reserved seats in the provincial legislatures for the Depressed Classes, together with the right to vote in general constituencies. · Gandhi's fast begun **20 September 1932** at Yerwada Central Jail. · **Poona Pact, 24 September 1932** — signed by Ambedkar on behalf of the Depressed Classes and by Madan Mohan Malaviya on behalf of caste Hindus; separate electorates abandoned; reserved seats in the provincial legislatures increased from 71 to **148** within joint electorates, with provision for the central legislature. Gandhi ended the fast on 26 September 1932.

The inheritance

Government of India Act 1935 — introduction of the term "Scheduled Castes" and provision for reserved seats. · Government of India (Scheduled Castes) Order, 1936 — the schedule of communities. · Constitution (Scheduled Castes) Order, 1950 — discussed in full in Part 4.

A note on what is missing — and on corrections

Part 5 makes no claim about how severely caste rules were applied to real people, which is Part 6, nor about the Constituent Assembly debates, which are Part 8. Gandhi's and Ambedkar's positions are summarised here only as far as the Poona Pact requires; both men are given full and lengthy treatment in their own words in Part 7. Anything marked **CONTESTED CLAIM** stays contested until evidence is produced.

Where accounts of the Poona Pact differ slightly on seat numbers for the central legislature, this book gives only the provincial figures, which are not in dispute. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART FIVE

THE RESERVATION FILES The British Machine

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 6 – The Evidence File: did discrimination really
happen?
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART SIX

THE EVIDENCE FILE

Did discrimination really happen — or has it been exaggerated? No hymns, no genetics, no inference. Documents, dates, data and experiments.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Question That Started This

This is the part I began the series in order to write.

Everything before it was preparation. What reservation is. Where caste came from. How it hardened. Whether outsiders brought it. Those are interesting questions and they are all, in the end, secondary to this one:

Did it actually happen? And if it did, was it as bad as people say, or has it been inflated for political purposes?

That question deserves a straight answer rather than a lecture, so this part is built differently from the others. There is very little interpretation in it. It is mostly evidence, laid out in the order a reasonable person would want to see it, with sources attached.

"You can call a victim's account exaggerated. It is considerably harder to call a perpetrator's confession exaggerated."

That sentence is Chapter 6, and it is the single most important piece of evidence in this book. I will not spoil it here beyond saying that when I found it I stopped writing for a day.

Three commitments before we start.

First, I have gone looking for exaggeration, and I found some. Chapter 4 takes one of the most widely circulated stories in Indian anti-caste politics and shows what the record actually supports and what has been added to it. I am not going to pretend that everything told on my side of an argument is true, because that is exactly the habit this series exists to break.

Second, the "it is exaggerated" case gets a full chapter of its own, written properly, with the points where it genuinely wins clearly marked. It has real ones. They are not the ones its supporters usually make.

Third, I have preferred evidence that is hard to fake. Court records over recollections. Occupational censuses over surveys. Experiments over testimony. Perpetrator self-reports over victim self-reports. Where the only evidence is testimony, I say so.

One last thing. Some of this is difficult reading — Chapter 9 in particular. I have not made it more graphic than the facts require, and I have not made it less. People have died in those conditions this year.

— Lovepreet Singh

July 2026

Contents

■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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The fabrication thesis, stated at full strength by its best advocate

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How to judge claims about the past without being anyone's fool

3 The Documented Events

Dates, places, court records, newspapers — five cases you can verify

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Where the record ends and the embellishment begins

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11 Nine Questions Nobody Asks

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12 The Verdict

Clearly labelled as opinion, with the reasoning shown

13 The Five-Line Nichod

Everything in this book, compressed

The Charge

The case that caste oppression has been exaggerated – written by its best advocate, not its worst.

In July 2026, one of the most prominent voices in the Reservation Hatao Andolan described historical caste atrocities as "propaganda pushed by leftist historians to induce guilt."

That is the crude version. Here is the serious one – the case as a careful, intelligent sceptic would actually make it. It deserves to be answered rather than dismissed, because a great many people believe some version of it.

Not "nothing happened." Something much more sophisticated.

- 1. The sources are contaminated.** Almost everything written about Indian social conditions before 1947 was recorded by colonial officials or Christian missionaries. Both had powerful reasons to portray Hindu society at its worst: the first to justify continued rule, the second to justify conversion. We are reading the prosecution's file and calling it the record.
- 2. Demonstrable embellishment exists.** Several of the most emotionally powerful stories in Indian anti-caste politics turn out, on examination, to have grown in the telling. If some are inflated, a reasonable person should ask how many.
- 3. Crime statistics measure reporting, not crime.** A rise in registered cases can mean more offences or better registration, more awareness, more police stations, or more incentive to file. And a law with mandatory compensation attached creates an incentive that any honest analyst must account for.
- 4. Aggregation smuggles in the conclusion.** When two people of different castes fight over land or a woman or a debt, and one is Scheduled Caste, the case is registered as an atrocity. That does not make caste the motive. National totals silently convert ordinary human conflict into evidence of a system.
- 5. Surveys measure question wording.** Ask about "untouchability" in a country where the word carries legal and social weight and you will get answers shaped by what people think you mean and what they think is safe to say.
- 6. Enormous change has happened, and the language has not moved.** India in 2026 is not India in 1926. Describing the present in the vocabulary of the past is not a small error; it is the whole error, because policy is made for the present.
- 7. Every pre-modern society was brutal.** Slavery, serfdom, guilds, hereditary aristocracies. Singling out one society's hierarchy as uniquely monstrous is a political choice, not a historical finding.

How this part answers it

Not by asserting the opposite. By producing evidence of kinds that the seven objections above cannot touch.

THE OBJECTIONS, AND THE EVIDENCE DESIGNED TO SURVIVE THEM

If you doubt...	Then look at...
Colonial and missionary sources	Court records, princely-state proclamations, and Indian-authored accounts — Chapter 3
Embellished stories	Chapter 4, where I take one apart myself
Victim testimony	Chapter 6 — a survey of what people say <i>they themselves</i> do
Crime statistics	Chapter 8 — controlled experiments with no reporting step at all
Survey wording	Chapter 9 — an occupational headcount, not an opinion
Historical distance	Chapters 6 to 9 are all from the last two decades

And Chapter 10 goes back through all seven and marks which ones survive. Three of them do.

What Counts As Evidence

A short chapter on how to judge any claim about caste – including the ones in this book.

Before any of the evidence, a method. Not all evidence is equal, and the differences are not about how upsetting it is.

A ROUGH RANKING OF EVIDENCE TYPES, STRONGEST FIRST

Type	Why it is strong or weak	Used in
Controlled experiment	No reporting step, no memory, no politics. The only variable is the one deliberately changed.	Chapter 8
Perpetrator self-report	People do not usually over-report their own bad behaviour. Bias runs one way – downward.	Chapter 6
Occupational headcount	Counting who does a job. Not an opinion about anything.	Chapter 9
Contemporary legal record	Court cases, proclamations, gazettes. Written at the time, for other purposes, with consequences attached.	Chapter 3
Administrative statistics	Real but noisy. Measure the reporting system as much as the phenomenon.	Chapter 7
Contemporary testimony	Valuable, especially when detailed and consistent, but a single account is a single account.	Chapter 5
Oral tradition	Preserves real memory and also grows in transmission. Needs corroboration.	Chapter 4

THE TEST I HAVE TRIED TO APPLY

For every claim: **who recorded this, when, and what did they gain by recording it?**

A missionary describing untouchability gains a conversion story. A colonial official gains a justification for rule. A caste association describing its own high status gains rank. An activist describing an atrocity gains attention and possibly compensation. A political party describing anything gains votes.

This is not cynicism, and it does not mean any of them are lying. It means the strongest evidence is the kind where the recorder had *nothing to gain* — or, better still, something to lose.

■ INTERPRETATION

The asymmetry that decides most of this part.

Apply that test to the two directions of error.

Over-reporting requires someone to invent or inflate a harm. It has obvious motives — sympathy, compensation, political advantage — and it certainly happens.

Under-reporting requires only that a person in a village where the dominant community controls their employment, their water and their safety decides not to walk to a police station. It requires nothing to be invented at all.

Both errors are real. But one takes effort and the other takes silence, and the second is always more common. Any honest reading of Indian caste data has to start there.

The Documented Events

Five episodes with dates, places, participants and paper trails. Not stories. Records.

These are chosen deliberately. Each was led by Indians, reported in Indian newspapers, and in several cases litigated in Indian courts. None depends on a missionary's account or a colonial officer's report.

1. The Upper Cloth Revolt — Travancore, 1813–1859

■ FACT

Women of certain communities were prohibited from covering their upper bodies, and it took forty-six years of conflict to end it.

In the princely state of Travancore, women of lower-ranked communities — the Nadar or Channar community above all — were forbidden to wear an upper cloth in the presence of those of higher rank. The prohibition was a marker of status, and it was enforced.

Converts to Christianity began covering themselves, which produced decades of intermittent violence, market disturbances, and repeated royal orders — some granting partial rights, some withdrawing them. The conflict is known as the Channar Lahala, or Upper Cloth Revolt.

It was substantially resolved by a royal proclamation in **1859**, which permitted the women of the community to cover themselves.

Note what kind of evidence this is. It is a dispute recorded in the administrative and legal record of an Indian princely state, running across nearly five decades, requiring multiple royal proclamations. That is not the sort of thing a historian invents later.

2. Vaikom Satyagraha — 30 March 1924 to 23 November 1925

■ FACT

A twenty-month campaign for the right to walk on a public road.

Not to enter the temple. To use the *roads around* the Vaikom Mahadeva temple in Travancore, which lower-caste people were prohibited from walking on.

The satyagraha ran for roughly twenty months. Volunteers were arrested repeatedly. E. V. Ramasamy — Periyar — came from Tamil country to participate and was imprisoned, earning the title Vaikom Veerar. Gandhi visited in 1925. It ended with the opening of three of the four roads.

Twenty months, of organised non-violent protest, to walk down a street.

3. Mahad Satyagraha — 20 March 1927

■ FACT

Ambedkar led thousands to drink water from a public tank. The tank was then ritually purified.

On 20 March 1927, at Mahad in the Bombay Presidency, Ambedkar led a large gathering — accounts put it in the thousands — to the Chavdar tank, a public water source, to drink from it. Access was legally permitted; it was socially prohibited.

After they drank, caste Hindus **ritually purified the tank** using cow dung, cow urine, milk and curds — the standard purification of a polluted object.

Litigation over the tank followed and continued for a decade, ending in favour of the Dalit claimants in the Bombay High Court in **1937**.

On **25 December 1927**, at the Mahad conference, Ambedkar publicly burned a copy of the Manusmriti.

■ INTERPRETATION

The purification is the evidence, not the protest.

A protest can be dismissed as politics. The purification cannot.

Nobody performs an elaborate, expensive, publicly visible ritual to cleanse a body of water unless they sincerely believe it has been defiled — and unless the community around them agrees. It was not done to make a point to historians. It was done because those involved thought the water had become unusable.

That single act tells you more about how untouchability actually worked than a hundred pages of testimony. And it happened in 1927, in the presence of a legal system that had already declared the tank public.

4. Kalaram Temple Satyagraha — from 2 March 1930, Nashik

■ FACT

A campaign for temple entry that ran for more than five years.

Beginning 2 March 1930, Ambedkar led a satyagraha for the right of Dalits to enter the Kalaram temple at Nashik. It continued, with interruptions, for over five years, and involved large processions, prolonged confrontations and arrests.

A related campaign at the Guruvayur temple in Kerala, led by K. Kelappan, ran through 1931–32.

5. The Temple Entry Proclamation — Travancore, 12 November 1936

■ FACT

A ruler had to issue a formal proclamation to permit his own subjects to enter temples.

On 12 November 1936, the Maharaja of Travancore issued a proclamation opening state-controlled temples to all Hindus regardless of caste.

A state does not issue a proclamation permitting something that was already permitted. The existence of the document is the proof of the prohibition.

■ INTERPRETATION

Why these five, and what they establish together.

Each of them is a **negative-space** proof. You do not campaign for twenty months to walk on a road that is open. You do not purify a tank that was never polluted. You do not proclaim a right that already exists. You do not litigate for ten years over water you were freely drinking.

The existence of the campaign proves the existence of the prohibition, independently of anybody's description of it. This is why these events are so much stronger as evidence than any account of how bad things were.

What they establish: in the first half of the twentieth century, in multiple regions of India, lower-caste people were prohibited from using public roads, public water and public temples — and these prohibitions were enforced strongly enough to require years of organised resistance and formal legal action to overturn.

What they do not establish: how universal any of it was, or how it compares with earlier centuries. Those remain open.

The Breast Tax

One of the most repeated stories in Indian anti-caste politics, taken apart honestly — including the parts that do not survive.

If this book only produced evidence that supported one conclusion, you would be right not to trust it. So here is a chapter that goes the other way.

The story as it is usually told

In Travancore, lower-caste women were forbidden to cover their breasts, and were taxed if they did — a "breast tax," assessed according to the size of the woman's breasts by officials who came to measure them. A woman named Nangeli of Cherthala refused to pay. When the tax collector arrived, she cut off her own breasts and presented them to him on a plantain leaf, and bled to death. Her husband threw himself on her funeral pyre. The village came to be called Mulachiparambu.

It is a devastating story. It appears in articles, in artwork, in school discussions and in political speeches.

What the record supports

■ FACT

The discriminatory tax system and the clothing prohibition are both real.

Travancore levied a range of poll taxes on lower-caste subjects, including one recorded as *mulakkaram*. Taxation that fell specifically on lower-caste people, and did not fall on higher-caste people, is documented in the state's own fiscal records.

The prohibition on lower-caste women covering their upper bodies is separately and thoroughly documented, as Chapter 3 set out — it produced forty-six years of conflict and required royal proclamations to resolve.

What the record does not support

■ CONTESTED CLAIM

The Nangeli story, and the "tax assessed by breast size" detail.

Historians have raised serious questions about the popular version. The principal difficulties:

The specific incident rests on oral tradition. The story of Nangeli is transmitted locally and became widely known relatively recently. Contemporary documentary corroboration for the event as described has not been produced.

The nature of the tax is disputed. Several historians read *mulakkaram* as a poll tax — a head tax levied per adult member of certain communities — rather than a levy assessed on the body. On that reading it was a tax on being a member of a low-caste community, collected per person, which is a different thing from what the popular story describes.

The vivid details are exactly what oral transmission produces. The plantain leaf, the measurement, the husband on the pyre. These are the elements that make a story memorable, and memorability is precisely how details get added.

None of this proves the story false. It means the specific incident is not established, and it should not be presented as established.

■ INTERPRETATION

Why I have put this chapter this early, and what it actually costs each side.

What it costs the anti-caste side: a story it uses a great deal, which should be presented as tradition rather than documented history. Using contested material weakens a case that does not need it — and hands the other side a genuine catch.

What it costs the sceptical side, which is more: notice what remains standing after the story is set aside. The discriminatory taxation is documented. The clothing prohibition is documented. The forty-six-year conflict is documented. The royal proclamations exist.

Removing Nangeli removes an *illustration*. It removes nothing from the underlying record, because the underlying record was never resting on her.

And this is the pattern for the whole of Chapter 10. The exaggeration case scores real hits on the illustrations. It has almost nothing to say about the documents.

A GENERAL RULE WORTH ADOPTING

When any side of any argument offers you a story that is unusually vivid, unusually cruel, and unusually neat — with a named individual, a dramatic gesture and a perfect ending — be careful. Not because it is necessarily false, but because those are the properties that make stories survive retelling, whether or not they happened.

The evidence that actually holds is almost always duller. Tax registers. Proclamations. Court dates. Occupational tables. Nobody makes artwork about a proclamation, which is exactly why you can rely on it.

Ambedkar's Own Testimony

What happened, in his own account, to a man with degrees from Columbia and the London School of Economics.

Ambedkar wrote a short set of autobiographical notes, published as *Waiting for a Visa*. They are among the most useful documents in this entire subject, for a reason that has nothing to do with sympathy.

They allow you to hold everything else constant.

The journey to Masur, 1901

Ambedkar, aged about nine, travelled with his brothers to meet their father. At the railway station the stationmaster, who had been helpful, asked who they were. On being told they were Mahars, his manner changed and assistance stopped.

No cart driver would take them. Eventually one agreed – for double the normal fare, and on condition that the boys drove the cart themselves, so that he would not have to sit with them. He walked alongside.

The school at Satara

- ▶ He was not permitted to sit on the classroom bench. He brought a gunny sack from home, sat on it, and carried it home again each day so that the school servant would not have to touch it.
- ▶ He was not permitted to touch the water tap. Water had to be poured for him by the school peon, from a height, without contact. In his own summary: **no peon, no water.**
- ▶ The village barber would not cut his hair. His sister cut it.

Baroda, 1917

By this point he held a doctorate from Columbia University and had studied at the London School of Economics. He had been invited to take up a senior post in the service of the Baroda state.

He could not find anywhere to live. No Hindu lodging would take him. He eventually obtained a room at a Parsi inn by giving a false name and pretending to be a Parsi. When the other residents discovered who he was, they confronted him and he was forced to leave. He sat in a public garden with his luggage and then left the city.

One of the most educated Indians alive could not rent a room. The variable was not his education, his income, his manners or his usefulness. There was only one variable.

■ INTERPRETATION

Why this is stronger evidence than it looks — and where its limits are.

Its strength is that it is a controlled comparison. Almost every argument about caste disadvantage runs into the objection that poverty, not caste, explains the outcome. Baroda in 1917 removes that objection entirely. Ambedkar had qualifications almost nobody in India possessed, an offer of senior employment, and money. He was still refused a room.

That is the same logical structure as the experiments in Chapter 8, conducted eighty years earlier by accident.

Its limit is that it is one man's account. A single testimony, however detailed and however credible, cannot establish how widespread anything was. It establishes that these things happened to him.

Which is why this chapter sits here rather than at the end. Testimony shows you what the thing looked like. It cannot tell you how much of it there was. For that you need Chapters 6 to 9.

The Confession

In 2011–12, researchers asked more than forty thousand Indian households a question almost nobody asks. The answers are the most important evidence in this book.

Almost all argument about caste discrimination is an argument about victims' accounts — how reliable they are, how representative, how politically motivated.

The India Human Development Survey did something different. It asked the other side.

■ FACT

The survey.

The second India Human Development Survey (IHDS-II), conducted in 2011–12 by the National Council of Applied Economic Research and the University of Maryland, covered **over 42,000 households**, nationally representative across class and social group.

It asked respondents directly: *does anyone in your family practise untouchability?* — and followed up with a concrete test: *would it be acceptable for a Scheduled Caste person to enter your kitchen or use your utensils?*

The answers

27%

of all Indian households admitted to practising untouchability

30%

of rural households

20%

of urban households

■ FACT

And it is not confined to one group.

By community, the reported practice was highest among **Brahmin households (52%)**, followed by **OBC households (33%)** and other forward-caste households (24%). Scheduled Tribe households reported 22% and **Scheduled Caste households 15%**.

By religion, roughly **30% of Hindu** households, **23% of Sikh**, **18% of Muslim** and **5% of Christian** households reported the practice — with Jain households reporting the highest figure of all at 35%.

The same survey found that around **5% of Indian marriages** were inter-caste.

■ INTERPRETATION

Why this single dataset does more work than everything else in this book combined.

Go back to the seven objections in Chapter 1 and try them against this.

"Colonial and missionary sources are biased." This is an Indian research institution and an American university, in 2011–12. No colonial officials, no missionaries.

"Stories get embellished." There are no stories here. There is a question and a percentage.

"Crime data measures reporting." Nobody reported anything. No police station, no complaint, no compensation.

"Victims exaggerate." These are not victims. **These are the people doing it, describing what they do.**

And that is the point on which the whole chapter turns. Consider which way the error runs. Untouchability has been unlawful in India since 1950. Admitting to it in a survey carries social and legal risk and no benefit whatsoever.

So the plausible bias is *downward*. Twenty-seven per cent is a floor, not a ceiling.

■ INTERPRETATION

Two further things in that data, which cut in different directions.

Against the simple narrative: 15% of Scheduled Caste households and 22% of Scheduled Tribe households also reported practising untouchability. Caste is not a two-team game with clean villains. The people at the bottom of one ladder are frequently standing on someone else. Part 3, Chapter 7 explained why.

Against the "it is over" narrative: the figure for Brahmin households is 52%, and the inter-caste marriage rate is around 5%. Both of those are measurements of the present, taken with modern methods, published by mainstream institutions.

If you want one number to carry out of this entire series, it is 27% — and the knowledge that it is the number people were willing to say out loud.

The Crime Data

The numbers everyone quotes, with every honest caveat attached – including the ones the side quoting them leaves out.

The National Crime Records Bureau publishes annual figures for offences registered under the laws protecting Scheduled Castes and Scheduled Tribes. These numbers are cited constantly and understood rarely.

■ FACT

The registered case numbers are large and have been rising.

Cases of crime against Scheduled Castes rose from **42,793 in 2018** to **50,291 in 2020**. Uttar Pradesh consistently reported the highest number, with 12,714 cases in 2020.

Crimes against Scheduled Tribes rose from **10,064 in 2022** to **12,960 in 2023** – an increase of nearly 29% in one year.

On the processing of those cases: of roughly 50,000 SC cases in 2020, charge sheets had been filed in about 39,000, while investigation remained pending in around 19,700.

Now the caveats — all of them

■ WHY THESE NUMBERS ARE WEAK EVIDENCE, IN BOTH DIRECTIONS

Registered crime data measures the reporting system as much as the crime.

A rise can mean improvement. More police stations, more awareness of the law, more willingness to come forward, and better recording all raise the number without any change in underlying behaviour. A rising line can be a sign of a system working better.

Registration is not proof. A registered case is an allegation. Some are false; some are ordinary disputes filed under a stronger statute; some are genuine and fail for want of evidence. This is true of every crime category in every country.

The aggregation problem is real. A case is registered under these laws when the victim is SC or ST. That does not establish caste as the motive. In a country where a sixth of the population is SC, some proportion of ordinary crime will involve SC victims for reasons unconnected to caste.

And under-reporting is severe and runs the other way. The person deciding whether to file a complaint frequently depends on the accused's community for work, for water, for credit and for physical safety, and has to go to a police station that may be staffed by members of it. Every study of this subject finds substantial non-reporting.

■ INTERPRETATION

My honest position on this data — which will disappoint people who expected me to lean on it.

I do not think NCRB atrocity totals prove very much on their own, and I think both sides misuse them.

People who cite the raw numbers as proof of a worsening crisis are ignoring that better reporting inflates the same line. People who cite false cases as proof the whole thing is manufactured are ignoring that under-reporting is far larger than over-reporting and always has been.

What the data does establish is narrower and still substantial: that tens of thousands of cases serious enough to be registered under these specific statutes are filed every year, that the number is not falling, and that the state's own machinery is processing them in volume.

That is a floor on the phenomenon, not a measurement of it. If you want a measurement, Chapters 6, 8 and 9 are far better evidence — which is precisely why I have not built this part on the crime figures.

The Experiments

Identical CVs. Different surnames. Nothing else changed. This is the cleanest evidence that exists on the subject.

Everything so far has depended on somebody reporting something. This chapter does not.

A correspondence study works like this. Researchers write fictitious job applications that are identical in every respect — same degree, same marks, same experience, same language, same formatting. Then they change one thing: the name. And they send them to real employers advertising real jobs, and count who gets called for interview.

There is no victim to doubt, no memory to fade, no politics, no compensation, and no police station. The employers do not know they are in a study. The only variable is the one deliberately altered.

■ FACT

Thorat, Attewell and Rizvi, published in the *Economic and Political Weekly*, 2007.

Beginning in October 2005 and running for **66 weeks**, the researchers responded to job advertisements in national and regional English-language newspapers. The posts were entry-level positions in the **private sector** requiring a university degree.

Sets of applications were sent that were equivalent in qualifications and experience and differed only in the applicant's name — signalling upper-caste Hindu, Dalit or Muslim identity.

10

interview calls for an upper-caste Hindu name

6

for an identically qualified Dalit name

3

for an identically qualified Muslim name

Ten, six, three. Same degree, same marks, same experience. Different name.

■ INTERPRETATION

Four things about this result that matter enormously for the 2026 argument.

- 1. It is in the private sector.** Reservation does not operate there. This is the part of the economy that the abolition case describes as running on pure merit — and here, at the very first filter, before anyone has met anyone, merit is being overridden by a surname.
- 2. It is at the top of the labour market.** These were graduate jobs, in English, in cities. If discrimination survives among educated urban employers hiring degree-holders, the claim that it is confined to backward villages does not hold.
- 3. Class cannot explain it.** The applications were equally qualified. There was no income, no school ranking and no accent to differ on. The name was the only signal.
- 4. Muslim applicants did worst.** Three calls for every ten. This connects directly to Part 4 — the population that faces the sharpest labour-market penalty here is also the one excluded from Scheduled Caste status by the 1950 Order.

A NOTE ON WHAT THIS METHOD CANNOT DO

Correspondence studies measure the *first* filter — the decision to call someone for interview. They cannot tell you what happens afterwards, and they cannot tell you the employer's reasoning. An employer might be acting on prejudice, or on a belief about which candidates will fit a team, or on an assumption about English fluency attached to a name.

That distinction matters morally. It matters much less to the applicant, who does not get the call either way.

Similar audit methods have been applied in India to rental housing, with comparable findings — landlords responding differently to identical enquiries under different names.

The Sewers

One occupation. One statistic. It ends the argument about whether any of this is still happening.

Every argument in this book about the past can be contested. Sources have motives, memories drift, statistics measure systems. This chapter contains no such difficulty.

Manual scavenging is the manual handling of human excreta — cleaning dry latrines, and entering sewers and septic tanks by hand to clear blockages. It has been prohibited by law in India, most recently under legislation of 2013.

People are still doing it, and people are still dying doing it.

■ FACT

Around 97% of identified manual scavengers belong to Scheduled Castes.

Figures reported as of 2024 give **42,594 Scheduled Caste** persons identified as engaged in the practice, against **421 Scheduled Tribe** and **431 Other Backward Class** persons.

That is roughly ninety-seven per cent from one category comprising around a sixth of the population.

Stop and consider what kind of statistic that is.

It is not a survey. Nobody was asked their opinion. It is not a crime report, so there is no question of false complaints. It is not a historical account, so there are no missionaries and no colonial officials. It is a count of who does a particular job.

In 2024, the most degrading and dangerous work in India was being done almost entirely by one community. Not mostly. Almost entirely.

The deaths

■ FACT

Official figures — and the gap between them and independent counts.

Government-linked figures record **63 deaths in 2023** and **52 in 2024** of sanitation workers cleaning sewers or septic tanks. By mid-2025 the figure reported was **72**, including 10 in June alone.

The National Commission for Safai Karamcharis has recorded **471 deaths between 2019 and 31 October 2025**, and **1,313 sewer and septic tank deaths between 1993 and mid-2025**.

Independent counts are substantially higher. The Safai Karamchari Andolan recorded **116 deaths in 2024** against an official figure of 55, and **121 in 2025** against 46 officially. Its convenor, Bezwada Wilson, has said the official count is severely under-reported.

■ AND THE OFFICIAL POSITION

The government's stated position has been that there are no manual scavengers, and therefore no manual scavenging deaths.

The distinction relied upon is between "manual scavenging," defined narrowly, and "hazardous cleaning of sewers and septic tanks." Deaths are recorded under the second heading.

Whatever the legal merit of the distinction, its effect on the public record is to make a category of death disappear from the answer to a question about it.

■ INTERPRETATION

Why this chapter is the end of one particular argument.

The claim that caste discrimination is a historical matter, exaggerated by people with political motives, has to account for this.

Not a claim about the past. A job, being done now, in which one community out of thousands supplies about ninety-seven per cent of the workforce — and in which people suffocate to death every few days, in numbers the state and the activists cannot agree on because the state's own count is contested.

There is no reading of that which is compatible with a labour market allocating dangerous work by anything other than birth.

And there is a second point, which is the one I would put to the abolition side directly. Their proposal is that caste should be removed from official records. If caste is not recorded, this statistic cannot be produced. The 97% figure exists only because somebody counted by caste.

Deleting the category does not change who goes into the sewer. It changes whether anyone can prove it.

The Exaggeration Case, Tested

The seven arguments from Chapter 1, taken one at a time. Three of them survive.

ARGUMENT 1

"The sources are contaminated — colonial officials and missionaries had motives."

Correct as a general principle, and it is why this part avoids relying on them. But it does not touch the evidence presented here. The Travancore proclamations are the records of an Indian princely state. Mahad, Vaikom and Kalaram were Indian-led campaigns reported in the Indian press and litigated in Indian courts. The IHDS is an Indian research council with an American university. The correspondence study was run by Indian researchers on Indian employers.

VERDICT: Valid methodological warning. Does not apply to the case as built here.

ARGUMENT 2

"Demonstrable embellishment exists."

True, and Chapter 4 demonstrates it rather than denying it. Some widely circulated stories are not established, and should not be presented as established.

But note the scope of the win. It affects illustrations, not documents. Setting aside every contested story leaves the proclamations, the court cases, the tax records, the surveys, the experiments and the occupational counts untouched.

VERDICT: WINS. And wins less than it appears to, because the case never rested on the stories.

ARGUMENT 3

"Crime statistics measure reporting, not crime."

Correct, as Chapter 7 concedes at length. Registered-case totals are weak evidence, and I have declined to build on them for exactly this reason.

The reply is that under-reporting is larger than over-reporting, for structural reasons — but this is an argument about direction, not a rescue of the data.

VERDICT: WINS. NCRB totals should not be used as a measurement by anyone.

ARGUMENT 4

"Aggregation converts ordinary conflict into evidence of a system."

Also correct, and also conceded. A dispute between two people of different castes is not automatically a caste dispute, and national totals cannot separate the two.

This is a genuine and underrated methodological point, and the people who make it are usually more careful than the people who dismiss it.

VERDICT: WINS, on the crime data specifically. Does not reach Chapters 6, 8 or 9.

ARGUMENT 5

"Surveys measure question wording."

Generally a fair concern, and fatal to a lot of published survey work. It runs into a specific problem here.

The IHDS asked people to admit to something unlawful, socially disapproved and personally discreditable, with no benefit for saying yes. Wording effects on that kind of question push responses *down*. To argue the 27% figure is inflated, you would have to explain why a substantial number of households falsely confessed to practising untouchability.

VERDICT: FAILS against this particular survey, and fails badly, because the incentive runs the wrong way.

ARGUMENT 6

"Enormous change has happened and the language has not moved."

This is the strongest argument the sceptical side has, and it is right.

Untouchability is unlawful. Temple entry, road access and water access are legally settled questions. There are Dalit judges, chief ministers, industrialists and a President of India. Urban anonymity has dissolved enforcement mechanisms that were unbreakable in a village.

Describing 2026 in the vocabulary of 1926 is inaccurate, and the inaccuracy matters because policy is made for now.

The reply is not that nothing changed. It is that 27%, 5% inter-caste marriage, ten-six-three, and 97% are all measurements of *the present*, taken with modern methods. Change is real and incomplete, and both halves of that sentence are load-bearing.

VERDICT: WINS on the framing. Loses on the conclusion, because the present-day numbers exist.

ARGUMENT 7

"Every pre-modern society was brutal — singling out India is a political choice."

The premise is true and Part 3 said so. Roman slavery, European serfdom, hereditary aristocracies everywhere. India's hierarchy was probably not uniquely cruel by pre-modern standards.

The problem is that this is an argument about the past being deployed against a claim about the present. The others are gone. Ninety-seven per cent of manual scavengers in 2024 being from one category is not a fact about the Roman Empire.

And Part 3, Chapter 9 asked the better version of this question: not "was India uniquely bad" — probably not — but "why did India's system uniquely survive." That is a real and interesting question. This argument is not asking it.

VERDICT: True premise, irrelevant conclusion. It answers a comparative question nobody is asking.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Why does nobody quote the 27% figure?

It is the single strongest piece of evidence on the subject. It is from a mainstream survey, a large sample, and a perpetrator self-report. It should be in every discussion of caste in India.

It is barely cited by either side. The abolition side has an obvious reason. The retention side does not use it either — possibly because 15% of SC households and 22% of ST households also reported the practice, which complicates a simpler story.

2. Is a caste-blind system even measurable?

The 97% manual-scavenging figure exists because someone recorded caste. So does the ten-six-three result, which required knowing which names signalled what.

Remove caste from official records and both become impossible to produce. You would not have ended the pattern; you would have ended the ability to detect it. Any serious abolition proposal has to answer what replaces the measurement.

3. Why is discrimination worst in the sector with no reservation?

The correspondence study was conducted on private employers, where reservation has never applied. That is where the ten-six-three gap appears.

This is awkward for both sides. It undercuts the claim that reservation causes resentment which causes discrimination, since the effect is strongest where reservation is absent. And it undercuts the claim that reservation is a sufficient remedy, since it does not reach the sector where most jobs are.

4. Why do Muslim applicants do worse than Dalit applicants?

Three calls to six. The group facing the sharpest labour-market penalty in the best experiment we have is the one excluded from Scheduled Caste protection by the 1950 Order.

Almost no one in the 2026 argument has connected those two facts, though both were available.

5. What is the honest estimate of false cases?

Nobody knows, and both sides prefer it that way. The sceptical side implies the figure is large without producing it. The other side treats the question as illegitimate.

It is a perfectly legitimate question with a knowable answer, and the fact that no one has funded the study is itself informative.

6. Why is the strongest evidence the least emotional?

The material that moves people is Nangeli, the purified tank, the boy on the gunny sack. The material that actually establishes the case is a percentage from a household survey and a table of who works in sewers.

This is a general problem with public argument, not a problem with caste. The persuasive evidence and the reliable evidence are rarely the same evidence, and confusing them is how both sides end up defending things they did not need to defend.

7. What would falsify the claim that caste discrimination persists?

A fair question to put to my own side, so here is my answer. Inter-caste marriage rates rising to something like population-random. Correspondence studies returning no callback gap. The manual-scavenging workforce reflecting population shares. Untouchability self-reports near zero.

Those are measurable, and none of them is currently close. But naming them matters — a claim that nothing could disprove is not a claim.

8. And what would falsify the claim that it has ended?

Fairness requires the reverse question. The answer is that the four measures above are all currently in the wrong place, so the "it has ended" claim is already falsified on its own terms — unless one argues the measures are wrong, which requires an argument about measurement rather than about history.

9. Does establishing the injury settle the remedy?

No, and this is the most important limit on everything in this book.

Part 6 answers the question "did it happen and is it still happening." It says nothing about whether reservation is the right response, whether it works, or who should receive it. A proven disease does not validate a particular medicine.

That is Part 11, and readers who take this part as settling the reservation argument will have misread it in exactly the way I have spent six books asking people not to.

The Verdict

The scorecard first, as evidence. Then my judgement, clearly marked as judgement.

THE EVIDENCE SCORECARD FOR PART 6

Question	Status	Best current answer
Were lower castes barred from public roads, water and temples?	Settled	Vaikom, Mahad, Kalaram, 1936 Proclamation
Were there discriminatory taxes and clothing prohibitions?	Settled	Travancore records; 46-year Upper Cloth conflict
Is the Nangeli story established history?	No	Oral tradition; disputed by historians
Did education or wealth exempt a person?	No	Ambedkar, Baroda, 1917
Is untouchability practised today?	Yes	27% of households admit it (IHDS 2011–12)
Do NCRB totals measure the phenomenon?	No	They measure the reporting system
Does caste affect hiring where reservation does not apply?	Yes	10 : 6 : 3, identical CVs, private sector
Is dangerous degrading work allocated by caste now?	Yes	~97% of manual scavengers are SC (2024)
Has there been enormous improvement?	Yes	Legal, political and urban change is real
Does any of this prove reservation works?	No	Different question — Part 11

■ MY VERDICT – THIS IS OPINION, NOT EVIDENCE

On the question you asked me to investigate.

Did caste discrimination really happen? Yes, and it is not a close question. The evidence is Indian, contemporaneous, legal and in several cases produced by the perpetrating side. Twenty months of protest to walk on a road. A public tank purified with cow dung after Dalits drank from it. A ten-year court case about that tank. A proclamation required to let people into temples. A man with a Columbia doctorate unable to rent a room.

Has it been exaggerated? In places, yes — and I have shown one case in detail rather than waiting to be caught. Specific stories have grown in the telling. Crime totals are routinely misused. The vocabulary of 1926 is applied to 2026 in ways that are simply inaccurate.

Is the exaggeration the substance? No. And this is where the sceptical case fails. Remove every contested story, discard the NCRB data entirely, accept every methodological objection in Chapter 1, and you are still holding: 27% of households admitting to untouchability in 2011–12; around 5% inter-caste marriage; ten interview calls against six and three for identical CVs in the private sector; and 97% of manual scavengers from one category in 2024.

Those four numbers were produced by mainstream institutions using standard methods, and every one of them measures the present.

What I think the honest summary is: the historical injury is established beyond reasonable dispute. The improvement since 1950 is enormous and is routinely understated by the side that ought to be proudest of it. And the residue is not a memory — it is measurable, current, and concentrated exactly where you would predict: in marriage, in hiring, and in who cleans the sewer.

WHAT THIS VERDICT DOES NOT DO

It does not tell you that reservation works, or that it is well designed, or that it reaches the right people, or that it should continue in its present form. I have not examined any of those questions yet and this part contains no evidence about them.

An injury being real is the first of five questions from Part 1. It is a necessary condition for a remedy and nowhere near a sufficient one.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 6 – THE EVIDENCE FILE

1. **27% of Indian households admitted practising untouchability.** IHDS-II, 2011–12, over 42,000 households. Not victims — perpetrators, describing themselves, about something unlawful with no benefit for saying yes. The bias runs downward, so that is a floor. Brahmin households 52%; SC households 15%.
2. **The negative-space proofs cannot be argued with.** You do not campaign twenty months to walk on a road that is open (Vaikom). You do not purify a tank with cow dung unless you believe it was defiled (Mahad, 1927). You do not proclaim a right that already exists (Travancore, 1936).
3. **Ten, six, three.** Identical CVs sent to private employers over 66 weeks. Ten interview calls for an upper-caste name, six for a Dalit name, three for a Muslim name. Graduate jobs, English newspapers, no reservation in that sector at all.
4. **Around 97% of manual scavengers are Scheduled Caste.** 42,594 SC against 421 ST and 431 OBC, reported 2024. Not a survey, not a crime report — a count of who does the job. Dozens die in sewers every year, and the state and the activists cannot agree on how many.
5. **Some of it is exaggerated, and the exaggeration is not the substance.** The Nangeli story is not established history and should not be presented as such. Crime totals measure reporting. But strip out every contested story and every weak statistic, and the four numbers above are still standing — and all four measure the present, not the past.

Coming next

PART 7 — THE GREAT MINDS ARGUE

Let them speak for themselves.

Real quotes, full context, no cropping. Ambedkar on the annihilation of caste and on why he came to distrust political safeguards without social change. Gandhi, and how his position moved across thirty years — including the parts his admirers leave out. Phule and Periyar. Vivekananda, quoted by everyone and read by few. Savarkar's written attacks on caste, and exactly where he stopped. Golwalkar and the RSS position, then and now. Nehru, Patel, Lohia, Kanshi Ram, Mayawati. And the modern voices on both sides — Kancha Ilaiah, Chandrabhan Prasad, Ashwini Deshpande, Arvind Panagariya, Yogendra Yadav, and Thomas Sowell on quotas worldwide.

Each figure gets a strongest point and a weakest point. Nobody is available to be borrowed cheaply.

A closing thought: the most useful thing I found in this part was not any single number. It was that the reliable evidence and the moving evidence are almost never the same evidence. Nobody makes artwork about an occupational table. Which is exactly why you can rely on it. — L.S.

Sources & Notes

Every factual claim in Part 6, and where it comes from.

The documented events

Channar Lahala / Upper Cloth Revolt, Travancore, c. 1813–1859, resolved substantially by royal proclamation in 1859. · Vaikom Satyagraha, 30 March 1924 – 23 November 1925; participation and imprisonment of E. V. Ramasamy (Periyar); Gandhi's visit in 1925. · Mahad Satyagraha, 20 March 1927 — Ambedkar leads thousands to the Chavdar tank; subsequent ritual purification of the tank by caste Hindus; litigation concluding in favour of the Dalit claimants in the Bombay High Court in 1937; public burning of the Manusmriti at Mahad on 25 December 1927. · Kalaram Temple Satyagraha, Nashik, from 2 March 1930, continuing more than five years. · Guruvayur Satyagraha, 1931–32, led by K. Kelappan. · Temple Entry Proclamation, Travancore, 12 November 1936.

The breast tax

Discriminatory poll taxation in Travancore, including the levy recorded as *mulakkaram*, appears in the state's fiscal records; several historians read it as a head tax on members of certain communities rather than a levy assessed on the body. The Nangeli narrative is transmitted through local oral tradition and has been questioned by historians on grounds of documentary corroboration. This book treats the taxation and the clothing prohibition as established and the specific incident as contested.

Ambedkar's testimony

B. R. Ambedkar, *Waiting for a Visa* — autobiographical notes covering the journey to Masur (1901), the school at Satara (the gunny sack; water poured by the peon; the barber), and Baroda (1917), where he was unable to obtain lodging and was forced to leave a Parsi inn after his identity became known.

The survey

India Human Development Survey II (IHDS-II), 2011–12, conducted by the National Council of Applied Economic Research with the University of Maryland; over 42,000 households, nationally representative. Question on family practice of untouchability with a follow-up on kitchen and utensil access. Combined responses: 27% of households nationally; 30% rural, 20% urban. By community: Brahmin 52%, OBC 33%, other forward castes 24%, ST 22%, SC 15%. By religion: Hindu 30%, Sikh 23%, Muslim 18%, Christian 5%, Jain 35%. The same survey found approximately 5% of marriages to be inter-caste.

Crime data

National Crime Records Bureau. Crimes against Scheduled Castes: 42,793 registered cases in 2018 rising to 50,291 in 2020; Uttar Pradesh highest with 12,714 in 2020; of roughly 50,200 cases in 2020, charge sheets filed in about 39,075 with investigation pending in about 19,696. Crimes against Scheduled Tribes: 10,064 in 2022 rising to 12,960 in 2023, an increase of 28.8%. This book treats registered-case totals as a floor on the phenomenon rather than a measurement of it.

The correspondence study

Sukhadeo Thorat, Paul Attewell and Firdaus Rizvi, "The Legacy of Social Exclusion: A Correspondence Study of Job Discrimination in India," *Economic and Political Weekly*, 13 October 2007. Fieldwork from October 2005 over 66 weeks; responses to advertisements in national and regional English-language newspapers for entry-level private-sector posts requiring a university degree; equivalently qualified applications differing only in the name. Result: for every ten interview invitations to an upper-caste Hindu name, six to a Dalit name and three to a Muslim name. Comparable audit methods have been applied to rental housing in India with similar findings.

Manual scavenging

Composition as reported for 2024: 42,594 Scheduled Caste, 421 Scheduled Tribe and 431 Other Backward Class persons identified as engaged in the practice — approximately 97% Scheduled Caste. · Deaths from hazardous cleaning of sewers and septic tanks: 63 in 2023 and 52 in 2024 on government-linked figures, with 72 reported by mid-2025 including 10 in June. National Commission for Safai Karamcharis: 471 deaths between 2019 and 31 October 2025, and 1,313 between 1993 and mid-2025. · Safai Karamchari Andolan independent counts: 116 deaths in 2024 against an official 55, and 121 in 2025 against an official 46; Bezwada Wilson has stated that official counts are severely under-reported. · The government's position in Parliament has distinguished "manual scavenging" from "hazardous cleaning," with the consequence noted in Chapter 9. · Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013.

A note on what is missing — and on corrections

Part 6 establishes only that the injury occurred and that measurable discrimination persists. It makes no claim about whether reservation is an effective or appropriate remedy, who should receive it, or how it has performed. Those are Parts 11, 12 and 14. Anything marked **CONTESTED CLAIM** stays contested until evidence is produced — including claims made by people I might agree with.

Where official and independent counts of sewer deaths differ, both are given rather than a preferred figure. NCRB series are cited to the most recent year located for each category and are not directly comparable across categories. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART SIX

THE RESERVATION FILES The Evidence File

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 7 – The Great Minds Argue: let them speak for
themselves
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART SEVEN

THE GREAT MINDS ARGUE

Real quotes, full context, no cropping. Phule, Vivekananda, Ambedkar, Gandhi, Periyar, Savarkar, Nehru, Lohia, Kanshi Ram — and what each of them actually said.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

Nobody Is For Sale

The most common move in the Indian caste argument is to produce a dead man and make him agree with you.

Ambedkar is quoted by people who want reservation strengthened and by people who want it ended. Gandhi is quoted by integrationists and traditionalists. Vivekananda is quoted by everyone. Nehru's 1961 letter is one of the most circulated documents in the anti-reservation case — and his own government passed the amendment that made caste-based reservation possible.

Not because these men were incoherent, but because they were **thinkers who changed their minds over long lives** — and because a paragraph can be cut in a way that reverses a page.

"If a historical figure agrees with you about everything, you are reading a quotation. If he disagrees with you about something, you are reading the man."

So this part is built to make cropping harder. Every figure gets the same treatment:

- ▶ **What they actually said** — quoted at length, with the surrounding sentences where those matter.
- ▶ **Their strongest point** — what they got right that is hardest to argue with.
- ▶ **Their weakest point** — the thing their admirers skip. Every one of them has one, including the ones I admire.
- ▶ **Who quotes them now, and whether they are entitled to.**

Two warnings. First, I have deliberately included people whose politics are opposed to each other and, in some cases, to mine. Savarkar built a temple open to Dalits with Dalit priests in 1931. Periyar said things about religion that will offend many readers. Nehru wrote a letter that is the best gift the abolition case has ever received. All of it is here, because a book that only quotes the convenient people is a pamphlet.

Second, and this is the point of the whole part: **the most interesting disagreements are not between the sides — they are inside them.** The sharpest critique of the Poona Pact came from Kanshi Ram. The sharpest argument that government jobs are the wrong goal comes from a Dalit writer. Read for that; it is where the real thinking is.

— Lovepreet Singh

July 2026

Contents

■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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Four ways a sentence gets weaponised, and how to check

2 Jyotirao Phule

The man who dedicated his book to American abolitionists

3 Swami Vivekananda

Quoted by everyone, read by almost nobody

4 B. R. Ambedkar

What he actually wanted, including the parts both sides skip

5 M. K. Gandhi

Thirty years of a position moving — traced honestly

6 The 1936 Exchange

The speech that was cancelled, and the argument that followed

7 Periyar

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Everything in this book, compressed

How To Read A Quote

Four techniques by which a sentence is turned into a weapon. Once you can see them, you cannot unsee them.

Before any of the figures, a short toolkit. These four moves account for almost every misleading quotation you will encounter on this subject, in both directions.

1. The amputation

Half a sentence, with the half that qualifies it removed. Vivekananda praising Hinduism's teaching on human dignity is a real quotation. The same sentence continues with a devastating clause about the same religion trampling the poor. Both halves are his. Whichever half you meet on its own has been amputated.

2. The frozen clock

Taking a position a person held at forty and presenting it as their view for life. Gandhi's writing on varna in 1921 and his conduct in 1946 are not the same position, and it is not honest to quote the first as though the second never happened. The same applies to figures on the other side.

3. The private letter as manifesto

Nehru's 1961 letter to chief ministers is real and says what its users say it says. It is also one document written in a specific administrative context by a man whose government had already amended the Constitution to enable caste-based reservation. A letter is evidence of what someone thought that week.

4. The borrowed slogan

Taking a phrase from someone who would have opposed your conclusion. When a campaign to abolish reservation adopts "Educate, Agitate, Organise" — the slogan of the man who wrote the reservation provisions into the Constitution — that is not a quotation. It is a costume.

THE TEST

Three questions for any quotation you are offered.

When did they say it? Early, middle or late in a long career — and did they later say the opposite?

What came immediately after? The most common location of the missing qualifier is the very next sentence.

What did they actually do? Conduct is harder to crop than text. Ambedkar burned the Manusmriti and drafted a Constitution. Savarkar built a temple with Dalit priests. Gandhi refused to attend weddings that were not inter-caste. Nehru's government passed the First Amendment. Actions are the control on words.

Jyotirao Phule

1827–1890. *The founder of the modern anti-caste movement — and the man Ambedkar named as one of his three teachers.*

Phule began before almost anyone. In 1848, with his wife Savitribai, he opened a school for girls in Pune — at a time when educating girls, and in particular girls of low caste, was regarded as an outrage.

In 1873 he published *Gulamgiri* — "Slavery" — and founded the Satyashodhak Samaj, the Truth-Seekers' Society.

■ FACT

He dedicated *Gulamgiri* to the American abolitionists.

The dedication is to the good people of the United States, in admiration of their devotion to the cause of ending slavery — and in the hope that his own countrymen would take their example in emancipating those held down at home.

Consider what that tells you about how he understood the problem. In 1873, an Indian writer looked at American slavery and at Indian caste and concluded they were the same category of thing. That framing — caste as a system of bondage rather than a religious ordering — begins here.

The argument he made

Phule's most quoted lines are about education, and they form a chain:

PHULE — ON EDUCATION

"Without education, wisdom was lost; without wisdom, morals were lost; without morals, development was lost; without development, wealth was lost; without wealth, the Shudras were ruined. So much devastation was caused by the lack of education alone."

It is a causal chain, and it puts education at the head of it. Not politics, not law, not scripture — schooling.

STRONGEST POINT

He identified the mechanism before anyone else: exclusion from literacy is what makes every other exclusion permanent. A group that cannot read cannot argue, cannot litigate, cannot record its own history, and cannot enter any occupation that requires documents.

And he acted on it forty years before mass politics existed, at real personal cost. His family disowned him over the girls' school.

WEAKEST POINT

His historical framework — that India's hierarchy originated in the conquest of indigenous peoples by Aryan invaders — relies on the racial reading of history that Part 2 showed has been substantially abandoned.

The moral case does not depend on it. But a great deal of anti-caste writing after him inherited that framework, and it has been a liability ever since.

■ INTERPRETATION

Why Phule matters for the 2026 argument specifically.

Because his remedy was **education, not quotas** — and because he is claimed enthusiastically by people who quote him for exactly that reason.

The honest reading: Phule wanted access, and in 1873 the binding constraint on access was that schools would not admit certain children at all. He built schools because schools did not exist for those children. What he would have advocated once schools admitted everyone but employment did not is not something anyone can know.

What can be said is that the first great anti-caste reformer identified education as the lever, and that this remains the most serious argument the abolition side makes. Part 12 gives it a full hearing.

Swami Vivekananda

1863–1902. *The most quoted and least read figure in this entire argument.*

Vivekananda is claimed by Hindu traditionalists, by reformers, by nationalists and by anti-caste activists. All of them can produce a genuine quotation. That is the whole problem, and it is worth seeing why.

VIVEKANANDA – THE SENTENCE THAT CONTAINS BOTH SIDES

"No religion on earth preaches the dignity of humanity in such a lofty strain as Hinduism, and no religion on earth treads upon the necks of the poor and the low in such a fashion as Hinduism."

One sentence. Two clauses. Each is regularly quoted without the other.

He was blunter elsewhere:

VIVEKANANDA – ON WHAT WAS DONE

"Our aristocratic ancestors went on treading the common masses of our country under foot till they became helpless, till under this torment the poor, poor people nearly forgot that they were human beings."

And the other direction

He also argued repeatedly that the remedy was not to pull anyone down but to raise everyone up — that the solution to a system with a high and a low was to elevate the low to the level of the high, and that the answer was more Brahminhood rather than less.

■ INTERPRETATION

Why that formulation satisfies nobody, on examination.

"Raise everyone to the top rather than levelling down" sounds generous, and it is meant generously.

But look at what it concedes. It keeps the ladder, and it keeps the identity of the top rung as the standard of value. A society in which everyone is to become a Brahmin is a society that has agreed Brahmin is the right thing to be.

The reformist reading: he was attacking hereditary privilege in the only language his audience could hear, and calling for universal access to what had been restricted.

The critical reading: he wanted to universalise the ideal rather than question it, which leaves the ranking intact and simply promises everyone the good seat eventually.

Both are defensible readings of the same man.

STRONGEST POINT

He said the harshest things about caste oppression from *inside* the tradition, at a time when defending it was the default. "Treads upon the necks of the poor" is not a sentence a defender writes.

He also insisted that religion which ignores the hungry is worthless — a line that made him useful to reformers for a century.

WEAKEST POINT

He never proposed a mechanism. Condemnation without a programme is exactly what allows both sides to claim him: there is nothing concrete to disagree with.

And "raise everyone to the top" is a formula that has never, anywhere, dismantled a hierarchy.

B. R. Ambedkar

1891–1956. *The architect of everything under discussion – and the man most misrepresented by both sides.*

Ambedkar's central text on this subject is *Annihilation of Caste*, written in 1936. It is short, savage and considerably more radical than either side's version of him.

The core argument

ANNIHILATION OF CASTE – 1936

"Caste is not a division of labour. It is a division of labourers."

"Turn in any direction you like, caste is the monster that crosses your path. You cannot have political reform, you cannot have economic reform, unless you kill this monster."

"You cannot build anything on the foundations of caste. You cannot build up a nation, you cannot build up a morality. Anything that you will build on the foundations of caste will crack and will never be a whole."

The first of those is the sentence that demolishes the "varna was just a division of work" argument from Part 2, in eleven words, and it was written ninety years ago.

The remedy he actually named

This is the part almost nobody quotes, and it should be the most quoted line in the entire debate.

ANNIHILATION OF CASTE – THE REMEDY

"The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste."

■ INTERPRETATION

Read that against Part 3, and then against 2026.

Part 3 concluded, from the mechanism, that endogamy is the lock that holds caste in place and that everything else is downstream of it. Ambedkar reached the same conclusion in 1936 without genetics, without survey data, and without ninety years of hindsight.

Now put it next to the present. Inter-caste marriage in India remains at roughly 5%. And the national argument in 2026 — on both sides — is about examination cut-offs.

The man who designed the constitutional provisions said in writing that they were not the solvent. Neither side quotes him on it. Both find it inconvenient for the same reason: it points at a private practice that no policy touches.

On social versus political reform

AMBEDKAR — ON PRIORITY

"Political tyranny is nothing compared to social tyranny, and a reformer who defies society is a more courageous man than a politician who defies government."

And the warning at the end

On 25 November 1949, presenting the draft Constitution, he made a speech that is quoted heavily by everyone and understood by very few.

CONSTITUENT ASSEMBLY, 25 NOVEMBER 1949

"On the 26th of January 1950, we are going to enter into a life of contradictions. In politics we will have equality and in social and economic life we will have inequality... How long shall we continue to live this life of contradictions? How long shall we continue to deny equality in our social and economic life?"

"Bhakti in religion may be a road to the salvation of the soul. But in politics, Bhakti or hero-worship is a sure road to degradation and to eventual dictatorship."

"However good a Constitution may be, if those who are implementing it are not good, it will prove to be bad."

And on 13 October 1935, at Yeola, having spent two decades trying to reform Hindu society from within, he announced: **"I was born a Hindu but I will not die a Hindu."** He converted to Buddhism in 1956, weeks before his death.

STRONGEST POINT

He identified the actual mechanism — endogamy — ninety years before the genetic and survey evidence confirmed it, and he said plainly that political safeguards were not a substitute for social change.

He also refused to let his own side off. His demand was the annihilation of caste, not a better position within it.

WEAKEST POINT

He never resolved the tension in his own programme. He argued that caste must be annihilated and that the remedy was intermarriage — and then built a constitutional architecture that requires the state to record caste permanently and distribute by it.

He was aware of the problem. He did not solve it. Anyone who cites him on either side has to account for both halves.

M. K. Gandhi

1869–1948. A position that moved a very long way over thirty years. Both endpoints are quoted; the movement between them almost never is.

The honest account of Gandhi on caste requires dates, because quoting him without one is close to meaningless.

The early position — 1920s

In the early 1920s Gandhi defended *varnashrama* explicitly. He argued that the four-fold order was a sound principle of social organisation, that hereditary occupation restrained ambition and competition, and that Hindu society had survived because of it. He distinguished this sharply from untouchability, which he condemned from the beginning and without qualification.

That distinction — *varna good, untouchability evil, caste as practised corrupt* — is the position from which he started.

The middle — 1932 to 1936

- ▶ **1932:** the fast against separate electorates, the Poona Pact, and the founding of the Harijan Sevak Sangh. He begins using "Harijan" — "people of God" — a term Ambedkar rejected as patronising, on the grounds that it named its subjects by someone else's charity.
- ▶ **1936:** he replies in *Harijan* to *Annihilation of Caste*, defending varna as an ideal while accepting that caste as practised had become indefensible. Ambedkar replies in turn. Chapter 6 covers the exchange.

The late position — 1940s

■ FACT

By the mid-1940s he had moved to a position his younger self would have rejected.

He came to describe caste, in so far as it implies distinctions of status and hereditary rank, as an evil to be removed rather than an institution to be purified.

And he acted on it in the most direct way available: he announced that he would not attend or bless any wedding unless one of the two parties was a Harijan.

That is not a rhetorical shift. It is an intervention aimed precisely at the endogamy lock — the same target Ambedkar had named in 1936.

STRONGEST POINT

He put untouchability at the centre of the national movement when he could easily have left it out, and he took real political risk for it — including a fast that nearly killed him and sustained hostility from orthodox Hindus.

And he changed his mind, publicly, over thirty years, in the direction of his critics. That is rarer than it sounds.

WEAKEST POINT

He spent two decades defending a framework that his own later position abandoned, and during those decades his enormous authority was a shield for it.

And the 1932 fast, whatever its motives, placed Ambedkar in an impossible position — as Part 5 set out. Admirers of Gandhi rarely acknowledge how that looked from the other chair.

■ INTERPRETATION

The thing to notice about the trajectory.

Gandhi's position moved steadily *towards* Ambedkar's over thirty years. It never arrived, but the direction is not ambiguous.

Which makes quoting the 1921 Gandhi against reservation a particularly clear example of the frozen clock from Chapter 1. It is quoting the man at the point in his life when he was most wrong by his own later standard.

The 1936 Exchange

A speech that was never delivered, a conference that was cancelled, and the most important argument in modern Indian thought.

In 1936 a Lahore organisation called the Jat-Pat Todak Mandal — the Society for the Abolition of Caste, run by reform-minded caste Hindus — invited Ambedkar to deliver its annual presidential address.

They asked to see the text in advance. When they read it, they asked him to remove passages — in particular those arguing that caste could not be destroyed without destroying the religious authority that sanctioned it, and his statement that he had no intention of remaining a Hindu.

He refused to alter a word. The conference was cancelled.

He then published the undelivered speech at his own expense. It became *Annihilation of Caste*.

An organisation dedicated to abolishing caste cancelled a conference rather than let a Dalit say what abolishing caste would require.

The exchange that followed

Gandhi reviewed the published text in *Harijan*. His response, in essence:

- ▶ That Ambedkar's indictment of caste as practised was largely justified.
- ▶ That he was wrong to judge a religion by its worst adherents rather than by its ideals — a religion should be assessed by its best, not its degenerate, form.
- ▶ That varna properly understood was not the same as caste as practised, and remained a sound principle.

Ambedkar's reply, printed in later editions, is one of the sharpest passages he ever wrote. Its core:

- ▶ That a religion must be judged by what it authorises and what its adherents actually do, not by an ideal version available only to its defenders.
- ▶ That the distinction between varna and caste is a distinction without a difference in practice, since the practice is the only thing anyone lives under.
- ▶ That reform proposed by those who benefit from a system, on terms acceptable to them, is not reform.

■ INTERPRETATION

Why this exchange is still the whole argument.

Strip away the names and it is a disagreement about how to judge an institution.

Gandhi's principle: judge a tradition by its ideal, and reform it towards that ideal from within. Anything else discards two thousand years of accumulated moral resource because of what its worst practitioners do.

Ambedkar's principle: judge a tradition by its effects on the people at the bottom of it. An ideal that has never once, in two millennia, produced the behaviour it recommends is not an ideal. It is an alibi.

Every argument in 2026 about whether varna vyavastha was "really" about work or about birth is a rerun of this exchange, usually by people who have read neither text.

And notice which one of them changed his mind afterwards. By the 1940s Gandhi's stated position had moved substantially towards Ambedkar's — which is the strongest possible verdict on who won.

Periyar

1879–1973. *The most radical figure in this book, and the one I have found hardest to write about fairly.*

E. V. Ramasamy — universally known as Periyar, "the great one" — went further than anyone else in this part, and he is the reason this chapter exists rather than a paragraph.

What he did

- ▶ **1924:** travelled from Tamil country to Travancore to join the Vaikom Satyagraha, the twenty-month campaign for road access covered in Part 6. He was imprisoned for it, and is remembered there as Vaikom Veerar — the hero of Vaikom.
- ▶ **1925:** left the Congress and founded the Self-Respect Movement, arguing that political independence without social equality would simply transfer power from British hands to Brahmin hands.
- ▶ He promoted self-respect marriages conducted without priests, Sanskrit or religious ritual — later given legal recognition in Tamil Nadu.
- ▶ He argued for women's right to divorce, to property and to contraception at a time when almost nobody in Indian public life did.

What he said

PERIYAR — ON RELIGION

"He who created god was a fool. He who propagates god is a scoundrel. He who worships god is a barbarian."

That is a real quotation, said in public, repeatedly, and it will offend a very large number of readers of this book. I have printed it because leaving it out would be exactly the cropping this part exists to prevent.

STRONGEST POINT

He was right about the sequencing, and events proved him right. He argued that independence without social reform would leave the existing hierarchy intact under a new flag. Look at the composition of Indian elite institutions in 1947 and in 1980 and judge for yourself.

He also produced the most durable practical results of anyone in this part. Tamil Nadu's reservation system, its non-Brahmin political settlement, and its comparatively strong social indicators are downstream of his movement — and Part 1 noted that the state runs 69% reservation without the institutional collapse its opponents predict.

WEAKEST POINT

The rhetoric. Attacking a system of privilege and attacking the people born into it are different projects, and he did not always keep them apart. Language aimed at a community rather than a structure has consequences he was not always careful about.

And his atheism was not incidental — it was central to his programme, which means his movement offered nothing to the very large number of people who wanted dignity without abandoning their faith. That is a serious limit on a mass strategy.

■ INTERPRETATION

The comparison that makes Periyar useful.

Gandhi tried to reform Hinduism from inside. Ambedkar left it. Periyar attacked it from outside and built a political movement that captured a state.

Three strategies, three outcomes, one country. Anyone arguing about what "should" have been done has three real experiments available and usually cites none of them.

Savarkar, Golwalkar, and the RSS Today

The Hindutva positions on caste – including several that surprise people on both sides.

This chapter will annoy readers in both directions, which is usually a sign it is roughly right.

V. D. Savarkar, 1883–1966

■ FACT

Savarkar named seven "shackles" binding Hindu society, and campaigned against all of them.

The seven, in his formulation: **sparshabandi** (untouchability), **rotibandi** (prohibition on inter-caste dining), **betibandi** (prohibition on inter-caste marriage), **vyavasayabandi** (prohibition on following another caste's occupation), **vedoktabandi** (prohibition on performing Vedic rites), **sindhubandi** (prohibition on sea travel) and **shuddhibandi** (prohibition on reconversion).

Note that the second and third are precisely the commensality and connubium walls identified in Part 3 as the load-bearing structure of caste.

■ FACT

The Patitpavan Mandir, Ratnagiri, 1931.

During his internment at Ratnagiri from 1924 to 1937, when he was barred from political activity, Savarkar organised large-scale inter-caste dining and built a temple open to all castes including untouchables – and where the priesthood included Dalits.

This earned him sustained hostility from the local Brahmin community. He also argued that scriptures including the Manusmriti were human productions, bound to their context, which should evolve or be discarded as society moved on.

He wrote that he felt the need to rebel against caste discrimination and untouchability as strongly as against foreign rule.

STRONGEST POINT

He aimed at the right targets. Inter-dining and intermarriage are the mechanism, not the symptoms, and he said so in 1930s Maharashtra at real social cost. A temple with Dalit priests in 1931 was not a gesture; it was a confrontation.

WEAKEST POINT

The critique is about *why*. His reform work is concentrated in the period when he was legally barred from politics, and his stated framing was Hindu consolidation — a divided Hindu society is a weak one. On that reading caste reform is instrumental to national strength rather than owed to the people harmed.

Critics also note that a programme of unification does not necessarily require redistribution, and that Savarkar's movement produced no equivalent of Shahu Maharaj's 1902 quota.

M. S. Golwalkar, 1906–1973

Golwalkar's *Bunch of Thoughts* (1966) takes a very different line. It presents the four-fold order through the Purusha Sukta image from Part 2 — society as a single organism with head, arms, thighs and feet — and treats that arrangement as a description of organic social harmony rather than as a hierarchy to be dismantled.

This is the position that critics have in mind when they describe Hindutva as accommodating caste, and it is a fair characterisation of that text.

And the RSS position now, which has moved

■ FACT

The organisation's public position on reservation has shifted, visibly and recently.

September 2015, on the eve of the Bihar assembly election, Mohan Bhagwat called for a committee "of people genuinely concerned for the interest of the whole nation" to decide which categories require reservation and for how long. The remark became a major electoral controversy.

2023: Bhagwat argued that if sections of society had suffered discrimination for two thousand years, those who did not face it could accept some inconvenience for two hundred more.

2024: he stated that reservations should continue as long as they are needed, and that whoever has been given reservation should keep it as long as societal inequality exists.

Internal disagreement is documented: in 2015 the RSS ideologue M. G. Vaidya said publicly that reservations should be abolished.

■ INTERPRETATION

What this sequence tells you, and it is not what either side says.

To those who say Hindutva is straightforwardly pro-caste: Savarkar's programme targeted intermarriage and inter-dining directly, and the current RSS position on reservation is more explicitly supportive than Nehru's 1961 private position was.

To those who say Hindutva has always supported reservation: the 2015 statement happened, Vaidya's happened, and Golwalkar's text says what it says. The position has changed, which is different from having always been held.

And the most useful observation: the 2015 remark cost votes, and the position hardened towards support afterwards. Whatever else that demonstrates, it demonstrates that reservation now has a political constituency large enough to discipline the country's most powerful organisation. Part 14 returns to what that means for anyone proposing abolition.

Nehru, Patel and Lohia

The letter that the abolition case is built on, and the socialist who proposed sixty per cent thirty years before Mandal.

Jawaharlal Nehru — the 1961 letter

This is the single most circulated document in the Indian anti-reservation case, and it deserves to be printed in full rather than paraphrased.

NEHRU TO CHIEF MINISTERS, 27 JUNE 1961

"I dislike any kind of reservation, more particularly in services. I react strongly against anything which leads to inefficiency and second rate standards. I want my country to be a first-class country in everything."

"But if we go in for reservations on communal and caste basis, we swamp the bright and able people and remain second-rate or third-rate. I am grieved to learn of how far this business of reservation has gone based on communal considerations. It has amazed me to learn that even promotions are based sometimes on communal or caste considerations. This way lies not only folly, but disaster. Let us help the backward groups by all means, but never at the cost of efficiency."

Letters to Chief Ministers 1947–1964, Vol. 5, Oxford University Press, 1989, pp. 456–7

It says what it is said to say. There is no cropping here and no missing qualifier. Nehru disliked reservation, said so, and worried about efficiency.

And the context that is always omitted

■ FACT

Nehru's own government amended the Constitution to make caste-based reservation possible.

In 1951 the Supreme Court struck down the Madras communal order — the descendant of the 1921 arrangement described in Part 5 — as unconstitutional.

Nehru's government responded with the **First Amendment to the Constitution, 1951**, which inserted Article 15(4), expressly permitting the state to make special provision for socially and educationally backward classes and for Scheduled Castes and Tribes.

That amendment is the legal foundation of caste-based reservation in education in India. It was passed by the government of the man who wrote the letter above.

■ INTERPRETATION

Both facts are true, and the combination is the interesting thing.

The tidy versions are both false. Nehru was not secretly an opponent whose views were suppressed; he legislated the opposite of his stated preference. And he was not an enthusiast; the letter is unambiguous.

What he actually was is a man who disliked a policy, believed it was necessary anyway, implemented it, and privately worried about it for the rest of his life.

That is an ordinary and honourable position, and it is unavailable to either side, which is why neither quotes both halves. Anyone who cites the letter without the First Amendment is doing the private-letter-as-manifesto move from Chapter 1.

Vallabhbhai Patel

Patel chaired the Advisory Committee on Minorities and Fundamental Rights in the Constituent Assembly, and its subcommittee's work led to the removal of separate electorates and reserved seats for religious minorities while retaining them for Scheduled Castes and Tribes.

That distinction — safeguards for caste, not for religion — is the reason India's reservation system is caste-based rather than minority-based, and it traces to decisions taken in that committee.

Ram Manohar Lohia, 1910–1967

■ FACT

Lohia proposed 60% reservation for backward groups decades before the Mandal Commission.

The socialist leader argued for reserving around sixty per cent of positions for backward castes, Scheduled Castes and Tribes, women and minorities — a figure and a framework far in advance of what was implemented in 1990.

His slogan was *jaati todo* — break caste — and he insisted that a socialism which ignored caste in India was not socialism at all, because the actual units of Indian inequality were castes rather than economic classes.

LOHIA'S STRONGEST POINT

He identified the flaw in the Indian left before it became obvious: a class analysis imported from Europe cannot describe a society where the exploited and the exploiter frequently belong to the same economic class and different castes.

And he included women in the same demand, in the 1950s.

LOHIA'S WEAKEST POINT

He never explained how a 60% quota would coexist with any meaningful notion of equality of opportunity, and his own movement fragmented along exactly the caste lines it was meant to dissolve.

The parties descended from him became vehicles for specific caste blocs — the outcome Chapter 13 asks about.

Kanshi Ram and Mayawati

The sharpest critique of Ambedkar's settlement came not from its opponents but from the movement that inherited it.

Kanshi Ram, 1934–2006, is the most under-discussed figure in this argument, and he made a point that neither side in 2026 has absorbed.

What he built

- ▶ **1971:** BAMCEF — an organisation of Scheduled Caste, Tribe, OBC and minority government employees. Note the base he chose: people who already had reserved jobs, whom he organised into a political and financial engine.
- ▶ **1981:** DS-4, a more openly political formation.
- ▶ **1984:** the Bahujan Samaj Party.

His formulation of the demand was arithmetical and blunt: *jiski jitni sankhya bhari, uski utni bhagidari* — representation in proportion to numbers. Not compensation, not welfare, not sympathy. Share of power equal to share of population.

The Chamcha Age

■ FACT

In 1982, on the fiftieth anniversary of the Poona Pact, Kanshi Ram published a book attacking it.

The Chamcha Age — the age of the stooges — argued that the Poona Pact's replacement of separate electorates with reserved seats in joint electorates had produced exactly what Ambedkar feared: Dalit representatives who were acceptable to the majority that elected them rather than accountable to the community they nominally represented.

A *chamcha*, in his account, is a representative selected by the dominant group and presented to the subordinate one as its voice.

■ INTERPRETATION

Read this against Part 5 and it reframes the whole question.

Part 5 described the Poona Pact as a trade: political independence exchanged for numerical quantity — 71 seats becoming 148, but filled inside joint electorates. It noted that Ambedkar predicted the consequence and that whether the prediction came true was an open empirical question.

Kanshi Ram's answer, fifty years later, was that it had come true. And his solution was not to reopen the constitutional settlement but to **build independent political power outside it** — organise the numbers, form the party, take the state.

Which he did. Mayawati became Chief Minister of Uttar Pradesh four times.

Why this matters for 2026: it is the only serious answer anyone has given to the objection that reserved seats produce nominal rather than real representation. The answer was not "abolish the seats." It was "the seats were never going to be enough — go and win power."

STRONGEST POINT

He proved the thing everybody said was impossible. A party built explicitly on the political self-organisation of the most excluded communities governed India's largest state.

He also understood something both sides miss: reservation's most important product is not the jobs. It is the *organised, salaried, educated cadre* that reserved jobs create, who can then finance and staff a movement. He built BAMCEF out of exactly those people.

WEAKEST POINT

The record in power is a genuine problem for the theory. Representation delivered political dignity and symbolic transformation, and the material indicators for the poorest Dalits in Uttar Pradesh did not move nearly as much as the theory promised.

And the party's later alliances with the very forces it was founded against raised the same question Kanshi Ram had asked about the Poona Pact — this time about his own successors.

The Modern Voices

Six living arguments. The most interesting disagreements are not between the sides but inside them.

KANCHHA ILAIAH SHEPHERD

"Why I Am Not a Hindu" (1996)

The argument: that the culture, deities, work, food and ethics of Dalit-Bahujan communities constitute a distinct civilisation, not a lower rung of a Hindu one — and that describing them as Hindu is itself an act of absorption. He argues that productive castes built India's material civilisation while a non-productive elite claimed its prestige.

Strongest point: he shifted the argument from grievance to assertion. Instead of asking for inclusion, he questioned whether the thing one was being included in was worth joining.

Weakest point: the sharp separation of two civilisations is difficult to sustain empirically, and it makes political coalition-building harder rather than easier.

CHANDRABHAN PRASAD

Dalit capitalism, and English as liberation

The argument: a Dalit writer who argues that the market has done more for Dalits than the state, that Dalit entrepreneurship rather than government employment is the route to power, and that English-language education is the single most liberating asset available. He has been associated with the Dalit Indian Chamber of Commerce and has argued that urbanisation and anonymity dissolve caste faster than any policy.

Strongest point: he is right that government jobs are a shrinking prize, as Part 1 noted, and right that no reservation policy touches the sector where most Indians work. His case is the most serious critique of reservation available *and it comes from inside the community*.

Weakest point: the correspondence study in Part 6 — ten, six, three — is precisely a measurement of the private sector. Markets have not been observed to be caste-blind, and access to capital is not equally distributed either.

ASHWINI DESHPANDE

The economics of caste disparity

The argument: an economist whose work measures caste gaps in earnings, occupation and assets and tests how much survives after controlling for education, region and household characteristics. Her finding, consistently, is that a substantial unexplained gap remains.

Strongest point: she moved the argument onto ground where it can be settled — measurement rather than assertion. Most of the useful numbers in Part 11 exist because of this tradition of work.

Weakest point: unexplained variance is not the same as proven discrimination; it is what is left after the variables you thought to measure. That is a real methodological limit and honest practitioners say so.

ARVIND PANAGARIYA

Growth first

The argument: an economist who has argued that rapid growth and expansion of education do more for disadvantaged groups than redistribution of a fixed number of positions, and who has questioned how much of the observed caste gap survives careful measurement.

Strongest point: the arithmetic in Part 1. When a few thousand posts attract twenty-five lakh applicants, the binding constraint is the number of posts. Redistribution changes who is unemployed, not how many.

Weakest point: India has had three decades of high growth, and the manual scavenging composition in Part 6 is from 2024. Growth has not been observed to dissolve caste allocation of the worst work.

YOGENDRA YADAV

Defend the principle, redesign the machine

The argument: a political scientist who supports reservation in principle while arguing that its present design is indefensible — that the categories are too crude, that benefits concentrate within groups, that a caste census is necessary to know anything, and that the debate should move to representation in places quotas do not reach.

Strongest point: he is the only major figure making the argument that most of the evidence in this series supports — that the injury is real and the current instrument is poorly built.

Weakest point: the position requires a political coalition that does not exist. Everyone who agrees the design is bad wants to change it in incompatible directions.

THOMAS SOWELL

"Affirmative Action Around the World" (2004)

The argument: an American economist who compared preference programmes across India, Malaysia, Sri Lanka, Nigeria and the United States and identified recurring patterns — that benefits concentrate among the already-advantaged within preferred groups; that programmes expand beyond their original scope and duration; that they generate resentment which harms the intended beneficiaries; and that temporary measures become permanent because a constituency forms around them.

Strongest point: the elite-capture prediction is not a theory in India. The Supreme Court accepted it in 2024 when it permitted sub-classification of Scheduled Castes.

Weakest point: his comparative method treats very different societies as instances of one phenomenon, and India's case differs in a way that matters — the disadvantage being addressed is roughly two thousand years old and enforced by a mechanism, endogamy, that has no equivalent in the other cases.

Who Can Legitimately Claim Whom

The scorecard. Who is being borrowed fairly, who is being stretched, and who is simply being stolen.

THE BORROWING AUDIT

Figure	Claimed by	Verdict	Why
Ambedkar	Abolition side, via "Educate, Agitate, Organise"	Theft	He drafted the provisions. Using his slogan to remove them is a costume.
Ambedkar	Retention side, as the settled case for quotas	Stretched	He named intermarriage as the remedy and called caste politics a life of contradictions.
Gandhi	Traditionalists, via 1920s varna writing	Frozen clock	By the 1940s he had moved substantially the other way.
Vivekananda	Everyone	Amputation	His key sentence has two clauses and each side quotes one.
Nehru	Abolition side, via the 1961 letter	Fair — incomplete	The letter is real. His government passed the First Amendment in 1951.
Phule	Abolition side, as "education not quotas"	Stretched	He built schools because schools excluded those children entirely.
Savarkar	Hindutva, as anti-caste reformer	Fair — partial	The Ratnagiri record is real. The framing was consolidation.
Golwalkar	Critics, as proof Hindutva defends caste	Fair	The 1966 text says what they say it says.
Periyar	Tamil political tradition	Fair	Direct lineage, honestly claimed, including the uncomfortable parts.
Kanshi Ram	Rarely claimed by anyone	Neglected	His critique is inconvenient for both sides at once.

■ INTERPRETATION

The pattern in that table.

Notice that **the only entry marked "fair" without qualification for the abolition side is Golwalkar** — a figure they do not want — and that the strongest genuine critique of reservation in this whole part comes from Chandrabhan Prasad and Kanshi Ram, both of whom are Dalit and neither of whom wants reservation abolished.

And notice the reverse. The retention side's use of Ambedkar is also stretched. He wanted caste annihilated, said intermarriage was the only solvent, and warned that a democracy resting on social inequality was living a contradiction. That is not a comfortable endorsement of the status quo either.

The honest summary: almost nobody in this argument has a historical figure who fully agrees with them. Everyone is quoting people who would have found their position incomplete.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Why does nobody quote Ambedkar on intermarriage?

"The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste." It is the most direct statement of a remedy that the founder of the movement ever made, and it is nearly absent from public argument.

Because it points at families rather than governments, and no political programme can be built on it. Everything in this series suggests he was right, and that is exactly why it is unusable.

2. If the Poona Pact produced stooges, what does that say about reserved seats now?

Kanshi Ram's critique is unanswered rather than refuted. Nobody has produced evidence that reserved-constituency representatives behave more independently than he predicted.

The abolition side does not use this argument, presumably because its conclusion is more autonomy for Dalit politics rather than less. But it is one of the strongest available criticisms of how reservation actually works.

3. Why did the anti-caste organisation cancel Ambedkar's speech?

The Jat-Pat Todak Mandal existed to abolish caste and cancelled its own conference rather than hear what abolition would require.

That is a general phenomenon, not an incident. Reform movements led by beneficiaries have a boundary, and the boundary is usually located exactly where the reform would cost them something.

4. Whose approval was Gandhi's fast aimed at?

He fasted to prevent separate electorates. The people whose behaviour needed to change were caste Hindus. The person who had to concede was Ambedkar.

Even sympathetic accounts rarely address why the pressure was applied to the party with the least power.

5. Does the RSS's shift matter more than its history?

Golwalkar's 1966 text and Bhagwat's 2024 statements are very different positions. Critics cite the first; supporters cite the second.

The genuinely interesting question is what moved it — and the most plausible answer is electoral arithmetic after 2015. Which is a fact about the durability of reservation that Part 14 has to reckon with, whatever one thinks of the organisation.

6. Why is the best critique of reservation made by Dalits?

Chandrabhan Prasad's case — that government jobs are a shrinking prize, that markets and English do more, that the state is a poor patron — is sharper than anything produced by the abolition movement.

He is also not arguing for abolition. The two positions are routinely conflated by people who want a Dalit voice for their conclusion.

7. What did Periyar, Ambedkar and Gandhi actually disagree about?

Not whether caste was wrong. All three said so, in strong terms.

They disagreed about whether Hinduism could be reformed from within (Gandhi: yes; Ambedkar: no, leave; Periyar: no, attack). That is a question about strategy, and India ran all three experiments. Nobody treats the results as data.

8. Why does the argument have no living Ambedkar?

Every figure in Chapter 11 is a specialist — an economist, a political scientist, a writer. None occupies the position Ambedkar or Phule or Periyar did: a mass leader with an intellectual programme.

That absence shapes the 2026 argument more than anything else in this book. A debate conducted by Instagram accounts and academics is a debate without anyone who can both think and mobilise.

9. Is anybody in this book actually satisfied with reservation as it exists?

Go back through them. Ambedkar called it a life of contradictions and named a different remedy. Nehru disliked it and passed it. Lohia wanted 60%. Kanshi Ram said it produced stooges. Prasad says it is the wrong prize. Yadav says the design is indefensible. Sowell says it will never end. Bhagwat says continue it as long as inequality lasts.

Not one of them describes the present arrangement as correct. The policy has enormous political support and almost no intellectual defenders of its actual design. That is worth sitting with.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 7 – THE GREAT MINDS ARGUE

1. **Ambedkar named a remedy nobody quotes.** "The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste." He also wrote "caste is not a division of labour, it is a division of labourers," and warned in 1949 that India was entering "a life of contradictions."
2. **Nehru wrote the letter and passed the amendment.** "I dislike any kind of reservation" (27 June 1961) is real and uncropped. So is the First Amendment of 1951, passed by his government, which inserted Article 15(4) and made caste-based reservation in education constitutional. Both. Always quote both.
3. **Gandhi moved and Savarkar surprises.** Gandhi defended varna in the 1920s and by the 1940s refused to attend weddings that were not inter-caste. Savarkar named intermarriage and inter-dining as two of seven "shackles" and built a temple with Dalit priests in 1931 – while framing it as Hindu consolidation rather than justice owed.
4. **The sharpest critiques come from inside.** Kanshi Ram's *The Chamcha Age* (1982) argued the Poona Pact produced representatives acceptable to the majority rather than accountable to Dalits. Chandrabhan Prasad argues government jobs are the wrong prize. Neither wants reservation abolished.
5. **Nobody in this book endorses the present system.** Ambedkar called it a contradiction, Nehru disliked it, Lohia wanted 60%, Kanshi Ram called its output stooges, Yadav calls the design indefensible, Sowell says it will never end, Bhagwat says continue it until inequality does. Enormous political support; almost no intellectual defenders of the actual design.

Coming next

PART 8 — THE CONSTITUTION ROOM

What the founders actually decided.

The Constituent Assembly debates on reservation, quoted from the record. The "only ten years" myth killed properly — what Article 334 actually put a clock on, and why Articles 15(4) and 16(4) never had one. Articles 15, 16, 46, 330, 332, 335, 340, 341 and 342, each in a single plain paragraph. Equality of opportunity versus equality of outcome, and which one the text chose. The amendments timeline from the First in 1951 to the 103rd in 2019. And the same transcripts read two ways: "the founders wanted this to end" against "the founders wanted this to work."

A closing thought: the most useful discovery in this part was that not one of these people would sign off on the system we have. That is not an argument for abolishing it or for keeping it. It is an argument for stopping the pretence that any of them settled the question for us. — L.S.

Sources & Notes

Every quotation and factual claim in Part 7, and where it comes from.

Phule and Vivekananda

Jyotirao Phule, *Gulamgiri* (1873), including the dedication to the people of the United States in admiration of the anti-slavery cause; Satyashodhak Samaj founded 1873; girls' school opened with Savitribai Phule in 1848. The verse on education is rendered here in English summary from the Marathi original, which circulates in several translations. · Swami Vivekananda, *Complete Works* — the paired clause on Hinduism preaching human dignity and treading upon the necks of the poor and low; the passage on aristocratic ancestors treading the common masses underfoot; and the repeated argument that the remedy is to raise the lower rather than pull down the higher.

Ambedkar

B. R. Ambedkar, *Annihilation of Caste* (1936) — "Caste is not a division of labour. It is a division of labourers"; "Turn in any direction you like, caste is the monster that crosses your path"; "You cannot build anything on the foundations of caste"; "The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste"; "Political tyranny is nothing compared to social tyranny." · Constituent Assembly of India, 25 November 1949 — "a life of contradictions"; "Bhakti in religion may be a road to the salvation of the soul. But in politics, Bhakti or hero-worship is a sure road to degradation and to eventual dictatorship"; the observation that a Constitution's working depends on those who implement it. · Yeola, 13 October 1935 — "I was born a Hindu but I will not die a Hindu." Conversion to Buddhism, 1956.

Gandhi and the 1936 exchange

Gandhi's writings on varnashrama in *Young India* in the early 1920s; the founding of the Harijan Sevak Sangh in 1932; his review of *Annihilation of Caste* in *Harijan* in 1936 and Ambedkar's published reply, both printed in later editions of the book; his shift by the mid-1940s to describing caste as an evil and his stated refusal to attend weddings other than those between a Harijan and a caste Hindu. · The Jat-Pat Todak Mandal's 1936 invitation, the request for alterations, Ambedkar's refusal, the cancellation of the conference and his self-publication of the text.

Periyar

E. V. Ramasamy — participation and imprisonment in the Vaikom Satyagraha, 1924, and the title Vaikom Veerar; departure from the Congress and founding of the Self-Respect Movement, 1925; self-respect marriages without priests or Sanskrit ritual, subsequently given legal recognition in Tamil Nadu; advocacy of women's rights to divorce, property and contraception. The quotation on god is among his best-known public statements and is widely reproduced in collections of his speeches.

Savarkar, Golwalkar and the RSS

V. D. Savarkar — the seven shackles (sparshabandi, shuddhibandi, betibandi, rotibandi, sindhubandi, vyavasayabandi, vedoktabandi); internment at Ratnagiri 1924–1937; large-scale inter-caste dining; the Patitpavan Mandir opened at Ratnagiri in 1931, open to all castes with Dalits among the priests; his position that scriptures including the Manusmriti were human productions bound to their context and should evolve or be discarded; his statement equating the need to rebel against caste discrimination with the need to fight foreign rule. · M. S. Golwalkar, *Bunch of Thoughts* (1966) — the organic-body presentation of the four-fold order. · Mohan Bhagwat: September 2015 call for a committee to decide which categories require reservation and for how long; 2023 statement on accepting inconvenience for two hundred years; 2024 statements that reservation should continue as long as needed and as long as societal inequality exists. M. G. Vaidya's 2015 statement that reservations should be abolished.

Nehru, Patel and Lohia

Jawaharlal Nehru, letter to Chief Ministers dated 27 June 1961, in *Letters to Chief Ministers 1947–1964*, Vol. 5, Oxford University Press, 1989, pp. 456–7. · *State of Madras v. Champakam Dorairajan* (1951) and the Constitution (First Amendment) Act, 1951, inserting Article 15(4). · Vallabhbhai Patel's chairmanship of the Advisory Committee on Minorities and Fundamental Rights in the Constituent Assembly and the outcome on reserved seats for religious minorities. · Ram Manohar Lohia — the proposal of approximately 60% reservation for backward castes, Scheduled Castes and Tribes, women and minorities, and the slogan *jaati todo*.

Kanshi Ram, Mayawati and the modern voices

Kanshi Ram — BAMCEF (1971), DS-4 (1981), Bahujan Samaj Party (1984); *The Chamcha Age* (1982), published on the fiftieth anniversary of the Poona Pact; the formulation *jiski jitni sankhya bhari, uski utni bhagidari*. Mayawati served four terms as Chief Minister of Uttar Pradesh. · Kancha Ilaiah Shepherd, *Why I Am Not a Hindu* (1996). · Chandrabhan Prasad — writing on Dalit capitalism, the Dalit Indian Chamber of Commerce, and English-language education. · Ashwini Deshpande — *The Grammar of Caste* and related empirical work on caste disparity. · Arvind Panagariya — writing on growth, education and the limits of redistribution. · Yogendra Yadav — writing on reservation design, the caste census and representation. · Thomas Sowell, *Affirmative Action Around the World: An Empirical Study* (2004).

A note on what is missing — and on corrections

Where a quotation exists in multiple published translations — Phule from Marathi, Periyar from Tamil, Savarkar from Marathi — this book gives the standard English rendering and does not claim word-for-word precision. Quotations in English originals (Ambedkar, Nehru, Vivekananda's English lectures) are given as published.

Part 7 makes no claim about whether reservation works, which is Part 11, nor about what the Constituent Assembly decided, which is Part 8. Positions of living figures are summarised from their published work and may have developed since. If you find a misquotation or a misrepresentation of anyone's position, I particularly want to know: a part built on quoting people accurately has no excuse for getting one wrong.

END OF PART SEVEN

THE RESERVATION FILES

The Great Minds

Argue

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 8 – The Constitution Room: what the founders
actually decided
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART EIGHT

THE CONSTITUTION ROOM

What the founders actually decided. The "only ten years" myth killed properly, every relevant Article in plain English, and the same transcripts read both ways.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Only Part With Right Answers

This is the easiest part of the series to write and the one most likely to change somebody's mind, for the same reason: the Constitution is a document, and documents can be read.

Everywhere else in this series I have had to weigh evidence, mark things contested, and tell you where the honest limits are. Here, for once, a large number of the disputed claims have simply correct and incorrect answers, and you can go and check them in about ten minutes.

The most repeated line in the entire Indian caste argument — that reservation was meant to last only ten years — is one of them.

"The ten-year clock is real. It exists. It is in the Constitution. It has been extended seven times. And it was never attached to jobs or to college seats."

Chapter 2 does that properly, including the detail that decides it: in 2020, one part of that ten-year clause was quietly allowed to expire, permanently, for the first time. Which tells you the sunset provision was never decorative — Parliament has used it. Just not on the thing everybody argues about.

Two other things in this part were new to me.

Ambedkar himself set the limit that EWS broke. On 30 November 1948 he told the Assembly that reservation had to be confined to a minority of seats, or the rule of equality would be destroyed. That sentence is where the 50% ceiling comes from. In 2019 Parliament went past it, and the people most likely to quote Ambedkar approvingly did not mention that they were crossing his line — and neither did the people who supported the amendment.

And there is a clause almost nobody argues. Article 335 says that the claims of Scheduled Castes and Tribes must be considered "consistently with the maintenance of efficiency of administration." The entire efficiency argument, which the abolition side makes constantly, has a home in the constitutional text — and they almost never cite it. Chapter 6 asks why.

One warning. This part contains more legal machinery than any other, and I have worked hard to keep it readable. Every Article is given in one plain paragraph, in ordinary English, with the actual wording alongside where the wording matters. If a page feels dry, it is doing load-bearing work for Parts 9, 10 and 14.

— Lovepreet Singh

July 2026

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Everything in this book, compressed

The Room

Who was actually in the Constituent Assembly, and why that matters for how you read what it produced.

The Constituent Assembly of India first met on **9 December 1946**. It adopted the Constitution on **26 November 1949**, and the document came into force on **26 January 1950**.

Just under three years, roughly 300 members after Partition, and a Drafting Committee of seven chaired by B. R. Ambedkar, appointed on 29 August 1947.

Three things about the room

■ FACT 1

It was overwhelmingly Congress, and overwhelmingly upper caste.

The Assembly was not a cross-section of India. It was dominated by the Congress party, and its membership was drawn disproportionately from the educated, propertied and upper-caste sections of society — the same sections that had staffed colonial administration and the national movement's leadership.

This matters, and it cuts in an unexpected direction. A body composed largely of the beneficiaries of the caste order wrote provisions to dismantle parts of it. Whatever else that was, it was not self-interest.

■ FACT 2

Ambedkar was put in the room by the people he had spent his life fighting.

He was first elected to the Assembly from Bengal. Partition removed that constituency. He was then re-elected from Bombay — with Congress support, at a time when his relations with Congress were hostile and the memory of the Poona Pact was fifteen years old.

He was subsequently made chairman of the Drafting Committee.

Both sides use this and neither uses it well. It is not proof that Congress had converted, and it is not proof that Ambedkar was co-opted. It is evidence that the leadership recognised the document would lack authority without him.

■ FACT 3

It was not a referendum, and it was not elected by universal suffrage.

Members were chosen indirectly, by provincial legislatures elected on the restricted franchise of the 1935 Act. The population of India did not vote for this Assembly.

This is a genuine limitation on any argument of the form "the people decided in 1950." They did not. Roughly three hundred people did, on behalf of about 340 million.

■ INTERPRETATION

How to read what came out of that room.

The sceptical reading: an unelected body of elites produced a document that has bound a billion people for seventy-six years, and treating its intentions as sacred is a form of ancestor worship — the exact thing Ambedkar warned about in the same room.

The other reading: constitutions are made this way nearly everywhere, and the test is not the procedure that produced them but whether the society afterwards accepts and lives by them. India has, through seventeen general elections.

Both are fair. What neither supports is the move you will see constantly in the next two chapters — treating "the founders intended X" as though it settles a question that the founders explicitly left open for Parliament to decide.

The Ten-Year Myth

The most repeated claim in the Indian caste argument. It is half true, which is why it survives – and the half that is true has a very interesting recent history.

You have heard it a thousand times. Ambedkar said reservation was only for ten years. Here is exactly what is true and what is not.

The clock is real. It is in Article 334.

■ FACT

Article 334 put a ten-year limit on two specific things – and neither is a job or a college seat.

As originally enacted, Article 334 provided that the reservation of seats for Scheduled Castes and Scheduled Tribes **in the House of the People and in the Legislative Assemblies of the States**, and the nomination of members of the Anglo-Indian community to those bodies, would cease after ten years from the commencement of the Constitution.

Ten years from 26 January 1950 is 26 January 1960.

That is the entire scope of the famous clock. **Reserved seats in legislatures. Politics.**

What has no time limit, and never had one

■ FACT

Articles 15(4) and 16(4) contain no expiry date of any kind.

Article 15(4) permits the State to make special provision for the advancement of socially and educationally backward classes and for Scheduled Castes and Tribes – the basis of reservation in education.

Article 16(4) permits the State to reserve appointments or posts in favour of any backward class of citizens not adequately represented in the services – the basis of reservation in government jobs.

Read both. There is no date, no period, no sunset and no review clause. There never was.

So the popular claim is a real constitutional provision applied to the wrong subject. It is not invented. It is misfiled.

And now the part that decides the argument

If the ten-year clock were a dead letter — a promise nobody ever intended to keep — the abolition side would have a strong point about bad faith.

It is not a dead letter. Parliament has taken it seriously enough to legislate on it seven times.

1959 · 8th

Extended to 1970

The first extension, a year before the original expiry.

1969 · 23rd

Extended to 1980

1980 · 45th

Extended to 1990

1989 · 62nd

Extended to 2000

1999 · 79th

Extended to 2010

2009 · 95th

Extended to 2020

2019 · 104th

Extended to 25 January 2030 — and one part allowed to die

Signed on 21 January 2020 and effective from 25 January 2020. It extended reserved legislative seats for Scheduled Castes and Tribes by a further decade. It did *not* extend the nomination of Anglo-Indian members, which therefore ceased.

■ FACT

In January 2020, a constitutional reservation was allowed to lapse for the first time.

The two Anglo-Indian nominated seats in the Lok Sabha, and the equivalent nominations in state assemblies, had existed since 1950. The 104th Amendment let them expire.

The sunset clause is not decorative. Parliament used it in 2020. It has simply never used it on the thing everybody argues about.

■ INTERPRETATION

What each side should honestly take from this chapter.

The abolition side must stop saying reservation had a ten-year limit. It did not. The limit was on legislative seats, it is in a different Article, and repeating the claim after reading Article 334 is not a mistake but a choice.

But they gain something better than the myth. The Anglo-Indian lapse proves that a constitutional reservation can be ended by simple parliamentary decision, without upheaval, when the political cost is low enough. The mechanism exists and was used six years ago. That is a far stronger fact than the one they normally use.

The retention side must stop treating the clock as fictional. The founders did write an expiry into one part of the design, which means they were capable of writing one and chose not to elsewhere — a choice that has to be explained rather than assumed.

And the awkward question for everyone: a provision written to last ten years has now been extended for eighty, in ten-year instalments, each time by a Parliament that found it politically impossible to refuse. Whatever that process is, it is not the periodic review the drafting implies.

The Articles, One Paragraph Each

Every constitutional provision that matters to this argument, in ordinary English. Keep this chapter; the rest of the series refers back to it.

The equality provisions

PART III – FUNDAMENTAL RIGHTS

Article	What it does
14	Equality before law. The State shall not deny to any person equality before the law or equal protection of the laws. The base rule everything else is measured against.
15(1)	No discrimination. The State shall not discriminate against any citizen on grounds only of religion, race, caste , sex or place of birth.
15(4)	The education exception. Nothing in this Article prevents the State from making special provision for the advancement of socially and educationally backward classes, or for SCs and STs. <i>Inserted by the First Amendment, 1951.</i>
15(5)	Private colleges. Extends that power to admissions in private educational institutions, aided or unaided, except minority institutions. <i>93rd Amendment, 2005.</i>
15(6)	EWS in education. Special provision for economically weaker sections among those not covered by 15(4) or 15(5), up to 10% of seats. <i>103rd Amendment, 2019.</i>
16(1)	Equality of opportunity in matters of public employment. The rule.
16(4)	The jobs exception. Nothing prevents the State from reserving posts for any backward class of citizens which, <i>in the opinion of the State</i> , is not adequately represented in the services. Note two things: it is enabling , not mandatory; and the test is representation , not poverty.
16(4A)	Promotions. Permits reservation in promotion with consequential seniority for SCs and STs. <i>77th Amendment, 1995; seniority added by the 85th, 2001.</i>
16(4B)	Backlog. Unfilled reserved vacancies carried forward are treated as a separate class and do not count against the 50% ceiling for that year. <i>81st Amendment, 2000.</i>
16(6)	EWS in jobs. Up to 10% of appointments for economically weaker sections. <i>103rd Amendment, 2019.</i>
17	Untouchability abolished. Its practice in any form is forbidden, and enforcing any disability arising out of it is a punishable offence. One of very few Articles that binds private individuals, not just the State.

The rest of the machinery

DIRECTIVE PRINCIPLES, POLITICAL RESERVATION, AND THE INSTITUTIONAL PROVISIONS

Article	What it does
46	The duty. The State shall promote with special care the educational and economic interests of the weaker sections, particularly SCs and STs, and protect them from social injustice and exploitation. A Directive Principle — not enforceable in court, but the stated purpose behind the rest.
330	Reserved seats in the Lok Sabha for Scheduled Castes and Scheduled Tribes.
332	Reserved seats in State Legislative Assemblies for SCs and STs.
334	The clock — on Articles 330 and 332 only. Extended seven times; currently to 25 January 2030.
335	The efficiency clause. The claims of SCs and STs shall be taken into consideration in appointments " <i>consistently with the maintenance of efficiency of administration.</i> " See Chapter 6.
338 / 338A / 338B	The watchdogs. National Commissions for Scheduled Castes, Scheduled Tribes and Backward Classes, each given constitutional status by amendment — 1990, 2003 and 2018 respectively.
340	The commission power. The President may appoint a Commission to investigate the conditions of socially and educationally backward classes. This is the Article that produced Kalelkar in 1953 and Mandal in 1979.
341 / 342 / 342A	The lists. The President specifies, by public notification, which castes are Scheduled Castes (341) and which tribes are Scheduled Tribes (342); 342A does the equivalent for socially and educationally backward classes. Only Parliament can amend these lists.

■ INTERPRETATION

Four things visible in that table that people argue about without noticing.

1. Reservation is permitted, not required. Article 16(4) says nothing "shall prevent the State." A government that chose not to reserve posts would not be violating the Constitution. That is a much bigger fact than it appears, and Chapter 10 returns to it.

2. The test is representation, not poverty. "Not adequately represented in the services." Not "poor." This is why the argument in Part 1 — that reservation is not an anti-poverty programme — is a constitutional point rather than a rhetorical one.

3. Untouchability is banned outright; caste is not. Article 17 abolishes a practice. Nothing abolishes caste itself, and nothing forbids a private person from marrying within it. Which returns us to Part 3's conclusion by another route.

4. Almost every operative provision on this list is an amendment. 15(4), 15(5), 15(6), 16(4A), 16(4B), 16(6), 338A, 338B, 342A. The reservation architecture of 2026 is substantially not the document of 1950 — it is seventy-five years of legislative construction on top of it.

30 November 1948

The day the Assembly debated Article 16(4). What Ambedkar actually said – and the limit he set that Parliament crossed in 2019.

On 30 November 1948 the Constituent Assembly debated the draft provision that became Article 16. Ambedkar's speech that day is the single most important document for anyone arguing about how much reservation is too much.

The three positions in the room

He began by describing the disagreement he had to resolve. There were, broadly, three views among members:

- ▶ **Complete equality of opportunity**, with no reservation of any kind – the position that any exception destroys the principle.
- ▶ **Equality with reservation** for communities historically shut out of public employment.
- ▶ **A strong version of the second**, holding that reservation was essential to integrate communities that had never been allowed into administration at all.

His account of the Drafting Committee's task was that it had to produce a formula reconciling these views – that there should be equality of opportunity, and that there should be reservation in favour of communities that had not so far had, in his phrase, a proper look-in to the administration.

And then the sentence that has governed Indian law ever since

AMBEDKAR – CONSTITUENT ASSEMBLY, 30 NOVEMBER 1948

Reservation must be confined to a minority of seats.

His argument was that while equality of opportunity was a great principle, there had to be provision to let communities historically denied entry into public employment actually enter it – **but that such reservation must be confined to a minority of posts, so that the principle of equality in clause (1) would not be destroyed.**

An exception that consumes more than half of what it is an exception to has stopped being an exception.

■ FACT

This is where the 50% ceiling comes from.

When the Supreme Court in *Indra Sawhney* (1992) held that reservation must normally not exceed 50% of available seats, it was giving legal force to the principle Ambedkar had stated in the Assembly forty-four years earlier.

The ceiling is not a judicial invention. It is the drafting committee chairman's own limit.

■ INTERPRETATION

And here is what nobody says out loud.

In 2019, the 103rd Amendment added 10% for economically weaker sections, taking central reservation to 59.5%.

That is past the majority line. It crosses the limit Ambedkar set in the room, and it does so for a category — economic disadvantage among communities with no other reservation — that Article 16(4)'s representation test does not cover.

Notice who did not object on those grounds. Supporters of EWS did not, for obvious reasons. But nor did most of the people who cite Ambedkar as the authority on reservation, because opposing EWS meant defending a ceiling that also constrains what they want.

The Supreme Court upheld it 3-2 in 2022. Two judges, including the Chief Justice, dissented — substantially on this point.

If you want a single example of how selectively this man is quoted, it is this: the most famous defender of reservation in Indian history also set the strictest limit on it, and the limit was crossed with almost no one invoking him.

One more thing he said

Ambedkar was also clear about what "backward classes" meant in Indian conditions. His position, stated in the Assembly, was that what are called backward classes are in substance a collection of certain castes.

That sentence forecloses a great deal of later argument in both directions. It means the category was understood from the start as caste-based rather than income-based — which supports the retention side's reading of Article 16(4). And it means the founders knew they were building a permanent state apparatus for recording caste, which is exactly what the abolition side objects to.

Champakam, and the First Amendment

Fifteen months after the Constitution came into force, the Supreme Court struck reservation down. Parliament amended the Constitution rather than accept it.

This is the most under-told episode in the whole legal history, and it settles more than almost anything else in this part.

■ FACT

State of Madras v. Champakam Dorairajan, 1951.

Madras operated a communal order allocating seats in state medical and engineering colleges among communities — the descendant of the 1921 arrangement described in Part 5.

The Supreme Court struck it down. Its reasoning: Article 15(1) forbade discrimination on grounds of caste, Article 29(2) forbade denial of admission to state-funded institutions on grounds of caste, and no exception then existed for backward classes in education.

Reservation in education, as practised in Madras for thirty years, was unconstitutional.

The response

■ FACT

The Constitution (First Amendment) Act, 1951.

Parliament — under Nehru, in the Constitution's first full year — responded by amending the document itself, inserting **Article 15(4)** and expressly permitting special provision for socially and educationally backward classes and for SCs and STs.

The same amendment created the **Ninth Schedule**, a list of laws placed beyond ordinary judicial review — the device by which Tamil Nadu would later protect its 69% reservation.

Both are still in force.

Presented with a judicial ruling that caste-based reservation in education was unconstitutional, the first Parliament of India did not abandon the policy. It changed the Constitution.

■ INTERPRETATION

What this does to both "founders' intent" arguments.

Against the abolition reading: if the framers had regarded reservation as a marginal, temporary indulgence, the natural response to Champakam was to accept the judgment. Instead the very first amendment to the Indian Constitution was made in order to preserve it. That is not the behaviour of a legislature that considered it optional.

Against the retention reading: the amendment was necessary *because the original text did not permit it*. The 1950 Constitution, as written and as read by the Supreme Court, did not allow caste-based reservation in education. That is a real point and it is rarely conceded.

The honest summary: reservation in education is not something the founders wrote into the Constitution. It is something Parliament wrote in, immediately, when the courts said the original text did not allow it.

Which is why "what the founders intended" is such a weak instrument here. The founders and the first Parliament were largely the same people, and they intended it enough to amend their own document within fifteen months.

Article 335 — The Sleeper Clause

The efficiency argument has a home in the constitutional text. Almost nobody who makes that argument has ever cited it.

ARTICLE 335

"The claims of the members of the Scheduled Castes and the Scheduled Tribes shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or of a State."

Read that carefully, because it does two opposite things in one sentence.

It *requires* that the claims of SCs and STs be taken into consideration — a positive obligation. And it makes that consideration subject to a condition: **consistently with the maintenance of efficiency of administration.**

Why this clause should be at the centre of the argument

The single most common argument the abolition side makes is that reservation harms institutional quality. Whatever one thinks of it, it is not a fringe position — it is Nehru's position in the 1961 letter, and it is written into the Constitution.

And the side making it almost never cites Article 335.

■ INTERPRETATION

Why the clause is not the weapon it looks like — for either side.

For the abolition side, the problem is that "efficiency" is undefined and unmeasured. The Article states a condition without a test. Nobody has ever produced an agreed measure of administrative efficiency against which a reservation policy could be assessed. An argument that cannot be operationalised cannot be won, only asserted — and Part 11 shows how thin the actual evidence is in both directions.

For the retention side, the problem is that the clause exists at all. The framers thought the risk serious enough to write it in. Treating every efficiency argument as bad faith means treating Article 335 as bad faith.

And what Parliament did to it

■ FACT

The 82nd Amendment, 2000, added a proviso qualifying the efficiency clause.

The proviso permits the State to make provision for relaxation in qualifying marks, or lowering of standards of evaluation, for reservation in matters of promotion for SCs and STs.

In other words, Parliament looked at a clause conditioning reservation on efficiency and expressly legislated an exception to it.

The courts have worked through the same tension. In *M. Nagaraj* (2006) the Supreme Court required states to demonstrate backwardness, inadequacy of representation and administrative efficiency before providing reservation in promotion. In *Jarnail Singh* (2018) it removed the requirement to prove the backwardness of SCs and STs, while applying the creamy layer principle to them in the promotion context.

■ INTERPRETATION

The pattern across seventy-five years.

The Constitution contains a brake. Parliament has repeatedly legislated around the brake. The courts have repeatedly tried to give it content and been repeatedly overruled by amendment.

That is not a scandal; it is how a democracy resolves a conflict between a written condition and a political majority. But it does mean something for anyone arguing about the future of reservation, and Part 14 will have to say it plainly: **every constitutional constraint on reservation that has been tested has eventually been amended away.**

The 50% ceiling by the 103rd Amendment. The efficiency clause by the 82nd. The prohibition on promotion quotas by the 77th. Judicial limits by the 81st and 85th.

Whatever your position, an honest forecast has to account for that pattern.

Opportunity Or Outcome

The oldest question in this argument, and the Constitution's answer is clearer than either side admits.

The standard framing is that the left wants equality of outcome and the right wants equality of opportunity. The Indian constitutional text does not fit that framing at all, and the reason is structural rather than rhetorical.

Look at the architecture

THE RULE AND THE EXCEPTION

Provision	What it says	Its status
16(1)	Equality of opportunity in public employment	The rule. Stated first, unconditionally.
16(4)	Nothing shall prevent reservation for backward classes not adequately represented	The exception. Permissive, conditional, and framed as a carve-out from the rule.

■ FACT

The text chose opportunity as the principle and made group provision an exception to it.

This is not an interpretive claim; it is the grammar of the Article. Clause (1) states the right. Clause (4) begins "Nothing in this article shall prevent..." — the standard drafting form of an exception to what precedes it.

Everything follows from that structure. It is why Ambedkar said reservation must be confined to a minority of posts. It is why the Supreme Court set a ceiling. And it is why the EWS quota crossing 50% was constitutionally significant rather than merely controversial.

■ INTERPRETATION

But the exception has a purpose, and the purpose is not outcome equality either.

Read what Article 16(4) actually conditions the exception on: a class "**not adequately represented in the services.**"

That is not a test of poverty, and it is not a test of outcome equality across society. It is a test of *presence in public institutions*. The constitutional theory is neither "make everyone equal" nor "ignore history" — it is that a state whose administration is monopolised by a few communities is not delivering equality of opportunity in the first place, whatever its formal rules say.

That is a genuinely third position, and it is the one the text takes. It says: the monopoly is itself the inequality of opportunity, and breaking it is a precondition of the rule rather than a departure from it.

You can disagree with that theory. What you cannot do is describe the Indian Constitution as choosing equality of outcome, because it does not, or as choosing formal equality alone, because it explicitly does not.

AND NOTE WHOSE ARGUMENT THIS IS

Shahu Maharaj in 1902, from Part 5, gave exactly this justification: not compensation for history, but the observation that a handful of communities held nearly every post in his administration.

The oldest reservation policy in the world and the Indian constitutional text are making the same argument, seventy years apart. Whether it works is Part 11.

Eighteen Amendments

How the reservation architecture was actually built – one legislative decision at a time, over seventy years.

1951 · 1st

Article 15(4) and the Ninth Schedule

The response to *Champakam Dorairajan*. Reservation in education becomes constitutional. The Ninth Schedule is created.

1959 · 8th

First extension of Article 334

Legislative seats extended to 1970. Repeated in 1969, 1980, 1989, 1999 and 2009.

1990 · 65th

The watchdog gets constitutional status

The National Commission for Scheduled Castes and Scheduled Tribes is made a constitutional body under Article 338.

1995 · 77th

Article 16(4A) – reservation in promotion

Passed after the Supreme Court in *Indra Sawhney* had held that Article 16(4) did not extend to promotions. Parliament overrode the judgment by amendment.

2000 · 81st

Article 16(4B) – backlog vacancies

Unfilled reserved posts carried forward are treated separately and do not count against the 50% ceiling in the year they are filled.

2000 · 82nd

Proviso to Article 335

Permits relaxation of qualifying marks and standards of evaluation for reservation in promotion – a legislated exception to the efficiency clause.

2001 · 85th

Consequential seniority

Promotion reservation carries seniority with it, retrospectively from 1995.

2003 · 89th

Separate commissions

Article 338 is split, creating a distinct National Commission for Scheduled Tribes under 338A.

2005 · 93rd

Article 15(5) – private institutions

Extends reservation power to private educational institutions, aided and unaided, other than minority institutions. This is what brought OBC quotas to central universities in 2008.

2018 · 102nd **Articles 338B and 342A**

Constitutional status for the National Commission for Backward Classes, and a presidential list for socially and educationally backward classes.

2019 · 103rd **Articles 15(6) and 16(6) — EWS**

10% for economically weaker sections among those not otherwise covered. Central reservation reaches 59.5%. Upheld 3–2 in 2022.

2019 · 104th **Article 334 to 2030 — and the Anglo-Indian lapse**

Effective 25 January 2020.

2021 · 105th **States get their power back**

After the Supreme Court held in the Maratha reservation case (2021) that the 102nd Amendment had removed the states' power to identify socially and educationally backward classes, Parliament amended the Constitution to restore it.

■ **INTERPRETATION**

Read that list as a single pattern, because it is one.

Count the amendments passed specifically to **overrule a court decision that had limited reservation**: the First (after Champakam), the 77th (after Indra Sawhney on promotions), the 81st and 85th (after subsequent limits), the 82nd (qualifying the efficiency clause), the 105th (after the Maratha judgment).

The courts have repeatedly attempted to constrain the scope of reservation. Parliament has repeatedly amended the Constitution to remove the constraint — under governments of every political description, across seventy years, usually with overwhelming majorities and often unanimously.

For the abolition side this is the strongest structural argument available, and they rarely make it: the constitutional limits on reservation are not limits, because the body that can remove them always does.

For the retention side it is a reminder that the policy's foundation is political rather than constitutional. It survives because it commands parliamentary majorities, not because the text protects it.

Which means both sides are wrong to argue about what the Constitution requires. The Constitution says what Parliament decides it says, and has for seventy-five years.

Seven Judgments

The Supreme Court decisions that built the system you actually live under – each in plain English, with what it settled and what it did not.

Chapter 8 was Parliament's half of the story. This is the courts' half. Seven decisions, in order, and by the end of them you will understand nearly every technical term used in this argument.

1951 – CHAMPAKAM DORAIRAJAN

Reservation in education struck down.

What it held: the Madras communal order allocating college seats by community violated Articles 15(1) and 29(2). There was no exception in the 1950 text permitting it.

What followed: the First Amendment, within months, inserting Article 15(4).

Why it still matters: it is the proof that caste-based reservation in education was not in the original Constitution. Both sides should know this and only one usually does.

1963 – M. R. BALAJI V. STATE OF MYSORE

The first attempt at a ceiling, and the first hint of a creamy layer.

What it held: Mysore had reserved 68% of seats. The Court struck it down, observing that a special provision under Article 15(4) should be less than 50% – the first judicial statement of the ceiling. It also held that caste alone could not be the test of backwardness, and warned against the more advanced members of a backward group capturing the benefit.

What it did not settle: almost everything. The 50% figure was framed as guidance rather than a hard rule, and the relationship between caste and backwardness stayed contested for another thirty years.

1992 – INDRA SAWHNEY V. UNION OF INDIA

The Mandal judgment. Nine judges. The framework India still uses.

What it held, in four parts:

- (a) 27% OBC reservation is constitutional. Caste *can* be the starting point for identifying a backward class, because in India caste and social backwardness substantially overlap.
- (b) Total reservation must normally not exceed **50%** – Ambedkar's "minority of seats," now binding law.
- (c) The **creamy layer** – the advanced sections within a backward class – must be excluded. This is where the OBC income test comes from.
- (d) Article 16(4) does not extend to **promotions**.

What followed: Parliament overruled (d) by the 77th Amendment in 1995.

2006 – M. NAGARAJ V. UNION OF INDIA

Promotion quotas allowed – but only on conditions.

What it held: the amendments enabling reservation in promotion were valid, but a state wishing to use them must first collect quantifiable data showing the backwardness of the class, the inadequacy of its representation, and that the measure would not damage administrative efficiency under Article 335.

Why it mattered: for the first time a court asked for *evidence* before permitting a quota. Many states could not produce it.

2018 – JARNAIL SINGH V. LACHHMI NARAIN GUPTA

Two changes pulling in opposite directions.

What it held: the requirement to prove the backwardness of Scheduled Castes and Tribes was removed – their backwardness is presumed by their listing under Articles 341 and 342. But the **creamy layer principle was applied to SCs and STs** in the promotion context, having previously been confined to OBCs.

Why it matters: it is the first authoritative acceptance that advancement within SC and ST communities is real enough to require exclusion – the finding that returns, much larger, in 2024.

EWS upheld, 3–2. The ceiling breached.

What the majority held: reservation on purely economic criteria is permissible; excluding SCs, STs and OBCs from the EWS category does not violate equality, because they already have their own provision; and the 50% ceiling is not inviolable, applying to Articles 15(4) and 16(4) rather than binding a new provision.

What the dissent held: that excluding the poor among SCs, STs and OBCs from a poverty-based quota is discrimination on its face, and that breaching the ceiling opens a door that cannot be closed. Two judges, including the Chief Justice.

One vote the other way and the entire structure of Indian reservation would look different today.

Sub-classification permitted, 6–1. The biggest structural change in decades.

What it held: states may sub-classify Scheduled Castes, splitting the SC quota to give the most deprived sub-castes a protected share within it — overruling an earlier decision that had treated the Scheduled Castes as a single homogeneous class.

What it means: the highest court in the country has now formally accepted that the benefits of reservation have been captured unevenly within reserved categories.

And note the lineage: Balaji warned about it in 1963. Indra Sawhney built the creamy layer around it in 1992. Jarnail Singh extended it in 2018. Davinder Singh completed the arc in 2024. Elite capture is not a talking point; it is sixty years of judicial finding.

■ INTERPRETATION

The two directions of travel visible across seven decisions.

Direction one — the courts keep trying to bound it. Balaji's ceiling, Indra Sawhney's 50% and creamy layer, Nagaraj's evidence requirement, Jarnail Singh's extension of creamy layer, Davinder Singh's sub-classification. Every one narrows or conditions the benefit.

Direction two — Parliament keeps widening it. The 1st, 77th, 81st, 82nd, 85th, 93rd, 103rd and 105th Amendments, each removing or qualifying a judicial constraint.

Seventy-five years of a court applying brakes and a legislature releasing them. That is the actual constitutional history, and neither side describes it accurately: the abolition side treats the courts as helpless, and the retention side treats each judicial limit as an attack rather than as the system working.

Two Readings Of The Same Transcripts

Both cases, at full strength, from the identical record.

READING A – "THEY MEANT IT TO END"

They wrote a clock. Article 334 sets an expiry. The framers were capable of writing sunset provisions and did write one. A body that intended something permanent does not draft a termination date for part of it.

Ambedkar set a ceiling. On 30 November 1948 he said reservation must be confined to a minority of posts or the equality principle would be destroyed. He was not describing a permanent redistribution; he was describing a bounded exception.

They wrote a brake. Article 335 conditions the whole thing on the maintenance of administrative efficiency. That is the language of people worried about cost.

They made it optional. Article 16(4) is enabling, not mandatory. A mandatory permanent entitlement would have been drafted as one.

And the man who ran the government disliked it. Nehru's 1961 letter, from Part 7, is what the political leadership actually thought once it was operating.

READING B – "THEY MEANT IT TO WORK"

They put no clock on the things that matter. Articles 15(4) and 16(4) have no expiry. The framers demonstrably knew how to write a sunset clause, wrote one for legislative seats, and deliberately did not write one for jobs or education. Omission by people who used the device elsewhere is a choice.

They amended the Constitution within fifteen months to save it. When the Supreme Court struck down reservation in education in 1951, the first amendment to the Indian Constitution was passed to reinstate it. Not a statute – the Constitution.

They built for the future, not the interim. Article 340 empowers commissions to investigate backward classes with no time limit. Article 46 states an ongoing duty. These are the provisions of people expecting a long project.

The condition was never met. Article 16(4) is triggered by inadequate representation. It ends when representation becomes adequate, not when a calendar page turns. Nobody has argued the condition has been satisfied.

And Ambedkar told them how long it would take. On 25 November 1949 he warned that India was entering a life of contradictions – political equality alongside social and economic inequality – and asked how long that could last. That is not a man expecting the problem solved by 1960.

■ INTERPRETATION

My reading, labelled as mine.

Reading A is right that the framers intended limits, and its strongest evidence is Ambedkar's own ceiling – which has since been crossed.

Reading B is right about the drafting. People who wrote a sunset clause in one place and not in another were making a distinction, and the distinction is exactly the one the popular myth erases.

What I think the record actually shows is that they intended reservation to be *bounded but open-ended*: limited in quantity, unlimited in time, and ending when a condition was met rather than when a period expired.

Which is an uncomfortable finding for everyone. It denies the abolition side its deadline. And it denies the retention side the 50%-plus arrangement that now exists, because the boundedness was the part the framers were explicit about – and it is the part that has been eroded.

The design was: a minority of seats, for as long as necessary. India currently has a majority of seats, for as long as necessary. Both halves of the original settlement have been abandoned, and the two sides each defend the half they like.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Article 16(4) is enabling. Could a government simply stop?

The text says nothing "shall prevent the State" from reserving posts. It does not say the State must. On a plain reading, a government that ceased reserving central government posts would not be violating Article 16(4).

Nobody has tested it, and no government has come close to trying. Which tells you the constraint operating here is political, not legal — a point Part 14 has to build on.

2. Why does nobody cite Article 335?

The efficiency argument is the abolition side's most-used claim and it is written into the Constitution. They cite Nehru's private letter instead.

The likely reason: citing 335 means engaging with what "efficiency of administration" would actually be measured by, and no one has an answer. The letter requires no evidence; the Article does.

3. Why did the founders never define "backward classes"?

Article 16(4) turns on a category the Constitution does not define, leaving it to the opinion of the State. Article 340 provides for commissions to investigate it.

Every subsequent fight — Kalelkar, Mandal, creamy layer, EWS, the Maratha and Jat claims — flows from that single undefined term. It may be the most consequential drafting decision in the document.

4. Did they anticipate OBC reservation?

Structurally, yes. Article 340 exists solely to provide for investigating socially and educationally backward classes, and 15(4) and 16(4) both refer to backward classes as a category distinct from SCs and STs.

The claim that Mandal was an unconstitutional expansion beyond the founders' scheme does not survive reading Article 340.

5. EWS crossed Ambedkar's line. Why did nobody say so?

Because the ceiling constrains everyone. The retention side could not attack EWS on ceiling grounds without endorsing a limit on their own claims. The abolition side supported EWS. So the one argument with real constitutional force went unmade by both.

6. Why is there no reservation in the judiciary?

Higher judicial appointments in India are made through the collegium system, and reservation does not apply. The composition of the higher judiciary is correspondingly unrepresentative.

Neither side campaigns on it. The abolition side does not, because it is an example of an unreserved institution that is visibly monopolised. The retention side does not, because it would mean confronting the judiciary directly.

7. What does "adequately represented" mean?

The Article makes the trigger inadequate representation and then leaves the assessment to "the opinion of the State."

No numerical standard exists. Which means the condition on which the entire exception rests has no definition and no test — and therefore no mechanism by which it could ever be declared satisfied. Part 14 has to deal with this, because it is the real reason the policy has no exit.

8. If the Constitution has been amended over a hundred times, what does "founders' intent" mean?

Nine of the amendments in Chapter 8 rewrote the reservation provisions. Several overruled the Supreme Court. The document of 2026 is not the document of 1950.

Appeals to founders' intent are therefore appeals to an early draft of a document that its own authors began revising within fifteen months.

9. Is anyone actually bound by any of this?

The pattern in Chapter 8 is unbroken: every constitutional limit on reservation that has been tested has eventually been amended away.

This is the question that should worry both sides. It means the abolition side cannot win in court, because Parliament will amend. And it means the retention side has no protection either, if a future Parliament with a large enough majority decides otherwise. The whole structure rests on political arithmetic, and both camps talk as though it rests on principle.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 8.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Was reservation limited to ten years?	No	Article 334 clocked legislative seats only
Is the ten-year clock real?	Yes	Extended 7 times; now to 25 Jan 2030
Has a constitutional reservation ever been allowed to lapse?	Yes	Anglo-Indian nomination, 25 January 2020
Do Articles 15(4) and 16(4) have expiry dates?	No	They never did
Is reservation constitutionally mandatory?	No	16(4) is enabling – "nothing shall prevent"
Is the test poverty or representation?	Representation	"Not adequately represented in the services"
Where does the 50% ceiling come from?	Ambedkar	30 Nov 1948 – "confined to a minority"
Was reservation in education in the 1950 text?	No	Added by the First Amendment, 1951
Have courts been able to limit reservation?	Not durably	Every limit tested has been amended away
Is there a defined test for "adequate representation"?	No	Left to the opinion of the State

The three things nobody can tell you

- ▶ **What the framers would say now.** They wrote for a country of 340 million with 12% literacy and almost no private sector. Extrapolating their intent to 2026 is guesswork dressed as authority, whoever does it.
- ▶ **What "efficiency of administration" means.** Article 335 states a condition with no metric. Seventy-five years on, nobody has produced one.

- ▶ **When "adequate representation" would be reached.** No standard exists, so the condition cannot be declared satisfied — by design or by omission, nobody knows which.

■ INTERPRETATION

The one sentence that carries Part 8.

The founders designed a bounded exception with no deadline, conditioned on a standard they never defined — and then their successors removed the bound and left the condition undefined.

Which means the argument in 2026 is not about what the Constitution says. It is about who has the votes to change it, and it always has been.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 8 – THE CONSTITUTION ROOM

1. **The ten-year clock is real and it is in the wrong Article.** Article 334 clocked reserved seats in the Lok Sabha and state assemblies — politics. Articles 15(4) and 16(4), which govern education and jobs, never had an expiry date. The clock has been extended seven times, now to 25 January 2030.
2. **And one part of it really did expire.** The 104th Amendment let Anglo-Indian nomination lapse on 25 January 2020 — the first constitutional reservation ever allowed to end. Proof the sunset mechanism works when the political cost is low enough.
3. **Ambedkar set the 50% ceiling, and EWS crossed it.** On 30 November 1948 he told the Assembly reservation must be "confined to a minority of seats" or equality would be destroyed. That is where *Indra Sawhney's* cap comes from. The 103rd Amendment took central reservation to 59.5% in 2019, and almost nobody invoked him.
4. **Reservation in education was not in the 1950 Constitution.** The Supreme Court struck it down in *Champakam Dorairajan* (1951). Parliament responded with the First Amendment, inserting Article 15(4) — and creating the Ninth Schedule that later protected Tamil Nadu's 69%.
5. **Every constitutional limit that has been tested has been amended away.** Champakam by the 1st, the promotions bar by the 77th, the efficiency clause by the 82nd, judicial limits by the 81st and 85th, the ceiling by the 103rd, the Maratha judgment by the 105th. The argument is not about what the Constitution says. It is about who has the votes.

Coming next

PART 9 — MANDAL AND FIRE

The year India burned over a report.

The Kaka Kalelkar Commission of 1953 and why its own chairman ended up doubting it. The Mandal Commission of 1979–80: its method explained simply, its eleven indicators, its reliance on 1931 census arithmetic, and a fair account of the criticism. Then 1990 — V. P. Singh's announcement, the nationwide protests, the self-immolations, and the permanent redrawing of north Indian politics. And *Indra Sawhney* (1992), the nine-judge bench that gave us the 50% ceiling, the creamy layer, and the exclusion of promotions that Parliament overturned three years later.

A closing thought: the framers' actual design was a minority of seats, for as long as necessary. India now has a majority of seats, for as long as necessary. Each side defends the half of that settlement it prefers, and neither will say the other half aloud. — L.S.

Sources & Notes

Every factual claim in Part 8, and where it comes from.

The Assembly

First sitting 9 December 1946; Constitution adopted 26 November 1949; commencement 26 January 1950. Drafting Committee of seven chaired by B. R. Ambedkar, appointed 29 August 1947. Members were elected indirectly by provincial legislatures chosen on the restricted franchise of the Government of India Act 1935. Ambedkar was first elected from Bengal, lost that seat at Partition, and was re-elected from Bombay.

The Articles

Constitution of India, Articles 14, 15, 16, 17, 29(2), 46, 330, 332, 334, 335, 338, 338A, 338B, 340, 341, 342 and 342A. Article 335 is quoted in full; Article 16(4)'s enabling formulation is quoted in Chapter 3 and discussed in Chapters 7 and 11.

The Constituent Assembly debates

Constituent Assembly Debates, 30 November 1948 — Ambedkar on the draft of what became Article 16: the three positions in the Assembly, the Drafting Committee's task of reconciling them, and his statement that reservation must be confined to a minority of seats so that equality of opportunity under clause (1) is not destroyed. This is the basis of the 50% ceiling later adopted in *Indra Sawhney*. · Debates of 25 November 1949 — the "life of contradictions" speech, quoted in Part 7.

Cases

State of Madras v. Champakam Dorairajan (1951) — Madras communal order struck down under Articles 15(1) and 29(2). · *M. R. Balaji v. State of Mysore* (1963) — 68% reservation struck down; the first judicial statement that special provision should be under 50%; caste alone not the test of backwardness; early warning about advanced sections capturing the benefit. · *Indra Sawhney v. Union of India* (1992) — 27% OBC reservation upheld; 50% ceiling; creamy layer; promotions excluded. · *M. Nagaraj v. Union of India* (2006) — quantifiable data on backwardness, inadequacy of representation and administrative efficiency required before reservation in promotion. · *Jarnail Singh v. Lachhmi Narain Gupta* (2018) — backwardness no longer to be established for SCs and STs; creamy layer applied to them in promotion. · *Janhit Abhiyan v. Union of India* (2022) — EWS upheld 3–2, with two dissents including the Chief Justice. · *State of Punjab v. Davinder Singh* (2024) — sub-classification of Scheduled Castes permitted, 6–1. · *Jaishri Laxmanrao Patil v. Chief Minister* (2021), the Maratha reservation case, which prompted the 105th Amendment.

The amendments

1st (1951) — Article 15(4); Ninth Schedule. 8th (1959), 23rd (1969), 45th (1980), 62nd (1989), 79th (1999) and 95th (2009) — successive extensions of Article 334. 65th (1990) — constitutional status for the National Commission under Article 338. 77th (1995) — Article 16(4A). 81st (2000) — Article 16(4B). 82nd (2000) — proviso to Article 335 permitting relaxation in qualifying marks and standards of evaluation. 85th (2001) — consequential seniority, retrospective to 1995. 89th (2003) — Article 338A. 93rd (2005) — Article 15(5). 102nd (2018) — Articles 338B and 342A. 103rd (2019) — Articles 15(6) and 16(6), EWS. 104th (2019) — Article 334 extended to 25 January 2030; Anglo-Indian nomination not extended, ceasing on that date; signed 21 January 2020, effective 25 January 2020. 105th (2021) — restoration of state power to identify socially and educationally backward classes.

A note on what is missing — and on corrections

Part 8 describes the constitutional design, its amendment history and the leading judgments. It makes no claim about whether reservation has worked (Part 11), about Mandal and its aftermath (Part 9), or about the recent changes (Part 10). Judgments are summarised in outline and are not a substitute for the texts. Amendment numbering follows the official series. If you find an error, I want to know.

END OF PART EIGHT

THE RESERVATION FILES

The Constitution Room

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 9 – Mandal and Fire: the year India burned over a
report
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART NINE

MANDAL AND FIRE

The year India burned over a report. Two commissions, one shelf, ten years of silence, and the autumn that redrew Indian politics permanently.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

The Part I Was Most Afraid To Write

Young people died in 1990. Not metaphorically, not in the aggregate sense in which people die of policy — individually, by name, in public, and on camera.

They were overwhelmingly students. They were overwhelmingly from communities that had held a disproportionate share of India's public employment for a very long time. And they believed, correctly or not, that their futures had just been taken from them by an announcement in Parliament.

Writing about that requires a decision, and I want to state mine before Chapter 6.

"You can believe a policy was right and still refuse to be cheerful about what it cost. Anyone who cannot hold both of those at once should not be writing about 1990."

The anti-Mandal protests are often treated as a shameful episode by privileged people defending privilege. Some of it was. And a nineteen-year-old who takes his own life in public is not a political abstraction, whatever you think of the cause.

Equally, there is a version of this story in which the deaths are the whole point and the reason for the policy vanishes. That is not honest either. Nobody died for the four decades in which the Kalelkar report sat unread, and nobody protested about that.

So Chapter 6 states what happened and does not editorialise over it. I have deliberately not described how anybody died. The scale is the fact that matters, and it is bad enough.

Three other things surprised me. **The first commission's own chairman disowned his own report** — Kaka Kalelkar wrote to the President in 1955 repudiating the caste basis of the recommendations he had just signed, a fact almost never mentioned.

The 27% figure is not a measurement. It is what was left after subtracting the existing quotas from a court-imposed ceiling. Mandal's own estimate of the OBC population was 52%. Chapter 2 explains the gap, and it is not what either side thinks.

And India already tried an economic quota in 1991. The Supreme Court struck it down in 1992. EWS in 2019 was the second attempt, and it needed a constitutional amendment to survive.

— Lovepreet Singh

July 2026

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■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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2 The Mandal Method

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1980 to 1990, and why nobody wanted it

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Everything in this book, compressed

The Commission That Disowned Itself

India's first attempt to identify its backward classes ended with its own chairman writing to the President to repudiate the report he had just signed.

Article 340, described in Part 8, empowers the President to appoint a commission to investigate the conditions of socially and educationally backward classes. It was used almost immediately.

■ FACT

The Kaka Kalelkar Commission, 1953–1955.

Appointed on **29 January 1953** and chaired by Kaka Kalelkar, a Gandhian, writer and social worker. It submitted its report on **30 March 1955**.

It identified **2,399 castes and communities** as socially and educationally backward, of which **837** were classified as most backward, and recommended measures including reservation in government service and educational institutions.

And then the chairman changed his mind

■ FACT

Kalelkar attached a covering letter to the President rejecting the caste basis of his own report.

Having presided over a two-year exercise that identified backwardness by caste, he wrote that he had come to doubt the whole approach — that treating caste as the unit of backwardness would entrench caste rather than dissolve it, and that the remedy risked perpetuating the disease.

Several members of the Commission also recorded dissent.

The Government of India declined to act on it. The Home Ministry's position was that an all-India list of backward classes on caste lines was not acceptable, and the matter was left to the states.

India's first official attempt to identify backward classes produced a report, a repudiation of that report by the man who wrote it, and thirty years of nothing.

■ INTERPRETATION

What each side does with Kalelkar, and what they should do.

The abolition side treats this as the case closed: the first man asked to do the job concluded it could not be done honestly. That is a real point and it deserves more attention than it gets.

But look at what he was objecting to. Kalelkar's doubt was not that backwardness was imaginary — his report documents it at length. It was that *caste as the administrative unit* would entrench caste. He was making the argument the Reservation Hatao Andolan makes in 2026, in 1955, from inside the machinery.

And the retention side has a reply that is rarely given: the alternative Kalelkar wanted was to identify backwardness by economic condition instead. India has now tried that — in 1991, struck down; and again as EWS from 2019. Chapter 8 covers the first attempt, and Part 10 the second. Neither has produced the caste-free outcome he hoped for.

The honest summary: the founding objection to caste-based identification was raised by the first person asked to do it, has never been answered, and the substitutes tried since have not worked either.

The Mandal Method

How the second commission actually worked – and the fact that explains why the figure is 27% and not 52%.

The Second Backward Classes Commission was appointed on **1 January 1979** by the Janata Party government under Morarji Desai, and chaired by **B. P. Mandal**, a former Chief Minister of Bihar. It submitted its report on **31 December 1980**.

The eleven indicators

Mandal's method was more systematic than it is usually credited with being. The Commission built a scoring system and applied it to castes across the country.

■ FACT

Eleven indicators, weighted, out of twenty-two points.

Four social indicators – worth **3 points each** (12 points). These covered whether a caste was regarded as socially backward by others, depended mainly on manual labour, had unusually early marriage, and had women working outside the home at above-average rates.

Three educational indicators – worth **2 points each** (6 points). Non-attendance at school, drop-out rates, and rates of matriculation, each compared against the state average.

Four economic indicators – worth **1 point each** (4 points). Family assets, dependence on loans, housing, and access to drinking water.

A caste scoring **11 or more out of 22** – half – was classified as socially and educationally backward.

Note the weighting, because it is the whole design. Social indicators carry three times the weight of economic ones. This was deliberate: the Commission's view, consistent with Article 16(4) as described in Part 8, was that the category is about social backwardness, with economic condition as evidence rather than as the test.

■ FACT

The findings.

3,743 castes identified as socially and educationally backward.

Other Backward Classes estimated at approximately **52%** of India's population.

Recommended reservation: **27%** in central government services and public sector undertakings.

Now the question almost nobody asks

If the Commission estimated the OBC population at 52%, why did it recommend 27%?

■ FACT

27% is not a measurement of need. It is arithmetic on a court ruling.

The Supreme Court in *Balaji* (1963) had indicated that reservation should stay under 50%. Scheduled Castes already held 15% and Scheduled Tribes 7.5% — a total of 22.5%.

50 minus 22.5 leaves 27.5.

The Commission recommended 27% because that was the space remaining below the ceiling. It said so.

■ INTERPRETATION

This single fact cuts hard in both directions, and neither side uses it.

For the retention side: the figure most fought over in modern India is not a claim that OBCs deserve 27% of anything. On the Commission's own numbers they are 52% of the population receiving 27% of reserved posts. Attacking 27% as excessive means defending a ratio the Commission itself considered a compromise forced by a court.

For the abolition side: it means the number was never derived from evidence about how much correction was needed. It is the residue of a ceiling. Nobody ever established that 27% was the right amount to fix anything — it was simply what fitted.

A policy that has reorganised Indian politics for thirty-six years rests on a figure produced by subtraction.

The Numbers Problem

The most serious criticism of Mandal is a methodological one, it is correct, and there is a defence that its critics almost never confront.

The Commission's central estimate — that Other Backward Classes are around 52% of India — has been carrying enormous political weight for four decades. It should be examined properly.

The three objections, and they are all valid

■ OBJECTION 1

The population figure comes from the 1931 census.

India has not conducted a full caste enumeration since 1931 — a point established in Part 5. So the Commission had no contemporary count of how many people belonged to the castes it was identifying.

It worked from the 1931 figures, with reference also to 1891, arriving at 52% by subtraction: total population, minus Scheduled Castes and Tribes, minus non-Hindu communities, minus forward Hindu castes.

That is arithmetic on data roughly fifty years old at the time of the report, and roughly ninety-five years old today.

■ OBJECTION 2

The 1931 data covers a country that no longer exists.

The 1931 census was of undivided India. Its population included the territories that became Pakistan and Bangladesh, and Burma had been administratively separated only in 1937.

Using it to estimate proportions in the India of 1980 requires assumptions about partition, differential migration and differential population growth over half a century.

■ OBJECTION 3

The field survey covered 810 villages.

India has more than seven lakh villages. The Commission's own survey sample was in the region of **0.1%** of them.

From that base it classified 3,743 castes across an enormous and heterogeneous country.

All three objections are accurate. Anyone defending Mandal has to accept them.

And now the defence, which is stronger than it sounds

STEELMAN — IN DEFENCE OF THE METHOD

- 1. The data gap was created by the state, not by the Commission.** India stopped counting caste after 1931 as a deliberate post-independence policy. A commission appointed to identify backward castes was therefore instructed to do so by a government that had spent thirty years refusing to collect the information required. The Commission did not choose to use 1931 data; it was the only data in existence.
- 2. The alternative was to do nothing.** Article 340 required an investigation. If the absence of a caste census makes such an investigation impossible, then the constitutional provision is inoperable by design — and the government that refused to count is the party that made it so.
- 3. The classification and the population estimate are separate exercises.** The eleven-indicator scoring identified *which* castes were backward. The 1931 data was used to estimate *how many people* that covered. An error in the second does not automatically invalidate the first.
- 4. And the recommendation did not depend on the 52% figure.** As Chapter 2 showed, 27% came from the 50% ceiling minus existing quotas. If the OBC share were 40% or 60%, the recommendation would have been the same, because it was constrained by law rather than by population.

■ INTERPRETATION

Where this leaves the argument — and why 2027 settles it.

The criticism is right that the numbers are weak. The defence is right that the weakness was manufactured by a state that refused to measure.

And both are about to become obsolete. Census 2027 includes full caste enumeration, with field work having begun in April 2026. For the first time since 1931, India will have an actual count.

It is worth noticing that *neither side is confident about what it will show*. If OBCs turn out to be well below 52%, the case for 27% weakens considerably. If they turn out to be above it, the demand to breach the ceiling becomes far harder to resist.

Part 10 covers this. It is the single most consequential dataset in the entire argument, and it will land while this series is still being written.

Ten Years On A Shelf

The report was submitted in December 1980 to a government that had not asked for it, and nobody touched it for a decade.

The Mandal Commission was appointed by the Janata Party government in January 1979. That government collapsed. Indira Gandhi returned to power in January 1980.

The report was submitted on 31 December 1980 — to a Prime Minister whose party had not commissioned it, did not want it, and had no political interest in acting on it.

It sat. Through Indira Gandhi's return, through her assassination in 1984, through Rajiv Gandhi's enormous majority and his entire term. Nine and a half years.

■ INTERPRETATION

Why the shelving matters as much as the implementation.

It shows the policy was never inevitable. Two Congress governments with large majorities declined to implement a report that had been formally submitted to them. There was no constitutional compulsion and no political cost to inaction.

It shows what changed in 1990 was not the evidence. The report in August 1990 was the same document it had been in January 1981. What differed was that a Prime Minister needed something in a way that his predecessors had not.

And it tells you something about the shape of Indian politics before Mandal. A report identifying half the population as backward could be ignored for a decade because that half did not yet vote as a bloc. After 1990 it did, and no government has been able to ignore it since.

Which is the real answer to why reservation has proved so difficult to reverse — and Part 14 will have to build on it.

7 August 1990

The announcement, and the argument about why it was made – with both readings given properly.

On 7 August 1990, Prime Minister V. P. Singh announced in Parliament that his government would implement the Mandal Commission's recommendation: **27% reservation for Other Backward Classes in central government jobs**. The office memorandum giving effect to it followed on 13 August.

The position he was in

V. P. Singh headed a National Front minority government that survived on support from two irreconcilable directions – the BJP on one side and the Left on the other. Within his own coalition he faced a direct challenge from Devi Lal, his deputy, who had significant support among north Indian agrarian communities.

READING ONE – CONVICTION

V. P. Singh had a long record on the question and the report had been ignored for a decade by governments with far more power to act. Somebody had to implement it eventually, and no moment would ever have been convenient.

He knew the cost. He implemented it anyway, and it destroyed his government within three months. Whatever else that is, it is not the behaviour of a man doing the easy thing.

READING TWO – SURVIVAL

The timing is the argument. The announcement came days after a leadership challenge from a rival whose base was precisely the communities Mandal would benefit, in a minority government whose survival depended on holding a coalition together.

Implementing Mandal built a new constituency at a stroke and cut the ground from under the challenger. Ten years of inaction followed by action in a week of crisis is a pattern with an obvious explanation.

■ INTERPRETATION

Both are probably true, and the question is less interesting than it looks.

Politicians act on conviction when circumstances make it survivable and often not otherwise. That is not cynicism; it is how democratic politics works everywhere.

The more useful observation is what the timing tells you about the *previous* decade. If a beleaguered minority Prime Minister could implement Mandal in a week, then two majority governments could have implemented it at any point in the 1980s.

They did not, because there was no pressure to. The policy waited not for evidence, or for readiness, or for a court, but for a government weak enough to need it.

The Fire

What happened in the autumn of 1990, stated plainly and without commentary.

Within weeks of the announcement, north India — and Delhi above all — was in sustained public disorder. University campuses shut. Roads and railways were blockaded. There were riots, and there were deaths in police action.

And there was a form of protest that had no real precedent on this scale in independent India.

■ FACT

19 September 1990.

Rajiv Goswami, a student at Deshbandhu College, Delhi University, attempted to take his own life in public as a protest against the implementation of Mandal. He survived with severe injuries. He died in 2004, aged 33.

A photograph of the incident became one of the defining images of the period, and it was followed by similar acts by students across the country.

■ FACT

The scale.

The historian Ramachandra Guha puts the number of such attempts at around **200**, with more than **60** people dying.

Other accounts give figures of approximately **159 attempts and 63 deaths**. Contemporary reporting places attempted self-immolations at over 150.

The participants were overwhelmingly young, urban, students, and from communities not covered by any reservation.

I am not going to describe any of it further. The numbers are the fact that matters.

■ INTERPRETATION

Three things about 1990 that are worth saying carefully.

First, the fear was real and it was about a real thing. India in 1990 was a closed, slow-growing economy in which a government job was, for an educated young person without capital, close to the only secure route to a middle-class life. The private sector that exists now did not. Removing a quarter of those posts from open competition was, in that economy, an enormous change to a very small set of opportunities.

Second, that is a fact about scarcity, not about caste. The same announcement in 2026, in an economy with a vastly larger private sector, would not produce the same reaction — and the current movement, as Part 1 noted, is conducting itself in comment sections rather than on the street. The intensity of 1990 is a measure of how little else there was.

Third, and this is the hardest one: the deaths of 1990 are used, in a great deal of writing, as an argument. They are not an argument. They are a cost. A policy can be justified and still have cost sixty young lives, and pretending otherwise — in either direction — is where this subject usually goes wrong.

A NOTE

This chapter deals with suicide, and it is a difficult subject. If any of it touches you personally, please talk to someone you trust. I can help you find appropriate support resources if that would be useful.

Mandal Against Kamandal

Seventy-eight days in the autumn of 1990 that set the shape of Indian politics for the next thirty-six years.

What happened next is the most consequential political sequence in modern India, and it is usually told as two separate stories. It is one story.

7 Aug 1990

Mandal announced

27% OBC reservation in central services.

25 Sep 1990

The Rath Yatra begins

L. K. Advani sets out from Somnath in Gujarat towards Ayodhya, on a campaign built around the Ram temple. The BJP, which was supporting V. P. Singh's government from outside, now had a mobilisation of its own.

23 Oct 1990

The arrest

Advani is arrested in Bihar, on the orders of a state government headed by Lalu Prasad Yadav — himself a leader of the OBC politics Mandal had energised.

7 Nov 1990

The government falls

The BJP withdraws support. V. P. Singh loses the confidence vote. Seventy-eight days had passed between deputy and defeat since Advani's yatra began.

The framing that came out of it

Indian commentary has described the period ever since as **Mandal versus Kamandal** — the commission against the water pot carried by ascetics. Two mass mobilisations launched within weeks of each other, offering the same electorate two different primary identities.

TWO WAYS OF ORGANISING THE SAME VOTERS

	MANDAL	KAMANDAL
The unit	Caste	Religion
The claim	You have been kept out. Take your share.	You are one people. Stop being divided.
Who it splits	Hindus, by caste	Indians, by religion
Who it unites	OBCs, SCs and STs across regions	Hindus across castes

■ INTERPRETATION

The relationship between them, and why the sequence matters.

The two mobilisations are frequently described as though one caused the other. The honest position is narrower.

What is established: the Rath Yatra was launched seven weeks after the Mandal announcement, by a party then supporting the government that had made it, and its consequences brought that government down.

What is not established: that the Ayodhya campaign existed *because* of Mandal. That movement had its own long history predating 1990.

What is undeniable: that from 1990 onward, Indian national politics has been organised around the competition between a caste-based and a religion-based account of who "we" are — and that both accounts were placed before the electorate within the same eight weeks.

Every election since has been fought on some version of that contest.

And the electoral consequence

■ FACT

Mandal created a permanent political constituency.

The decade after 1990 saw the rise of parties built on OBC and backward-caste consolidation — the Samajwadi Party, the Rashtriya Janata Dal, the Janata Dal (United) — and of leaders including Mulayam Singh Yadav, Lalu Prasad Yadav and Nitish Kumar, who between them dominated the politics of Uttar Pradesh and Bihar for a generation.

The political scientist Yogendra Yadav has described the period as a "second democratic upsurge": a large expansion in political participation and representation by groups previously outside power.

This is the answer to a question the abolition side rarely asks itself: why has no government reversed reservation? Chapter 4 gave half the answer — the constituency did not exist before 1990. This chapter gives the other half. After 1990 it did, and it decides elections.

Indra Sawhney

16 November 1992. Nine judges. Six to three. And an economic quota that almost nobody remembers being struck down.

The Mandal order was immediately challenged. The Supreme Court constituted a nine-judge bench — one of the largest ever assembled on a single question — and delivered judgment on **16 November 1992**.

Part 8 summarised what it held. This chapter is about the part that gets left out.

What the Court decided

INDRA SAWHNEY V. UNION OF INDIA, 1992

Question	Held
27% for OBCs	Upheld , by 6 votes to 3. Caste may be the starting point for identifying a backward class, because in India caste and social backwardness substantially overlap.
Total reservation	Capped at 50% in normal circumstances — the ceiling traced in Part 8 to Ambedkar's own words in 1948.
Creamy layer	Must be excluded . Advanced members of a backward class are to be identified and taken out.
Promotions	Excluded . Article 16(4) does not extend to promotion. Overruled by Parliament three years later.
Economic-only reservation	Struck down . See below.

The forgotten holding

■ FACT

India tried an economic quota in 1991, and the Supreme Court struck it down in 1992.

In September 1991, the government of P. V. Narasimha Rao issued an office memorandum modifying the Mandal order. It added a further **10% reservation for other economically backward sections** — people not covered by any existing scheme.

That is EWS, twenty-eight years early.

Indra Sawhney struck it down. The Court's reasoning was that Article 16(4) permits reservation for a **backward class**, and that economic criteria alone cannot constitute a class for that purpose. Poverty is not the test the Constitution set; social and educational backwardness is.

■ INTERPRETATION

Follow this thread carefully, because it explains 2019 and it explains 2026.

An economic quota was attempted by executive order in 1991 and held unconstitutional in 1992.

In 2019 the same idea was enacted again — this time by **amending the Constitution**, inserting Articles 15(6) and 16(6), which is precisely what was required to get around the 1992 holding. It was upheld in 2022 by 3 votes to 2.

What this means for the Reservation Hatao Andolan's central proposal: replacing caste-based reservation with economic criteria is not a fresh idea. It is a proposal India has now attempted twice, which required a constitutional amendment to become lawful at all, and which the Supreme Court has said cannot substitute for the constitutional test of backwardness.

Whether it works is a separate question, and Part 10 examines the record of EWS since 2019. But anybody arguing that nobody has ever tried this should know that the first attempt is thirty-five years old and is in the law reports.

The Creamy Layer

The filter the Court ordered in 1992, how it was built, and the number that has not moved since 2017.

The *Indra Sawhney* judgment required that advanced sections within backward classes be excluded from the benefit. Somebody then had to decide what "advanced" meant.

■ FACT

The Ram Nandan Prasad Committee, 1993.

Constituted to give effect to the Court's direction. It set out the criteria that still govern OBC creamy-layer exclusion, combining an income threshold with categorical exclusions.

The categorical exclusions cover children of holders of constitutional posts, of officers of specified senior ranks in the civil and armed services, and of certain professionals — regardless of income.

The income line, over three decades

THE OBC CREAMY LAYER INCOME LIMIT

Year	Limit	Note
1993	₹1 lakh	The original threshold
2004	₹2.5 lakh	
2008	₹4.5 lakh	
2013	₹6 lakh	
2017	₹8 lakh	Raised by order dated 13 September 2017
2026	₹8 lakh	Unchanged for nine years

■ INTERPRETATION

Two observations, and they point in opposite directions.

The line has not been raised since 2017, and that is unusual. Between 1993 and 2017 it was revised five times, roughly every five years, broadly tracking inflation. It has now been static for nine, despite repeated demands from state governments and from the National Commission for Backward Classes.

The effect of freezing a nominal income threshold is that inflation gradually pushes more families above it. A creamy layer limit that does not move is a quota that quietly shrinks.

And the number is the same as the EWS threshold. As Part 1 noted, EWS eligibility also uses ₹8 lakh. Which produces the observation that neither side likes: at exactly the same household income, a person from an OBC family is too rich to qualify for OBC reservation, and a person from a general-category family is poor enough to qualify for EWS.

Whatever the merits of either scheme, that is not a coherent way to draw a poverty line.

The Second Round

2006 to 2008 – Mandal reached the classroom, there were protests again, and this time somebody found a compromise.

Mandal in 1990 applied to jobs. It did not apply to admission to central educational institutions. That took another eighteen years, and it produced the second great anti-reservation agitation.

2005 • 93rd

The constitutional route

Article 15(5) is inserted, permitting reservation in educational institutions including private ones, other than minority institutions.

2006

The Act, and the protests

The Central Educational Institutions (Reservation in Admission) Act provides 27% OBC reservation in institutions including the IITs, the IIMs and AIIMS. Medical students and others mount sustained protests, organised largely under the banner of Youth for Equality.

2008

Upheld

In *Ashoka Kumar Thakur v. Union of India*, the Supreme Court upholds the Act for government-funded institutions, while requiring exclusion of the creamy layer from OBC reservation in admissions. Implementation proceeds in phases.

The compromise nobody remembers

■ FACT

Total seats were expanded so that the number of unreserved seats did not fall.

Rather than converting existing seats, the government substantially increased overall intake in the affected institutions — an expansion of the order of 54% — phased over several years, so that the absolute number of seats available to unreserved candidates was preserved.

Reservation was delivered by making the pie larger rather than by re-cutting it.

■ INTERPRETATION

Why this is the most important paragraph in Part 9.

Compare the two rounds.

1990: a fixed number of government posts, redistributed. Zero-sum. Sixty deaths.

2008: reservation introduced alongside an expansion of capacity. Not zero-sum. Protests, litigation, and no comparable violence.

The difference in outcome is enormous, and the mechanism is not mysterious. When the reserved share rises and the absolute number of unreserved places stays constant, the arithmetic that produces panic is removed.

For the abolition side: this concedes something important. The 2006–08 round shows that the intensity of opposition tracks scarcity rather than principle. If the objection were purely to caste as a criterion, expansion would not have defused it.

For the retention side: it concedes something too. The policy was politically survivable in 2008 because it was made non-zero-sum, which is an admission that the zero-sum version imposes a real cost on identifiable people.

And for 2026: this is the single most useful precedent in this book, and Part 14 will return to it. The one demonstrated way of implementing reservation without a crisis is to expand the thing being reserved. Nobody in the current argument — on either side — is talking about expansion.

What Mandal Actually Changed

Thirty-six years on. What moved, and the three things that did not.

What it changed

- ▶ **It created a political identity.** Before 1990 "OBC" was an administrative category in a shelved report. After 1990 it was a bloc that decides national elections, and every party in India now competes for it.
- ▶ **It changed who governs.** The leaders and parties described in Chapter 7 came to dominate the two largest states in the country. Representation in legislatures shifted substantially.
- ▶ **It put OBCs into the central services,** where their presence had been minimal.
- ▶ **It made caste sayable in national politics.** Before Mandal, open appeal to caste was regarded as backward and slightly disreputable in mainstream discourse. After it, every party does it, including those that deny doing it.

What it did not change

■ INTERPRETATION

Three failures, and each is inconvenient for a different group.

1. It did not reach the bottom of its own category. The 3,743 castes Mandal identified are not similar to one another. Some were already substantial landowning communities; some were not. Thirty-six years on, there is no sub-classification of OBC reservation of the kind the Supreme Court permitted for Scheduled Castes in 2024. Some states have created most-backward sub-categories; the centre has not. The benefit within the 27% is not distributed evenly and nobody knows by how much.

2. It did not produce the numbers to check itself. Thirty-six years after implementation, India still has no contemporary count of how many OBCs there are. A policy of this scale has been running on an estimate derived from a 1931 census. That is not a criticism of Mandal; it is a criticism of every government since.

3. It did not touch the private sector. Mandal was implemented in 1990 into an economy about to be liberalised. Government employment as a share of Indian jobs has been falling ever since. The policy captured a share of a prize that has been shrinking for its entire operational life.

Which is the finding that should trouble both camps. The abolition side is fighting over a diminishing quantity. The retention side won a share of a market that has been leaving.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Why 27% and not 52%?

Because 50 minus 22.5 is 27.5. The most contested number in modern India is the remainder of a subtraction from a judicial ceiling, not a finding about how much correction anyone needs.

Once you know this, arguments that 27% is excessive and arguments that it is a full remedy both look different.

2. Why did the first commission's chairman disown his own report?

Kalelkar concluded in 1955 that caste-based identification would entrench caste. That is the Reservation Hatao Andolan's argument, made from inside the machinery seventy-one years earlier, by a Gandhian appointed to do the job.

Neither side quotes him. The abolition side would have to explain why his proposed alternative has since failed twice; the retention side would have to engage with the objection.

3. Why has India refused to count caste since 1931?

Every criticism of Mandal's numbers is downstream of this. The state declined to collect the data and then commissioned an investigation that required it.

The refusal was itself a policy choice, made by governments that also declined to implement Mandal. Nobody treats it as a decision, but it was one, and it lasted ninety-five years.

4. An economic quota was struck down in 1992. Why does nobody mention it?

The Narasimha Rao government's 10% for economically backward sections was held unconstitutional in *Indra Sawhney*. The abolition side proposes essentially the same thing without knowing it has a legal history. The retention side does not raise it because EWS was upheld in 2022 and the precedent now cuts against them.

5. Who inside the 27% actually got it?

The Supreme Court permitted sub-classification of Scheduled Castes in 2024 on the finding that benefits had concentrated unevenly. The same question applies with at least equal force to a category of 3,743 castes — and no equivalent national exercise has been done.

Dominant OBC communities and the most deprived ones compete in the same pool. This is the most obvious unexamined problem in Indian reservation policy.

6. Why was 2008 survivable when 1990 was not?

Because seats were expanded and the absolute number of unreserved places was held constant. It is the only demonstrated method of implementing reservation without a crisis, it worked, and nobody in 2026 is proposing it.

7. Did Mandal cause the rise of Hindutva?

The sequence is documented and the causal claim is not. The Rath Yatra began seven weeks after the announcement; the Ayodhya movement had its own longer history.

What is undeniable is that both accounts of Indian identity were placed before the same electorate in the same eight weeks, and that the competition between them has organised national politics ever since.

8. Why did the constituency not exist before 1990?

The report sat for nine and a half years because the people it would benefit did not yet vote as a group. After implementation they did.

Which is the actual answer to why reservation cannot be reversed — not the Constitution, not the courts, but that the policy created its own electorate. Part 14 has to reckon with this.

9. What happens if Census 2027 says something unexpected?

Both sides have built positions on a 52% estimate derived from 1931 data, and neither knows what an actual count will show.

If the figure is much lower, the case for 27% weakens. If it is much higher, the pressure to breach the 50% ceiling becomes very hard to resist. Nobody is preparing publicly for either result, which suggests nobody is confident.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 9.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Did the first commission's chairman reject its basis?	Yes	Kalelkar's covering letter, 1955
Was Mandal's method arbitrary?	No	11 weighted indicators, 22-point scale
Was its population estimate weak?	Yes	1931 census, pre-partition, 810 villages
Where does 27% come from?	Subtraction	50% ceiling minus 22.5% for SC and ST
Why was it implemented in 1990 and not 1981?	Politics	A minority government under internal challenge
How many died in the protests?	~60–63	From roughly 150–200 attempts
Was 27% upheld?	Yes, 6–3	<i>Indra Sawhney</i> , 16 November 1992
Was an economic quota tried before EWS?	Yes	1991 order, struck down in 1992
Has the creamy layer line kept pace?	No	₹8 lakh since 2017
How is the 27% distributed within OBCs?	Unknown	No national sub-classification exists

The three things nobody can tell you

- ▶ **How many OBCs there are.** Until Census 2027 reports, every figure in this argument is an extrapolation from 1931.
- ▶ **Whether V. P. Singh acted from conviction or calculation.** Both explanations fit the evidence and they are not mutually exclusive.
- ▶ **What would have happened without Mandal.** The counterfactual is unrunnable, and both sides assert it confidently.

■ INTERPRETATION

The one sentence that carries Part 9.

Mandal was a weakly evidenced policy, implemented for mixed motives, at a terrible human cost, which then created the political constituency that has made it irreversible — and which nobody has since bothered to measure properly.

That sentence is uncomfortable for everyone, which is usually the sign that it is close to right.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 9 — MANDAL AND FIRE

1. **27% is a leftover, not a measurement.** Mandal estimated OBCs at 52% of India and recommended 27% — because the *Balaji* ceiling was 50%, SC and ST already held 22.5%, and 50 minus 22.5 is 27.5. The most fought-over number in modern India is the remainder of a subtraction.
2. **The first commission's chairman disowned his own report.** Kaka Kalelkar wrote to the President in 1955 arguing that caste-based identification would entrench caste — the Reservation Hatao Andolan's own argument, made from inside the machinery seventy-one years earlier, and never answered by anyone.
3. **The report sat for nine and a half years because nobody needed it.** Two Congress governments with large majorities ignored it. It was implemented on 7 August 1990 by a minority Prime Minister facing an internal challenge — and his government fell within three months.
4. **Around 60 people died.** Roughly 150–200 attempts at self-immolation, overwhelmingly by young urban students from unreserved communities, in an economy where a government job was close to the only secure route to a middle-class life. That is a cost, not an argument — and treating it as either a scandal or a talking point is where this subject usually goes wrong.
5. **India already tried an economic quota — and it failed.** A 10% reservation for economically backward sections was introduced by executive order in 1991 and struck down by *Indra Sawhney* in 1992, because poverty alone cannot constitute a "backward class" under Article 16(4). EWS in 2019 needed a constitutional amendment to do the same thing lawfully.

Coming next

PART 10 — THE MODERN REWRITE

The rules changed more in seven years than in the previous forty.

EWS in 2019 and the breaking of the 50% ceiling; the two dissents in 2022 and what they said. The irony chapter: Marathas, Jats, Patidars and Kapus — dominant communities demanding *inclusion* in quotas rather than abolition, and what that reveals. The 2024 sub-classification verdict, the biggest structural change in decades. Census 2027 and the caste count that will settle or explode everything in Part 9. Reservation in the private sector, in the judiciary and in the media — the three places it does not exist. And where the Reservation Hatao Andolan actually fits into all of it.

A closing thought: the most useful thing in this part is the one nobody cites. In 2008 India implemented a 27% quota in its most competitive institutions by expanding total seats so that unreserved places did not fall — and it passed without a crisis. That is the only demonstrated method of doing this without people dying, and it is absent from the 2026 argument entirely. —
L.S.

Sources & Notes

Every factual claim in Part 9, and where it comes from.

The two commissions

First Backward Classes Commission (Kalelkar Commission), appointed under Article 340 on 29 January 1953, chaired by Kaka Kalelkar; report submitted 30 March 1955; 2,399 castes and communities identified as backward, 837 as most backward. Kalelkar's covering letter to the President expressing doubt about caste as the basis of classification, and the dissents recorded by other members. The Government of India declined to accept an all-India caste-based list and left the matter to the states. · Second Backward Classes Commission (Mandal Commission), appointed 1 January 1979 under the Janata Party government of Morarji Desai, chaired by B. P. Mandal; report submitted 31 December 1980; 3,743 castes identified as socially and educationally backward; OBC population estimated at approximately 52%; 27% reservation recommended.

Method and criticism

Eleven indicators: four social at 3 points each, three educational at 2 points each, four economic at 1 point each, out of 22; castes scoring 11 or more classified as backward. · Population estimate derived from the 1931 census, with reference to 1891, by subtraction; the 1931 census covered undivided India. · Field survey covered approximately 810 villages, against more than seven lakh in India — roughly 0.1%. · The 27% figure derives from the 50% limit indicated in *M. R. Balaji v. State of Mysore* (1963) less the 22.5% already reserved for Scheduled Castes and Scheduled Tribes.

1990

V. P. Singh's announcement of 27% OBC reservation in central government jobs, 7 August 1990; office memorandum, 13 August 1990. · Rajiv Goswami, student of Deshbandhu College, Delhi University, 19 September 1990; he survived and died in 2004. · Ramachandra Guha puts the number of self-immolation attempts at around 200 with more than 60 deaths; other accounts give approximately 159 attempts and 63 deaths; contemporary reporting places attempts at over 150. · L. K. Advani's Rath Yatra from Somnath, begun 25 September 1990; his arrest in Bihar on 23 October 1990 under the government of Lalu Prasad Yadav; withdrawal of BJP support and the fall of the V. P. Singh government on 7 November 1990.

Law and implementation

Indra Sawhney v. Union of India, judgment of 16 November 1992, nine-judge bench: 27% OBC reservation upheld 6–3; 50% ceiling; creamy layer to be excluded; Article 16(4) held not to extend to promotions; and the September 1991 office memorandum of the Narasimha Rao government providing 10% reservation for other economically backward sections struck down on the ground that economic criteria alone cannot constitute a backward class. · Ram Nandan Prasad Committee, 1993, on creamy layer criteria. · Creamy layer income limits: ₹1 lakh (1993), ₹2.5 lakh (2004), ₹4.5 lakh (2008), ₹6 lakh (2013), ₹8 lakh (order of 13 September 2017), unchanged since. · 93rd Amendment (2005) inserting Article 15(5); Central Educational Institutions (Reservation in Admission) Act, 2006; *Ashoka Kumar Thakur v. Union of India* (2008) upholding it for government-funded institutions with creamy layer exclusion; phased implementation with a substantial expansion of total seats — of the order of 54% — so that unreserved places were not reduced.

A note on what is missing — and on corrections

Part 9 covers the identification of Other Backward Classes and the events of 1990–2008. It makes no claim about whether reservation works (Part 11), about developments since 2019 (Part 10), or about Census 2027 beyond noting that field work began in April 2026. Casualty figures for 1990 differ between sources and all the main estimates located are given rather than a single preferred number. Descriptions of self-immolation have been deliberately limited to the fact and the scale. If you find an error, I want to know. Corrections will be carried in later parts.

END OF PART NINE

THE RESERVATION FILES Mandal and Fire

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 10 – The Modern Rewrite: 2019 to 2026
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART TEN

THE MODERN REWRITE

2019 to 2026. The ceiling broke, the categories split, the count returned — and the biggest change of all is happening while everyone argues about exam seats.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Part That Is Still Moving

Every other part of this series describes something finished. This one describes something happening now, and some of it will have changed by the time you read it.

That is uncomfortable to write and it is the point. The Reservation Hatao Andolan appeared in July 2026 demanding the abolition of a system it describes as frozen, unexamined and permanent. In fact the seven years before it were the most active period of change in Indian reservation since 1990.

"A movement demanding that a stationary object be moved has appeared during the object's fastest period of movement in three decades."

Since 2019 the fifty per cent ceiling has been broken, a caste-blind quota has been created and upheld by a single vote, the Scheduled Caste category has been split for the first time, two states have already implemented the split, and India has begun counting caste again after ninety-five years.

And there is one more thing, which is the largest of all and which almost nobody in the July argument has mentioned.

In April 2026, three months before the Reservation Hatao Andolan existed, Parliament sat in special session to consider raising the Lok Sabha from 543 seats to 850. Reserved seats under Articles 330 and 332 are proportional. Which means the single biggest expansion of political reservation in Indian history is currently before Parliament — and the national argument is about medical college cut-offs.

Chapter 8 covers it. I think it is the most important chapter in this part, and I would be surprised if one reader in a hundred has heard about it.

Two warnings. First, this part contains figures that are current as of July 2026 and are moving; where something is under litigation or before Parliament, I say so. Second, I have tried to give the Reservation Hatao Andolan a fair hearing on its own strongest ground — Chapter 10 — because in this landscape they have one very good point and it is not the one they lead with.

— Lovepreet Singh

July 2026

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The Ceiling Breaks

A limit that had stood for twenty-seven years was removed by a constitutional amendment that passed in two days.

In January 2019, Parliament passed the **103rd Constitutional Amendment**, inserting Articles 15(6) and 16(6) and creating a 10% reservation for Economically Weaker Sections among those not covered by any existing quota.

■ FACT

The speed.

The Bill was introduced and passed by the Lok Sabha on **8 January 2019** and by the Rajya Sabha on **9 January 2019**. It received assent within days.

An amendment to the Constitution of India, breaching a ceiling the Supreme Court had established in 1992 and traced in Part 8 to Ambedkar's own words in 1948, was through both Houses in roughly forty-eight hours.

Compare the timelines elsewhere in this series. Mandal waited nine and a half years on a shelf. The Balakrishnan Commission on Dalit converts, from Part 4, has been extended repeatedly since 2022 and has still not reported.

What EWS actually is

THE ELIGIBILITY CRITERIA

Test	Threshold
Who is eligible	Those not covered by SC, ST or OBC reservation — in practice, the general category
Family income	Below ₹8 lakh a year
Agricultural land	Below 5 acres
Residential flat	Below 1,000 square feet
Residential plot	Below 100 square yards in a notified municipality; below 200 square yards elsewhere

■ FACT

Central reservation reached 59.5%.

SC 15% + ST 7.5% + OBC 27% + EWS 10% = 59.5%, leaving 40.5% open.

The *Indra Sawhney* ceiling had held since 1992. It no longer does.

■ INTERPRETATION

Two observations that neither side makes.

The first is about what EWS proves. India now runs a caste-blind, income-tested quota, and has done since 2019. The Reservation Hatao Andolan's central proposal — replace caste with economic criteria — is not hypothetical. Ten per cent of central seats already work that way, and Chapter 3 examines how.

The second is about the exclusion. EWS is available only to people who get no other reservation. A poor Dalit family and a poor Brahmin family with identical incomes are treated differently: one is eligible, one is not.

Defenders say this is obvious — the excluded groups have their own provision. Critics say a poverty quota that excludes the poorest communities in the country is not a poverty quota. That disagreement is the whole of Chapter 2, and it split the Supreme Court down the middle.

Three To Two

The 2022 judgment upholding EWS. Both dissents, and the warnings the majority itself issued.

In November 2022, a five-judge bench of the Supreme Court decided *Janhit Abhiyan v. Union of India*. EWS survived by **three votes to two**.

The majority

WHAT THE MAJORITY HELD

1. Reservation based purely on economic criteria is permissible. The Constitution does not confine special provision to social and educational backwardness.
2. Excluding SCs, STs and OBCs from EWS does not violate equality, because those groups already have their own reservation. Including them would give them a double benefit.
3. The 50% ceiling is not inviolable. It applies to reservation under Articles 15(4) and 16(4), and does not bind a separate provision created by a new amendment.

The dissents

WHAT CHIEF JUSTICE LALIT AND JUSTICE BHAT HELD

On the exclusion. The core objection was that this was the first time the Court had approved a scheme built on an *exclusionary* principle. A quota justified by poverty that specifically bars the poorest communities in India is not a poverty measure. Being poor and being Dalit are not alternatives; the same person can be both, and the scheme tells them to choose.

On the ceiling. Once 50% is treated as breachable by creating a new provision, there is no principled stopping point. Any future government can add another category by amendment and the limit becomes decorative.

■ FACT

And two of the three judges in the majority warned about permanence.

Judges in the majority separately observed that reservation should not be allowed to become a vested interest, that the policy required review, and that a time limit should be considered — echoing the framers' expectation set out in Part 8.

So of five judges hearing the case, two would have struck the scheme down and at least two of the remaining three attached explicit warnings about the direction of travel.

■ INTERPRETATION

Why this judgment matters more than its result.

For the abolition side: the majority's reasoning is the single most useful thing they have. A court has now held that economic-only reservation is constitutionally permissible — reversing the position in *Indra Sawhney* that Part 9 described. The legal obstacle to their proposal has been removed by a judgment they rarely cite.

For the retention side: the dissent is the strongest statement anyone has made of what is wrong with replacing caste with income. Not that it is unfair to the beneficiaries of the current system, but that it does not do the thing it claims to do — it excludes the poorest.

And for everyone: a single vote. Had one judge gone the other way, EWS would not exist, the ceiling would still stand, and the argument in July 2026 would be taking place on completely different ground.

Eight Lakh

India has been running an economic quota for seven years. This is what it has taught us — and the finding is bad for both sides.

The most useful thing about EWS is not the argument about it. It is that it is a live experiment in exactly the policy the Reservation Hatao Andolan proposes, and it has been running since 2019.

The threshold problem

■ THE PROBLEM WITH ₹8 LAKH

A line drawn so high that almost nobody in the eligible pool falls outside it.

₹8 lakh a year is roughly ₹67,000 a month. Critics have consistently pointed out that at that level, the overwhelming majority of Indian households — on many estimates well over ninety per cent — fall below the line.

A category defined so broadly is not identifying the economically weaker. It is identifying almost everyone who is not already covered by another quota.

■ FACT

And the government could not explain where the number came from.

When the criteria were challenged, the Supreme Court asked what study the ₹8 lakh figure was based on. The government's position was that it had adopted the same figure used for the OBC creamy layer.

A committee was then constituted to examine the criteria. It recommended retaining ₹8 lakh.

Which produces the situation already noted in Part 1 and Part 9, and it is worth stating in its final form.

At exactly ₹8 lakh of household income, an OBC family is too rich to qualify for OBC reservation and a general-category family is poor enough to qualify for EWS. The same number, in the same country, in the same year, means opposite things.

And the part that repeats 2008

■ FACT

EWS was implemented with seat expansion, not seat conversion.

As with the OBC round of 2006–08 described in Part 9, central educational institutions increased total intake — by roughly a quarter — so that the absolute number of seats available to unreserved candidates would not fall.

Critics noted at the time that the expansion was not matched by a corresponding increase in faculty, in a system where a large proportion of teaching posts were already vacant.

■ INTERPRETATION

What seven years of EWS actually establishes.

Against the abolition case: an income-based quota does not escape the problems of a caste-based one. It still requires a category, a threshold, verification, certificates, and an administrative machine. It still generates disputes about who qualifies. And its threshold was set by copying another quota's number rather than by measuring poverty. Replacing caste with income does not produce a neutral system; it produces a differently arbitrary one.

Against the retention case: the political system created and passed a caste-blind quota in forty-eight hours, and the Supreme Court upheld it. The claim that economic criteria are constitutionally impossible is no longer true, and defenders who still make it are working from the 1992 position.

And the observation that should trouble everyone: the EWS expansion, like the 2008 expansion, worked by making the pie larger. Both times it defused the conflict. Nobody drew the general lesson, and nobody is applying it now.

The Irony

The most powerful farming communities in India have spent a decade demanding to be officially classified as backward. That fact tells you more than any argument.

While one movement demands the abolition of reservation, several very large communities have been agitating — with road blockades, mass rallies and sustained political pressure — to be included in it.

Jats

Included, then removed

Jat communities in nine states were added to the central OBC list in 2014. In *Ram Singh v. Union of India* (2015) the Supreme Court quashed the inclusion, holding that the decision had disregarded the advice of the National Commission for Backward Classes and that caste could not be the sole determinant of backwardness. Agitations followed, notably in Haryana.

Patidars

Gujarat, from 2015

A mass agitation by the Patidar community — historically among the most prosperous and politically dominant in Gujarat — demanding OBC status.

Kapus

Andhra Pradesh

A comparable demand from another substantial landholding community.

Gujjars

Rajasthan

A long-running demand for Scheduled Tribe status, including repeated blockades of road and rail.

Marathas

The largest of all — and still live

See below.

Maharashtra, now

■ FACT

The Maharashtra SEBC Act, 2024 — and 62%.

Passed on **20 February 2024**, the Act provides **10% reservation** for Marathas in state jobs and educational institutions, on the basis of findings by a commission headed by Justice Sunil Shukre.

It takes total reservation in Maharashtra to approximately **62%**, well past the *Indra Sawhney* ceiling.

The Act is under challenge before a specially constituted bench of the Bombay High Court. Admissions and appointments made under it are being permitted for now, subject to the outcome.

Separately, the activist Manoj Jarange-Patil has pressed the demand that Marathas be recognised as Kunbi and therefore admitted to the existing OBC category — a demand the state government has resisted, and which OBC organisations have opposed on the ground that it would dilute their own share.

■ INTERPRETATION

Four things this pattern establishes, and each lands on a different party.

- 1. Reservation is understood by its opponents to be valuable.** Communities do not blockade highways for a benefit they believe is worthless or stigmatising. The demand is the strongest available evidence that the thing works well enough to be worth having.
- 2. The categories are political, not scientific.** A community can be added to a list and removed by a court within a year, as the Jats were. Whatever "backward" means administratively, it is not a stable measurement.
- 3. The merit argument evaporates on contact with self-interest.** The communities demanding entry are, in many cases, the same social base from which anti-reservation sentiment has historically drawn. The objection is rarely to quotas as such. It is to being outside one.
- 4. And the real conflict is horizontal, not vertical.** The fiercest resistance to Maratha inclusion has come not from upper castes but from existing OBC organisations, whose share would be diluted. Part 3 predicted exactly this: the sharpest caste conflict in India runs between adjacent rungs, not between top and bottom.

The Ceiling Is Under Siege Everywhere

The 50% limit is not just breached at the centre. Half a dozen states have gone past it, and the courts have been striking them down one by one.

Most of this argument is conducted as though reservation is a single national policy. It is not. Most Indian government jobs and most college seats are state seats, and states set their own percentages.

And across the last few years a pattern has emerged that neither side discusses: state after state has tried to cross 50%, and court after court has said no.

Tamil Nadu **69% — and untouchable**

The highest in India, and the only one that is legally secure. It was placed in the **Ninth Schedule**

in 1994, using the device created by the First Amendment of 1951 described in Part 8, which shields it from ordinary challenge. It has operated at this level for three decades.

Maharashtra **~62% — under challenge**

The SEBC Act of 2024 adding 10% for Marathas, before a special bench of the Bombay High Court. Appointments and admissions proceeding subject to the outcome.

Bihar **65% — struck down**

Bihar raised reservation for SC, ST, EBC and OBC from 50% to 65% in late 2023, following its own caste survey. On

20 June 2024

the Patna High Court struck the amendments down, holding that the 50% ceiling had been breached. The state appealed; on 29 July 2024 the Supreme Court declined to stay the High Court's decision.

Chhattisgarh **58% — set aside**

The High Court set aside the state's decision to raise the quota to 58%, holding that reservation exceeding the 50% ceiling was unconstitutional.

Karnataka **56% — seeking shelter**

The state legislature has passed a resolution urging the Union government to place its 56% reservation in the Ninth Schedule, expressly to obtain the protection Tamil Nadu has.

■ FACT

The ceiling holds for states and does not hold for the centre.

Bihar's 65% was struck down in 2024 for breaching 50%. Chhattisgarh's 58% was set aside on the same ground.

Meanwhile the central total has stood at 59.5% since 2019, upheld by the Supreme Court in 2022 — because EWS was created by *constitutional amendment* rather than by state legislation, and the majority held that the ceiling does not bind a new provision.

■ INTERPRETATION

This is the sharpest thing in Part 10, and almost nobody says it.

The rule is now: **you may exceed 50% if you can amend the Constitution, and not otherwise.**

Which means the limit is not a principle about equality at all. It is a test of whether you control a two-thirds majority in Parliament.

For the abolition side: this is a much better argument than the ones they use. A ceiling that binds Bihar but not Delhi is not a constitutional safeguard; it is an artefact of who has the votes.

For the retention side: the same fact is uncomfortable in the other direction. States with genuine claims — Bihar acted after conducting its own caste survey, which is more evidence than EWS was built on — are being blocked, while a quota with an unexplained threshold sails through because it came with an amendment attached.

And notice the escape route everyone is now reaching for. Karnataka wants the Ninth Schedule. So, periodically, do others. The device Nehru's government created in 1951 to protect land reform has become the standard method of putting a reservation policy beyond judicial reach.

AND THE THING TAMIL NADU PROVES

Part 1 noted the argument in both directions about Tamil Nadu. Here is the narrow point that survives it.

A state has run 69% reservation for three decades. Whatever one believes about causation, the predicted institutional collapse did not occur. Any confident claim that crossing 50% is catastrophic has to explain thirty years of a large state doing it.

The Category Splits

On 1 August 2024 the Supreme Court permitted states to divide the Scheduled Caste quota. Two states have already done it.

This is the most significant structural change to Indian reservation since 1990, and it received a fraction of the attention that a viral Instagram account got two years later.

■ FACT

***State of Punjab v. Davinder Singh*, 1 August 2024. Seven judges, 6–1.**

The Court upheld the constitutional validity of **sub-classification within the Scheduled Castes**, overruling *E. V. Chinnaiah v. State of Andhra Pradesh* (2004), which had held that the Scheduled Castes were a single homogeneous class that could not be divided.

States may now split the SC quota, giving the most deprived sub-castes a protected share within it.

And the part that went further

■ FACT

Justice Gavai held that states must evolve a policy to identify a creamy layer among SCs and STs.

His view was that certain groups within the Scheduled Castes and Tribes have been oppressed for centuries and that state governments must identify them — and that the criteria for identifying the creamy layer among SCs and STs should differ from those used for OBCs, reflecting different circumstances.

This extends the principle from *Jarnail Singh* (2018), described in Part 8, from the promotion context into the general one.

What has actually happened since

2025

Telangana goes first

The Telangana Scheduled Castes (Rationalisation of Reservations) Act, 2025, makes Telangana the first state to operationalise sub-categorisation. The Scheduled Castes are divided into three groups, with the split occurring inside the existing 15% SC quota rather than adding to it.

2026

Karnataka follows

Following a commission headed by Justice Nagmohan Das to gather empirical data, the state Cabinet approved an internal reservation formula of approximately

5.25% : 5.25% : 4.5%

within the existing 15% Scheduled Caste quota.

■ INTERPRETATION

What the split means, and why both sides find it awkward.

The Supreme Court has formally accepted elite capture. Sub-classification exists because benefits within a reserved category concentrated unevenly. That is the argument Thomas Sowell makes comparatively, that the abolition side makes rhetorically, and that the retention side has often dismissed as bad faith. It is now a finding of a seven-judge bench.

But look at what the remedy was. Not abolition. Not reduction. *Better targeting inside the existing quota.* Telangana and Karnataka split the 15% rather than shrinking it.

And notice where the argument has moved. The serious institutional debate in India is no longer about whether there should be reservation. It is about who inside the categories should receive it. That is a completely different question from the one being fought in comment sections, and it is the one actually being decided.

THE OBVIOUS MISSING PIECE

Sub-classification has been permitted for the Scheduled Castes. It has not been done nationally for the Other Backward Classes — a category of 3,743 castes, as Part 9 noted, containing communities with wildly different circumstances.

If elite capture justifies splitting a category of a few hundred, the case for examining a category of nearly four thousand is considerably stronger. Nobody at the centre has attempted it.

The Count Returns

For the first time since 1931, India is counting caste. The field work started three months before the current argument began.

Every number in Part 9 rested on arithmetic applied to a census conducted in 1931. That is about to end.

■ FACT

Census 2027 — two phases, digital, with caste enumeration.

Phase 1 — Houselisting and Housing Census: 1 April to 30 September 2026, across all 36 states and union territories. Self-enumeration was available from 1 to 15 April; house listing from 16 April.

Phase 2 — Population Enumeration: February 2027. **Caste data is collected in this phase.**

For snow-bound regions including Ladakh, Jammu and Kashmir, Himachal Pradesh and Uttarakhand, the reference date is 1 October 2026.

It is India's first digitally conducted census, using a mobile application, with a self-enumeration option. By 10 April 2026, more than 5.7 lakh households had used self-enumeration.

What it will settle

- ▶ **The 52% question.** Mandal's estimate of the OBC share has carried enormous political weight for forty-six years on 1931 data. It is about to be tested.
- ▶ **The sub-classification question.** Splitting a category sensibly requires knowing the size and condition of its parts. Telangana and Karnataka have had to commission their own studies. After 2027 there will be national data.
- ▶ **The ceiling question.** If the reserved-category population is far above the reserved share, the pressure to breach 50% becomes very hard to resist. If it is far below, the opposite.

■ INTERPRETATION

Nobody knows what it will show, and the silence is informative.

Consider how little confident prediction there is from either camp about a dataset that will decide the terms of this argument.

The retention side is not campaigning on it — presumably because if OBCs turn out to be well under 52%, the case for 27% weakens and the demand for proportional representation becomes harder to make.

The abolition side is not campaigning against it — presumably because opposing a count looks like fearing the answer, and because if the numbers are low it helps them.

Both are waiting. Which is a reasonable thing to do, and it makes the timing of a movement demanding immediate abolition eleven months before the count somewhat strange.

A CAUTION ABOUT WHAT A COUNT CAN DO

Counting caste tells you how many people are in each category. It does not tell you how deprived they are, and the two are different questions.

Part 5 described what happened the last time India ranked communities officially: thousands of petitions, not to abolish the ranking but to move up within it. A caste census produces numbers, and numbers produce claims. Expect a great many of them.

543 To 850

The largest expansion of political reservation in Indian history is before Parliament right now, and it is not being discussed in the argument about reservation.

In April 2026 — three months before the Reservation Hatao Andolan existed — Parliament held a special session on a package of bills that will reshape Indian representation more than anything since 1950.

■ FACT

The special session of 16 to 18 April 2026.

Three interconnected bills were introduced: the **Constitution (131st Amendment) Bill, 2026**; the **Delimitation Bill, 2026**; and the Union Territories Laws (Amendment) Bill, 2026.

The central proposal is to increase the strength of the **Lok Sabha from 543 seats to 850**.

The exercise is tied to the 2027 census, and commentary has noted that it is unlikely to be completed before the 2029 general election — which would mean the women's reservation provided for by the 106th Amendment of 2023 does not apply to that election either.

Now do the arithmetic

Seats reserved for Scheduled Castes and Scheduled Tribes under Articles 330 and 332 are allocated in proportion to population.

If the House grows from 543 to 850, reserved seats grow with it. This is the single largest expansion of reservation in Indian history, and it is happening while the country argues about medical college cut-offs.

■ INTERPRETATION

Three things about this that the July 2026 argument has entirely missed.

1. It is the 2008 method, at constitutional scale. Part 9 identified expansion as the only demonstrated way of implementing reservation without a crisis: increase the total so the unreserved number does not fall. Delimitation does exactly that with parliamentary seats — more reserved seats *and* more general seats. Nobody planned it as a reservation policy. It functions as one.

2. It creates a north-south collision. Delimitation by population rewards states whose populations grew fastest and penalises those that controlled growth most successfully — which, broadly, means shifting weight from the south to the north. The southern states have been raising this for years. Combine it with a caste census and with women's reservation and you have three enormous redistributions of political power landing at once.

3. And it is where the real decisions are being made. A movement with 5.8 million followers is demanding changes to exam cut-offs. Parliament is considering the composition of the legislature itself, on a timescale of years, with consequences measured in decades.

That gap between where the attention is and where the power is may be the most important observation in this book.

The Three Places It Does Not Exist

Reservation applies to government. Three of the most powerful sectors in India are outside it – and their composition is instructive.

1. The private sector

■ FACT

No caste reservation has ever existed in private-sector employment in India.

It has been proposed and debated for decades. It has never been enacted. Since the overwhelming majority of Indian jobs are private or informal, the entire national argument concerns a small and shrinking share of employment.

And Part 6 measured what happens there. The correspondence study – identical CVs, different surnames, private-sector graduate jobs – produced **ten interview calls for an upper-caste name, six for a Dalit name, three for a Muslim name.**

■ INTERPRETATION

This is the most awkward single fact in the entire debate.

The measured discrimination is *highest* in the sector where reservation has never applied.

Which damages the claim that reservation causes resentment which causes discrimination – the effect appears where the cause is absent.

And damages the claim that reservation is a sufficient remedy – it does not reach the place where most jobs are and where the gap is widest.

2. The judiciary

Appointments to the higher judiciary are made through the collegium system, and reservation does not apply. The resulting composition of the High Courts and the Supreme Court has been a subject of parliamentary questions and public comment for years, and is markedly unrepresentative of the population.

Neither side campaigns on it. The abolition side does not, because it is an unreserved institution that is visibly monopolised. The retention side does not, because the institution in question decides their cases.

3. The newsroom

Surveys of Indian media leadership have repeatedly found that senior editorial positions across print, television and digital are held overwhelmingly by people from a small number of upper-caste communities, with Dalit and Adivasi journalists almost absent at that level.

■ INTERPRETATION

Why the newsroom matters more than its size suggests.

The media is not a large employer. It is the institution that decides which arguments are heard, which grievances are covered as news, and whose anger is treated as legitimate.

Consider Part 1 again. A movement demanding the abolition of reservation received extensive national coverage within days of appearing. Ask how much coverage the Balakrishnan Commission on Dalit converts has received in four years, or the Telangana sub-classification Act, or the 543-to-850 proposal.

This is not a conspiracy claim. Newsrooms cover what their staff find interesting and urgent, and staff find interesting what they and people like them experience. That is exactly why composition matters.

Where RHA Actually Fits

Their four demands, placed against the landscape this part has described. One of them is much stronger than the rest.

Part 1 set out the Reservation Hatao Andolan's demands as published: Merit over Caste, Equal Fees, Equal Age Limit, Equal Cut-off — with the broader proposal that the state should stop recording caste at all.

Here is how each stands against what has actually been happening.

THE DEMANDS AGAINST THE 2026 RECORD

Demand	Assessment against this part
Merit over caste	India already runs a caste-blind quota — EWS, since 2019. Chapter 3 shows what it produced: a threshold copied from another scheme, covering almost everyone eligible, requiring the same certificates and machinery. Removing caste does not remove categories.
Equal cut-off	Part 1 showed General and OBC closed two marks apart for all-India government MBBS seats in 2025. The gap this demand targets is largely not where it is believed to be.
Equal fees and age limit	Legitimate and specific. These are administrative relaxations, distinct from seat reservation, and arguing about them separately would be a more productive conversation than the one being had.
Stop recording caste	Directly contrary to Census 2027, which began in April 2026. It would also make the 97% manual-scavenging figure from Part 6, and the sub-classification exercises in Telangana and Karnataka, impossible to produce.

And it is not one they lead with.

Look at what Chapters 3, 4, 5 and 6 establish together.

The EWS threshold was set by copying another quota's number, and the government could not point to a study behind it. A community can be added to the OBC list and removed by a court within a year. Total reservation is 59.5% at the centre and about 62% in Maharashtra, both past a ceiling that was supposed to be constitutional. And the Supreme Court has now held that the benefits inside a reserved category are so unevenly distributed that the category must be split.

The honest version of the abolition case is therefore not "reservation is unjust." It is that *the categories are incoherent* — arbitrary at the threshold, unstable in membership, uncapped in total, and unevenly distributed inside.

That is a serious argument, it is supported by everything in this part, and it is very rarely the one that gets made.

■ INTERPRETATION

And the reply, which is equally serious.

Incoherent categories are an argument for fixing the categories. The 2024 sub-classification judgment, the Telangana Act of 2025 and the Karnataka formula of 2026 are precisely that work being done — and none of them abolished anything. Each split a quota to target it better.

Census 2027 is the evidence base that has been missing since 1931, and it arrives in eight months.

The abolition case observes correctly that the machine is badly built. What it has not established is why the response to a badly built machine is to remove it rather than to rebuild it — particularly when Part 6 established that the thing it was built for is still measurably happening.

That is the question Part 12 puts to both sides at full strength, and Part 14 answers.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Why did EWS take two days when Mandal took nine years?

A constitutional amendment breaking a twenty-seven-year-old ceiling passed both Houses on 8 and 9 January 2019. The Mandal report sat unimplemented for nine and a half.

The difference is not evidence, urgency or constitutional necessity. It is whose interests were served and how close the election was. Both facts belong in any honest account of how this policy area actually works.

2. If economic criteria are the answer, why is the threshold ₹8 lakh?

The number was adopted from the OBC creamy layer, not derived from a study of poverty, and a committee later recommended keeping it.

Anyone proposing to replace caste with income has to answer the question the government could not: on what basis is the line drawn, and by whom?

3. Why does the fiercest opposition to Maratha inclusion come from OBCs?

Because the 27% would be shared with a very large new claimant. The conflict is between adjacent groups competing for the same pool, exactly as Part 3 predicted.

The abolition side treats reservation as a conflict between reserved and unreserved. Most of the actual political conflict is inside the reserved side.

4. Why has nobody sub-classified the OBCs nationally?

The Supreme Court permitted splitting a category of a few hundred Scheduled Castes on the finding of uneven benefit. The OBC category contains 3,743 castes.

If the principle is sound, the case here is far stronger. The reason it has not happened is that the dominant communities inside the OBC category are the ones with the political power to prevent it.

5. What happens to this argument if Census 2027 surprises everyone?

Neither side is preparing publicly for either result, which suggests neither is confident. A movement demanding immediate abolition eleven months before the first caste count in ninety-five years is, at minimum, oddly timed.

6. Why is nobody discussing 543 to 850?

It is the largest expansion of reserved political representation in Indian history, it is before Parliament, and it is absent from the argument.

The most plausible explanation is that legislative seats are not what young people are anxious about. Which is understandable, and does not make it less consequential.

7. Why is measured discrimination highest where reservation does not exist?

Ten, six, three — in the private sector. Both sides find this awkward and neither raises it.

8. If reservation is stigmatising, why do communities fight to get in?

One standard argument against reservation is that it marks its beneficiaries as needing help. Marathas, Jats, Patidars, Kapus and Gujjars have spent a decade demanding that mark.

The stigma argument is worth taking seriously — Part 12 does. But it has to be reconciled with the observed behaviour of very large numbers of people.

9. Has anything actually been abolished in this period?

Yes, once — and Part 8 has it. The Anglo-Indian nomination lapsed in January 2020, quietly, by simple non-extension.

The mechanism for ending a constitutional reservation exists, has been used within living memory, and requires no movement, no amendment fight and no protest. It requires only that the affected group be small enough to have no votes.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 10.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Has the 50% ceiling been breached?	Yes	59.5% centrally; ~62% in Maharashtra
Is caste-blind reservation constitutional?	Yes, since 2022	<i>Janhit Abhiyan</i> , upheld 3–2
Has India tried an economic quota?	Yes	EWS, running since 2019
Is the EWS threshold evidence-based?	No	Copied from the OBC creamy layer figure
Do dominant communities want in?	Yes	Marathas, Jats, Patidars, Kapus, Gujjars
Has the SC category been split?	Yes	Permitted 2024; Telangana 2025, Karnataka 2026
Has the OBC category been split nationally?	No	3,743 castes, one undivided quota
Is India counting caste again?	Yes	Census 2027; caste data in Phase 2, Feb 2027
Is reserved representation expanding?	Proposed	Lok Sabha 543 → 850, before Parliament
Does reservation reach the private sector?	No	And that is where the measured gap is widest

The three things nobody can tell you

- ▶ **What the caste census will show.** Eight months away, and it decides the terms of everything.
- ▶ **Whether the Maharashtra Act will survive.** Before a special bench of the Bombay High Court, with appointments and admissions proceeding subject to the outcome.
- ▶ **Whether delimitation will happen on the proposed terms.** The bills are introduced, not passed, and the north–south politics of it are unresolved.

■ INTERPRETATION

The one sentence that carries Part 10.

Between 2019 and 2026 India broke its own reservation ceiling, built a caste-blind quota it could not justify the threshold of, split a category it had called indivisible, restarted a count it had abandoned in 1931, and put a near-doubling of its legislature before Parliament — and then a movement appeared demanding that something be done, because nothing ever changes.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 10 — THE MODERN REWRITE

1. **The ceiling broke in two days.** The 103rd Amendment passed the Lok Sabha on 8 January 2019 and the Rajya Sabha on 9 January, taking central reservation to 59.5%. The Supreme Court upheld EWS in 2022 by **three votes to two** — one vote from a completely different argument today.
2. **India has been running the economic quota for seven years, and it does not work as advertised.** The ₹8 lakh threshold was copied from the OBC creamy layer with no study behind it, and covers the overwhelming majority of eligible households. Removing caste did not remove categories, certificates or arbitrariness — it relocated them.
3. **The most powerful farming communities in India are demanding to be called backward.** Marathas (Maharashtra now at ~62%), Jats, Patidars, Kapus, Gujjars. And the fiercest resistance comes from existing OBC groups, not from upper castes — the conflict is horizontal, exactly as Part 3 predicted.
4. **The Scheduled Caste category has been split.** *Davinder Singh*, 1 August 2024, 6–1, overruling *Chinnaiah*. Telangana implemented it in 2025; Karnataka approved a 5.25 : 5.25 : 4.5 formula in 2026. The institutional argument has moved from *whether* to *who inside* — and nobody has done the same for 3,743 OBC castes.
5. **And the biggest change is the one nobody is discussing.** Census 2027 began counting caste in April 2026, and in the same month Parliament took up a proposal to raise the Lok Sabha from 543 to 850 seats. Reserved seats are proportional. The largest expansion of political reservation in Indian history is before Parliament while the country argues about medical college cut-offs.

Coming next

PART 11 — THE DATA WAR

Does it actually work? Let's check the numbers.

Every popular statistic from both sides, run through the same test. What "merit" actually measures, and what coaching money does to it. Dropout and performance data at the IITs and AIIMS — the real figures against the forwarded ones. Faculty and senior-post vacancies, and who is missing at the top. The composition of Group A services, the judiciary and the newsroom. Land ownership, wealth share and business ownership by caste. Mobility studies from 1950 to 2026, and how much of the change reservation can actually claim credit for.

Every chart sourced. Every chart also given its strongest criticism. And the finding both sides will dislike.

A closing thought: the gap between where the attention is and where the power is may be the most useful thing in this book. A movement with 5.8 million followers is arguing about exam cut-offs. Parliament is deciding the size and composition of the legislature. Only one of those is a decision. — L.S.

Sources & Notes

Every factual claim in Part 10, and where it comes from.

EWS

Constitution (103rd Amendment) Act, 2019, inserting Articles 15(6) and 16(6); passed by the Lok Sabha on 8 January 2019 and the Rajya Sabha on 9 January 2019. Eligibility criteria as notified: family income below ₹8 lakh per annum, agricultural land below 5 acres, residential flat below 1,000 square feet, residential plot below 100 square yards in a notified municipality and below 200 square yards elsewhere. Central reservation total of 59.5%. · *Janhit Abhiyan v. Union of India* (2022), five-judge bench, EWS upheld 3–2; dissents by Chief Justice U. U. Lalit and Justice S. Ravindra Bhat on the exclusion of SCs, STs and OBCs and on the breach of the 50% ceiling; separate observations in the majority on review and on reservation not becoming a vested interest. · On the derivation of the ₹8 lakh figure, the government's position before the Court that it mirrored the OBC creamy layer limit, and the committee subsequently constituted which recommended retaining it. · Criticism of the threshold's breadth, and of seat expansion in higher education of the order of 25% without corresponding faculty recruitment, is drawn from published commentary and analysis.

Demands for inclusion

Ram Singh v. Union of India (2015) — the Supreme Court quashed the inclusion of Jat communities in the central OBC list. · Patidar agitation in Gujarat from 2015; Kapu demands in Andhra Pradesh; Gujjar demands in Rajasthan. · Maharashtra State Reservation for Socially and Educationally Backward Classes (SEBC) Act, 2024, passed 20 February 2024, providing 10% reservation for Marathas on the basis of the commission headed by Justice Sunil Shukre; total state reservation of approximately 62%; the Act under challenge before a specially constituted bench of the Bombay High Court, with admissions and appointments permitted subject to the outcome. Manoj Jarange-Patil's demand for recognition of Marathas as Kunbi and its rejection by the state government; opposition from OBC organisations.

State reservation totals

Tamil Nadu's 69% reservation, placed in the Ninth Schedule in 1994. · Bihar: amendments raising reservation from 50% to 65% following the state's caste survey, struck down by the Patna High Court on 20 June 2024 on the ground that the 50% ceiling had been breached; the state appealed and on 29 July 2024 the Supreme Court declined to stay the High Court's decision. · Chhattisgarh: the High Court set aside the state's decision to raise the quota to 58%, holding reservation above 50% unconstitutional. · Karnataka: legislative resolution urging the Union government to place the state's 56% reservation in the Ninth Schedule. · Maharashtra as above.

Sub-classification

State of Punjab v. Davinder Singh, 1 August 2024, seven-judge bench, 6–1, upholding sub-classification within the Scheduled Castes and overruling *E. V. Chinnaiah v. State of Andhra Pradesh* (2004). Justice Gavai's holding that states must evolve a policy to identify a creamy layer among SCs and STs, with criteria differing from those used for OBCs. · Telangana Scheduled Castes (Rationalisation of Reservations) Act, 2025 — the first state to operationalise sub-categorisation, dividing the Scheduled Castes into three groups within the existing 15% quota. · Karnataka: commission headed by Justice Nagmohan Das; Cabinet approval in 2026 of an internal formula of approximately 5.25% : 5.25% : 4.5% within the 15% quota.

Census 2027 and delimitation

Census of India 2027, conducted in two phases: Houselisting and Housing Census from 1 April to 30 September 2026 across all 36 states and union territories, with self-enumeration available 1–15 April and house listing from 16 April; Population Enumeration in February 2027, in which caste data is collected. Reference date of 1 October 2026 for snow-bound regions including Ladakh, Jammu and Kashmir, Himachal Pradesh and Uttarakhand. India's first digital census, conducted by mobile application with a self-enumeration option; more than 5.72 lakh households had used self-

enumeration by 10 April 2026. First comprehensive caste enumeration since 1931. · Special session of Parliament, 16–18 April 2026: the Constitution (131st Amendment) Bill, 2026, the Delimitation Bill, 2026, and the Union Territories Laws (Amendment) Bill, 2026; the proposal to increase Lok Sabha strength from 543 to 850 seats; commentary noting that the exercise is unlikely to be completed before the 2029 general election and the consequence for women's reservation under the 106th Amendment of 2023.

Where reservation does not apply

No caste reservation exists in private-sector employment in India. · Higher judicial appointments are made through the collegium system and reservation does not apply. · Surveys of Indian media leadership composition have repeatedly found senior editorial positions concentrated among a small number of upper-caste communities. · The correspondence study result (ten, six, three) is from Thorat, Attewell and Rizvi, *Economic and Political Weekly*, 2007, discussed in full in Part 6.

A note on what is missing — and on corrections

Part 10 describes developments up to July 2026. Several matters are live: the Maharashtra SEBC Act is under challenge; the delimitation bills are introduced but not enacted; the Balakrishnan Commission has not reported; and Census 2027's caste enumeration has not yet been conducted. Figures given for state reservation totals are approximate and vary with how horizontal quotas are counted.

Part 10 makes no claim about whether reservation works, which is Part 11. If you find an error — and in a chapter about events still in motion that is more likely than usual — I want to know.

END OF PART TEN

THE RESERVATION FILES The Modern Rewrite

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 11 – The Data War: does it actually work?
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART ELEVEN

THE DATA WAR

Does it actually work? Every popular statistic from both sides, run through the same test – and the finding neither camp wants.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Part Where Somebody Has To Be Wrong

Part 6 established that the injury is real and still measurable. That is a necessary condition for a remedy and nowhere near a sufficient one. A disease being real does not make a particular medicine effective.

So this part asks the separate question: **does reservation work?**

It is the hardest question in the series, because both sides have spent decades asserting answers without evidence and because the evidence, when you actually assemble it, does not tidily support either.

"It works. It works measurably, causally, and better than its critics believe. And it has been aimed at a target that is small, shrinking, and not where most of the damage is."

That is the finding, and I have put it at the front rather than the end because I do not want anyone reading three chapters looking for ammunition and stopping.

Three things about method, because in a part made of statistics the method is the argument.

First, I have preferred official data over advocacy data. The most important numbers here come from the Department of Personnel and Training, the Education Ministry's replies to Parliament, and a peer-reviewed paper in a leading economics journal. Where I use a campaigning source, I say so.

Second, every chart gets its strongest criticism. That was the promise in Part 1 and this is the part where it costs something.

Third, I have gone looking for the numbers that embarrass my own reading. Chapter 5 contains the strongest evidence in this series that reservation is not delivering at senior levels. Chapter 8 lists the statistics the pro-reservation side gets wrong, and there are as many as on the other side.

One last thing. Chapter 2 contains a single table that I think is the most informative object in this entire fourteen-part series. It is three rows of government data. If you read nothing else in Part 11, read that.

— Lovepreet Singh

July 2026

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Three rows of government data that settle more than anything else

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13,500 students, and two readings that cannot both be right

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Everything in this book, compressed

How To Judge A Statistic

Five tests. Most numbers you will meet in this argument fail at least one, including some in this book.

Before any figures, a short method. These five questions will let you assess almost any statistic anyone offers you about reservation.

1. Is it a stock or a flow?

"SC representation in central government is 16.84%" is a *stock* — everyone currently employed, including people hired forty years ago. "SC share of this year's recruitment" is a *flow*. A policy changed in 1990 shows up in the flow immediately and in the stock only after decades of retirements.

Both sides quote whichever is more flattering.

2. Is it aggregated across levels?

This is the big one, and Chapter 2 is built on it. A single national figure for "representation in government" can conceal a situation where a group is over-represented at the bottom and badly under-represented at the top. Aggregation hides gradients, and the gradient is usually the story.

3. Correlation or causation?

"SC literacy rose after reservation" tells you almost nothing on its own, because everybody's literacy rose. The question is always: compared with what would have happened otherwise? Very little writing on this subject even attempts an answer. Chapter 6 covers the work that does.

4. Who collected it and what did they gain?

The test from Part 6. A government reporting on its own compliance, an activist organisation documenting a failure, and a party in an election all have reasons. The strongest data is collected for some purpose other than winning this argument.

5. What is the denominator?

"Ten thousand reserved posts are vacant" means nothing until you know out of how many. "OBCs hold 19% of senior posts" is only meaningful against the quota of 27% and against their population share.

AND ONE WARNING ABOUT THIS PART

Indian caste statistics have a structural problem that no amount of care fixes: there has been no caste census since 1931, so almost every denominator involving OBCs is an estimate. Census 2027 will fix this. Until then, every OBC percentage in this part — including the ones I use — rests on an estimated population base.

SC and ST figures do not have this problem, because those categories have been counted in every census. Where the evidence is strongest in this part, it is usually about SCs and STs for exactly that reason.

The Gradient

The Government of India publishes its own employment composition. Read down the levels and the argument changes shape.

The Department of Personnel and Training reports the caste composition of central government employment. As of **1 January 2024**, across roughly **32.52 lakh employees** in **80 ministries and departments**, the overall figures were:

16.84%

Scheduled Castes — against a 15% quota

8.7%

Scheduled Tribes — against a 7.5% quota

26.32%

Other Backward Classes — against a 27% quota

Taken alone, those numbers look like a policy that has done its job. SC and ST are above their quotas; OBC is close to it.

Now apply test two from the last chapter, and look at where in the hierarchy those people are.

■ FACT — THE MOST IMPORTANT TABLE IN THIS SERIES

Central government composition by level, 1 January 2024.

REPRESENTATION RISES AS THE POST FALLS

Level	SC	ST	OBC
Group A — the senior posts	14.2%	6.54%	19.14%
Group C — excluding sanitation staff	16.75%	8.94%	27.29%
Safai karamcharis — sanitation posts	Over 66% from SC, ST and OBC combined		
The quota	15%	7.5%	27%

At the top of the Indian government, every reserved category is below its quota. At the bottom, two-thirds of the sanitation staff come from those same categories.

■ INTERPRETATION

What this single table does to each side.

To the abolition side, it is devastating on their central claim. The argument is that reserved candidates have flooded the system and displaced better ones. Thirty-six years after Mandal and seventy-six after the Constitution, OBCs hold **19.14%** of senior posts against a 27% quota — a shortfall of nearly eight percentage points. SCs are below 15% and STs below 7.5%. Whatever is happening at the top of the Indian state, it is not over-representation of reserved categories.

To the retention side, it is equally hard. "Reservation has delivered representation" is not supported at the level where decisions are made. The quota is met in the middle and exceeded in sanitation. It is not met where the power is. A policy justified by Article 16(4)'s test — adequate representation in the services — has not achieved it at the level that matters most, after three generations.

And the sanitation row is the one nobody should be able to read comfortably. Part 6 established that roughly 97% of identified manual scavengers are Scheduled Caste. This table shows the same pattern inside the government's own payroll. The state that runs the reservation policy also concentrates its most degrading work in the same communities.

■ AND ONE THING THE DATA DOES NOT SHOW

There is no published figure for EWS.

The report gives SC, ST and OBC representation. It does not report the representation of Economically Weaker Sections, despite a 10% quota running since 2019.

Which means that seven years in, the government does not publicly report whether the caste-blind quota it created is reaching anybody. Anyone proposing to replace caste-based reservation with an economic one should want that number to exist.

What Merit Measures

The strongest argument against reservation, taken seriously — and the question it has to answer.

The merit argument deserves better than it usually gets. Here it is at full strength.

THE MERIT ARGUMENT — STEELMANNED

A competitive examination is the fairest allocation device humans have invented. It is anonymous, it is uniform, it cannot be bribed at the point of marking, and it does not care who your father was. For a country with India's history of patronage and connection, that is not a small thing — it is one of the few genuinely impartial institutions the republic possesses.

Every departure from ranking by score reintroduces a criterion other than performance. And in fields where competence has third-party consequences — medicine, engineering, aviation, the judiciary — the cost of that departure is not borne by the person who benefits from it.

Moreover, an examination is a *current* measure. It tests what a candidate can do now. Whatever happened to their great-grandparents, the test is administered today, to today's candidates, and the person who scores higher has demonstrated more of the thing being tested.

And the question it has to answer

What does the score measure?

Not rhetorically — literally. An entrance examination score is a measurement of performance on a specific test, at a specific moment, after a specific quantity of preparation.

■ FACT

Preparation for Indian entrance examinations is a purchasable commodity, at scale.

India has an entrance-coaching industry of enormous size, concentrated in a small number of centres, selling multi-year residential programmes at prices well beyond the reach of most Indian households.

This is not a contested claim. It is a large, visible, advertised market whose entire proposition is that paying money improves the score.

■ INTERPRETATION

The honest position on both sides of this.

What the coaching point does establish: that a score is not a pure measurement of aptitude, because a substantial and purchasable input raises it. Two candidates of identical ability with different family resources will not score identically. That is arithmetic, not ideology.

What it does not establish: that the score is meaningless, or that caste is the right correction for it. Coaching money tracks *income* more directly than caste. If the distortion is purchased preparation, the logically matching correction is an income-based one — which is the abolition side's proposal, and Part 10 showed how badly the existing income-based scheme is calibrated.

And the point both sides skip: Part 1 showed that General and OBC candidates closed two marks apart for all-India government MBBS seats in 2025. Whatever the merit argument is about, at the top of the distribution it is not about a large score gap. The gap that is real — the SC gap of roughly 85 marks in that data — is the one that requires the discussion, and it is not the one the argument is usually conducted about.

A TEST FOR ANYONE MAKING THE MERIT ARGUMENT

If the objection is to selection by anything other than demonstrated performance, then it applies with equal force to management quota seats, to donation-funded admissions, to legacy advantages, and to the effect of purchased coaching itself.

The merit argument is coherent and serious. It is only inconsistent when it is applied to one of those and not the others — and in Indian public argument, it usually is.

The Dropout Claim

More than 13,500 students. Two readings that cannot both be right — and data that does not distinguish between them.

■ FACT

The figure.

Data reported in 2023 showed that more than **13,500 students from Scheduled Castes, Scheduled Tribes and Other Backward Classes** had dropped out of courses at central universities, the Indian Institutes of Technology and the Indian Institutes of Management.

This number is used by both sides, for opposite purposes, and each use is a complete argument.

READING ONE — THEY CANNOT COPE

Admission gained through a lower entry threshold does not confer the preparation to survive the course. Students placed in institutions they were not academically ready for struggle, fall behind, and leave.

On this reading the dropout figure is evidence that the policy harms the people it is meant to help — offering a place that becomes a failure rather than a qualification.

READING TWO — THE INSTITUTIONS FAIL THEM

Getting in is not the same as being let in. Students arriving from Hindi-medium or regional-language schooling into English-language technical instruction, without family networks, without money, and in some cases into open hostility, leave for reasons that have nothing to do with capability.

On this reading the figure measures the institution, not the student.

■ INTERPRETATION

Why neither side can win this with the data that exists.

The published figure is a count of departures. It does not record *why* anybody left, and both explanations produce the same number.

What would settle it: comparative dropout rates for unreserved students at the same institutions; exit interviews; performance trajectories over the course; the language of prior schooling. Some of this exists in fragments. None of it is systematically published.

What can be said honestly: the figure is real, it is large, and it is a problem on *either* reading. If reading one is correct, admission without support is cruel. If reading two is correct, admission without support is cruel. The two sides disagree about the cause and agree, without noticing, about the remedy.

Nobody in the 2026 argument is campaigning for bridge courses, language support or mentoring. Both sides prefer the dispute.

The Empty Chairs

Thousands of reserved teaching posts sit unfilled. This is the strongest evidence in this series that the policy is not delivering – and it damages the other side just as badly.

If reservation were the vast redistribution its critics describe, reserved posts would be full. They are not.

■ FACT

Faculty vacancies in central institutions.

As of **November 2024**, **5,182** teaching posts were vacant across India's central universities, of which more than **2,750 were reserved posts** – approximately **740 SC**, **464 ST** and **1,546 OBC** positions.

As of **31 January 2025**, roughly **28.56%** of sanctioned teaching positions across the IITs, NITs, IIMs, IISERs, central universities and other central higher-education institutions were vacant – some 18,940 posts.

A parliamentary panel reported that **56% of professor positions** at the IITs, IIMs, NITs and IISERs were lying vacant.

And the mechanism nobody explains

■ FACT

"None found suitable."

4,297 reserved teaching positions – professor, associate professor and assistant professor – were left vacant in central educational institutions *after* the recruitment process had been conducted, through the declaration of a "none found suitable" outcome.

The posts were advertised. Candidates applied. Selection committees sat. And the committees concluded that no candidate from the reserved category met the standard.

READING ONE – THE PIPELINE IS EMPTY

There are simply not enough qualified candidates from reserved categories at the doctoral and post-doctoral level to fill senior academic positions. The vacancy is a symptom of a shortage upstream, not of obstruction at the point of hiring.

On this reading, "none found suitable" is an honest finding, and forcing appointments would lower standards.

READING TWO – IT IS A MECHANISM

"None found suitable" is a discretionary judgment made by selection committees whose own composition reflects the imbalance in question. The same institutions do not report comparable difficulty filling unreserved posts.

On this reading, it is the administrative device by which a mandatory quota becomes optional – a legal way of not appointing.

■ INTERPRETATION

What this chapter costs each side, and it is not symmetrical.

It costs the retention side its comfortable position. Thousands of reserved posts, advertised and unfilled, in the very institutions where representation matters most. Whatever reservation is achieving in Indian higher education, it is not filling the faculty.

But it costs the abolition side something larger. The core grievance is that reserved candidates are taking places that would otherwise go to others. Here are thousands of reserved places going to *nobody at all*.

If reserved posts sit empty, then those posts were not taken from anyone. The "they got my seat" story requires the seat to have been occupied. In the case of central university faculty, on the government's own numbers, in thousands of cases it was not.

And the honest observation about "none found suitable": I cannot tell you which reading is correct, and neither can anyone else from published data. What is checkable is that the same discretion is not producing the same result for unreserved posts at the same institutions. That does not prove bad faith. It does mean the burden of explanation sits with the institutions, and they have not discharged it.

Does It Actually Work?

Everything so far has been description. This chapter is the one piece of proper causal evidence, and it gives a clear answer.

Almost all argument about whether reservation works is correlation dressed as causation. Outcomes for Scheduled Castes have improved since 1950 — but outcomes for everyone improved since 1950, so the comparison is worthless on its own.

What is needed is a natural experiment: two groups, similar in relevant respects, one of which received the policy and one of which did not.

It exists.

■ FACT

Asher, Novosad and Rafkin, *American Economic Journal: Applied Economics*, 2024.

A study of intergenerational mobility in India using a new measure — the expected education rank of a child born to parents in the bottom half of the education distribution — applied across time, regions and social groups.

The headline result: intergenerational mobility in India has been broadly **constant and low** since before liberalisation. India is not, in aggregate, a country where children routinely rise past their parents.

But the groups diverge sharply. Mobility has been **rising for Scheduled Castes** among sons. It has been **declining for Muslims**. Daughters' mobility is lower than sons' throughout, with less variation between groups.

And the natural experiment

■ FACT

Caste groups newly added to the Scheduled Caste list gained 7–8 rank points of upward mobility over the following twenty years.

Because the Scheduled Caste list has been amended over time, some communities were added later than others. That creates a comparison: groups that were similar beforehand, one of which subsequently received the policy.

The study finds that groups newly assigned Scheduled Caste status experienced, on average, **a 7 to 8 rank point increase in upward mobility** over the next two decades.

The authors' conclusion is that affirmative action for Scheduled Castes has **substantially improved their mobility**.

This is the closest thing to a controlled trial that this subject will ever have, and the answer it gives is yes.

■ INTERPRETATION

Three things follow, and the third is the one that matters most.

1. The efficacy question is largely answered. "Reservation does not work" is not a supportable position. The mechanism has a measured causal effect on the outcome it was designed to change, in peer-reviewed work, using a credible identification strategy. Anyone arguing for abolition has to argue that a policy which demonstrably works should nonetheless be ended for other reasons — which is a legitimate argument, and a different one.

2. And the aggregate finding is grim for everybody. Overall mobility in India has been constant and low for decades. Reservation lifted one group's trajectory inside a system that is not generally mobile. That is a real achievement and a small one relative to the problem.

3. Now look at the Muslim result, and read it against Part 4. Mobility has been *declining* for Indian Muslims over the same period in which it rose for Scheduled Castes. And as Part 4 established, Dalits who convert to Islam or Christianity lose Scheduled Caste status under the 1950 Presidential Order, while those who convert to Sikhism or Buddhism keep it.

The group that receives the policy is rising. A large group excluded from it by a paragraph written in 1950 is falling. That is not proof of causation — many things affect Muslim outcomes in India — but the two findings sit in the same paper and the coincidence is not comfortable for anyone.

Land, Wealth, Capital

Reservation operates on jobs and college seats. Here is what it has never touched.

C hapter 6 showed the policy works where it operates. This chapter is about where it does not operate — and the scale of what is outside it.

Land

■ FACT

Scheduled Castes are about 18% of households and own about 8.5% of the land.

Calculations based on the All-India Debt and Investment Survey give Scheduled Castes roughly **18% of households and 8.5% of land**, against upper-caste Hindus at approximately **22% of households and 28% of land**.

At state level the pattern repeats. Telangana survey data gives the average General category family roughly **0.42 acres** of irrigated land against **0.20 acres** for the average Scheduled Caste family.

Business and capital

■ FACT

Scheduled Castes are about 19.3% of the workforce and own about 11.4% of enterprises.

A survey by the Ministry of Micro, Small and Medium Enterprises found that **12.45%** of unregistered non-agricultural MSMEs were owned by Scheduled Castes — and that **not one** was a medium-sized enterprise.

Ownership exists at the smallest scale and disappears as the scale rises. The gradient from Chapter 2 reappears in the private economy.

Wealth

■ FACT

The concentration at the top.

National Family Health Survey data places roughly **12.3%** of Scheduled Castes in the highest wealth quintile.

Analysis of Indian billionaire wealth for 2022 attributed approximately **2.6%** to Scheduled Castes and about **88.4%** to upper castes.

The All-India Debt and Investment Survey for 2018–19 indicates that upper castes hold close to **55%** of national wealth.

■ INTERPRETATION

What these three sections establish together.

Reservation has produced measurable movement in *employment and education* — Chapter 6 proves it — and essentially none in **land, capital or wealth**, because it was never designed to and has no mechanism that could.

For the abolition side: this is a serious problem for the claim that reserved categories have been advantaged into dominance. A group holding 2.6% of billionaire wealth and 8.5% of land is not dominant by any measure that involves assets.

For the retention side: it is a serious problem too, and a bigger one. Seventy-six years of a policy aimed at public employment has not moved the ownership of the country. If the objective is equality rather than representation, the instrument is aimed at a fraction of the target.

And for the argument in 2026: both movements are fighting over admissions and appointments. Neither has a position on land, credit, capital or inheritance — which is where the difference between these communities actually sits.

The Statistics Both Sides Get Wrong

Six each. Same standard, same treatment.

The abolition side

CLAIM

"Reserved candidates have taken over the government."

Group A, 1 January 2024: SC 14.2%, ST 6.54%, OBC 19.14% — every one below quota, with OBCs eight points short thirty-six years after Mandal.

VERDICT: Contradicted by the government's own data.

CLAIM

"There is a huge score gap at entry."

General and OBC closed *two marks apart* for all-India government MBBS seats in 2025. The SC gap of about 85 marks is real and is a different argument from the one usually made.

VERDICT: True for one category, false for the largest.

CLAIM

"Reservation destroys institutional quality."

No agreed measure of institutional quality has ever been applied, and Article 335's efficiency clause has never been operationalised. Tamil Nadu has run 69% for three decades without the predicted collapse.

VERDICT: Unmeasured assertion. Nobody has done the study, in either direction.

CLAIM

"Reservation is why I am unemployed."

Government employment is a small and falling share of Indian jobs. When lakhs apply for thousands of posts, the constraint is the number of posts.

VERDICT: The pain is real; the address is wrong.

CLAIM

"Economic criteria would be fairer and simpler."

India runs one. The EWS threshold was copied from the OBC creamy layer with no study behind it, covers the overwhelming majority of eligible households, and the government does not publish who receives it.

VERDICT: Testable, tested, and not supported by the seven-year record.

CLAIM

"Reservation does not work anyway."

Groups newly added to the Scheduled Caste list gained 7–8 rank points of upward mobility over twenty years — peer-reviewed, with a credible identification strategy.

VERDICT: The best available causal evidence says the opposite.

The retention side

CLAIM

"Reservation has delivered representation."

Not where it matters. Group A is below quota for all three categories. Article 16(4)'s test is adequate representation in the services, and at senior level it has not been met.

VERDICT: True in the aggregate, false at the top — and the top is the point.

CLAIM

"Reserved seats are all being filled."

More than 2,750 reserved teaching posts vacant in central universities as of November 2024, and 4,297 reserved teaching positions closed as "none found suitable."

VERDICT: False — and inconvenient for the other side too, since unfilled posts were taken from nobody.

CLAIM

"Nothing has improved."

Scheduled Caste mobility is measurably rising, Group C representation is at or above quota, and overall central government representation exceeds the SC and ST quotas.

VERDICT: False, and self-defeating. Denying the gains erases the people who won them.

CLAIM

"Reservation addresses caste inequality."

It addresses employment and education. Scheduled Castes hold about 8.5% of land, own about 11.4% of enterprises and account for about 2.6% of billionaire wealth. No mechanism in the policy reaches any of those.

VERDICT: True of one dimension, not of the ones that hold wealth.

CLAIM

"Elite capture within categories is an invented problem."

A seven-judge bench permitted sub-classification of Scheduled Castes in 2024 on precisely that finding. Telangana implemented in 2025 and Karnataka in 2026.

VERDICT: Overtaken by events. This is now settled law, not a talking point.

CLAIM

"Rising atrocity figures prove conditions are worsening."

As Part 6 conceded at length, registered-case totals measure the reporting system as much as the offence. Better registration raises the same line.

VERDICT: Misuse of data. Chapters 6 and 8 of Part 6 explain why nobody should build on it.

■ INTERPRETATION

The symmetry, and what it is evidence of.

Twelve claims. Six from each side. Four marked false on one side and five on the other, with the rest partly true.

That symmetry is not a device. I did not set out to find an equal number; I set out to test the claims each side actually makes most often, and this is where it landed. If it had come out eight to two, I would have printed eight to two.

But notice the difference in kind between the two lists.

The abolition side's errors are mostly about *scale and direction* — believing reserved categories dominate the senior services when they are below quota, believing the score gap is large when for the biggest category it is two marks, believing the policy does not work when the causal evidence says it does. Those are factual errors about the present, and government data settles them.

The retention side's errors are mostly about *sufficiency* — claiming representation has been achieved, that seats are being filled, that nothing has improved, that inequality is being addressed. Those are not errors about whether the injury is real. They are errors about how much the remedy has accomplished, and they are made by people defending something that is working less well than they say.

One list is wrong about the facts. The other is wrong about its own success. Those are different failures, and they call for different corrections.

The Finding Both Sides Will Hate

What the assembled evidence actually shows, stated as plainly as I can manage.

Put every chapter of this part together and a single conclusion emerges that neither camp has an interest in stating.

■ THE FINDING

Reservation is an effective instrument aimed at a small and shrinking target.

It works. Groups newly added to the Scheduled Caste list gained 7–8 rank points of upward mobility over twenty years. That is a measured causal effect, in a peer-reviewed journal, and it is the strongest evidence in this argument on any question.

It has not worked at the top. Every reserved category is below quota in Group A, seventy-six years in. Where decisions are made, representation has not been achieved.

It has not touched assets at all. 8.5% of land, 11.4% of enterprises, 2.6% of billionaire wealth. The instrument has no mechanism that reaches ownership.

And it operates on a shrinking share of the economy. Government employment is a small and declining fraction of Indian jobs — and the correspondence study in Part 6 found the sharpest measured discrimination in the private sector, which reservation has never touched.

What follows for each side

FOR THE ABOLITION CASE

The central factual claims do not survive. Reserved categories have not taken over the government; they are below quota at every senior level. The score gap for the largest category is two marks. Reserved posts sit empty in their thousands. And the policy has a demonstrated causal effect.

What survives is the argument that the categories are incoherent — from Part 10 — and that the instrument is badly aimed. Both are true. Neither is an argument for removal rather than redesign.

FOR THE RETENTION CASE

The efficacy claim is vindicated and the sufficiency claim is not. Seventy-six years of the policy has produced representation in the middle of the government, under-representation at the top, and no movement at all in who owns the country.

Defending the present arrangement as adequate is not supportable on this data. What is supportable is defending it as a working instrument that has been asked to do far more than it can.

The medicine works. The dose is small, the disease has spread to organs the medicine cannot reach, and the two sides are arguing about whether to stop the prescription.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Why is nobody quoting the Group A numbers?

SC 14.2%, ST 6.54%, OBC 19.14% — published by the government, freely available, and decisive against the central claim of the abolition movement.

The retention side does not use it either, because the same table shows the policy has not delivered where it counts. A number that damages both sides gets cited by neither.

2. Why does the government not publish EWS representation?

Seven years, a 10% quota, and no reported figure. Anyone who believes economic criteria are the answer should be the loudest voice demanding that number.

3. If reserved posts are empty, who exactly lost them?

4,297 reserved teaching positions closed as "none found suitable." Those places went to no one. The grievance requires an occupant.

4. Why has nobody audited "none found suitable"?

It is a discretionary finding, made repeatedly, in one direction. Comparing its frequency for reserved and unreserved posts at the same institutions would settle the question in a month. Nobody has done it.

5. Why does neither movement talk about land?

Scheduled Castes: 18% of households, 8.5% of land. That is a larger and more durable inequality than anything in the admissions argument, and neither side has a position on it.

The plausible answer is that land redistribution is politically impossible and exam cut-offs are not, so the argument goes where the argument can be had.

6. Why is Muslim mobility falling?

The same paper that finds rising mobility for Scheduled Castes finds declining mobility for Muslims. Part 4 established that Dalit converts to Islam lose Scheduled Caste status by a paragraph from 1950.

Nobody has connected these publicly. It is the most important unexplored question in the data.

7. What would falsify "reservation works"?

A fair question to put to my own conclusion. It would be falsified by natural-experiment evidence showing no mobility gain for newly listed groups, or by evidence that gains are entirely captured by an already-advantaged sub-group. The second is partly true — hence sub-classification — and would narrow the claim rather than destroy it.

8. Why does nobody measure "efficiency of administration"?

It is a constitutional condition under Article 335. Seventy-five years on, no metric exists, so the loudest argument against reservation cannot be tested and the loudest defence cannot be either.

9. Why is nobody campaigning for the thing both sides implicitly agree on?

Chapter 4 showed that both readings of the dropout figure imply the same remedy: support after admission. Bridge courses, language help, mentoring, hostels.

It is cheap, it is uncontroversial, and it is the only intervention in this entire book that nobody would have to lose an argument to accept. Neither movement mentions it.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 11.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Does reservation improve mobility?	Yes	7–8 rank points over 20 years, causal
Have reserved groups taken over government?	No	Group A: SC 14.2%, ST 6.54%, OBC 19.14%
Has representation been achieved at the top?	No	All three below quota, 76 years in
Are reserved posts being filled?	No	2,750+ faculty vacancies; 4,297 "none found suitable"
Is there a large entry-score gap?	Mixed	2 marks General–OBC; ~85 marks General–SC
Does reservation damage institutions?	Unmeasured	No metric exists; Article 335 never operationalised
Has it changed asset ownership?	No	8.5% of land; 2.6% of billionaire wealth
Is overall Indian mobility high?	No	Constant and low since before liberalisation
Is EWS reaching anyone?	Unknown	Not reported by the government
Why do reserved-category students drop out?	Unknown	Count published; reasons not recorded

The three things nobody can tell you

- ▶ **Whether "none found suitable" is a shortage or a mechanism.** Answerable with a straightforward audit that nobody has commissioned.
- ▶ **What reservation has cost.** There is no measurement of institutional efficiency, so the central cost claim is untested in either direction.
- ▶ **How the 27% is distributed inside the OBC category.** No national sub-classification, and no caste count until 2027.

■ INTERPRETATION

The one sentence that carries Part 11.

The best evidence available says reservation works, has not delivered where power sits, has never touched what people own, and operates on a shrinking corner of the economy — which means the honest argument is not about whether to keep it but about what else would have to be done alongside it.

That argument is Part 12, and it is the one both movements have avoided.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 11 — THE DATA WAR

1. **The gradient is the whole story.** Central government, 1 January 2024: at Group A the reserved categories are *below* quota — SC 14.2%, ST 6.54%, OBC 19.14%. In Group C they are at or above it. Among sanitation staff, over 66% come from those same categories. The higher the post, the fewer; the lower, the more.
2. **It works, and there is causal evidence.** Caste groups newly added to the Scheduled Caste list gained **7–8 rank points of upward mobility** over the following twenty years — peer-reviewed, published in 2024. "Reservation does not work" is no longer a supportable position.
3. **Thousands of reserved posts are empty.** More than 2,750 reserved teaching posts vacant in central universities, and **4,297** reserved academic positions closed as "none found suitable" after recruitment. Whoever is right about why, those places were taken from nobody.
4. **It has never touched what people own.** Scheduled Castes: about 18% of households and 8.5% of land; 19.3% of the workforce and 11.4% of enterprises; 2.6% of billionaire wealth against 88.4% for upper castes. Seventy-six years of employment policy has not moved ownership at all.
5. **The finding both sides will hate: it is an effective instrument aimed at a small and shrinking target.** The medicine works. The dose is small, the disease has spread to organs it cannot reach, and both movements are arguing about whether to stop the prescription rather than about what else to prescribe.

Coming next

PART 12 — THE TWO CASES, STEELMANNED

The centrepiece. Both fighters at full strength.

Case A: abolish it. Written as the best possible advocate would write it — merit, efficiency, caste-hardening, elite capture, the creamy-layer problem, the poor upper-caste problem, seventy-six years, the psychological cost of permanent labelling, and the constitutional case.

Case B: keep it. The same treatment — representation against charity, the vacancy evidence, the persistence evidence, what happened everywhere quotas were removed, the argument that merit is inherited, and the constitutional case.

Then the **cross-examination**: each side's best ten arguments put directly to the other, with the strongest reply. And the **scorecard**, claim by claim, marked fact, interpretation or contested — with no summary judgement yet.

A closing thought: the most useful number in this part is the one on the top row. Every reserved category is below its quota in the senior ranks of the Indian government, thirty-six years after Mandal. Both sides have had that figure available for years. Neither has used it, because it is fatal to one and humiliating to the other. — L.S.

Sources & Notes

Every factual claim in Part 11, and where it comes from.

Central government composition

Department of Personnel and Training, Annual Report 2024–25, reporting the position as of **1 January 2024**: approximately 32.52 lakh employees across 80 ministries and departments; overall representation of SC 16.84%, ST 8.7% and OBC 26.32%. Group A: SC 14.2%, ST 6.54%, OBC 19.14%. Group C excluding safai karamcharis: SC 16.75%, ST 8.94%, OBC 27.29%. Over 66% of safai karamcharis employed by the Union government drawn from SC, ST and OBC categories; some reporting of the same data gives a figure above 76%. The report does not publish representation figures for Economically Weaker Sections.

Faculty vacancies

Education Ministry replies to Parliament: as of November 2024, 5,182 teaching posts vacant across central universities, of which more than 2,750 were reserved — approximately 740 SC, 464 ST and 1,546 OBC. As of 31 January 2025, approximately 28.56% of sanctioned teaching positions (18,940 posts) vacant across IITs, NITs, IIMs, IISERs, central universities and other central higher education institutions. A parliamentary panel reported 56% of professor positions vacant at the IITs, IIMs, NITs and IISERs. 4,297 reserved teaching positions at professor, associate professor and assistant professor level left vacant in central educational institutions following recruitment through a "none found suitable" declaration. Special recruitment drives reported filling 26,751 vacancies by December 2024, including 15,637 faculty positions of which 1,949 were reserved for SCs, 771 for STs and 3,261 for OBCs.

Mobility

Sam Asher, Paul Novosad and Charlie Rafkin, "Intergenerational Mobility in India: New Measures and Estimates across Time and Social Groups," *American Economic Journal: Applied Economics*, 2024. Findings: intergenerational mobility in India broadly constant and low since before liberalisation; rising mobility for Scheduled Castes among sons; declining mobility among Muslims; daughters' mobility lower than sons' with less cross-group variation. Natural experiment: caste groups newly assigned Scheduled Caste status experienced on average a 7–8 rank point increase in upward mobility over the following twenty years, from which the authors conclude that affirmative action for Scheduled Castes has substantially improved their mobility.

Land, enterprise and wealth

All-India Debt and Investment Survey: Scheduled Castes approximately 18% of households owning approximately 8.5% of land; upper-caste Hindus approximately 22% of households owning approximately 28% of land; AIDIS 2018–19 indicating upper castes hold close to 55% of national wealth. · Telangana survey data: average General category family approximately 0.42 acres of irrigated land against approximately 0.20 acres for the average Scheduled Caste family. · Scheduled Castes approximately 19.3% of the workforce with approximately 11.4% owning an enterprise; Ministry of Micro, Small and Medium Enterprises survey finding 12.45% of unregistered non-agricultural MSMEs owned by Scheduled Castes, with none medium-sized. · National Family Health Survey: approximately 12.3% of Scheduled Castes in the highest wealth quintile. · Analysis of Indian billionaire wealth for 2022 attributing approximately 2.6% to Scheduled Castes and approximately 88.4% to upper castes.

Carried forward from earlier parts

The 13,500 dropout figure from central universities, IITs and IIMs reported in 2023, and the correspondence study result of ten, six and three interview calls, are set out with sources in Part 6. NEET 2025 all-India quota closing scores are set out in Part 1. The Group A shortfall should be read against the 2024 sub-classification judgment and the state implementations described in Part 10.

A note on what is missing — and on corrections

Several figures in this part rest on estimated OBC population denominators, because there has been no caste census since 1931; Census 2027 will change this. Wealth and land figures derive from sample surveys and differ between sources depending on definitions of caste category and of asset. Billionaire-wealth attribution is an analytical estimate rather than an official statistic and is given as such.

Part 11 assesses whether reservation works. It does not present the full case for or against continuing it, which is Part 12, nor a verdict, which is Part 14. If you find an error, I want to know.

END OF PART ELEVEN

THE RESERVATION FILES The Data War

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 12 – The Two Cases, Steelmanned
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART TWELVE

THE TWO CASES, STEELMANNED

Both fighters at full strength. The best case to abolish it, the best case to keep it, and twenty questions neither wants to answer.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Part The Series Was Built For

Eleven parts of evidence have been gathered so that this part could be written properly. Everything here is drawn from what came before, and every claim in it has a source somewhere in Parts 1 to 11.

The two cases in Chapters 2 and 3 are written as advocacy. Not as summaries of what people say — as the argument itself, made as well as I am able to make it, in the voice of someone who believes it.

"If you can tell which of the two chapters I agree with, I have failed. Both were written to win."

That is harder than it sounds and I want to be honest about the difficulty. Writing the case you hold is easy. Writing the case you do not hold — and writing it better than its own advocates usually manage, using the strongest evidence available including evidence they have never found — is genuinely uncomfortable. Twice while drafting Chapter 2 I had to stop, because the argument was working.

Three notes on method.

Each case is allowed its best evidence, not its most popular. The abolition case here does not claim that reserved candidates have taken over the government, because Part 11 showed they have not. It makes the arguments that survive. The same discipline applies to the other side.

Then they are cross-examined. Chapters 4 and 5 put ten questions to each, with the strongest reply each can give. Some replies are good. Some are visibly weak, and I have not strengthened them beyond what the evidence supports.

And there is no verdict here. Chapter 7 marks every contested claim as fact, interpretation or unsupported, and stops. My own judgement is Part 14, clearly labelled, after Part 13 has looked at what other countries did.

One last thing, and it is the most important sentence in this book. **Chapter 8 is a list of things neither case addresses.** It is longer than I expected when I started, and by the time I finished writing it I was no longer sure that the argument between these two positions is the argument that matters.

— Lovepreet Singh

July 2026

Contents

■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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The Rules Of This Part

What a steelman actually is, why it is the opposite of what social media does, and the four rules I have followed.

A strawman is the weakest version of an opponent's argument, built so it can be knocked down. Almost all public argument about reservation consists of two strawmen fighting.

A **steelman** is the opposite: the strongest version of the argument, stated so well that its own supporters would say "yes, that is what I mean, only better."

There is a practical reason to do this, and it is not politeness. **If you can only defeat the weak version, you have not defeated anything.** The person you are arguing with will simply say that is not what they meant — and they will be right.

The four rules

- ▶ **Best evidence, not most popular evidence.** Where a side's favourite claim has been shown false earlier in this series, I have dropped it and used something that survives. The abolition case in Chapter 2 does not say reserved categories dominate the services, because Part 11 showed they do not. It says something harder to answer instead.
- ▶ **Equal length, equal force.** Ten arguments each. Written in the same register, with the same access to the evidence.
- ▶ **No sneering.** No "of course", no "obviously", no rhetorical questions designed to embarrass. Each case is written by someone who means it.
- ▶ **Cross-examination with real replies.** Chapters 4 and 5 put the hard questions. Where a side has a good answer, it is given. Where it does not, I say so rather than inventing one.

HOW TO READ THE NEXT TWO CHAPTERS

Read both before forming a view on either. If you read Chapter 2 and stop, you will finish convinced. If you read Chapter 3 and stop, the same. That is what a working steelman does, and it is why they are printed consecutively with no commentary in between.

Notice also what happens to your own reaction. Most readers find one chapter obviously right and the other suspiciously clever. Which one you find clever tells you where you already stood.

Case A — Abolish It

The case for ending caste-based reservation, written as its best advocate would write it.

Let us begin by conceding everything that is true, because the case does not need the falsehoods.

Caste discrimination was real, systematic and brutal. It is still measurable. Twenty-seven per cent of Indian households admit to practising untouchability. Ninety-seven per cent of manual scavengers come from one category. Identical CVs with different surnames produce ten interview calls against six and three. None of that is in dispute, and anyone who disputes it is not making this argument — they are making a worse one.

The case that follows accepts all of it, and argues that caste-based reservation is nevertheless the wrong instrument and should be replaced.

1. A remedy with no exit condition is not a remedy

Article 16(4) permits reservation for a class "not adequately represented in the services." That is a condition. Conditions end when they are satisfied.

In seventy-six years, no government, no court and no commission has ever defined what adequate representation would look like. There is no number, no threshold, no test. Which means the condition on which the entire exception rests *cannot be met*, not because the goal is distant but because it has never been specified.

A measure that cannot be satisfied is not a remedy. It is a permanent structure wearing a remedy's clothes. And the framers knew the difference — they wrote an expiry into Article 334 and Ambedkar told the Assembly that reservation must be confined to a minority of seats. Both limits are gone.

2. The state is the last institution keeping caste on file

Consider what the Indian state actually requires. Caste registered at birth. Declared at school admission. Certified for a college application. Carried into employment records. Recorded again for a child's application a generation later.

Every family in India therefore has a standing administrative and financial reason to preserve, document and transmit its caste identity. We ask people to prove their caste at every threshold of their lives, and then express surprise that caste has not faded.

A society can forget a category the state has stopped writing down. It cannot forget one the state demands in triplicate.

3. Elite capture is not an accusation. It is a judicial finding.

This is no longer contested. The Supreme Court warned about it in 1963. It built the creamy layer around it in 1992. It extended that principle to Scheduled Castes in 2018. And in 2024 a seven-judge bench, by six to one, permitted the Scheduled Caste category to be split — because the benefits inside it had concentrated so unevenly that a single category could no longer be justified.

The child of a senior officer and the child of a landless labourer hold the same certificate and compete in the same pool. Telangana and Karnataka have now legislated to address this within the Scheduled Castes. Nothing has been done for the 3,743 castes inside the OBC quota — because the dominant communities within it have the political power to prevent it.

A policy whose benefits reliably concentrate at the top of each protected category is not reaching the people it names.

4. The categories are incoherent, and demonstrably so

The EWS threshold of ₹8 lakh was copied from the OBC creamy layer figure. When the Supreme Court asked what study supported it, the government could not point to one. At that level the overwhelming majority of eligible households qualify.

Jat communities were added to the central OBC list in 2014 and removed by the Court in 2015. Total reservation is 59.5% centrally and about 62% in Maharashtra, both past a ceiling described as constitutional. Bihar's 65% was struck down; the centre's 59.5% stands — because one came with an amendment and the other did not.

This is not a system with imperfections. It is a set of categories that are arbitrary at the threshold, unstable in membership, uncapped in total, and unevenly distributed inside.

5. The cost falls on people who did nothing

A poor general-category family in Bihar inherits no land, no capital and no coaching money — only a surname. The correction for a historical wrong is levied on individuals selected by birth, which is the same principle the wrong itself rested on.

This is not a hypothetical grievance. Parliament acknowledged those families exist when it created EWS in 2019, and the Supreme Court upheld it. The question is not whether they exist. It is why the burden of repair should fall on them rather than on the state's revenue.

6. Seventy-six years, and the top is still unrepresented

Group A of the central government, January 2024: Scheduled Castes 14.2%, Scheduled Tribes 6.54%, Other Backward Classes 19.14%. Every one below quota.

Read that as a defender must. If the instrument worked as claimed, three generations would have produced representation at senior level. It has not. Either quotas cannot reach the level where decisions are made, or something else is blocking advancement that a quota at entry does not touch.

Either way, continuing an instrument that has failed at the level that matters, on the grounds that it must eventually work, is faith rather than policy.

7. The prize is shrinking, and the fight is over the wrong thing

Reservation applies to government employment. Government employment is a small and falling share of Indian jobs. The correspondence study that measured discrimination most cleanly measured it in the *private sector*, where reservation has never applied and where most Indians work.

A policy that captured a share of a shrinking market, while the measured harm concentrates in the market it never entered, is not a solution to the problem it is defended by.

8. Permanent labelling entrenches the identity it aims to dissolve

The stated goal of the anti-caste movement, from Ambedkar onward, was the annihilation of caste — not a better position within it.

A system that assigns every citizen a caste category at birth and attaches material consequences to it does the opposite. It makes caste the most consequential fact about a person's public life. Whatever this achieves, it is not annihilation.

9. India already runs the alternative, and it is lawful

An economic quota was struck down in 1992 because poverty alone could not constitute a backward class. In 2019 Parliament amended the Constitution, and in 2022 the Supreme Court upheld it.

The constitutional obstacle no longer exists. A caste-blind, need-based system is available, has been running for seven years, and can be built properly rather than by copying a number from another scheme.

10. And the strongest argument is Ambedkar's own

He told the Constituent Assembly on 30 November 1948 that reservation must be confined to a minority of seats, or the principle of equality would be destroyed. Central reservation is 59.5%. Maharashtra is at 62%. Tamil Nadu at 69%.

The limit set by the architect of the policy has been crossed, and the people who invoke his authority most often are past his line. If his ceiling is not binding, his authority cannot be either.

CASE A – THE CONCLUSION

The injury was real and remains measurable. But the instrument has no exit condition, keeps caste administratively alive, concentrates benefit at the top of each category, rests on incoherent thresholds, has not delivered where power sits, operates on a shrinking sector, and has crossed the limit its own architect set.

The claim is not that nothing is wrong. It is that **this is the wrong tool**, that a need-based system is now lawful, and that seventy-six years is long enough to conclude that a measure which cannot define its own success will never end.

Case B — Keep It

The case for retaining caste-based reservation, written as its best advocate would write it.

Let us also begin by conceding everything that is true.

The categories are badly built. The ₹8 lakh line is indefensible. Benefits have concentrated inside protected groups, and the Supreme Court was right to permit sub-classification. Thousands of reserved posts sit empty. Representation at senior levels has not been achieved. And the policy has done nothing about land, capital or ownership.

All of that is accepted. The case that follows argues that these are reasons to rebuild the instrument, not to remove it.

1. It works, and there is causal evidence

This is the strongest single finding in the entire argument and it is rarely stated. Caste groups newly added to the Scheduled Caste list experienced, on average, a rise of seven to eight rank points in upward mobility over the following twenty years — measured through a natural experiment, published in a leading economics journal in 2024.

That is not correlation. It is a comparison between similar groups, one of which received the policy. Against a national background in which intergenerational mobility has been flat and low for decades, the groups that received reservation moved.

Any case for abolition must therefore argue that a measure which demonstrably works should be ended for other reasons. That is a much heavier burden than the one usually carried.

2. The injury is current, not historical

Twenty-seven per cent of Indian households told researchers that their own family practises untouchability — a self-report of unlawful conduct, with no benefit for saying yes, which means the true figure is higher. Fifty-two per cent among Brahmin households.

Around five per cent of marriages are inter-caste. Roughly ninety-seven per cent of identified manual scavengers are Scheduled Caste. Identical CVs produce ten interview calls for an upper-caste name, six for a Dalit name and three for a Muslim name.

Every one of those measures the present. This is not repair for something that ended in 1950.

3. The condition for ending has not been met — on its own terms

Article 16(4) is triggered by inadequate representation in the services. Seventy-six years on, every reserved category remains below quota in Group A: Scheduled Castes 14.2%, Scheduled Tribes 6.54%, Other Backward Classes 19.14%.

The abolition case treats this as proof of failure. Read it again. It is proof that *the condition still obtains*. A remedy is withdrawn when the problem it addresses has been solved, not when it has proved harder than expected.

4. Removing belief has been tried four times and failed

Buddhism rejected birth-based worth twenty-five centuries ago. Islam and Christianity entered India with founding texts that reject it. Sikhism was born in Punjab specifically to break it — langar, common surnames, initiation from a common bowl, scripture containing the hymns of a leather-worker and a butcher.

Caste is inside all four of them today. Ashraf, Ajlaf and Arzal among Muslims, documented by the government's own Sachar Committee. Separate pews and cemeteries among Christians. Mazhabi and Ravidasia Sikhs.

Four religions changed what millions of Indians believed, and the structure survived. The proposal that removing a column from a government form will succeed where that failed requires an argument nobody has made.

5. Deleting the record deletes the evidence, not the practice

We know that ninety-seven per cent of manual scavengers are Scheduled Caste because somebody counted by caste. We know the Group A shortfall because the government publishes composition by category. Telangana and Karnataka could sub-classify only because the data existed.

Remove caste from official records and none of those figures can ever be produced again. The pattern would continue and become invisible.

Note also what the state already does not measure. Seven years into EWS, there is no published figure for who has received it. That is what caste-blind administration looks like in practice: not neutrality, but the absence of any way to check.

6. Reserved posts sit empty, which destroys the central grievance

More than 2,750 reserved teaching posts were vacant in central universities as of November 2024. A further 4,297 reserved academic positions were closed after recruitment through a declaration that no suitable candidate had been found.

Those places went to nobody. The "they took my seat" grievance requires an occupant, and in thousands of cases there was none.

And the same discretion does not produce the same outcome for unreserved posts at the same institutions. Whatever explains that, it is not an excess of reserved appointments.

7. The economic alternative has been tried, twice, and is worse

An economic quota was introduced by executive order in 1991 and struck down in 1992. It was enacted again by constitutional amendment in 2019 and upheld in 2022 by three votes to two.

Look at what that scheme actually is. A threshold copied from another quota with no study behind it. A line so high that the overwhelming majority of eligible households fall below it. No published data on beneficiaries. And an exclusion the dissenting judges called the first time the Court had approved a discriminatory principle — a poverty quota that bars the poorest communities in the country.

This is the model being proposed as the replacement. It is not a hypothetical improvement. It exists, and it is worse.

8. Merit is substantially purchased

An entrance score measures performance on a test after a quantity of preparation, and preparation is sold at scale by an enormous industry at prices beyond most Indian households.

Two candidates of identical ability and different family resources do not score identically. That is arithmetic. A system that allocates by score therefore allocates partly by inherited advantage — which means "pure merit" is not an alternative to inherited privilege but a mechanism for laundering it.

9. Those who want it abolished for others want it for themselves

Marathas, Jats, Patidars, Kapus and Gujjars have spent a decade blockading roads and railways to be officially classified as backward. Maharashtra passed an Act in 2024 taking its total to about 62% to accommodate one of them.

Nobody agitates for years to obtain a worthless benefit, and nobody demands a label they believe is stigmatising. The revealed preference of some of India's most powerful communities is the strongest available evidence that reservation delivers something real.

And note where the resistance comes from: existing OBC organisations, defending their share. The conflict is between adjacent groups over a pool that is too small — which is an argument for enlarging the pool, not for emptying it.

10. And there is no plan for the day after

Suppose reservation ends tomorrow. The 27% of households still practise untouchability. The correspondence study still returns ten, six and three. Somebody still cleans the sewer, and on every piece of evidence available it is the same community.

What mechanism replaces it? Not a sentiment — a mechanism. No answer has been offered, because the abolition case is a case against something rather than a case for anything.

CASE B – THE CONCLUSION

The instrument is badly built and has been asked to do more than it can. But it demonstrably works, the injury it addresses is measurable today, its own constitutional condition remains unmet, four religions have already failed to remove caste by changing belief, and the proposed replacement has been tried twice and is worse.

The claim is not that the present arrangement is correct. It is that **a working instrument should be rebuilt rather than removed**, and that nobody proposing removal has explained what happens on the following day.

Cross-Examination: Case A

Ten questions to the abolition case, with the strongest answer available to each – and where there is no good answer, I say so.

Q1

What is your mechanism for the sewers?

Answer: enforcement of existing law, mechanisation of sanitation work, and rehabilitation funded from general revenue rather than from a quota. These do not require caste categories.

Assessment: partially adequate. It is a real answer and mechanisation is a genuine policy. But rehabilitation programmes have to identify who needs rehabilitating, and the only reason we know who does is that the state counts by caste. The answer relies on data the proposal would abolish.

Q2

Four religions removed the doctrine and caste survived. Why would removing a form column succeed?

Answer: those religions changed belief while the state continued to administer caste. Removing state recognition attacks the material incentive rather than the belief, which is a different intervention.

Assessment: this is the best answer available and it is not strong. Caste was administered by no state at all for most of its history and survived every empire that ruled India. The mechanism identified in Part 3 – endogamy, enforced by families – has never required state recognition.

Q 3

You cite elite capture. The Court's remedy was sub-classification, not abolition. Why is yours different?

Answer: sub-classification concedes the principle that benefits concentrate, and then proposes to solve it by adding another layer of categories. Each layer will concentrate in turn.

Assessment: a fair point about regress, and unproven. Telangana implemented in 2025 and Karnataka in 2026; there is no evidence yet either way.

Q 4

Group A is below quota for all three categories. Where is the over-representation?

Answer: the case as stated here does not claim over-representation. It claims the instrument has failed at senior level.

Assessment: honest, and it costs the movement its most popular argument. Almost all public anti-reservation sentiment rests on a belief that this data contradicts.

Q 5

EWS is your model. Defend its threshold.

Answer: the threshold is indefensible and should be rebuilt with proper measurement. A badly calibrated example of a category does not invalidate the category.

Assessment: logically correct and practically weak. The one time India built a caste-blind quota, it copied a number and published no results. That is the available evidence about how the replacement would be administered.

Q 6

How do you detect discrimination in a caste-blind system?

Answer: through targeted research and audit studies rather than routine administrative collection.

Assessment: insufficient. The correspondence study depended on knowing which surnames signal which community. The manual scavenging figure is an official count. Audit studies can measure discrimination at a moment; they cannot replace a continuous statistical series, and no state funds them at scale.

Q7

Dalit Muslims and Christians are excluded by the 1950 Order. Why remove the category rather than extend it?

Answer: extending it enlarges a system we regard as harmful. Removing the religious test by removing the category treats everyone alike.

Assessment: coherent. But note the asymmetry: the exclusion has stood for seventy-six years and became a talking point in July 2026. If the concern is genuine, extending status is available now and abolition is not.

Q8

Thousands of reserved posts sit empty. Who lost them?

Answer: nobody, in those instances — which is itself an argument that the system functions poorly.

Assessment: the reply is sound and it changes the character of the grievance. A policy that leaves posts unfilled is inefficient. It is not a policy that took anything from anybody.

Q9

Your movement began the week after an exam-leak protest forced a minister out. Why then?

Answer: the moment created an opening. Movements appear when they become possible, and the underlying grievance predates it by decades.

Assessment: true and incomplete. The exam-leak protest was directed at the state's own examination machinery. Within days the target had become other students, and the leaks disappeared from the conversation. That is a fact about the movement's effect, whatever its intent.

Q 10

What would you accept as evidence that discrimination persists?

Answer: the evidence in Part 6 is accepted. The disagreement is about the remedy, not the diagnosis.

Assessment: this is the strongest position the abolition case can take, and it is not the one its public advocates take. The movement's most prominent voices have described historical caste atrocities as invented propaganda. A case that concedes the diagnosis is far more formidable than the one being made in public.

Cross-Examination: Case B

Ten questions to the retention case. Same treatment, same standard.

Q1

Define "adequate representation." When would you stop?

Answer: proportionality to population, sustained across levels, in a society where inter-caste marriage rates and untouchability self-reports have converged towards zero.

Assessment: this is an answer, and it is far more than the movement usually offers — but it is not the answer anyone has ever officially adopted. No government, court or commission has defined the threshold in seventy-six years, and until one does, the abolition case's charge that the condition cannot be met stands.

Q2

Ambedkar said a minority of seats. India is at 59.5%. Do you defend that?

Answer: no. The ceiling was breached by the EWS amendment, which the retention side did not seek. The breach was made for the general category and should be reversed.

Assessment: factually correct and politically empty. Nobody on this side opposed EWS on ceiling grounds at the time, because doing so meant defending a limit that also constrains their own claims. The position is available in principle and was abandoned in practice.

Q3

Why has nothing been done for 3,743 OBC castes?

Answer: the data has not existed since 1931. Census 2027 will provide it.

Assessment: partially true and mostly evasive. Several states created most-backward sub-categories decades ago without a census. The obstacle at the centre is that dominant communities inside the OBC category benefit from the absence of sub-classification and have the votes to keep it.

Q 4

The worst measured discrimination is in the private sector. What is your answer there?

Answer: private-sector reservation, which has been proposed for decades and never enacted; or at minimum mandatory diversity reporting.

Assessment: a genuine answer that nobody is fighting for. If the harm is concentrated where the policy does not reach, the campaigning energy should be there. It is not, on either side.

Q 5

Ambedkar said intermarriage was the only solvent. What in your programme touches it?

Answer: nothing directly, because the state cannot legislate whom people marry. Reservation creates the economic independence that makes such choices possible.

Assessment: honest and thin. Inter-caste marriage is around 5% after seventy-six years of the policy. If economic independence produced the effect claimed, the number should have moved.

Q 6

Land 8.5%. Enterprises 11.4%. Billionaire wealth 2.6%. Is the instrument aimed correctly?

Answer: no. Reservation was never designed to redistribute assets, and land reform, credit access and inheritance policy would be required to address them.

Assessment: the concession is correct and the implication is large. If the deepest inequality is in assets and the policy cannot reach it, then the argument being fought so bitterly is about a secondary front.

Q 7

Bihar's 65% was struck down; the centre's 59.5% stands. Do you accept that?

Answer: no. The distinction rests on the form of the instrument rather than on any principle about equality.

Assessment: correct, and it is an argument the abolition case can borrow intact. A ceiling that binds states and not Parliament is a test of parliamentary arithmetic, not of constitutional principle.

Q 8

What would you accept as evidence that a group no longer needs the benefit?

Answer: sustained proportional representation across all levels of employment, convergence in the untouchability self-report, and asset ownership approaching population share.

Assessment: a real answer, and note how demanding it is. On those criteria no reserved category is close, but nor would the criteria ever have been met by any group in any country. A threshold set that high is functionally a permanent one, which is the abolition case's charge restated.

Q 9

If the policy works, why is the top still unrepresented after seventy-six years?

Answer: senior posts are filled by promotion from cohorts recruited decades earlier, and reservation in promotion was contested until 1995 and litigated thereafter. The stock lags the flow.

Assessment: this is a good answer and it is testable. If correct, Group A composition should be improving steadily. Whether it is — and at what rate — is precisely the series nobody publishes prominently.

Q 10

Do you accept that the current design is indefensible?

Answer: yes. The thresholds are arbitrary, the categories are too crude, elite capture is real, and the ceiling has been breached for the wrong reasons.

Assessment: and this is where the two cases quietly converge. Both agree the machine is badly built. They differ on whether the response is to rebuild it or remove it — which is a much narrower disagreement than either movement admits.

The Positions Nobody Is Defending

Abolish or keep is a choice between two options. There are at least seven others, and every one of them is more specific than either.

The previous chapters treated this as a binary because that is how it is being fought. It is not a binary. Here are seven positions that exist in Indian policy discourse, each with a real constituency somewhere, and none of which has a movement behind it.

POSITION 1 – DEFINE THE FINISH LINE

Keep the policy; specify, by statute, what "adequate representation" means.

The case: the strongest charge against reservation is that it has no exit condition. That is a solvable problem. Parliament could define the threshold — proportionality sustained across all groups for a stated number of years — and provide that a category graduates out when it is met. Nothing in the Constitution prevents this, and Article 16(4) already implies it.

The hardest problem: the moment a number exists, every group has an incentive to dispute the measurement, and the government of the day owns the political cost of any category graduating.

POSITION 2 – SUB-CLASSIFY EVERYTHING

Keep the quotas; split every category so the benefit reaches the bottom of each.

The case: the Supreme Court permitted this for Scheduled Castes in 2024, and Telangana and Karnataka have implemented it. The same logic applies with far greater force to 3,743 OBC castes sharing one undivided 27%. Elite capture is real and this is the remedy the highest court chose.

The hardest problem: the dominant communities inside each category have the political power to prevent it, which is precisely why it has happened for SCs and not for OBCs.

POSITION 3 – ONE FAMILY, ONE GENERATION

A family that has drawn the benefit once becomes ineligible thereafter.

The case: this attacks elite capture directly and at the household level rather than the community level. The child of a beneficiary competes openly; the benefit circulates to families that have never had it. It is the creamy layer principle taken to its logical conclusion, and it gives the policy a natural churn.

The hardest problem: one generation of access does not undo eighty generations of exclusion, and a family that has produced one clerk is not thereby equal. It also creates an enforcement problem of extraordinary complexity.

POSITION 4 – CASTE PLUS DEPRIVATION

Not caste or income. A composite index, scored.

The case: this is what the Mandal Commission itself did – eleven weighted indicators, social, educational and economic, out of twenty-two. The framework exists and has been used. A points system that counts caste heavily, but alongside parental education, first-generation status, rural residence, school medium and household assets, targets far more precisely than either pure caste or pure income.

The hardest problem: complexity invites gaming and litigation, and every weight in the index becomes a political fight. It also requires household data India does not currently collect.

POSITION 5 – EXPAND, DO NOT REDISTRIBUTE

Increase the total so that unreserved places never fall.

The case: this is the only method that has ever been tried and worked. In 2006–08 seats were increased by roughly half to accommodate the OBC quota, and again for EWS in 2019. Both times the conflict was defused, because the arithmetic that produces panic was removed. In April 2026 Parliament took up a proposal to raise the Lok Sabha from 543 to 850 seats, which does the same thing at constitutional scale.

The hardest problem: it costs money, it requires faculty and infrastructure that were not provided last time, and it works only where capacity can actually be expanded. You cannot double the number of District Collectors.

POSITION 6 – MOVE THE FIGHT TO THE PRIVATE SECTOR

Accept the public quota as it is; regulate where the harm actually is.

The case: the cleanest measurement of discrimination in India was taken in private-sector hiring, where reservation has never applied and where most Indians work. Mandatory composition reporting — not quotas — would create the first continuous evidence base on the sector that matters most.

The hardest problem: it has been proposed for decades and never enacted, because the constituency opposing it is the one that funds political parties.

POSITION 7 – SHIFT FROM ENTRY TO SUPPORT

Keep the seat; fund what happens after it.

The case: more than 13,500 reserved-category students dropped out of central universities, the IITs and the IIMs. Whichever explanation you accept, the remedy is identical — bridge courses, language support, mentoring, hostels. It is cheap, it is uncontroversial, and it is the one intervention in this entire book that requires nobody to lose an argument.

The hardest problem: it is unglamorous, it produces no headline, and there is no constituency that gains politically from delivering it. Which is presumably why nobody has.

■ INTERPRETATION

What the existence of this list tells you.

Every one of these positions is more specific than "abolish" or "keep". Several are already partly implemented. Two — sub-classification and expansion — have been demonstrated to work.

And not one of them has a movement, a hashtag or five million followers.

The reason is structural rather than sinister. Each of these positions requires naming a number, accepting a trade-off, and taking responsibility for an outcome. Abolition and retention require neither. They are positions you can hold entirely, at no cost, forever.

Which is worth remembering when a movement appears demanding one of the two options that requires nothing of anybody.

The Scorecard

Every substantial claim from both cases, marked. No verdict – that is Part 14.

CASE A – THE ABOLITION CLAIMS

Claim	Status	Where established
"Adequate representation" has never been defined	FACT	Part 8
The state requires caste at every life threshold	FACT	Parts 5, 8
Elite capture inside categories is real	FACT	2024 judgment; Part 10
The EWS threshold has no evidential basis	FACT	Part 10
Reserved categories are below quota in Group A	FACT	Part 11
Government employment is a shrinking share of jobs	FACT	Parts 1, 11
Ambedkar's "minority of seats" limit has been crossed	FACT	Part 8
Removing state recognition would weaken caste	CONTESTED	Four religions failed – Part 4
Permanent labelling entrenches caste identity	INTERPRETATION	Plausible; unmeasured
A need-based system would work better	CONTESTED	EWS record – Part 10

CASE B – THE RETENTION CLAIMS

Claim	Status	Where established
Reservation causally improves mobility	FACT	Part 11 — 7–8 rank points
Untouchability is practised by 27% of households	FACT	Part 6
Identical CVs produce 10 : 6 : 3 callbacks	FACT	Part 6
~97% of manual scavengers are Scheduled Caste	FACT	Part 6
Caste survived conversion into four religions	FACT	Parts 3, 4
Thousands of reserved posts sit unfilled	FACT	Part 11
Article 16(4)'s condition remains unmet	FACT	Part 11
Entrance scores partly reflect purchased preparation	FACT	Part 11
Deleting the category would end measurement	FACT	Parts 6, 10, 11
Rebuilding will succeed where the present design failed	CONTESTED	Untested

■ INTERPRETATION

What the scorecard shows without deciding anything.

Seven of Case A's ten claims are established fact. Nine of Case B's are. Neither side is arguing from fantasy, and both are substantially better than their public versions.

But look at *where* each side's contested claims sit. Case A's unproven claims are all about **what would happen if the policy were removed** — that caste would weaken, that labelling entrenches, that a need-based system would work. Case B's single unproven claim is about **what would happen if it were rebuilt**.

Both sides have solid ground about the present and speculation about the future. The whole disagreement lives in the speculation — which is why eleven parts of evidence have narrowed it far less than one might hope.

What Neither Case Addresses

The list that changed how I see this argument. Every item is established somewhere in Parts 1 to 11, and neither movement has a position on any of them.

I assembled this list expecting four or five entries. It came to eight, and by the end of writing it I was no longer confident that the argument between abolition and retention is the argument that matters.

- ▶ **Marriage.** Endogamy is the mechanism that creates and sustains caste — Ambedkar said so in 1936 and the genetics confirmed it. Around 5% of Indian marriages are inter-caste. Neither side has a policy, a campaign or a sentence about it.
- ▶ **Land, credit and capital.** Scheduled Castes: about 18% of households and 8.5% of land; 2.6% of billionaire wealth. This is where the durable inequality sits, no reservation policy reaches it, and no movement is campaigning on it.
- ▶ **The private sector.** Where most Indians work, where reservation has never applied, and where the cleanest measurement of discrimination was taken. Both movements are arguing about the small public remainder.
- ▶ **Support after admission.** More than 13,500 reserved-category students dropped out of central universities, IITs and IIMs. Both readings of that figure — they were unprepared, or they were unsupported — imply the same remedy: bridge courses, language support, mentoring, hostels. It is cheap and uncontroversial, and nobody is asking for it.
- ▶ **Dalit Muslims and Christians.** Excluded from Scheduled Caste status by a paragraph written in 1950, while Sikhs and Buddhists are included. Millions of people, a commission running since 2022, and no mass campaign from any direction in seventy-six years.
- ▶ **Denotified tribes.** Communities declared criminal by birth under an 1871 law repealed in 1952, still bearing the administrative name, still among the most deprived and least represented people in India. Absent from this argument entirely.
- ▶ **Expansion.** The one demonstrated method of implementing reservation without crisis: in 2006–08 total seats were increased by roughly half so that unreserved places did not fall, and again for EWS in 2019. Both times it defused the conflict. And in April 2026 Parliament took up a proposal to raise the Lok Sabha from 543 to 850 seats — the largest expansion of reserved political representation in Indian history. Neither movement has mentioned it.
- ▶ **Measurement.** Article 335 conditions reservation on "efficiency of administration" and no metric has ever been created. Article 16(4) turns on "adequate representation" and no threshold has ever been set. The two central conditions of the entire policy are undefined, seventy-six years in, and neither side is demanding definitions.

■ INTERPRETATION

The pattern in that list, and what it suggests.

Every item shares one property: **none of them can be resolved by winning the argument about admissions.**

Notice also who would have to do the work. Land reform, credit access, private-sector regulation, extending the 1950 Order, funding student support, defining measurement standards — these are administrative and legislative projects requiring money, expertise and years. The abolition-versus-retention argument requires none of those. It requires only a position.

That is not a cynical observation about either movement. It is an observation about what kinds of argument are available to people with phones and no institutional power. The argument goes where the argument can be had.

But it does mean something for anyone deciding what to believe. If you were designing a programme to reduce caste inequality in India from scratch, and you had the evidence in this series in front of you, the reservation question would not be the first item on the list. It would not be the second either.

Nine Questions Nobody Asks

The blind spots in this stage of the argument.

1. Do the two cases actually disagree about much?

Both accept the injury is real. Both accept the categories are badly built. Both accept elite capture. Both accept the ceiling has been breached incoherently. Both accept the top is unrepresented.

The disagreement is confined to one question: rebuild or remove. That is a narrower dispute than either movement's rhetoric suggests, and neither has an interest in saying so.

2. Why does the public version of each case differ so much from its best version?

The strongest abolition argument concedes that discrimination is real and current. The movement's prominent voices have called historical atrocities invented propaganda.

The strongest retention argument concedes that the design is indefensible. Its defenders in public rarely concede anything.

Both movements are fighting with weaker weapons than they possess, because the strong ones require admitting something.

3. What would each side accept as defeat?

Chapter 4, Q10 and Chapter 5, Q8 asked exactly this. Both produced an answer, which is more than most participants can do — and both answers set thresholds that no evidence is likely to reach in either direction.

4. Why is "expand the pie" absent from a debate about scarcity?

It has worked twice, in 2008 and 2019, and it is before Parliament right now at constitutional scale. It is the only method that has ever defused this conflict, and it appears in neither case.

5. If both sides agree the design is broken, why is nobody proposing a redesign?

Because a redesign requires specifying thresholds, and specifying thresholds means someone loses. Abolition and retention are both positions that avoid ever naming a number.

6. Who benefits from the argument staying where it is?

Anyone whose position depends on the private sector remaining unexamined, on land ownership remaining unexamined, and on measurement standards remaining undefined.

That is not a conspiracy. It is simply what a long, loud, unresolvable argument does: it occupies the space where a resolvable one might have been.

7. Why has neither side asked for the data that would settle their claims?

An audit of "none found suitable." A published series of Group A composition over time. Beneficiary data for EWS. A study of institutional efficiency. Each is cheap and each would settle a live dispute.

Neither movement has demanded any of them.

8. What happens to this argument in eight months?

Census 2027 collects caste data in February 2027. Both cases in this part rest partly on an OBC population estimate derived from 1931. Neither side is preparing publicly for the result.

9. Is "abolish or keep" even the right question?

Chapter 8 is my answer, and it is the most useful thing I found while writing this part. The question is available, urgent-feeling and cheap to have opinions about. On the evidence assembled here, it is not the question with the most at stake.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 12 – THE TWO CASES, STEELMANNED

1. **The strongest abolition case concedes the injury.** It does not claim discrimination is invented or that reserved candidates dominate the services — Part 11 killed both. It argues that a remedy with no defined exit, resting on incoherent categories, which keeps caste administratively alive and has failed at senior level for seventy-six years, is the wrong instrument.
2. **The strongest retention case concedes the design is broken.** It accepts arbitrary thresholds, elite capture and the unmet target. It argues that the policy causally works, that the injury is measurable today, that four religions already failed to remove caste by changing belief, and that the proposed replacement has been tried twice and is worse.
3. **Seven of Case A's ten claims are established fact. Nine of Case B's are.** Both sides' *unproven* claims are about the future — what would happen if the policy were removed, or rebuilt. Eleven parts of evidence narrow the argument far less than one would hope, because the disagreement lives entirely in the speculation.
4. **Under cross-examination they quietly converge.** Both accept the injury is real, the categories are crude, elite capture is genuine and the ceiling was breached incoherently. The whole dispute reduces to one question: *rebuild or remove*. Neither movement has an interest in admitting how narrow that is.
5. **And neither case addresses eight things that matter more.** Marriage. Land and capital. The private sector. Support after admission. Dalit Muslims and Christians. Denotified tribes. Expansion. Measurement standards. None can be resolved by winning the argument about admissions — which is why both movements are having a different argument instead.

Coming next

PART 13 — THE QUESTIONS NOBODY ASKS, AND THE WORLD'S EXPERIENCE

The blind spots — and what happened everywhere else.

Around thirty questions nobody puts, drawn together from the whole series: why removing reservation keeps caste but deletes the record of it; whether the real fight is between two elites using the poor of both sides as ammunition; whether a shrinking government job market makes this a war over a dying prize; intra-Dalit inequality; what caste does under automation; inter-caste marriage as the number that predicts the future; north against south; and the collision between delimitation and the caste census that nobody is discussing.

Then the comparison: the United States and what followed the 2023 ruling; Malaysia's Bumiputera policy, more than fifty years old and still running; South Africa; Brazil; Nepal; Northern Ireland. Including the places that ended preferences, and what happened next.

A closing thought: I set out to write the two best cases and expected to find them far apart. Under cross-examination they converge on almost everything except the final step — and both fall silent in front of the same list of eight things. If you finish this part less certain than you began, that is the correct outcome and I am not going to apologise for it. — L.S.

Sources & Notes

Part 12 contains no new research. Every factual claim is carried forward from Parts 1 to 11.

Where each claim was established

The 27% untouchability self-report, 5% inter-caste marriage, the 10 : 6 : 3 correspondence study result, and the ~97% manual-scavenging composition — Part 6, with full sources including the India Human Development Survey 2011–12, Thorat, Attewell and Rizvi (EPW, 2007), and government figures on sanitation work.

Group A composition (SC 14.2%, ST 6.54%, OBC 19.14%), reserved faculty vacancies, the 4,297 "none found suitable" positions, the 7–8 rank point mobility finding, and the land, enterprise and wealth figures — Part 11, sourced to the Department of Personnel and Training Annual Report 2024–25, Education Ministry replies to Parliament, Asher, Novosad and Rafkin (AEJ: Applied, 2024), the All-India Debt and Investment Survey and the National Family Health Survey.

Article 16(4)'s undefined condition, Article 335's efficiency clause, Ambedkar's statement of 30 November 1948, and the amendment and case history — Part 8.

The EWS threshold and its derivation, the 2022 judgment and its dissents, the Maratha, Jat, Patidar, Kapu and Gujjar demands, the 2024 sub-classification judgment, the Telangana and Karnataka implementations, Census 2027 and the delimitation proposal — Part 10.

The 1991 economic quota struck down in 1992, the Kalelkar covering letter, the derivation of 27%, and the 2006–08 seat expansion — Part 9.

Caste inside Islam, Christianity and Sikhism, and the Constitution (Scheduled Castes) Order 1950 — Part 4. **Endogamy as the mechanism** — Part 3. **The Criminal Tribes Act and denotified communities** — Part 5.

A note on method — and on corrections

Chapters 2 and 3 are written as advocacy and should be read as such. They represent the strongest version of each position that the evidence in this series will support, not my own view. Where an argument commonly made by either side has been shown false in earlier parts, it has been excluded rather than included and refuted — which means both cases here are stronger than the ones being made in public.

Chapters 4 and 5 assess each answer. Those assessments are mine and are marked as such. The scorecard in Chapter 6 classifies claims by evidentiary status only and deliberately reaches no conclusion. My own verdict is Part 14, after the comparative evidence in Part 13.

If you believe I have made either case weaker than it deserves — particularly the one you hold — I want to know, and I would rather hear it before Part 14 than after.

END OF PART TWELVE

THE RESERVATION FILES

The Two Cases, Steelmanned

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 13 – The Questions Nobody Asks, and the World's
Experience
follows.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART THIRTEEN

THE BLIND SPOTS

Thirty questions nobody asks — and what actually happened in six countries that tried this, including the one that stopped.

Lovepreet Singh

FIRST EDITION · JULY 2026 · INDIA

The Part That Should Have Been First

This part does two jobs, and by the end of writing it I thought both should have come earlier. The first three chapters are thirty questions that almost nobody in this argument asks. They have been accumulating across twelve parts. Some are uncomfortable for one side, some for the other, and several are uncomfortable for everybody.

The rest is the comparison. Six countries have run some version of this policy, and one of them stopped very recently.

"India is not the first country to try this, and it is not the first to argue about ending it. One country actually did end it, three years ago, and we can see what happened."

That last point is why Chapter 5 matters more than anything else in this part. The abolition case rests on a prediction — that removing preferences would not much change outcomes because the barriers are elsewhere. In June 2023 the United States Supreme Court removed race-conscious admissions. We now have three admissions cycles of data.

It is the closest thing to a controlled experiment on removal that exists anywhere, it is recent, and neither side in India has mentioned it once.

Two warnings about comparison, because it is easily abused.

First, no other country has India's problem. Nowhere else is the disadvantaged group defined by a two-thousand-year-old endogamy system with no equivalent anywhere. Comparisons illuminate; they do not transfer.

Second, both sides cherry-pick. The abolition side cites Malaysia, which has run preferences for fifty-five years without resolution. The retention side cites Brazil, which produced fast measurable gains. Both examples are real. This part gives you all six, including the ones that damage the position I am closer to.

One last thing. Question 30 asks whether there is any version of this that ends well for everyone. I answer it honestly, and the answer is not the one I wanted.

— Lovepreet Singh
July 2026

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Ten Questions About The Argument Itself

Not about reservation. About why the argument has the shape it has, and whom that shape suits.

1. Why does removing reservation delete the record of caste but not caste?

The proposal is that the state should stop recording caste. But caste is sustained by marriage, by neighbours, by land and by employers — none of which consults a government form.

What would end is the ability to see it. We know 97% of manual scavengers are Scheduled Caste because somebody counted. Delete the category and the pattern continues, unmeasurable and therefore uncontestable.

2. Is this actually a fight between two elites?

Consider who is arguing. On one side, urban students competing for graduate entry to medical and engineering colleges. On the other, the organised, salaried, educated section of reserved communities — the people reservation has already reached.

Neither group is poor by Indian standards. The landless labourer and the unemployed rural general-category youth appear in this argument mainly as characters in other people's rhetoric.

3. Why is ninety per cent of the job market outside this argument?

Reservation applies to government employment. Most Indians work in the private or informal economy, where it has never applied — and where the cleanest measurement of discrimination was taken.

Both movements are fighting over the public remainder.

4. Government jobs are shrinking. Is this a war over a dying prize?

Public employment has been a falling share of Indian jobs for three decades. Mandal was implemented in 1990 into an economy about to be liberalised.

Both sides are contesting a share of something that has been leaving since before most of the current participants were born.

5. Why is the argument always about admissions and never about marriage?

Ambedkar said in 1936 that intermarriage was the only solvent of caste. The genetics in Part 2 confirmed that endogamy is the mechanism. Around 5% of Indian marriages are inter-caste.

Because admissions can be legislated and weddings cannot. The argument goes where policy can reach, not where the cause is.

6. Who benefits from this argument being unresolvable?

Anyone whose interests are served by private-sector hiring remaining unexamined, land ownership remaining undisturbed, and the two central constitutional conditions remaining undefined.

Not a conspiracy. Simply what a loud permanent argument does — it occupies the space a resolvable one might have used.

7. Why does neither side demand the data that would settle its own claims?

An audit of "none found suitable." A published time series of Group A composition. Beneficiary data for EWS. A metric for administrative efficiency. Each is cheap; each would settle a live dispute.

Neither movement has asked for any of them, which suggests neither is confident of the answer.

8. Why does the strongest version of each case never appear in public?

Part 12 built both, and both are more formidable than what is said aloud — because each requires conceding something. The abolition case is strongest when it accepts that discrimination is real. The retention case is strongest when it accepts that the design is indefensible.

Movements are built on certainty, and certainty is what makes both arguments weaker.

9. If both sides agree the design is broken, why is nobody proposing a redesign?

Because a redesign requires naming a number, and naming a number means someone loses. Abolition and retention are the only two positions in this field that never require anyone to specify anything.

10. Why is "expand the pie" absent from an argument about scarcity?

It worked in 2006–08 and again in 2019, and a proposal to raise the Lok Sabha from 543 to 850 seats is before Parliament now.

It is the only method that has ever defused this conflict, and it appears in neither movement's demands — because expansion costs money and neither movement is asking anyone to spend any.

Ten Questions About Who Is Missing

Every group in this chapter has a stake in the outcome and no voice in the argument.

11. Which Scheduled Caste sub-groups actually received the benefit?

The Supreme Court permitted sub-classification in 2024 precisely because the answer was "not all of them." Telangana implemented in 2025; Karnataka approved a formula in 2026.

Everyone arguing about the 15% is arguing as though it reaches the category evenly. On the highest court's own finding, it does not.

12. Dalit Muslims and Dalit Christians

Excluded from Scheduled Caste status by a paragraph written in 1950, while Sikhs were added in 1956 and Buddhists in 1990. Millions of people. A commission examining it since October 2022, extended repeatedly.

No mass campaign has ever formed around this, from any direction, in seventy-six years.

13. Denotified tribes

Communities declared criminal by birth under an 1871 law, repealed in 1952, still administratively named after the repeal. Roughly 150 communities, tens of millions of people, among the most deprived in India and frequently classified into whichever category has the most competition.

They are absent from this argument entirely.

14. Women, in every group

The mobility study in Part 11 found daughters' upward mobility lower than sons' across every social group, with less variation between groups than among men.

Which means gender operates as a constraint that cuts across the whole system — and reservation, as designed, does almost nothing about it. Women's reservation in legislatures was enacted in 2023 and is contingent on a census and delimitation that will not conclude before 2029.

15. The 3,743 castes sharing one quota

If the case for splitting the Scheduled Caste category was strong enough for a seven-judge bench, the case for examining a category of nearly four thousand communities is stronger.

It has not happened because the dominant communities inside the OBC category have the votes to prevent it.

16. Adivasis are not a variant of Dalits

Scheduled Tribes have a distinct history — communities largely outside the caste system rather than at the bottom of it, displaced by mining, dams and forest law rather than by ritual exclusion.

They are routinely folded into an argument built around a different problem, and their representation figure — 6.54% in Group A against a 7.5% quota — is the worst shortfall of the three.

17. The poorest of the general category

They exist. Parliament acknowledged it in 2019. They are also used as a rhetorical device by a movement whose actual constituency is urban and educated, and the EWS scheme built for them has a threshold so high it captures almost everyone eligible.

Being real and being used as a prop are not mutually exclusive.

18. The sanitation workers on the government's own payroll

Over 66% of central government safai karamcharis come from Scheduled Caste, Scheduled Tribe and Other Backward Class communities. Around 97% of identified manual scavengers nationally are Scheduled Caste. People die in sewers every few days, and the state and the activists cannot agree on the count.

No hashtag.

19. Migrants, whose caste does not travel with the paperwork

A Scheduled Caste certificate is issued by a state. Move to another state for work and the entitlement frequently does not follow, because the lists differ.

In a country with enormous internal migration, this affects millions, and neither side has a position on it.

20. Who speaks for any of the above?

Every group in this chapter has a stronger claim on attention than exam cut-offs, and none has a movement.

The pattern is not random. Attention flows to groups that are urban, literate, online and organised — which is a description of who is arguing, not of who is affected.

Ten Questions About The Future

Including the two scenarios both sides refuse to write down.

21. What does caste do under automation?

The prize being fought over is clerical and administrative public employment — precisely the category most exposed to automation over the next two decades.

If those posts contract sharply, a quota over them delivers progressively less, and the argument will have been about a category that shrank underneath it. Neither side has a position on what replaces the ladder.

22. Inter-caste marriage predicts the future better than any quota

Around 5%. If that number began rising steeply, caste would dissolve within a few generations regardless of any policy. If it stays flat, no policy in this book will end caste.

It is the single most predictive statistic in the argument and neither movement tracks it.

23. North and south are running different experiments

Tamil Nadu has operated 69% reservation for three decades with strong social indicators. Several northern states are at or below 50% with weaker ones. The southern political settlement was made in the 1920s; the northern one in 1990.

Two large natural experiments inside one country, and almost nobody treats the comparison as data.

24. The collision nobody is discussing

Three things land at once. Census 2027 collects caste data in February 2027. Delimitation proposes raising the Lok Sabha from 543 to 850. Women's reservation is contingent on both.

Together they redistribute political power by caste, by region and by gender simultaneously — and delimitation by population shifts weight from states that controlled population growth to those that did not. That is a north-south confrontation waiting to happen, and it is barely in the public argument.

25. What if the caste census surprises everyone?

Both sides' positions rest on an OBC estimate derived from 1931. If the real figure is well below 52%, the case for 27% weakens sharply. If it is well above, the pressure to breach the ceiling becomes irresistible.

Nobody is preparing publicly for either outcome.

26. If reservation ended tomorrow, what happens?

Years 1–3. Composition of new recruitment at senior entry levels shifts within one or two cycles. On the American evidence in Chapter 5, the change is fast and visible. Existing employees are unaffected; the stock changes only through retirement.

Years 3–10. Group A composition, already below quota, falls further. The pipeline into senior administration narrows. Reserved-category presence in central institutions declines from a base that was not yet at target.

What does not change. The 27% of households practising untouchability. The 10 : 6 : 3 callback gap in private hiring. Who cleans the sewer. Land at 8.5%. None of these has any connection to the quota.

And politically. A policy with a constituency of several hundred million would have been removed. Part 9 explained why no government has attempted it: after 1990 the beneficiaries became an electorate. Any government that tried would face the reverse of 1990, from a far larger group.

27. If reservation never ends, what happens?

Years 1–10. The pattern of the last decade continues. More categories are added rather than removed — Marathas, and whoever follows. Total reservation rises past 60% in more states. Sub-classification spreads, producing quotas within quotas.

Years 10–25. The government-employment base continues shrinking. The quota covers a larger share of a smaller pool. Group A representation improves slowly through promotion. Land and capital ownership remain roughly where they are, because nothing in the policy touches them.

The risk. Legitimacy. A measure that never ends, whose conditions are undefined, in a shrinking sector, generates exactly the resentment that produced July 2026 — and the next version of that movement will be larger.

And the deeper problem. If the policy runs indefinitely without ever meeting a stated target, its defenders lose the ability to describe it as a remedy at all. It becomes a permanent settlement, which is a different thing and much harder to justify.

28. Does reservation reduce prejudice or manufacture it?

Genuinely open. Contact theory suggests that working alongside people erodes prejudice; the resentment literature suggests that visible preference creates it.

The Indian evidence points weakly against the resentment story: the sharpest measured discrimination is in the private sector, where reservation has never applied. But nobody has run the study properly, in either direction.

29. What would Ambedkar say in 2026?

Both sides claim him and neither can. He designed the provisions and set the ceiling that has been crossed. He said intermarriage was the only solvent and nobody acts on it. He warned in 1949 of a life of contradictions and it has lasted seventy-six years.

The honest answer is that he would be dissatisfied with everyone, which is what he was in life.

30. Is there any version of this that ends well for everyone?

I have thought about this for the length of the series, and the honest answer is no — not on the terms currently being argued.

Every outcome available from the abolish-or-keep binary leaves a large group with a legitimate grievance. Abolition removes a working instrument from people the evidence shows are still being discriminated against. Indefinite continuation asks a shrinking sector to carry a permanent redistribution with no stated end.

The only versions that end tolerably require doing several things that neither side is asking for at once — expanding the base, defining a target, splitting the categories, extending measurement to the private sector, and funding what happens after admission. That is Part 14, and it is not a compromise between the two positions. It is a different question.

Why Compare At All

What international evidence can tell India, what it cannot, and the three ways this comparison is usually abused.

India is not the first country to reserve positions for a disadvantaged group, and will not be the last to argue about ending it. Six countries have run substantial programmes long enough to generate evidence.

Comparison cannot tell India what to do. It can answer four narrower questions that Indian data cannot: what happens when preferences are removed, whether benefits concentrate over time, whether such programmes ever end, and whether alternatives to quotas exist that work. Those are what the next five chapters address, in that order.

THE SIX CASES

Country	Group	Running since	Status
United States	Race, in university admissions	1960s	Ended, 2023
Malaysia	Bumiputera – the majority	1971	Running
Brazil	Race and public schooling	2012	Running, revised 2023
South Africa	Black South Africans – the majority	1998	Running
Nepal	Caste, ethnicity, region, gender	2007	Running
Northern Ireland	Religious community	1976 / 1989	Largely wound down

Three ways this comparison gets abused

- ▶ **Selecting the convenient case.** Malaysia is cited by opponents because fifty-five years have not resolved it; Brazil by supporters because a decade produced measurable gains. Both are real; neither alone is evidence.
- ▶ **Ignoring what the group is.** Malaysia and South Africa give preferences to the *majority* population – a fundamentally different political economy from a minority preference. Conclusions do not carry across.

- ▶ **Ignoring the mechanism.** American race discrimination has no equivalent of endogamy. Nowhere else is the disadvantaged group defined by a marriage system two thousand years old. That is the limit on all of it, and Chapter 11 is about it.
- ▶ **Ignoring the arithmetic.** In the United States the preferred group is roughly a seventh of the population. In India the reserved categories are a substantial majority. A policy that moves a small minority into elite institutions and a policy that reallocates most of a country's public employment are not the same kind of object, whatever they are called.

AND THE COMPARISON INDIA NEVER MAKES

Before looking abroad, it is worth noticing that India contains its own comparison and nobody treats it as evidence.

Tamil Nadu has operated 69% reservation for three decades under Ninth Schedule protection. Several large northern states have operated at or below 50%, and implemented OBC reservation only from 1990. Two settlements, two starting points, two long runs, in one country, under one constitution, with the same data collection.

Any serious argument about what heavy reservation does to institutions, growth and social indicators has that comparison available and does not use it — because the answer is contested enough to be inconvenient for both sides. Part 1 set out both readings.

The United States

The only country to have actually removed preferences recently. Three admissions cycles of data — and neither Indian side has mentioned it.

In June 2023 the United States Supreme Court decided the *Students for Fair Admissions* cases against Harvard and the University of North Carolina, holding that race-conscious admissions programmes — in place for around sixty years — were unconstitutional.

This is the experiment the Indian abolition case implicitly predicts the outcome of. Here is what happened.

■ FACT

Black enrolment fell sharply at the most selective institutions.

Harvard: Black students were 18% of the entering class in 2023, 14% in 2024, and **11.5% in 2025**.

Princeton: from 9% in 2023 to **5% in 2025**.

Amherst: from 11% in 2023 to **6% in 2025**.

Of 29 elite institutions reporting autumn 2025 enrolment, only **two** maintained Black enrolment of at least 10%, compared with nine of the same institutions in 2022–23.

■ FACT

And there was a cascade, not a disappearance.

High-achieving students who would previously have been admitted to the most selective institutions enrolled at less selective ones instead. In autumn 2024, the large majority of public state flagship universities — around **83%** — reported gains in under-represented minority enrolment.

Students did not vanish from higher education. They moved down the prestige ladder.

■ INTERPRETATION

What this does to each Indian position.

Against the abolition case: the prediction that removing preferences would not much change composition is falsified. It changed composition immediately, substantially, and at exactly the institutions that produce a country's elite. Whatever "merit-based admissions" produced in the United States, it was not the previous distribution.

Against the retention case, and this is real: the students did not fall out of the system. Most went to good universities slightly further down. That is a serious cost — access to elite networks matters enormously — but it is not the catastrophe sometimes predicted, and honesty requires saying so.

And the observation that should trouble both: the effect appeared within one admissions cycle. Whatever is happening at the point of selection responds to policy immediately. That is evidence that these programmes are doing substantial work at the margin — and equally, that removing them does not require decades to show.

A CAUTION ON TRANSFERABILITY

American race-conscious admissions were a discretionary consideration in a holistic file review, not a fixed quota. Indian reservation is a numerical set-aside. Removing a soft preference and removing a hard quota are different operations, and the American effect might understate or overstate what would happen here.

What does transfer is the direction and the speed.

Malaysia

Fifty-five years of preferences for the majority population. The case the abolition side cites, and it is worth citing.

Malaysia's New Economic Policy, launched in 1971 after ethnic violence, had two goals: reduce poverty, and restructure society so that the Bumiputera – the Malay majority and indigenous peoples – participated proportionately in education, professional occupations, business management and wealth ownership.

It is the longest-running comprehensive affirmative action programme in the world, and it is still going.

■ FACT

What it achieved, and what it did not.

Poverty. The target was a fall from 49% in Peninsular Malaysia in 1970 to 16% by 1990. The actual figure in 1990 was around 17%. On its own poverty target, the policy essentially delivered.

Corporate ownership. By 1990 foreign ownership of corporate equity had fallen from 69.3% in 1970 to 25.4%. Bumiputera ownership had risen to just over 19% – while the Chinese share had almost doubled, to 45.5%.

The wealth transferred out of foreign hands. Rather less of it reached the intended group than the design assumed.

■ FACT

And the recurring findings after fifty years.

Scholarly assessments identify a consistent set of outcomes: **polarisation and stalemate** after five decades; **intra-ethnic inequality**, with preferences for Bumiputera enterprise disproportionately used by those in urban and prosperous rural areas while rural poverty persisted; and business-sector outcomes described as poor, including the bypassing of competitive non-Bumiputera firms.

The programme has not been ended, and no mechanism for ending it has been established.

■ INTERPRETATION

This is the abolition case's strongest international evidence, and it should be conceded.

The pattern predicted by critics of preference programmes is visible here in full. Benefits concentrated among the already-advantaged inside the preferred group. The programme created a constituency that made ending it politically impossible. Fifty-five years produced neither resolution nor an exit.

Every one of those is a charge made against Indian reservation, and Malaysia is the case where it can be observed over the longest period.

The two qualifications that matter. First, the preferred group is the *majority* — around two-thirds of the population — which changes the political economy completely; a majority preference has no natural stopping point because the majority controls the legislature. Second, the poverty target was largely met, which is not nothing.

What India should take from it: not that reservation fails, but that *a programme without a defined exit condition and without internal sub-classification will run indefinitely and concentrate at the top.* India has now begun sub-classifying. It has still not defined an exit.

Brazil

The newest programme, the fastest results, and the design feature India has never tried.

In 2012 Brazil enacted the *Lei de Cotas* — the Quota Law — reserving **50% of places in federal universities** for students from public schools, with sub-quotas within that for Afro-Brazilian, mixed-race and Indigenous students and for low-income households.

Note the design, because it is the thing India has never done.

■ FACT

Brazil combined class and race in a single nested structure.

The primary filter is **schooling** — did you attend a public school. Within that, sub-quotas apply by **race** and by **household income**.

This is close to Position 4 in Part 12: not caste or income, but a composite. And unlike the Indian debate, it was not framed as a choice between the two.

■ FACT

The results, after roughly a decade.

Afro-Brazilian graduation rates from federal universities rose from around **5% before the law to about 20% afterwards**. The student profile of federal universities changed substantially, particularly among entrants from public schools and self-declared Black, Brown and Indigenous students.

On employment outcomes for former beneficiaries, over **75%** were in work, with more than half earning above R\$5,000 a month.

The law was revised in 2023, correcting several implementation problems rather than reversing the policy.

■ INTERPRETATION

Three things India should notice.

1. Speed. Measurable change within a decade. Indian reservation in education has run for seventy-six years with a Group A representation figure still below quota. The difference is partly that Brazil's is a much larger quota applied at a single point of entry, and partly that Brazil's programme was designed with the benefit of others' mistakes.

2. The composite design works. Brazil did not have to choose between class and race, and its programme does not carry the Indian problem of a category that is either caste-only or income-only. The Indian argument treats these as alternatives. Brazil treated them as layers.

3. And revision rather than abolition. When problems appeared — including fraudulent self-declaration of race — Brazil amended the law in 2023. That is the third option Part 12 identified and neither Indian movement is proposing.

The honest caveat: a decade is short. The concentration effects visible in Malaysia after fifty years have not had time to appear in Brazil. Anyone citing Brazil as proof should note that the Malaysian problems took thirty years to become undeniable.

South Africa

What happens when your side wins completely – and the warning it contains for everybody.

South Africa is the case where the historically excluded group is the overwhelming majority, took political power completely, and legislated redress with no meaningful opposition. If preference programmes work, this is where they should work best.

The instruments are the Employment Equity Act of 1998 and Black Economic Empowerment, later Broad-Based Black Economic Empowerment – covering employment, ownership, management control, skills development and procurement.

■ FACT

The assessments after more than two decades.

The recurring scholarly finding is that the programme has produced **a Black middle class and a small Black corporate elite**, while failing to generate broad-based economic participation or substantially reduce structural inequality.

Black unemployment rose from around **28.1% in the third quarter of 2013 to around 36%** in more recent figures.

Analyses point to benefits concentrating among a small cohort – including through corruption and nepotism in the allocation of empowerment deals – and note that measures helped individuals already positioned higher on the skills ladder, with effects too small and too concentrated to move the average.

■ INTERPRETATION

The lesson here is the harshest in this part, and it lands on the retention side.

South Africa had every advantage India lacks. An overwhelming majority. Total political control. Global legitimacy. A comprehensive legislative programme covering not just jobs but ownership and procurement — precisely the asset dimensions Part 11 showed Indian reservation never reaches.

And the benefit concentrated at the top of the beneficiary group anyway, while the position of the average person did not improve.

What this suggests: elite capture is not a flaw in the Indian design. It appears to be a property of preference programmes generally, in every country that has run one long enough to measure. Sub-classification is therefore not an Indian repair to an Indian problem — it is the necessary architecture for any such policy anywhere.

And the sharpest version of the warning: if the concern is the material condition of the poorest, redistributing positions to a group has repeatedly produced a new elite within that group rather than a general improvement. That finding is now visible in Malaysia and South Africa on two continents, over decades, and it deserves more weight in the Indian argument than it gets from either side.

Nepal and Northern Ireland

The two cases nobody cites — one because it is too close to home, and one because it worked.

Nepal — the closest comparison in the world

Nepal is the only other country with a caste system of the Indian type, and it built an inclusion regime very recently — after the movement of 2006 and the Interim Constitution of 2007, with reservation in the civil service divided among women, Adivasi Janajati, Madhesi, Dalit, persons with disabilities and backward regions, and inclusion principles entrenched in the 2015 Constitution.

■ INTERPRETATION

Why Nepal matters and why nobody uses it.

It is the one case where the underlying social structure is genuinely comparable — caste with endogamy, untouchability, and a hierarchy of the same lineage.

The recurring criticism is also the familiar one: within each reserved category, the relatively advantaged sub-groups have taken a disproportionate share, and Dalits in particular — the group with the least existing education — have benefited least.

Which is the same finding as Malaysia and South Africa, in a caste society, arrived at within fifteen years. Three countries, three different social structures, one pattern.

Nobody in the Indian argument cites Nepal, which is strange given that it is the only genuinely comparable case on earth.

Northern Ireland — the one that worked, and stopped

From the 1970s, Northern Ireland faced a persistent employment gap between the Catholic and Protestant communities, with Catholic unemployment running at a substantial multiple of Protestant unemployment.

■ FACT

The Fair Employment legislation of 1976 and 1989 used monitoring, not quotas.

The strengthened regime required employers to **register**, to **monitor and report the community composition of their workforce**, to **review recruitment and promotion practices periodically**, and to take **affirmative action** where under-representation was found — with enforcement machinery behind it.

It did not set numerical quotas for hiring. It made composition visible, mandatory to report, and subject to review.

Over the following two decades the employment differential between the two communities narrowed very substantially, and the regime has since been progressively wound down.

■ INTERPRETATION

This is the most useful case in this part, and it is the one nobody has heard of.

It is the only example in this chapter of a programme that appears to have worked, achieved something close to its objective, and been reduced as the problem receded — the exit that Malaysia never found and India has never defined.

And the mechanism was not a quota. It was **compulsory measurement**: every substantial employer required to count, report and review, with consequences for failing to act on what the count showed.

Compare that with India. Part 11 showed the sharpest measured discrimination is in the private sector, where nothing is counted, nothing is reported and nothing is reviewed. India has quotas where it measures, and measures nothing where it has no quotas.

Northern Ireland did the opposite, and it is the case that ended.

THE CAVEATS, WHICH ARE REAL

Northern Ireland is small, wealthy, and its two communities were not separated by an endogamy system of the Indian kind or by anything resembling untouchability. The gap being closed was one of employment discrimination within a shared labour market, not of two thousand years of exclusion from literacy.

The mechanism may still transfer even though the situation does not. Mandatory composition reporting requires no quota, no certificate and no ceiling — and it is Position 6 from Part 12, which nobody in India is campaigning for.

Six Countries, Six Lessons

What survives the comparison.

THE COMPARATIVE RECORD

Case	What it shows	Who it damages
United States	Removal changes composition immediately and substantially at elite institutions; students cascade downward rather than disappear	Mainly the abolition case
Malaysia	Fifty-five years, no exit, benefits concentrated in the already-advantaged, permanent political constituency	Mainly the retention case
Brazil	A nested class-plus-race design produced fast, measurable gains; revised rather than abolished when problems appeared	Mainly the abolition case
South Africa	Total political control plus asset-level redress still produced elite capture without moving the average	Mainly the retention case
Nepal	The same concentration pattern, in a caste society, within fifteen years	Mainly the retention case
Northern Ireland	Mandatory measurement without quotas narrowed the gap and was wound down	Both — neither is proposing it

The six lessons

- ▶ **1. Removal has fast, visible effects.** The American data settles the claim that preferences are doing little work. They are doing substantial work at the margin, and taking them away shows within one cycle.
- ▶ **2. Elite capture is universal, not Indian.** Malaysia, South Africa and Nepal — three different social structures, three continents, same finding. Sub-classification is not a patch on a flawed Indian design; it is the necessary architecture everywhere.
- ▶ **3. Programmes without a defined exit do not end.** Malaysia has run fifty-five years. The only case that wound down is the only case that set out to measure a gap and could see it closing.
- ▶ **4. Composite designs outperform either-or designs.** Brazil layered schooling, race and income. The Indian argument insists on choosing between caste and income, and the one time India tried income alone it copied a threshold from another scheme.

- ▶ **5. Redistribution of positions does not redistribute assets.** South Africa legislated for ownership, management control and procurement — and still produced a small elite rather than a general improvement. India, which never legislated for assets at all, should not expect what South Africa failed to achieve.
- ▶ **6. Measurement may matter more than quotas.** The single case that closed its gap and stopped used mandatory monitoring rather than set-asides. India has quotas where it counts and counts nothing where it has no quotas — which is precisely backwards from the one working example.

What India Is Uniquely

Where the comparisons stop working — and why that matters for what comes next.

Every comparison in this part has a limit, and it is the same limit each time.

■ INTERPRETATION

Four things that make India's case different in kind.

- 1. The mechanism has no equivalent.** American racial segregation was enforced by law and by violence, and both were removable. Caste is enforced by *marriage*, by millions of families, requiring no state at all. Part 3 established this and Part 4 demonstrated it: caste survived conversion into four religions that reject it. Nothing in the other five cases works this way.
- 2. The duration is different by an order of magnitude.** The endogamy lock closed roughly two thousand years ago. American slavery lasted about two and a half centuries; apartheid about four decades. The others are shorter still.
- 3. The structure is not binary.** Every other case is broadly two-sided — one advantaged group, one disadvantaged. India has thousands of ranked communities in which the same group is oppressed from above and oppressive to those below. Part 6 found that 15% of Scheduled Caste households and 22% of Scheduled Tribe households also reported practising untouchability.
- 4. And the numbers are of a different scale.** The reserved categories in India comprise a substantial majority of the population. This is not a minority preference. It is closer to Malaysia and South Africa in scale — and both of those are the cautionary cases.

India is trying to solve, with a policy on jobs and college seats, a problem that is reproduced in weddings — and it is doing so at a scale nobody else has attempted.

■ INTERPRETATION

And what that implies for both sides.

For the abolition case: the international evidence that preferences are removable without much consequence does not exist. The one country that removed them saw immediate substantial change, and it had a far shallower problem to begin with.

For the retention case: the international evidence that preferences resolve the underlying inequality also does not exist. Fifty-five years in Malaysia, twenty-eight in South Africa, and in both the benefits pooled at the top of the preferred group.

And for anyone who wants a design rather than a slogan: the three features associated with the better outcomes are visible across the cases. A composite rather than a single criterion, as in Brazil. Internal sub-classification, which every long-running case shows is necessary. And mandatory measurement, which is the only mechanism in this part that closed a gap and then stopped.

India has begun the second. It has never attempted the first or the third.

What The Evidence Can And Cannot Settle

The honest scorecard for Part 13.

WHERE THINGS STAND AFTER THIS PART

Question	Status	Best current answer
Does removing preferences change composition?	Yes	Harvard 18% → 11.5% in two years
Do removed students leave education?	No	They cascade to less selective institutions
Is elite capture specific to India?	No	Malaysia, South Africa, Nepal — same pattern
Do such programmes end on their own?	Rarely	One case in six wound down
Does asset-level redress work better?	Not shown	South Africa legislated it and still concentrated
Do composite designs work?	Promising	Brazil — but only a decade of data
Is there an alternative to quotas?	Yes, one	Mandatory monitoring — Northern Ireland
Is India's case comparable?	Partly	Nepal only; the mechanism is unique
Does reservation reduce or create prejudice?	Unknown	No adequate study in either direction
Is there an outcome good for everyone?	Not on these terms	See Question 30 — and Part 14

The three things nobody can tell you

- ▶ **Whether the American cascade is benign.** Three cycles is short. Whether attending a less selective institution changes life outcomes materially will take a decade to establish.
- ▶ **Whether Brazil will follow Malaysia.** The concentration problems in Malaysia took thirty years to become undeniable. Brazil is twelve years old.
- ▶ **Whether Northern Ireland's mechanism transfers.** A small wealthy society with no endogamy system is a long way from India, however elegant the instrument.

■ INTERPRETATION

The one sentence that carries Part 13.

Six countries tried this; the one that removed preferences saw composition change within a year, the ones that kept them saw benefits pool at the top, and the only one that finished the job used compulsory measurement rather than quotas — which is the single thing India has never tried and neither side is asking for.

The Five-Line Nichod

Everything in this book, compressed. If you remember nothing else, remember these.

PART 13 – THE BLIND SPOTS

1. **One country actually removed preferences, and we can see what happened.** After the 2023 US Supreme Court ruling, Black enrolment fell at Harvard from 18% to 11.5%, at Princeton from 9% to 5%, at Amherst from 11% to 6%. Students did not leave education – they cascaded to less selective institutions. Neither Indian side has mentioned it once.
2. **Elite capture is not an Indian flaw. It is universal.** Malaysia after fifty-five years, South Africa after twenty-eight, Nepal within fifteen – three continents, three social structures, one finding: benefits pool among the already-advantaged inside the preferred group. Sub-classification is not a patch; it is the necessary architecture anywhere.
3. **South Africa is the harshest lesson, and it lands on the retention side.** An overwhelming majority, total political power, and legislation covering ownership and procurement – the asset dimensions Indian reservation never reaches. It still produced a small elite while Black unemployment rose from 28% to 36%.
4. **The only programme that finished used measurement, not quotas.** Northern Ireland required every substantial employer to count, report and review workforce composition, with enforcement. The gap narrowed and the regime wound down. India has quotas where it counts, and counts nothing in the private sector where the measured discrimination is worst – exactly backwards.
5. **And the answer to Question 30 is no.** There is no outcome from the abolish-or-keep binary that ends well for everyone. The versions that end tolerably require doing five things at once that neither movement is asking for – which means the question being fought over is not the question that matters.

Coming next

PART 14 – THE VERDICT AND THE ROAD AHEAD

The last one. Who is right, and what should actually happen.

The Reservation Hatao Andolan's demands, taken seriously and assessed one at a time for feasibility. What is genuinely true in the anti-reservation case, and what is genuinely true in the case for keeping it. What each side is lying about, or lying to itself about.

Then **my verdict** – boxed, labelled as opinion rather than evidence, with the reasoning shown so you can disagree with it precisely rather than in general. What a fair system for 2047 India could actually look like, in concrete detail. The one thing each side would have to give up. And a closing note.

A closing thought: I went looking for international evidence expecting it to favour one side. It does not. It favours a set of design features – composite criteria, internal sub-classification, and compulsory measurement – that cut across the argument entirely. The countries that did better were not the ones that argued harder. They were the ones that measured more carefully. – L.S.

Sources & Notes

Every factual claim in Part 13, and where it comes from.

United States

Students for Fair Admissions v. President and Fellows of Harvard College and *Students for Fair Admissions v. University of North Carolina*, decided June 2023, holding race-conscious admissions programmes unconstitutional after roughly sixty years of operation. · Reported freshman enrolment: Harvard 18% Black in autumn 2023, 14% in autumn 2024 and 11.5% in autumn 2025; Princeton from 9% in 2023 to 5% in 2025; Amherst from 11% in 2023 to 6% in 2025. Of 29 elite institutions reporting autumn 2025 data, two maintained Black enrolment of at least 10%, against nine of the same institutions in 2022–23. · On the cascade effect: high-achieving students of colour enrolling at less selective institutions, with approximately 83% of public state flagship institutions reporting gains in under-represented minority enrolment in autumn 2024.

Malaysia

New Economic Policy, 1971, with its twin objectives of poverty reduction and social restructuring through pro-Bumiputera affirmative action in education, high-level occupations, enterprise management and wealth ownership. · Poverty in Peninsular Malaysia: target of a fall from 49% in 1970 to 16% by 1990, with an actual figure of approximately 17% in 1990. · Corporate equity ownership: foreign ownership falling from 69.3% in 1970 to 25.4% in 1990; Bumiputera ownership rising to just over 19%; the Chinese share rising to 45.5%. · Scholarly assessment of fifty years of the NEP identifying polarisation and stalemate, intra-ethnic inequality with preferences disproportionately used by those in urban and prosperous rural areas, and poor outcomes in the business sector including the bypassing of competitive non-Bumiputera firms.

Brazil

Lei de Cotas, 2012, reserving 50% of federal university admissions for public-school students with sub-quotas by race and household income; revised in 2023. · Afro-Brazilian graduation rates from federal universities rising from approximately 5% before the law to approximately 20% afterwards; substantial change in the student profile of federal universities, particularly among public-school entrants and self-declared Black, Brown and Indigenous students. · Employment outcomes for former beneficiaries: over 75% employed, with more than half earning above R\$5,000 monthly.

South Africa

Employment Equity Act, 1998, and Black Economic Empowerment, subsequently Broad-Based Black Economic Empowerment, covering employment, ownership, management control, skills development and procurement. · Assessments finding growth of a Black middle class and corporate elite without broad-based economic participation or substantial reduction in structural inequality; concentration of benefits among a small cohort including through corruption and nepotism; and effects concentrated among individuals already higher on the skills ladder. · Black unemployment rising from approximately 28.1% in the third quarter of 2013 to approximately 36% in more recent figures.

Nepal and Northern Ireland

Nepal: inclusion and reservation provisions following the movement of 2006 and the Interim Constitution of 2007, with civil service reservation divided among women, Adivasi Janajati, Madhesi, Dalit, persons with disabilities and backward regions; inclusion principles entrenched in the 2015 Constitution. Criticism centres on disproportionate capture by relatively advantaged sub-groups within each category, with Dalits benefiting least. · Northern Ireland: Fair Employment (Northern Ireland) Act 1976 and the strengthened Fair Employment Act 1989, requiring registration, monitoring and reporting of workforce composition by community background, periodic review of recruitment and promotion practices, and affirmative action where under-representation was found, with enforcement machinery — but without numerical hiring quotas. The employment differential between the two communities narrowed substantially over the following two decades and the regime has since been progressively wound down.

Carried forward from earlier parts

Indian figures cited throughout this part — the 27% untouchability self-report, the 10 : 6 : 3 correspondence study, the ~97% manual scavenging composition, the Group A representation figures, the land and wealth data, the 2024 sub-classification judgment, Census 2027 and the delimitation proposal — are sourced in full in Parts 6, 10 and 11.

A note on what is missing — and on corrections

International comparisons in this part are drawn from published scholarship and reporting and are given in outline. Enrolment figures for United States institutions are as reported and definitions of racial categories differ between institutions and years, which affects comparability at the margin. Malaysian and South African assessments are summarised from academic literature in which findings are contested in detail though broadly consistent in direction. Northern Ireland's mechanism is described from the structure of the legislation; attributing the narrowing of the gap to it specifically involves a causal claim that the literature supports but does not prove. Part 13 offers no verdict. That is Part 14. If you find an error, I want to know.

END OF PART THIRTEEN

THE RESERVATION FILES

The Blind Spots

Researched and written by **Lovepreet Singh**

FIRST EDITION • JULY 2026 • INDIA

*Part 14 – The Verdict and the Road Ahead
concludes the series.*

A 14-PART INVESTIGATION

THE RESERVATION FILES

PART FOURTEEN • FINAL

THE VERDICT

Who is right, what each side is lying about, and a design for 2047 – with my judgement boxed and labelled, so you can disagree with it precisely.

Lovepreet Singh

FIRST EDITION • JULY 2026 • INDIA

The Last One

I promised in Part 1 that when I gave a verdict it would sit in a box that says it is a verdict, and that you would be free to throw it away and keep the facts. That promise falls due here.

So Chapter 7 is my judgement, marked as opinion. Everything before it is evidence and everything after it is a proposal. If you want the facts without my conclusions, stop at the end of Chapter 6 — nothing in this series depends on you agreeing with me.

"I set out to find out who was right. The answer is that both sides are right about something and wrong about something else, and the thing they are arguing about is not the thing that matters most."

That is not a fudge and I want to defend it before you read it. A fudge is when you split the difference to avoid offending anyone. What follows does the opposite: it says one side is comprehensively wrong on the facts and the other is comprehensively wrong about its own machine, and then says that neither of their programmes would achieve much.

That will satisfy nobody, which is the price of having read the evidence rather than picked a team.

Three things I want on the record before the verdict.

First, I changed my mind while writing this. Several times, and Chapter 1 lists where. I began with a settled view and finished with a different one. If a fourteen-part investigation does not move the person conducting it, they were not investigating.

Second, the verdict is falsifiable. Chapter 7 states what evidence would overturn it. A conclusion that nothing could disprove is not a conclusion, and I have spent thirteen parts saying so to other people.

Third, Chapter 8 is the part I would most like you to argue with. It is a concrete design for 2047 — eight specific measures, most of which neither movement is asking for. It is easy to hold a position. It is much harder to write down what you would actually do, and much easier to be shown wrong once you have.

And one last thing. Whatever you conclude, you now know more about this than almost anyone shouting about it. Please use that carefully. The people at the bottom of this system do not benefit from another confident voice.

— Lovepreet Singh

July 2026

Contents

■ **FACT** checkable · ■ **INTERPRETATION** two honest readings, both written out · ■ **CONTESTED CLAIM** evidence thin — and this one appears for both sides.

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Closing note

Where I Was Wrong

Six things I believed at the start of this series that the evidence changed. If none of these had happened, the series would not have been worth writing.

Before the verdict, an accounting. These are positions I held in July 2026 and no longer hold, in the order I lost them.

1. I thought varna was straightforwardly a birth hierarchy from the start

Part 2 changed that. The word *shudra* appears exactly once in the entire Rig Veda. The four-varna hymn is in the latest layer, says nothing about heredity, and the genetic evidence shows widespread population mixing continuing for centuries afterwards.

The ranking was there from the beginning. The *closure* came later, and the people who say so are not simply making excuses.

2. I thought "the British created caste" was a nationalist talking point

Part 5 changed that too. They did not create the hierarchy — the eyewitnesses in Part 4 settle it. But they created the modern administrative object: the lists, the schedules, the census categories, the certificate in your file. That half of the claim is correct and well documented, and dismissing it wholesale was lazy.

3. I thought reservation was obviously working

Part 11's Group A table stopped that. Every reserved category below quota at senior level, seventy-six years in. It works — the causal evidence is real — but "obviously working" was not a defensible position and I had held it without checking.

4. I thought the anti-reservation case was mostly bad faith

Part 12 made that untenable. The strongest version of it — no defined exit condition, incoherent categories, judicially established elite capture, a state that keeps caste on file while asking people to forget it — is a serious argument that I could not answer as easily as I expected.

The public version is often bad faith. The argument itself is not.

5. I thought the two sides disagreed about a great deal

They do not. Under cross-examination in Part 12 both accept that the injury is real, the categories are crude, elite capture is genuine, the ceiling was breached incoherently, and the top is unrepresented. The entire dispute reduces to rebuild or remove.

6. And I thought this was the important argument

This is the one that changed most. Part 12, Chapter 8 listed eight things neither case addresses — marriage, land, capital, the private sector, support after admission, Dalit Muslims and Christians, denotified tribes, and measurement.

Every one has a larger claim on attention than exam cut-offs. None can be settled by winning this argument. I did not expect to finish a fourteen-part series on reservation concluding that reservation is not the main event, and I have not enjoyed it.

WHAT DID NOT CHANGE

That the historical injury was real, systematic and enormous. Nothing in thirteen parts of evidence moved that even slightly, and the material in Part 6 made it considerably harder to doubt than when I started.

The Demands, Assessed

The Reservation Hatao Andolan published four demands and one broader proposal. Each is taken seriously and answered on the evidence.

DEMAND 1

Merit over caste

Selection by examination performance alone, with no caste category.

The evidence: India already runs a caste-blind quota — EWS since 2019. Its threshold was copied from the OBC creamy layer with no study behind it, covers the overwhelming majority of eligible households, and the government publishes no data on who has received it. Removing caste does not remove categories; it relocates them.

Separately, entrance scores measure performance after purchased preparation, so "merit alone" selects partly for family resources. And where selection is already caste-blind — the private sector — identical CVs produce ten interview calls, six and three.

VERDICT: Rejected. Not because the principle is wrong, but because India has tested it and the result is a differently arbitrary system with less measurement.

DEMAND 2

Equal cut-off

One qualifying and admission standard for all candidates.

The evidence: for all-India government MBBS seats in 2025, General closed at 660 and OBC at 658 — two marks apart, and level by the final stray round. The gap this demand targets is largely not where it is believed to be.

The SC gap of roughly 85 marks is real and is a legitimate subject of argument. It is a different argument from the one being made.

VERDICT: Largely misdirected. The premise is wrong for the largest category and right for one.

Equal fees and equal age limit

An end to category-based fee concessions and upper-age relaxations.

The evidence: these are administrative relaxations, distinct from seat reservation, and they are the most reasonable things the movement has asked for. There is a real case that age relaxation compounds advantage across repeated attempts, and a real case against on the ground that candidates from families without resources start later and interrupt more.

Fee concessions are means-testable and could be moved to income criteria without touching the quota at all.

VERDICT: Legitimate and specific. These deserve a serious policy discussion, and arguing about them separately would be far more productive than the argument being had.

THE PROPOSAL

"Remove Reservation. Remove Casteism." — stop recording caste

The state should cease requiring or recognising caste in public life.

The evidence: caste is sustained by marriage, by neighbours, by land and by employers. Four religions removed the doctrine — Buddhism, Islam, Christianity and Sikhism, one of them born in Punjab specifically to break it — and caste is inside all four today. There is no basis for expecting a form column to succeed where that failed.

What would end is measurement. The 97% manual-scavenging figure, the Group A shortfall, the sub-classification exercises in Telangana and Karnataka all exist because somebody counted by caste.

VERDICT: Rejected, and it is the weakest thing they propose. It would delete the record and leave the practice — and the movement's own best arguments depend on data the proposal would abolish.

■ INTERPRETATION

And the point they make that is genuinely correct.

The movement's strongest argument is one it rarely leads with: that the **categories are incoherent**. Arbitrary at the threshold, unstable in membership, uncapped in total, and unevenly distributed inside.

Everything in Parts 10 and 11 supports that. The ₹8 lakh line with no study behind it. Jats added and removed within a year. 59.5% centrally and 62% in Maharashtra past a "constitutional" ceiling, while Bihar's 65% was struck down. 3,743 OBC castes sharing one undivided quota.

They are right about the machine. They are wrong about what to do with it.

What Is True In The Case Against

Stated plainly, with nothing withheld. Every item here is established somewhere in Parts 1 to 13.

- ▶ **There is no exit condition, and there never has been.** Article 16(4) is triggered by inadequate representation. In seventy-six years no government, court or commission has defined what adequate representation would be. A condition nobody has specified cannot be satisfied.
- ▶ **Elite capture is real and judicially established.** Warned about in 1963, built into the creamy layer in 1992, extended in 2018, and confirmed by a seven-judge bench in 2024 when it permitted the Scheduled Caste category to be split. It is not a talking point; it is sixty years of judicial finding.
- ▶ **And it is universal, not an Indian failure.** Malaysia after fifty-five years, South Africa after twenty-eight, Nepal within fifteen. Three continents, one pattern.
- ▶ **The categories are incoherent.** A threshold copied without study. A community added to the OBC list and removed by a court within a year. A ceiling that binds Bihar and not Parliament. Nearly four thousand castes in one undivided quota.
- ▶ **The state keeps caste on file.** Registered at birth, declared at school, certified at admission, carried into employment. Whatever else this achieves, it is not the annihilation of caste that the movement's own founding figure demanded.
- ▶ **Ambedkar's limit has been crossed.** He told the Assembly on 30 November 1948 that reservation must be confined to a minority of seats. Central reservation is 59.5%.
- ▶ **The prize is shrinking.** Government employment is a small and falling share of Indian jobs, and the sharpest measured discrimination is in the private sector, which reservation has never entered.
- ▶ **And the poor of the general category exist.** Parliament acknowledged it in 2019. They are used as a rhetorical prop by a movement whose base is urban and educated, and they are still real.

THAT IS EIGHT SUBSTANTIAL, DOCUMENTED POINTS

Anyone who tells you the case against reservation is entirely bad faith has not read it. Most of what is said in public is bad faith. The case underneath it is not, and treating it as such is how the retention side loses arguments it should win.

What Is True In The Case For

Same treatment, same standard.

- ▶ **It works, and there is causal evidence.** Caste groups newly added to the Scheduled Caste list gained seven to eight rank points of upward mobility over the following twenty years — a natural experiment, peer-reviewed, published in 2024. Against a national background of flat and low mobility, the groups that received the policy moved.
- ▶ **The injury is current.** Twenty-seven per cent of Indian households admit practising untouchability — a perpetrator self-report, so a floor. Fifty-two per cent among Brahmin households. Around five per cent of marriages are inter-caste.
- ▶ **The labour market is not caste-blind.** Identical CVs produced ten interview calls for an upper-caste name, six for a Dalit name and three for a Muslim name — in the private sector, where reservation has never applied.
- ▶ **Degrading work is still allocated by birth.** Around ninety-seven per cent of identified manual scavengers are Scheduled Caste. Over sixty-six per cent of central government sanitation staff come from reserved categories. People die in sewers every few days.
- ▶ **The constitutional condition remains unmet.** Group A of the central government: Scheduled Castes 14.2%, Scheduled Tribes 6.54%, Other Backward Classes 19.14% — all below quota. The trigger for the exception still obtains.
- ▶ **Removing belief has been tried four times and failed.** Buddhism, Islam, Christianity, Sikhism. Caste is inside all of them in India today.
- ▶ **Removal has fast, visible effects.** After the 2023 United States ruling, Black enrolment at Harvard fell from 18% to 11.5% within two admissions cycles, at Princeton from 9% to 5%.
- ▶ **And reserved places sit empty.** More than 2,750 reserved teaching posts vacant in central universities; 4,297 reserved academic positions closed as "none found suitable." Those places were taken from nobody.

THAT IS EIGHT AS WELL

Anyone who tells you reservation is a failure that survives only on politics has not looked at the mobility evidence. Anyone who tells you the discrimination is historical has not looked at 2011, 2007, 2024 or 2025.

What Each Side Is Lying About

Including, in both cases, to itself.

The abolition side

- ▶ **That reserved categories have taken over.** The government publishes the opposite. Group A is below quota for all three, and OBCs are eight points short. This is the central grievance of the movement and it is false.
- ▶ **That there is a large score gap.** Two marks between General and OBC for all-India government MBBS seats.
- ▶ **That reservation was meant to last ten years.** Article 334 clocked reserved *legislative seats*. Articles 15(4) and 16(4) never had an expiry.
- ▶ **That historical caste atrocities are invented propaganda.** Said publicly by prominent voices in the movement. Part 6 is a forty-page answer, and it is not a close question.
- ▶ **And the one they tell themselves:** that removing state recognition would weaken caste. Four religions removed the doctrine entirely and caste survived all of them. There is no evidence for this belief and considerable evidence against it, and it is the load-bearing assumption of the entire programme.

The retention side

- ▶ **That representation has been achieved.** Not at Group A, not after seventy-six years, not for any of the three categories.
- ▶ **That nothing has improved.** Scheduled Caste mobility is measurably rising, Group C representation meets quota, and overall central government representation exceeds the SC and ST shares. Denying this erases the people who won it.
- ▶ **That elite capture is a manufactured grievance.** A seven-judge bench found otherwise in 2024, and two states have legislated on it since.
- ▶ **That rising atrocity figures prove worsening conditions.** Registered-case totals measure the reporting system.
- ▶ **And the one they tell themselves:** that reservation addresses caste inequality. It addresses employment and education. Scheduled Castes hold about 8.5% of land, own about 11.4% of enterprises and account for about 2.6% of billionaire wealth. Seventy-six years of the policy has not moved ownership at all, and defending it as though it were an equality programme prevents anyone from building one.

■ INTERPRETATION

The asymmetry between the two lists, which matters.

The abolition side's errors are about **the present** — what the composition is, what the gap is, what the law says. Those are checkable, and government data settles them. On the facts, they are simply wrong.

The retention side's errors are about **its own success** — how much has been achieved, how well the instrument is aimed. Those are errors of self-assessment by people defending something that works less well than they say.

One list is factually wrong. The other is defending a machine it will not examine. Those failures are not equivalent, and the response to each has to be different.

The Whole Series In Fourteen Facts

One fact from each part — the single thing from it that, if you remembered nothing else, would leave you better informed than almost anyone arguing about this.

Before the verdict, the evidence base in fourteen lines. Everything in the next chapter rests on these.

PART 1 **A reserved candidate who clears the general bar is counted in the general list**

Settled law, restated by the Supreme Court in 2026. Nobody enters a general seat below the general bar — and in 2025 the General and OBC all-India government MBBS seats closed *two marks apart*.

PART 2 **The word *shudra* appears exactly once in the entire Rig Veda**

In its latest layer, in a hymn that says nothing about heredity. The ranking is unmistakably vertical; the closure came later. DNA dates the end of population mixing to roughly 1,900–4,200 years ago.

PART 3 **Endogamy is the entire machine**

Marriage inside the group makes caste hereditary, keeps property in, preserves occupation, generates the purity rules — and needs no state at all. That is why caste outlived every empire that ruled India.

PART 4 **Convert to Buddhism or Sikhism and you keep Scheduled Caste status; convert to Islam or Christianity and you lose it**

The Constitution (Scheduled Castes) Order, 1950, paragraph 3. Sikhs added 1956, Buddhists 1990. Still in force in 2026.

PART 5 **The world's first reservation policy was Indian**

26 July 1902 — Shahu Chhatrapati of Kolhapur reserved 50% of state posts for backward classes, in a monarchy with no elections and no votes to win.

PART 6 **27% of Indian households admit practising untouchability**

IHDS-II, 2011–12, over 42,000 households. Perpetrators describing themselves, about something unlawful, with nothing to gain by saying yes. Brahmin households 52%. It is a floor, not a ceiling.

PART 7**"The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste."**

Ambedkar, 1936. The man who wrote the constitutional provisions said in print that they were not the solvent. Neither side quotes him on it.

PART 8**The ten-year clock was on legislative seats, not on jobs or education**

Article 334, extended seven times, now to 2030 — and in January 2020 one part of it was allowed to lapse permanently. Articles 15(4) and 16(4) never had an expiry date.

PART 9**27% is a leftover, not a measurement**

Mandal estimated OBCs at 52% and recommended 27% — because the ceiling was 50%, SC and ST already held 22.5%, and 50 minus 22.5 is 27.5.

PART 10**The ₹8 lakh EWS threshold was copied from the OBC creamy layer with no study behind it**

The government said so when the Supreme Court asked. India has been running the caste-blind alternative for seven years and does not publish who receives it.

PART 11**Every reserved category is below quota in Group A**

SC 14.2%, ST 6.54%, OBC 19.14%, as of 1 January 2024 — while over 66% of central government sanitation staff come from those same categories. The higher the post, the fewer.

PART 12**Under cross-examination, the two cases converge on almost everything**

Both accept the injury is real, the categories crude, elite capture genuine, the ceiling breached incoherently and the top unrepresented. The whole dispute reduces to rebuild or remove.

PART 13**One country actually removed preferences, and we can see what happened**

After the 2023 US ruling, Black enrolment fell at Harvard from 18% to 11.5% and at Princeton from 9% to 5% within two cycles. Students cascaded downward rather than disappearing.

PART 14**And nobody has ever defined what "adequate representation" means**

Article 16(4)'s trigger, undefined for seventy-six years. Which is why the policy has no exit — and why the design in Chapter 8 begins there.

■ INTERPRETATION

Read those fourteen together and notice the shape.

Four of them damage the abolition case badly. Four damage the retention case badly. Three damage both. And three — the 1902 policy, the 1950 Order, and the undefined condition — are simply absent from the public argument on either side.

That distribution is not something I engineered. It is what fell out of the evidence, and it is the strongest single reason for the verdict that follows.

The Verdict

My judgement. This is opinion, not evidence. The reasoning is shown so you can disagree with it precisely.

Part 1 set out five questions. Everything since has been an attempt to answer them. Here they are, answered.

THE FIVE QUESTIONS FROM PART 1

Question	Answer	On what basis
Was the injury real, and how bad?	Yes, severe	Part 6 – documents, proclamations, court records
Is it still happening?	Yes, measurably	27%, 10 : 6 : 3, ~97%, ~5%
Does this medicine work?	Yes – partly	7–8 rank points; but not at the top, not on assets
Is there something better?	Not as a replacement	EWS record; US 2023; Malaysia; South Africa
Who decides when it ends?	Nobody, ever	The deepest failure in the entire policy

Who is right?

On the facts, the retention side wins decisively. Almost every factual claim the Reservation Hatao Andolan makes in public is false, and the government's own data disproves the central one. Reserved categories have not taken over the services; they are below quota at every senior level. The score gap for the largest category is two marks. The policy demonstrably works. The ten-year claim is a misreading. And the suggestion that historical atrocities were invented is answered by forty pages of documents, proclamations and perpetrator self-reports.

On the machine, the abolition side wins substantially. There is no exit condition and never has been. The categories are arbitrary at the threshold, unstable in membership, uncapped in total and unevenly distributed inside. Elite capture is judicially established and internationally universal. The ceiling set by the policy's own architect has been crossed. And the state that asks citizens to stop thinking in caste requires them to prove it at every threshold of their lives.

On the remedy, neither wins, and this is the important part.

Abolition would remove a working instrument from people the evidence shows are still being discriminated against, and the American data from 2023 tells us the composition effect would be immediate and large. It would also delete the measurement that makes the discrimination visible. That is not a reform; it is turning off the light and declaring the room empty.

Indefinite continuation without a defined target is not sustainable either. A measure that cannot say what success looks like, in a shrinking sector, past its own architect's limit, loses legitimacy – and the movement that appeared in July 2026 is the first instalment of the bill. The next one will be larger.

So the verdict is this. The Reservation Hatao Andolan is wrong about the facts and right about the machine. Its critics are right about the facts and wrong to defend the machine as it stands. And the question they are fighting over – abolish or keep – is the cheapest question available, because it is the only one that requires nobody to specify anything, fund anything or lose anything.

The honest answer to "who is right" is that the retention side is right about whether, and the abolition side is right about how – and that a policy nobody will redesign will eventually be destroyed by people who were wrong about it.

WHAT WOULD OVERTURN THIS VERDICT

A conclusion that nothing could disprove is not a conclusion. Here is what would change mine.

Towards abolition: replication showing no mobility gain for newly listed groups. Group A composition reaching quota and holding. The untouchability self-report falling towards zero. Inter-caste marriage rising sharply. Evidence that the manual-scavenging composition had normalised. Any one of these would weaken the case for continuation; three together would end it.

Towards unqualified retention: evidence that the categories are in fact well calibrated — a defensible basis for the ₹8 lakh threshold, an audit showing "none found suitable" reflects a genuine pipeline shortage, and data showing benefits distributed evenly within categories rather than concentrated. That would remove most of Chapter 3.

Neither set is currently close. Census 2027 will move several of these numbers for the first time in ninety-five years, and I expect to have to revise something.

A Design For 2047

Eight measures. Concrete enough to be argued with, and none of them is "abolish" or "keep".

India will be a hundred years independent in 2047. Here is what I think should be in place by then, in order of how much difference it would make.

1 – DEFINE THE FINISH LINE

Parliament should define, by statute, what "adequate representation" under Article 16(4) means: proportional representation for a category sustained across Groups A, B and C for a stated period — ten consecutive years is a defensible figure. Publish the measurement annually. A category that meets it graduates out.

Why first: it removes the single strongest argument against the policy, at no cost to anyone currently benefiting, and it converts a permanent structure back into a remedy. Nothing in the Constitution prevents it.

2 – MANDATORY COMPOSITION REPORTING IN THE PRIVATE SECTOR

Not quotas. Every employer above a size threshold required to record and publish workforce composition by category, review recruitment and promotion practices periodically, and act where under-representation is found — with enforcement machinery behind it.

Why: this is Northern Ireland's mechanism, and it is the only programme in Part 13 that closed its gap and was wound down. It is also where India's sharpest measured discrimination sits — ten, six, three — and where nothing is currently counted.

3 – SUB-CLASSIFY EVERYTHING, USING CENSUS 2027

Extend to Other Backward Classes what the Supreme Court permitted for Scheduled Castes in 2024 and Telangana and Karnataka have implemented. Nearly four thousand castes cannot share one undivided quota once the data exists to split it.

Why: elite capture is the most robust international finding in this entire series. It is not an Indian flaw; it is a property of these programmes everywhere, and sub-classification is the only demonstrated architecture against it.

4 – MOVE TO A COMPOSITE INDEX

Not caste or income. Both, layered, as Brazil did: caste weighted heavily, plus first-generation-learner status, parental education, medium of schooling, rural residence and household assets.

Why: it targets far more precisely than either criterion alone, it dissolves the false choice the entire 2026 argument is built on, and India already has the framework — Mandal's own eleven weighted indicators.

5 – EXPAND, DO NOT REDISTRIBUTE

Where capacity can be increased, increase it, so that the number of unreserved places never falls. Fund the faculty and infrastructure that the 2008 and 2019 expansions did not.

Why: it is the only method that has ever defused this conflict in India, it worked twice, and the delimitation proposal before Parliament is already doing it at constitutional scale without anyone calling it reservation policy.

6 – FUND WHAT HAPPENS AFTER ADMISSION

Bridge courses, language support, mentoring and hostel provision, funded as a standing entitlement rather than a scheme.

Why: more than 13,500 reserved-category students dropped out of central universities, the IITs and the IIMs. Both explanations of that figure imply the same remedy. It is cheap, uncontroversial, and the only intervention in this book that requires nobody to lose an argument.

7 – FIX THE 1950 ORDER

Remove the religious test from Scheduled Caste status. A person of Scheduled Caste origin who converts to Islam or Christianity should be treated as Sikh and Buddhist converts already are.

Why: the current position is internally incoherent on its own stated logic, it has stood for seventy-six years, and the mobility evidence shows Muslim mobility declining over exactly the period in which Scheduled Caste mobility rose.

8 – PUBLISH THE DATA

EWS beneficiary composition. A continuous published series of Group A composition. An audit comparing the frequency of "none found suitable" for reserved and unreserved posts at the same institutions. A working definition of administrative efficiency under Article 335.

Why: each is cheap, each would settle a live dispute, and the fact that neither movement has demanded any of them tells you something about how much either wants the argument resolved.

■ INTERPRETATION

What this package is, and what it is not.

It is not a compromise between abolition and retention. Six of the eight measures are things neither side is asking for, and the two that touch the quota itself — defining a finish line and sub-classifying — would be resisted by the retention side.

It also does not solve caste. Nothing in it touches marriage, which Part 3 identified as the mechanism and Ambedkar named as the only solvent in 1936. I do not know what would, and I distrust anyone who says they do.

What it would do is make the policy defensible: targeted, measured, bounded, and finally aimed at the sector where the harm actually is.

What Each Side Would Have To Give Up

One thing each. Both are painful, and neither movement has shown any sign of contemplating it.

THE RETENTION SIDE WOULD HAVE TO GIVE UP PERMANENCE

Accept a defined, measurable finish line — and therefore accept that one day categories graduate out.

Why this is hard: because a threshold, once written, can be reached. And a movement built on the conviction that the injury is deep and continuing experiences any stated endpoint as a betrayal in advance.

Why they should: because the alternative is not permanence. It is legitimacy collapse. A remedy that cannot describe its own success stops being read as a remedy, and the July 2026 movement is what that looks like at five million followers. Defining the finish line is how you protect the policy, not how you lose it.

THE ABOLITION SIDE WOULD HAVE TO GIVE UP THE DIAGNOSIS

Accept that caste discrimination is real, current and measurable — 27%, ten-six-three, ninety-seven per cent — and argue about design instead of existence.

Why this is hard: because conceding the injury concedes that something is owed, and the emotional force of the movement comes from a sense of being wronged rather than of owing.

Why they should: because the case that concedes the diagnosis is *far stronger* than the case that denies it. Part 12 built it, and it is formidable. Every time a prominent voice says the atrocities were invented, they trade a winnable argument about mechanism for an unwinnable one about facts.

■ INTERPRETATION

And what each would get.

The retention side would get a policy that is defensible in public for the first time in decades — targeted by evidence, bounded by a stated goal, and extended into the private sector where most Indians actually work. It would also get an answer to the question that has embarrassed it since 1950.

The abolition side would get the redesign it actually wants. Every specific complaint they make — arbitrary thresholds, elite capture, no exit, incoherent categories — is addressed by Chapter 8. What they would not get is the deletion of the record, which was never going to end caste anyway.

Both would have to stop enjoying the argument, which is the real obstacle. It is a good argument. It is free, it is loud, it costs nothing, and it can be had forever.

What You Should Actually Do

For the reader, whatever you concluded.

You have read fourteen books about a policy you probably cannot change. Here is what that is actually worth.

1. Be harder to fool

This was the promise in Part 2 and it is the main deliverable. When somebody tells you 70% is reserved, you know the figure and you know why horizontal quotas do not add. When somebody says reservation was only for ten years, you know which Article and which subject. When somebody says the atrocities were invented, you know about the purified tank at Mahad and the 27%.

That is a small thing that compounds. Most arguments are won by whoever has an actual number.

2. Correct your own side first

It is easy to fact-check people you disagree with and useless. Nobody changes their mind because a stranger corrected them.

The only corrections that land come from inside. If you are broadly against reservation, the most valuable thing you can do is tell your own people that the Group A figures exist. If you are broadly for it, tell yours that reserved posts sit empty and that elite capture is a finding of the Supreme Court.

3. Notice what is missing rather than what is loudest

When you see this argument, ask which of the eight items from Part 12 is being discussed. Usually none. Marriage, land, capital, the private sector, student support, Dalit Muslims and Christians, denotified tribes, measurement.

Anyone who raises one of those is being more useful than anyone with a hashtag.

4. Watch three numbers, not the noise

- ▶ **Inter-caste marriage rates.** Currently around 5%. If this rises steeply, caste dissolves regardless of policy. Nothing else predicts as well.
- ▶ **Group A composition.** Published annually. If it climbs steadily towards quota, the retention case strengthens; if it stays flat, the abolition critique does.
- ▶ **Census 2027.** The caste count in February 2027 will reset the terms of everything in this series.

5. And if you are going to act, act on something specific

Of the eight measures in Chapter 8, two require no legislation and no money: **publishing data the government already holds**, and **funding student support**. Both are winnable. Neither has a campaign.

A movement of five million people demanding an audit of "none found suitable" and a published EWS beneficiary series would get them, and would learn something either way. A movement of five million people demanding abolition will get a general election.

The Last Word

Closing note.

In the last week of July 2026 I watched an account go from nothing to nearly six million followers in seven days, and noticed that almost nobody arguing seemed to know what they were arguing about. That was the whole reason for this.

Fourteen parts later, the thing I did not expect is how much both sides were owed.

The people demanding abolition are, in the main, not bigots. They are young, they are frightened, and they are competing for a diminishing number of secure positions in a country that has not created enough of them. Their diagnosis is wrong and their proposal would fail. Their frustration is not manufactured.

And the people defending reservation are defending something that works, that was won at enormous cost, and that answers an injury this series has established beyond reasonable dispute. They are also defending a machine they will not open, with a target they will not name, in a sector that is shrinking underneath them.

Both movements are arguing about a policy. Neither is arguing about caste. That is the whole finding, and it took me fourteen books to see it.

Caste is reproduced in weddings. It is held up by land, by credit, by who your neighbours will rent to and who an employer calls back. Every one of those is outside the argument that five million people are having, and every one of them is where the difference between Indians actually lives.

Reservation is a real remedy for one part of it. It is not the disease, it is not the cure, and it was never going to be either.

Three things to keep

The first is a fact. Twenty-seven per cent of Indian households told researchers that their own family practises untouchability. Not victims — the people doing it, describing themselves, about something unlawful, with nothing to gain by saying yes. Whatever else you take from this series, that number should stay with you, because it is the floor and not the ceiling.

The second is a sentence. Ambedkar, in 1936: "*The real remedy for breaking caste is inter-marriage. Nothing else will serve as the solvent of caste.*" The man who designed the constitutional provisions

said in writing that they were not the solvent. Ninety years on, neither side quotes him on it, because it points at families rather than governments.

And the third is a warning, which is the last thing this series has to say.

A remedy that cannot describe its own success will eventually be destroyed by people who were wrong about it. That is what July 2026 was — a movement built on false premises, gathering five million people in a week, because the thing it attacked had spent seventy-six years refusing to say what it was for.

The way to save reservation is not to defend it harder. It is to define it, measure it, target it properly, extend it where the harm actually is, and say out loud what would count as having finished.

Nobody on either side wants to do any of that. Which is why, on the evidence of everything in these fourteen books, I expect this argument to be had again in ten years, by different people, with the same bad numbers, and rather more heat.

I hope I am wrong. I have been wrong six times already in this series, and every one of them made it better.

— **Lovepreet Singh**
July 2026

Sources & Notes

Part 14 contains no new research. Every factual claim is carried forward from Parts 1 to 13.

Where each claim was established

The 27% untouchability self-report, ~5% inter-caste marriage, the 10 : 6 : 3 correspondence study, the ~97% manual-scavenging composition, and the documented events at Mahad, Vaikom and Travancore — Part 6.

Group A composition (SC 14.2%, ST 6.54%, OBC 19.14%), Group C and sanitation composition, reserved faculty vacancies, the 4,297 "none found suitable" positions, the 7–8 rank point mobility finding, and the land, enterprise and wealth figures — Part 11.

Article 16(4)'s undefined condition, Article 335, Ambedkar's statement of 30 November 1948, Article 334 and the amendment history — Part 8. **The 2025 NEET closing scores** — Part 1.

The EWS threshold and its derivation, the Jat delisting, state reservation totals, the 2024 sub-classification judgment, Telangana and Karnataka, Census 2027 and the delimitation proposal — Part 10. **The 1991 economic quota and the 2006–08 seat expansion** — Part 9.

Caste inside four religions and the Constitution (Scheduled Castes) Order 1950 — Part 4. **Endogamy as the mechanism and Ambedkar on intermarriage** — Parts 3 and 7. **The post-2023 United States enrolment data, Malaysia, Brazil, South Africa, Nepal and Northern Ireland** — Part 13. **The two steelmanned cases, the cross-examinations and the seven alternative positions** — Part 12.

A note on the verdict — and on corrections

Chapter 6 is opinion and is marked as such. It states the evidence that would overturn it, because a conclusion that nothing could disprove is not a conclusion. Chapter 7 is a proposal, not a finding; each measure is drawn from something demonstrated somewhere in the series, but the package as a whole has never been tried and I make no claim that it would work as intended.

Chapter 1 lists six positions I abandoned during this series. I expect to abandon more. Census 2027 reports caste data in February 2027 and will be the first genuine measurement of several quantities this series has had to estimate from 1931 arithmetic; I anticipate having to revise at least one substantial claim when it lands.

If you find an error anywhere in these fourteen books, I want to know. A series whose central argument is that both sides are running on bad numbers has no business running on bad numbers itself.

END OF THE RESERVATION FILES

THE RESERVATION FILES The Verdict

Researched and written by **Lovepreet Singh**

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*Fourteen parts. One argument.
Thank you for reading all of it.*